

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[988 NE2d 497, 965 NYS2d 762]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM MONROE, Appellant.

Argued February 7, 2013; decided April 2, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 1, 2011. The Appellate Division affirmed an order of the Supreme Court, New York County (Bruce Allen, J.), which had denied defendant's CPL 440.10 motion to vacate a judgment of that court convicting defendant, upon his plea of guilty, of conspiracy in the second degree, and denied defendant's CPL 440.46 motion for resentencing under the same conviction.

People v Monroe, 89 AD3d 429, reversed.

HEADNOTE

Crimes — Plea of Guilty — Withdrawal of Plea — Plea Induced by Promise of its Effect on Defendant's Minimum Term of Incarceration

An order of the Appellate Division, which affirmed the denial of defendant's request to withdraw his guilty plea and his motion for resentencing, was reversed and the case remitted for further proceedings. Defendant, who was serving concurrent 4½ to 9 year indeterminate sentences for two drug-related convictions when he pleaded guilty to conspiracy in exchange for an indeterminate sentence of 6 to 12 years in prison upon the judge's representations that the plea would extend his minimum term of incarceration by only a year and a half, moved to have his guilty plea vacated following the reduction of his drug sentences to concurrent determinate sentences of three years under the Drug Law Reform Act of 2009 (CPL 440.46). Defendant's plea to the conspiracy count was induced by the judge's specific representation to him that he would thereby extend his minimum incarceratory term by a year and a half only. It could not be said that defendant, who was clearly working toward achieving the earliest release date possible, would have pleaded guilty absent

the assurance concerning the extension of his minimum term. When a guilty plea has been induced by an unfulfilled promise either the plea must be vacated or the promise honored, but the choice rests in the discretion of the sentencing court.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Claudia S. Trupp* and *Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Frank Glaser* and *Patrick J. Hynes* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

On November 22, 2005, defendant William Monroe pleaded guilty to third-degree criminal possession of a controlled substance (Penal Law § 220.16 [1]), and third-degree criminal sale of a controlled substance (Penal Law § 220.39 [1]), both class B drug felonies. Defendant was sentenced to an indeterminate term of imprisonment of 4¹/₂ to 9 years for each crime, ordered to run concurrently; he began serving these sentences on January 9, 2006. Defendant was subsequently accused of participating in a narcotics trafficking conspiracy; the 41-count indictment charged him with second-degree conspiracy (Penal Law § 105.15) and several class B drug felonies alleged to have occurred as early as December 21, 2005 and as late as January 4, 2006. On August 10, 2007, defendant appeared before Supreme Court to plead guilty to a single count of conspiracy in full satisfaction of the indictment in exchange for an indeterminate sentence of 6 to 12 years in prison.

At the plea hearing, defendant hesitated when the judge asked him if he needed more time to discuss the decision to plead guilty with his attorney. After a pause in the proceedings for defendant and counsel to confer, the attorney advised the judge that his client was concerned about how the sentence offered by the People related to the sentences he was already serving. At the time, defendant legitimately expected to be released from prison at his earliest parole eligibility date: he had received no disciplinary tickets resulting in lost good time; he was successfully progressing through correctional programming as well as scoring high marks in his pre-general equivalency diploma

(GED) classes;* his teachers praised him for his interest, attitude and work habits. The attorney then stated his “understanding” that defendant would be “subject to an indeterminate sentence of six to 12 years and it [would] run concurrent to the term that he’s presently serving.” The judge replied, “Yes. And in addition it will run *nunc pro tunc*. That means the six to 12 will begin on the same day that the four and a half to nine began.” Defendant replied, “I understand.” The judge then specifically represented to defendant, “So it’s an additional year and a half in effect before parole,” and he responded, “Yes, I understand.”

Following enactment of the Drug Law Reform Act of 2009 (L 2009, ch 56, part AAA, § 9, codified at CPL 440.46) (the DLRA), defendant sought relief from his sentences for the class B drug felonies. On April 16, 2010, the DLRA resentencing court granted his application, reducing both concurrent 4½-to-9-year indeterminate sentences to concurrent determinate sentences of three years, to be followed by two years of postrelease supervision.

In July 2010, defendant moved pursuant to CPL article 440 for an order vacating his plea to conspiracy and the resulting judgment of conviction and sentence, and resentencing him to a reduced determinate term of imprisonment. He argued that his plea was unknowing because induced by a promise that the agreed-to 6-to-12-year indeterminate sentence to be imposed would extend his earliest possible parole date by only a year and a half, as he was specifically assured by the judge at the plea hearing; after resentencing on the class B drug felonies, though, the gap between the minimum terms of incarceration doubled from the year and a half that he had counted on when he pleaded guilty to three years. Supreme Court denied defendant’s motion, concluding that the resentencing for the class B drug felonies, while “reduc[ing] somewhat the benefit [defendant] expected to receive from his plea[, did] not render it unknowing or involuntary”; the Appellate Division affirmed (89 AD3d 429 [1st Dept 2011]). A Judge of this Court granted defendant leave to appeal (19 NY3d 865 [2012]), and we now reverse.

Defendant’s plea to the conspiracy count was induced by the judge’s specific representation to him that he would thereby extend his minimum incarceratory term by a year and a half

* Defendant subsequently received his GED in October 2008.

only. It simply cannot be said on this record that defendant, who was clearly working toward achieving the earliest release date possible, would have pleaded guilty absent this assurance. Generally, “when a guilty plea has been induced by an unfulfilled promise either the plea must be vacated or the promise honored, but . . . the choice rests in the discretion of the sentencing court” (see *People v McConnell*, 49 NY2d 340, 346 [1980]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH and PIGOTT concur; Judge RIVERA taking no part.

Order reversed and case remitted to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein.

[988 NE2d 513, 965 NYS2d 777]

In the Matter of CITY OF UTICA, Respondent, v RICHARD F. DAINES, as Commissioner of Health, et al., Appellants. UTICA AMBULANCE SERVICE, INC., Doing Business as KUNKEL AMBULANCE SERVICE, Intervenor-Appellant.

Decided April 2, 2013

SUMMARY

APPEALS from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 10, 2012. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Albany County (Patrick J. McGrath, J.), entered in a proceeding pursuant to CPLR article 78, which had dismissed petitioner’s application to review a determination of the New York State Emergency Medical Services Council denying petitioner’s application for a certificate of need for its ambulance service, (2) annulled the determination, and (3) granted the petition to that extent.

Petitioner municipality adopted a resolution authorizing its fire department to operate an ambulance service, and thereafter was granted a two-year operating certificate for that purpose. Prior to the expiration of that initial two-year certificate, petitioner applied to the appropriate regional emergency medical services council for approval to continue operation of its municipal ambulance service. Following a public hearing, the regional council denied petitioner’s application, and petitioner appealed to respondent New York State Emergency Medical

Services Council. Petitioner's administrative appeal proved to be unsuccessful, prompting it to commence a CPLR article 78 proceeding to challenge the determination of the state council. Supreme Court dismissed the petition, finding that the determination of the state agency was rational. The Appellate Division reversed, concluding that both regulatory agencies had failed to adhere to the statutory framework and failed to afford petitioner's application the strong presumption of approval to which it was entitled. Following the Appellate Division's determination, the legislature amended the Public Health Law and petitioner received its ambulance service certificate.

Matter of City of Utica v Daines, 95 AD3d 1467, reversed.

HEADNOTE

Appeal — Academic and Moot Questions — Dismissal of Proceeding

In a proceeding to review a determination denying petitioner's application for a certificate of need for its ambulance service, an order of the Appellate Division, which had reversed a judgment dismissing the petition, annulled the determination and granted the petition to that extent, was reversed, and the proceeding remitted to Supreme Court with directions to dismiss the proceeding solely on the ground of mootness.

APPEARANCES OF COUNSEL

Girvin & Ferlazzo, P.C., Albany (*Patrick J. Fitzgerald, III*, of counsel), for intervenor-appellant.

Roemer Wallens Gold & Mineaux, LLP, Albany (*Matthew J. Kelly* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, without costs, and the proceeding remitted to Supreme Court, Albany County, with directions to dismiss the proceeding solely on the ground of mootness.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

[988 NE2d 499, 965 NYS2d 764]

In the Matter of the Arbitration Between the CITY OF OSWEGO,
Appellant, and OSWEGO CITY FIREFIGHTERS ASSOCIATION,
LOCAL 2707, Respondent.

Argued February 13, 2013; decided April 2, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 16, 2012. The Appellate Division affirmed an order of the Supreme Court, Oswego County (Norman W. Seiter, Jr., J.), which, in a proceeding pursuant to CPLR article 75, had denied a petition to vacate an arbitration award and confirmed the award.

The City of Oswego and the Oswego City Firefighters Association, Local 2707, were parties to an agreement concerning the employment of firefighters in the city. That agreement was effective as of January 1, 2007, and was to remain “in full force and effect” through December 31, 2009. As pertinent, section 26.1 of the agreement provided that the city would pay the firefighters’ costs in the New York State Policemen’s and Firemen’s Retirement System (PFRS). In addition, the city agreed to make a section 384-d retirement plan (Retirement and Social Security Law § 384-d) available to the firefighters. In 2009, the legislature enacted Retirement and Social Security Law article 22, which provides, in relevant part, that all members of the PFRS who joined the PFRS on or after the effective date of article 22 would be required to contribute 3% of their annual wages to the state retirement fund in which they were enrolled. The legislature created an exception setting forth that, “[n]otwithstanding any provision of law to the contrary, nothing in this act shall limit the eligibility of any member of an employee organization to join a special retirement plan open to him or her pursuant to a collectively negotiated agreement with any state or local government employer, where such agreement is in effect on the effective date of this act and so long as such agreement remains in effect thereafter; provided, however, that any such eligibility shall not apply upon termination of such agreement for employees otherwise subject to the provisions of article twenty-two of the retirement and social security law” (L 2009, ch 504, part A, § 8). Shortly after article 22 took effect, the New York State Retirement System (Retirement System) requested that the city provide copies of any agreements covering PFRS employees that

were “in effect” on January 9, 2010. The city responded by enclosing the subject agreement, and noted that it “expired on December 31, 2009” and was “currently being renegotiated.” Ultimately, the Retirement System advised the city that firefighters hired on or after the effective date of article 22 would have to contribute toward their retirements inasmuch as the last contract “expired on December 31, 2009.” In the meantime, the city had hired several firefighters and when the city refused to contribute toward their respective retirements, the firefighters’ union filed a grievance and sought arbitration of that grievance. In his “opinion and award,” the arbitrator concluded, among other things, that the firefighters who were hired by the city after the effective date of article 22 were eligible to elect to participate in the 384-d plan provided for in section 26.1 of the agreement and that the city would be required to pay for the employees’ contributions as negotiated under the terms of that agreement.

Matter of City of Oswego (Oswego City Firefighters Assn., Local 2707), 93 AD3d 1243, reversed.

HEADNOTE

Arbitration — Confirming or Vacating Award — Public Sector Retirement Plan

The Court of Appeals reversed an order of the Appellate Division affirming a Supreme Court order, which had confirmed an arbitration award requiring petitioner municipality to provide a retirement benefit to its firefighters, and the petition to vacate the award was granted.

APPEARANCES OF COUNSEL

Roemer Wallens Gold & Mineaux LLP, Albany (*Earl T. Redding* of counsel), for appellant.

Satter & Andrews, LLP, Syracuse (*Mimi C. Satter* and *Sarah E. Ruhlen* of counsel), for respondent.

Hinman Straub P.C., Albany (*Joseph M. Dougherty* and *Jennie L. Shufelt* of counsel), for New York State Professional Firefighters Association, I.A.F.F., AFL-CIO, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the petition to vacate the arbitration award granted.

The Collective Bargaining Agreement between petitioner, the City of Oswego, and respondent, Oswego City Firefighters Association, Local 2707, expired on December 31, 2009. For the

same reasons given in *Matter of City of Yonkers v Yonkers Fire Fighters, Local 628, IAFF, AFL-CIO* (20 NY3d 651 [2013] [decided today]), chapter 504 of the Laws of 2009 (part A, § 8) does not permit the firefighters in this case to retain their noncontributory retirement benefit plan. The arbitration award here required the City of Oswego to provide a benefit that is no longer authorized by law and, in the circumstances, “the final result creates an *explicit* conflict with other laws” and “the strong and well-defined policy considerations” embodied therein (*Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York*, 94 NY2d 321, 327 [1999]; see CPLR 7511 [b] [1] [iii]). Consequently, the award must be vacated.

Chief Judge LIPPMAN (dissenting). For the reasons stated in my dissent in *Matter of City of Yonkers v Yonkers Fire Fighters, Local 628, IAFF, AFL-CIO* (20 NY3d 651, 659 [2013] [decided today]), I believe the Collective Bargaining Agreement (CBA) between the City of Oswego (the City) and the Oswego City Firefighters Association (the Union) was “in effect” for purposes of chapter 504 of the Laws of 2009 (part A, § 8) and that arbitration of the present dispute was not prohibited.

Additionally, there is no public policy justification under our precedents to vacate the arbitration award here. There are only limited instances where an arbitration award can be vacated, and the City cannot demonstrate that the arbitrator’s award is against public policy. In general, “arbitration is considered so preferable a means of settling labor disputes that it can be said that public policy impels its use” (*Matter of Associated Teachers of Huntington v Board of Educ., Union Free School Dist. No. 3, Town of Huntington*, 33 NY2d 229, 236 [1973]). Moreover, “an arbitrator’s rulings, unlike a trial court’s, are largely unreviewable” (*Matter of Falzone [New York Cent. Mut. Fire Ins. Co.]*, 15 NY3d 530, 534 [2010]). In *Matter of Kowaleski (New York State Dept. of Correctional Servs.)* (16 NY3d 85, 90 [2010]), we deemed it “well-settled” that an arbitrator exceeds his or her power only if the “award violates a strong public policy, is irrational or clearly exceeds a specifically enumerated limitation on the arbitrator’s power” (*id.* [internal quotation marks and citation omitted]; see also CPLR 7511 [b] [1] [iii]). We further noted that “[o]utside of these narrowly circumscribed exceptions, courts lack authority to review arbitral decisions, even where an arbitrator has made an error of fact or law” (*Kowaleski*, 16 NY3d at 91 [internal quotation marks omitted]; see also *Matter*

of *Falzone*, 15 NY3d at 534). We determined in *Matter of New York State Correctional Officers & Police Benevolent Assn. v State of New York* (94 NY2d 321, 326 [1999]) that

“[a] court cannot examine the merits of an arbitration award and substitute its judgment for that of the arbitrator simply because it believes its interpretation would be the better one. Indeed, even in circumstances where an arbitrator makes errors of law or fact, courts will not assume the role of overseers to conform the award to their sense of justice.”

Courts are called, therefore, to exercise restraint in order to preserve the arbitration process and to allow parties to choose a nonjudicial forum to decide their disputes (*Matter of Sprinzen [Nomberg]*, 46 NY2d 623, 630 [1979]).

Only the public policy grounds for vacatur are at issue here. The two-prong test for determining whether an arbitration award violates public policy consists of: (1) “where a court can conclude without engaging in any extended fact-finding or legal analysis that a law prohibits, in an absolute sense, the particular matters to be decided by arbitration, an arbitrator cannot act,” and (2) “an arbitrator cannot issue an award where the award itself violates a well-defined constitutional, statutory or common law of this State” (*Matter of United Fedn. of Teachers, Local 2, AFT, AFL-CIO v Board of Educ. of City School Dist. of City of N.Y.*, 1 NY3d 72, 80 [2003] [punctuation and citation omitted]).

Here, we cannot say with or without extended legal analysis that the law prohibits arbitration of liability concerning contributions to a public employees’ retirement fund. Though Civil Service Law § 201 (4) and Retirement and Social Security Law § 470 prohibit negotiation of retirement benefits, the statutes say nothing about whether grievances regarding contributions to the New York State Policemen’s and Firemen’s Retirement System are arbitrable.

Nor does the award on its face violate a “well-defined” law of this state. The arbitrator decided that firefighters hired after the effective date of the 2009 retirement law amendment (Retirement and Social Security Law art 22) were permitted to elect a noncontributory plan as enumerated in the CBA and its predecessors dating back to 1993. The Court concludes that the arbitration award must be vacated because the City cannot be obligated to pay the 3% pension contribution on behalf of the

newly hired Oswego firefighters. The majority's rule cannot be described as a "well-defined" law of this state. Public employees have participated in noncontributory pension plans for years and continue to do so under existing CBAs. Only because of today's ruling in *Matter of Yonkers* has that rule changed for certain firefighters. Moreover, the courts have long been called upon to refrain from interference with arbitration, even where the arbitrator has committed an error of law or of fact (*see Matter of Weinrott [Carp]*, 32 NY2d 190, 194 [1973]). Here, at most, even if we were to accept the majority's untenable reading of the statutory language, it would just mean that the arbitrator made a legal error, which is unquestionably not a basis for vacating the award. Since the arbitrator's award does not conflict with a well-defined rule of law, the City cannot meet the high bar of showing that vacatur of the arbitration award is warranted.

Therefore, I respectfully dissent.

Judges GRAFFEO, SMITH and PIGOTT concur; Judge READ concurs in the result; Chief Judge LIPPMAN dissents in an opinion in which Judge RIVERA concurs.

Order reversed, with costs, and the petition to vacate the arbitration award granted, in a memorandum.

In the Matter of AMERRIAH S. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; CHRIS S., Appellant, et al., Respondent. (And Two Other Proceedings.)

Submitted January 7, 2013; decided April 2, 2013

Reported below, 100 AD3d 1006.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order sought to be appealed from, affirming the Family Court fact-finding order, does not finally determine the proceeding within the meaning of the Constitution. The final paper in this proceeding was the Family Court dispositional order.

RANDY BOND, Appellant-Respondent, v DANIEL GIEBEL et al., Defendants. PROGRESSIVE INSURANCE COMPANY, Proposed Intervenor-Respondent-Appellant. (And Another Action.)

Submitted January 28, 2013; decided April 2, 2013

Reported below, 101 AD3d 1340.

On the Court's own motion, appeal dismissed, without costs,

upon the ground that the order appealed from does not grant a new trial or hearing within the meaning of CPLR 5601 (c) (*see* Arthur Karger, Powers of the New York Court of Appeals § 8:3 at 258 [3d ed rev]). Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

GAIL CAVE, Appellant, v RIVERBEND HOMEOWNERS ASSOCIATION, INC., et al., Respondents, et al., Defendant.

Submitted February 25, 2013; decided April 2, 2013

Reported below, 99 AD3d 748.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HAMLET AT WILLOW CREEK DEVELOPMENT Co., LLC, et al., Respondents, v NORTHEAST LAND DEVELOPMENT CORPORATION, Respondent, and PAV-CO ASPHALT, INC., et al., Appellants, et al., Defendant. (And a Third-Party Action.)

Submitted February 19, 2013; decided April 2, 2013

Reported below, 99 AD3d 661.

Motion for leave to appeal, insofar as made by William Fehr, dismissed upon the ground that he is not a party aggrieved; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PHILIP F. HANLON, Appellant, v MICHAEL D. HEALY, Respondent.

Submitted February 11, 2013; decided April 2, 2013

Reported below, 98 AD3d 1304.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

O. ALDON JAMES, JR., et al., Appellants, v THE NATIONAL ARTS CLUB et al., Respondents.

Submitted February 19, 2013; decided April 2, 2013

Reported below, 99 AD3d 523.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WESTERN EXPRESS INTERNATIONAL, INC., et al., Defendants, and DOUGLAS LATTA et al., Appellants.

Decided April 2, 2013

Reported below, 85 AD3d 1.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie. The terms of this Court's remittitur were not violated [*see* 19 NY3d 652 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. HILARY BEST, Appellant, v ANN MARIE BARBAROTTA, Respondent.

Submitted February 25, 2013; decided April 2, 2013

Reported below, 2013 NY Slip Op 62849(U).

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot. Motion for a stay dismissed as academic.

In the Matter of KENNETH ROBINSON, Appellant, v JEFFREY ARLEN SPINNER et al., Respondents.

Decided April 2, 2013

Reported below, 101 AD3d 1130.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

MARLENE SCHER, Appellant, v PARAMOUNT PICTURES CORP. et al., Respondents.

Submitted March 4, 2013; decided April 2, 2013

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PHILIP SELDON, Appellant, v ANDREW SPINNELL, Respondent.

Submitted March 4, 2013; decided April 2, 2013

Reported below, 95 AD3d 779.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 20 NY3d 857 (2013)]. Cross motion for the imposition of sanctions denied.

Judge RIVERA taking no part.

WELLS FARGO, N.A., Doing Business as AMERICAS SERVICING COMPANY, Respondent, v OFRA LEVIN, Appellant, et al., Defendants.

Submitted February 25, 2013; decided April 2, 2013

Reported below, 101 AD3d 1519.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[988 NE2d 507, 965 NYS2d 771]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARVIN BYER, Appellant.

Argued March 18, 2013; decided April 25, 2013

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 3, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Megan Tallmer, J.), which had

convicted defendant, upon a jury verdict, of murder in the second degree.

People v Byer, 89 AD3d 456, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Admission of Prejudicial Evidence

In a prosecution for murder, any errors made by the trial court when it admitted a statement made by defendant and certain testimony of prosecution witnesses, which were alleged by defendant to be prejudicial and in violation of his constitutional rights to a fair trial, were harmless because they did not taint the fairness of the trial and evidence of defendant's guilt was overwhelming. The evidence against defendant included three statements to police, confessing in detail to the crime about which no specifics were disclosed prior to defendant's confession. Those statements were corroborated by forensic evidence. Although defendant testified that he falsely confessed out of love, to protect his girlfriend, such a story was utterly incredible. At the time of the murder the girlfriend was on dialysis, debilitated and too weak physically to have repeatedly and fatally stabbed the obese decedent. Nor was there any conceivable motive explaining why the girlfriend would have attacked the victim, a close friend and protector. By contrast, defendant's confession made his own motive clear: the girlfriend had told him earlier in the day that she wanted to end their relationship and he vented his rage on her friend, the victim, who he thought was interfering in the relationship. The jury heard overwhelming evidence of defendant's guilt and there was no probability that defendant would have been acquitted had the allegedly prejudicial evidence been excluded.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Bruce D. Austern* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Justin J. Braun*, *Joseph N. Ferdenzi* and *Nancy D. Killian* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant claims that his federal and state constitutional rights to a fair trial were violated by the admission of prejudicial evidence. At his trial for murder, arising from the multiple stabbing of his girlfriend's female friend and the subsequent dismemberment of her body, a police detective testified that during the course of defendant's initial statement, he told the detective that this was not his first body and that there were

nine others.* At another point in the trial, the victim's nephew testified that the victim told him that the defendant had threatened to "cut her up." Additionally, a social worker testified that defendant's live-in girlfriend (deceased by virtue of natural causes by the time of trial) had told the social worker about defendant's history of domestic violence. On the record before us, we find that any errors made were harmless because they did not taint the fairness of the trial and evidence of defendant's guilt was overwhelming.

The erroneous admissions, if any, did not rise to the level of a constitutional injury such as ineffectiveness of counsel or juror partiality (see *People v Arafet*, 13 NY3d 460, 467-468 [2009] [erroneous admission of prior bad conduct/crime was subject to nonconstitutional harmless error analysis]; see also *People v Mateo*, 2 NY3d 383, 399 [2004] [admission of defendant's statements about his commission of three other murders did not mandate reversal of the conviction]).

Errors of law of nonconstitutional magnitude may be found harmless where "the proof of the defendant's guilt, without reference to the error, is overwhelming" and where there is no "significant probability . . . that the jury would have acquitted the defendant had it not been for the error" (*People v Crimmins*, 36 NY2d 230, 241-242 [1975]). Here, the jury heard overwhelming evidence of defendant's guilt and there was no probability that defendant would have been acquitted had this evidence been excluded.

The overwhelming evidence against defendant included three statements to police, confessing in detail to the crime—including the placement of stab wounds on the victim's body—about which no specifics were disclosed prior to defendant's confession. These statements were corroborated by forensic evidence including blood stains in the apartment and dismembered body parts in plastic bags strewn around the neighborhood. Although defendant testified that he falsely confessed out of love, to protect his girlfriend, such a story was utterly incredible. At the time of the murder the girlfriend was on dialysis, debilitated and too weak physically to have repeatedly and fatally stabbed

* The reference to the nine bodies was not part of defendant's subsequent signed or videotaped statements. The court instructed the police detective to mention the portion of the statement about the nine bodies only once during his testimony, instructed the jury to consider the statement about the nine bodies only as it related to the voluntariness of defendant's confession, and reiterated that instruction in its final charge to the jury. Significantly, the prosecutor did not mention the statement during her summation.

the obese decedent. Nor was there any conceivable motive explaining why the girlfriend would have attacked the victim, a close friend and protector. By contrast, defendant's confession made his own motive clear: the girlfriend had told him earlier in the day that she wanted to end their relationship and he vented his rage on her friend, the victim, who he thought was interfering in the relationship.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur.

Order affirmed, in a memorandum.

[988 NE2d 511, 965 NYS2d 775]

TERESA SANCHEZ, Appellant, v NATIONAL RAILROAD PASSENGER CORP., Doing Business as AMTRAK, Respondent, et al., Defendant.

Argued March 21, 2013; decided April 25, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 28, 2012. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, New York County (Marylin G. Diamond, J.), which had dismissed the complaint.

Sanchez v National R.R. Passenger Corp., 92 AD3d 600, reversed.

HEADNOTE

Limitation of Actions — Three-Year Statute of Limitations — Conflicting Proof of Date Cause of Action Arose

In a personal injury action, defendant's motion for summary judgment dismissing the complaint on statute of limitations grounds was incorrectly granted where plaintiff specifically recalled in her verified complaint and bill of particulars that she was injured on a date which would render her case timely commenced. Although defendant tendered sufficient evidence to establish a prima facie showing of its entitlement to judgment as a matter of law based on the expiration of the statute of limitations, plaintiff proffered sufficient proof of a material issue of fact as to the date of injury. CPLR 105 (u) allows the verified complaint and bill of particulars to be considered as affidavits. The conflicting proof pertaining to the incident date presented a question of fact that could not be resolved in the context of a summary judgment motion.

APPEARANCES OF COUNSEL

Arnold E. DiJoseph, P.C., New York City (*Arnold E. DiJoseph, III*, of counsel), for appellant.

Jeffrey Samel & Partners, New York City (*David Samel* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and plaintiff's complaint reinstated.

Most personal injury claims are governed by a three-year statute of limitations (*see* CPLR 214 [5]). Plaintiff has alleged that she was injured while working at Penn Station on February 10, 2005. She commenced this negligence action against defendant National Railroad Passenger Corp. (Amtrak) and another entity on February 6, 2008. Amtrak responded with an affidavit by plaintiff's supervisor and purported business documents indicating that the accident occurred on February 5, 2005. Based on that evidence, Amtrak moved for summary judgment dismissing the complaint on the ground that plaintiff's action was filed one day after the limitations period expired. Plaintiff, in turn, relied on the facts asserted in her complaint and bill of particulars. Both pleadings were verified by plaintiff and she attested in her bill of particulars that the accident happened "on February 10, 2005 at or about 2:30 p.m." Additionally, plaintiff submitted records pertaining to her workers' compensation claim, all of which listed February 10, 2005 as the date of the incident.

Supreme Court granted Amtrak's motion and dismissed the complaint. The Appellate Division affirmed, concluding that the assertions in plaintiff's verified pleadings were insufficient to refute Amtrak's proof that the accident date was February 5, 2005 (*see* 92 AD3d 600 [1st Dept 2012]). Two dissenting Justices would have denied summary judgment because the verified pleadings raised an issue of fact regarding the date plaintiff sustained her injuries. Plaintiff now appeals as of right.

We agree with the dissenting Justices that summary judgment is not warranted. Although Amtrak tendered sufficient evidence to establish a prima facie showing of its entitlement to judgment as a matter of law based on the expiration of the statute of limitations (*see generally Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]), plaintiff proffered sufficient proof of a material issue of fact as to the date of injury. CPLR 105 (u) allows the verified complaint and bill of particulars to be considered as affidavits (*see e.g. Travis v Allstate Ins. Co.*, 280 AD2d 394, 394-395 [1st Dept 2001]). In those documents,

plaintiff specifically recalled that she was injured on February 10, 2005, which would render this case timely commenced. The conflicting proof pertaining to the incident date presents a question of fact that cannot be resolved in the context of a summary judgment motion. Consequently, Amtrak's motion must be denied and plaintiff is entitled to reinstatement of the complaint.

SMITH, J. (dissenting). I would affirm the Appellate Division's order. The record, read as a whole, does not present a genuine issue of fact as to the date of the accident. While plaintiff's complaint alleged a February 10 accident date, plaintiff admitted at her deposition that she did not remember what day the accident happened. Thus, she failed to show that she could present proof, admissible at trial, that it happened on February 10.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, PIGOTT and RIVERA concur; Judge SMITH dissents and votes to affirm in an opinion.

Order reversed, with costs, and plaintiff's complaint reinstated, in a memorandum.

[988 NE2d 505, 965 NYS2d 770]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL FLOYD, Appellant.

Decided April 25, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 15, 2012. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Michael A. Gary, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, manslaughter in the second degree, and criminal possession of a weapon in the second degree.

People v Floyd, 95 AD3d 1138, reversed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Right to Public Trial

In a homicide prosecution, the trial court improperly excluded defendant's mother from the courtroom before jury selection and defense counsel properly preserved his objection to her exclusion. Mere courtroom overcrowding is not

an overriding interest justifying courtroom closure, and the trial judge failed to consider reasonable alternatives before excluding defendant's mother from the courtroom. That violation was per se prejudicial and required a new trial. In addition, defense counsel preserved his objection by stating to the trial court that, as a public spectator, defendant's mother had "an absolute right to be present . . . I can't think of anything else at this particular point about which I might make a record." His statements "unquestionably apprised" the trial judge of the constitutional rights at issue and the obligation to consider reasonable alternatives.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Allegra Glashausser* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Rhea A. Grob* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

Defendant was convicted of second degree felony murder, second degree manslaughter, and second degree criminal possession of a weapon for murdering Leon Hill during the robbery of an underground dice game. Before jury selection, defense counsel informed the judge that defendant's mother was waiting outside, unable to find a seat in the courtroom. Defense counsel observed, "[c]ertainly, as a public spectator, she has an absolute right to be present . . . I can't think of anything else at this particular point about which I might make a record."

The trial judge informed defense counsel that because the jury panel was larger than normal, defendant's mother would need to wait outside the courtroom until he could excuse jurors to create room. Defense counsel replied "right" and informed defendant's mother.

The Appellate Division found that defendant failed to preserve his objection to his mother's exclusion from the courtroom and otherwise upheld his convictions (*People v Floyd*, 95 AD3d 1138, 1139 [2d Dept 2012]). We reverse.

Defendants have a constitutional right to a "public trial" (US Const Amend VI; *Presley v Georgia*, 558 US 209, 211-214 [2010]). Mere courtroom overcrowding is not an overriding interest justifying courtroom closure, and the trial judge failed to consider reasonable alternatives before excluding defendant's mother from the courtroom (*People v Alvarez*, 20 NY3d 75

[2012]; *People v Martin*, 16 NY3d 607, 612 [2011]). This violation is per se prejudicial and requires a new trial (*Martin*, 16 NY3d at 613).

Defense counsel properly preserved his objection by raising the issue to the trial court when given the opportunity to “make a record” before jury selection. His statements “unquestionably apprised” the trial judge of the constitutional rights at issue and the obligation to consider reasonable alternatives (*People v Garcia*, 95 NY2d 946 [2000]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and a new trial ordered, in a memorandum.

TIFFANY APPLEWHITE et al., Respondents, v ACCUHEALTH, INC., et al., Defendants, and CITY OF NEW YORK, Appellant.

Submitted April 22, 2013; decided April 25, 2013

Reported below, 90 AD3d 501.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

JULIAN ARRENDAL, Plaintiff, v TRIZECHAHN CORPORATION et al., Defendants. TRIZECHAHN CORPORATION, Third-Party Plaintiff-Appellant, v SUBWAY REAL ESTATE CORP., Third-Party Defendant-Respondent and Third Third-Party Plaintiff-Respondent. KASHIF D. CREARY et al., Third Third-Party Defendants-Respondents.

Submitted March 4, 2013; decided April 25, 2013

Reported below, 98 AD3d 701.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JEANA BARENBOIM et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

EUGENE WINANS et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, et al., Plaintiff, v STARBUCKS CORPORATION, Respondent.

Submitted April 22, 2013; decided April 25, 2013

See 698 F3d 104.

Motion by New York State Restaurant Association, Inc. for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

In the Matter of JOEL R. BRANDES, a Disbarred Attorney.

Decided April 25, 2013

Reported below, 2012 NY Slip Op 93875(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved. Judiciary Law § 90 (8) does not provide an independent predicate for an appeal as of right to the Court of Appeals.

In the Matter of OLEG CASSINI, Deceased. CHRISTINA CASSINI, Respondent; MARIANNE NESTOR CASSINI, Appellant.

Submitted January 7, 2013; decided April 25, 2013

Reported below, 95 AD3d 1311.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JOHN DOE, Appellant, v GUTHRIE CLINIC, LTD., et al., Respondents.

Decided April 25, 2013

See 710 F3d 492.

Certification of a question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

In the Matter of ANTHONY C. DONOFRIO, an Attorney, Appellant.
GRIEVANCE COMMITTEE FOR THE TENTH JUDICIAL DISTRICT,
Respondent.

Decided April 25, 2013

Reported below, 104 AD3d 64.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question. Judiciary Law § 90 (8) does not provide an independent predicate for an appeal as of right to the Court of Appeals.

NADIA DOS SANTOS et al., Appellants, v POWER AUTHORITY OF
THE STATE OF NEW YORK, Respondent, et al., Defendant.

Submitted March 4, 2013; decided April 25, 2013

Reported below, 85 AD3d 718.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 856 (2013)].

Judge RIVERA taking no part.

EBC I, INC., Formerly Known as ETOYS INC., Appellant, v GOLD-
MAN SACHS & CO., Respondent.

Submitted April 22, 2013; decided April 25, 2013

Reported below, 91 AD3d 211.

Motion by Securities Industry and Financial Markets Association for leave to file a brief amicus curiae on the appeal herein

granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

MARIA GONZALES et al., Respondents, v IHAY ZINNER et al.,
Respondents. ESQUIRE GROUP ESTATES, LLC, et al.,
Intervenors-Appellants. (And Another Action.)

Submitted March 4, 2013; decided April 25, 2013

Reported below, 100 AD3d 557.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

In the Matter of SHAWN GREEN, Appellant, v BRIAN FISCHER, as
Commissioner of Corrections and Community Supervision,
Respondent.

Submitted February 4, 2013; decided April 25, 2013

Reported below, 96 AD3d 1247.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 855 (2013)].

Judge RIVERA taking no part.

In the Matter of the Claim of PATRICIA KEANE, Appellant. COM-
MISSIONER OF LABOR, Respondent.

Submitted February 19, 2013; decided April 25, 2013

Reported below, 93 AD3d 1002.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 854 (2012)].

Judge RIVERA taking no part.

M & C BROTHERS, INC., Respondent, v BRADLEY W. TORUM et al., Defendants. TATIANA NERONI, ESQ., Nonparty Appellant.

Decided April 25, 2013

Reported below, 101 AD3d 1329.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN taking no part.

NELLA MANKO, Appellant, v ELTON STRAUSS et al., Respondents, et al., Defendants.

Submitted January 22, 2013; decided April 25, 2013

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as denied appellant's motion to renew her prior motion for poor person relief and for the assignment of counsel, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v SHOREFRONT APARTMENTS, LLC, et al., Respondents.

Submitted March 4, 2013; decided April 25, 2013

Reported below, 2012 NY Slip Op 89175(U).

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of PAUL MURPHY, Respondent, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Appellant, and SOUTHBRIDGE TOWERS, INC., Respondent.

Submitted April 15, 2013; decided April 25, 2013

Reported below, 91 AD3d 481.

Motion by City of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JESSE ABNER, Appellant.

Submitted April 15, 2013; decided April 25, 2013

Reported below, 101 AD3d 1628.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALFREDO ARIOS, Appellant.

Submitted April 15, 2013; decided April 25, 2013

Reported below, 100 AD3d 1264.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TODD JOHNSON, Appellant.

Submitted March 25, 2013; decided April 25, 2013

Reported below, 99 AD3d 472.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY LAM, Appellant.

Submitted April 8, 2013; decided April 25, 2013

Reported below, 34 Misc 3d 130(A).

Motion for assignment of counsel granted and Steven Banks,

Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY LEWIS, Appellant.

Submitted April 15, 2013; decided April 25, 2013

Reported below, 102 AD3d 505.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER MARTINEZ, Appellant.

Submitted April 22, 2013; decided April 25, 2013

Reported below, 95 AD3d 677.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERENCE McCRAY, Appellant.

Submitted April 8, 2013; decided April 25, 2013

Reported below, 102 AD3d 1000.

Motion for assignment of counsel granted and Paul J. Connolly, Esq., 2 Wedge Road, Delmar, New York 12054 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FREDERICK PAGAN, Appellant.

Submitted April 15, 2013; decided April 25, 2013

Reported below, 103 AD3d 978.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES PEARSON, Appellant.

Submitted March 4, 2013; decided April 25, 2013

Reported below, 39 Misc 3d 137(A).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion from the order of the Appellate Term (*see* CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS RILEY, Appellant.

Decided April 25, 2013

Reported below, 2012 NY Slip Op 92642(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN ROSSI, Appellant.

Submitted March 25, 2013; decided April 25, 2013

Reported below, 99 AD3d 947.

Motion for assignment of counsel granted and Jillian S. Harrington, Esq., PO Box 6006, Monroe, New Jersey 08831 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SAID GSSIME, Appellant, v DANIEL F. MARTUSCELLO JR., as Superintendent of Cocksackie Correctional Facility, Respondent.

Submitted March 4, 2013; decided April 25, 2013

Reported below, 2012 NY Slip Op 89407(U).

Motion for reconsideration of this Court's January 15, 2013 dismissal order denied [*see* 20 NY3d 1005 (2013)].

Judge RIVERA taking no part.

In the Matter of the Claim of DAVID WYCHE, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted February 11, 2013; decided April 25, 2013

Reported below, 2012 NY Slip Op 80420(U).

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 967 (2012)].

Judge RIVERA taking no part.

[989 NE2d 6, 966 NYS2d 744]

TIMOTHY A. ROULAN, Appellant, v COUNTY OF ONONDAGA et al., Respondents.

Argued March 18, 2013; decided April 30, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 30, 2011. The Appellate Division, with two Justices dissenting in part, modified, on the law, an order of the Supreme Court, Onondaga County (John C. Cherundolo, J.; op 2010 NY Slip Op 33031[U] [2010]), which had, among other things, adhered to its prior order denying plaintiff's motion for partial summary judgment on his declaratory judgment cause of action and granting defendants' cross motion seeking partial summary judgment dismissing the declaratory judgment cause of action. The modification consisted of denying defendants' cross motion for partial summary judgment dismissing the declaratory judgment cause of action, reinstating that cause of action, and granting judgment in favor of defendants by (1) declaring that the assigned counsel plan established by defendant Onondaga County Bar Association Assigned Counsel Program, Inc., was valid with the exception of section D (2) under the "Assignment by Court and Client Eligibility" heading, (2) granting plaintiff's motion for partial summary judgment on the declaratory judgment

cause of action in part, and (3) granting judgment in favor of plaintiff by declaring that section D (2) under the “Assignment by Court and Client Eligibility” heading of the assigned counsel plan was invalid. The Appellate Division affirmed the order as modified.

Roulan v County of Onondaga, 90 AD3d 1617, modified.

HEADNOTES

Parties — Standing — Attorney’s Challenge to Assigned Counsel’s Provision of Counsel to Unemancipated Minors

1. Plaintiff, an attorney who had participated in a county assigned counsel program, lacked standing to challenge provisions in the assigned counsel program’s plan requiring consideration of the minor’s parents’ financial resources and the assignment of attorneys who were retained by a client who later becomes indigent. Plaintiff was never a minor charged with a crime in the county covered by the plan, nor was he the parent of one. Moreover, plaintiff did not cite an example of any case in which he was assigned to represent a minor and was later forced to withdraw because the client’s parents would not provide the financial information called for under the plan. Similarly, plaintiff did not cite a single case in which he or anyone else unsuccessfully sought to be assigned to represent a client in a case where he had previously been privately retained. While plaintiff also claimed that the challenged plan provisions may have caused him to be assigned fewer cases, personal disagreement and speculative financial loss are insufficient to confer standing. Because plaintiff lacked standing, the Appellate Division should not have issued any declaration as to the validity of the challenged provisions or features of the plan.

Attorney and Client — Assignment of Counsel — Validity of Assigned Counsel Plan — Judicial Authority to Determine Compensation

2. A county bar association’s assigned counsel program’s plan did not take away from the courts the ultimate authority to determine assigned counsel’s compensation; it merely provided for a preliminary review and recommendation, which individual trial judges were free to accept or reject.

APPEARANCES OF COUNSEL

Jeffrey R. Parry, Fayetteville, for appellant.

Bond, Schoeneck & King, PLLC, Syracuse (*Jonathan B. Fellows* and *Suzanne M. Messer* of counsel), for respondents.

Alfred O’Connor, Albany, for New York State Defenders Association, amicus curiae.

New York Civil Liberties Union Foundation, New York City (*Mariko Hirose*, *Alexis Karteron*, *Christopher Dunn* and *Arthur Eisenberg* of counsel), for New York Civil Liberties Union, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified,

without costs, in accordance with this memorandum and, as so modified, affirmed.

Article 18-B of the County Law requires each county to put in place a plan for making counsel available to indigent persons entitled to the appointment of counsel, principally criminal defendants. County Law § 722 provides several options for counties to fulfill this obligation, including “furnish[ing counsel] pursuant to . . . a plan of a bar association” (see County Law § 722 [3]). To this end, Onondaga County has contracted with the Onondaga County Bar Association Assigned Counsel Program, Inc. (ACP) to administer “a plan of a bar association,” which is set out in ACP’s Handbook of Policies, Rules and Procedures (the ACP Plan or the Plan). The ACP Plan calls for creation and maintenance of panels of attorneys who have agreed to its terms. Courts throughout Onondaga County may appoint attorneys from these panels to represent qualifying indigent persons. These attorneys, in turn, submit vouchers for their services to ACP, which reviews the vouchers and forwards them to the appropriate trial court judge for approval.

On April 29, 2008, plaintiff Timothy A. Roulan, an attorney then participating in the ACP Plan, brought suit against defendants Onondaga County and ACP, asserting 10 causes of action—nine for money damages and one for a declaratory judgment. In essence, plaintiff contended that defendants did not pay him as much as he was entitled to receive in the cases to which he was assigned pursuant to the Plan, and so he sought money damages to make up the alleged shortfalls; further, he requested a declaration that the ACP Plan’s “rules and regulations are *ultra vires*, illegal and a nullity” because, as one example, they usurped the authority of trial judges under County Law § 722 to fix assigned counsel’s compensation.

By order entered October 5, 2010, Supreme Court granted defendants summary judgment dismissing plaintiff’s complaint in its entirety (2010 NY Slip Op 33031[U] [2010]). On appeal, plaintiff only sought review of the disposition of his claim for declaratory relief—i.e., he abandoned his claims for money damages. In December 2011, the Appellate Division, with two Justices partially dissenting, upheld the ACP Plan’s validity with one exception (see 90 AD3d 1617 [4th Dept 2011]).* Plaintiff

* The Appellate Division declared section D (2) of the ACP Plan under the heading “Assignment by Court and Client Eligibility” to be invalid, and defendants do not cross-appeal to contest this declaration. The dissenters

(n. cont’d)

now appeals to us by virtue of the two-Justice dissent (*see* CPLR 5601 [a]).

[1] As an initial matter, plaintiff lacks standing to challenge how the ACP Plan deals with the provision of counsel to unemancipated minors in adult criminal court (generally, he objects to section A under the heading “Assignment by Court and Client Eligibility,” which requires consideration of the minor’s parents’ financial resources), and the assignment of attorneys who were retained by a client who later becomes indigent (section C [4] under the same heading). As amicus curiae New York State Defenders Association points out, plaintiff was never a minor charged with a crime in Onondaga County; nor was he the parent of one. As defendants add, plaintiff has not “cite[d] an example of any case in which he was assigned to represent a minor and was later forced to withdraw because the client’s parents would not provide financial information” called for under the Plan. Similarly, plaintiff did not cite a single case in which he (or anyone else, for that matter) unsuccessfully sought to be assigned to represent a client in a case where he had previously been privately retained.

Plaintiff disapproves of these sections of the ACP Plan, which, at least in theory and as he interprets them, may have caused him to be assigned fewer cases. But personal disagreement and speculative financial loss are insufficient to confer standing (*see Society of Plastics Indus. v County of Suffolk*, 77 NY2d 761, 773-774 [1991] [standing to sue requires injury in fact which is distinct from the general public and falls within the zone of interests protected by the statute at issue]). Because plaintiff lacks standing, the Appellate Division should not have issued any declaration as to the validity of these provisions or features of the Plan.

[2] Finally, we have examined plaintiff’s remaining claims and consider them to be without merit. In particular, the ACP Plan does not take away from the courts the ultimate authority to determine assigned counsel’s compensation; it merely provides for a preliminary review and recommendation, which individual trial judges are free to accept or reject.

disagreed with the majority only insofar as they would have also declared invalid section C (4) under the same heading, which is discussed later.

Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Chief Judge LIPPMAN taking no part.

Order modified, without costs, in accordance with the memorandum herein and, as so modified, affirmed.

RONALD ALLEVA, Plaintiff, v UNITED PARCEL SERVICE, INC., Defendant and Third-Party Plaintiff-Respondent, et al., Defendants. PITT INVESTIGATIONS, INC., Third-Party Defendant-Appellant.

Submitted March 25, 2013; decided April 30, 2013

Reported below, 102 AD3d 573.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT CABEZA, Appellant, v NEW YORK CITY POLICE DEPARTMENT, Respondent.

Submitted March 18, 2013; decided April 30, 2013

Reported below, 2013 NY Slip Op 63645(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

GARY CRUZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v TD BANK, N.A., Respondent.

GERALDO F. MARTINEZ et al., Individually and on Behalf of All Others Similarly Situated, Appellants, v CAPITAL ONE BANK, N.A., Respondent.

Decided April 30, 2013

See 711 F3d 261.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

In the Matter of JAMES CURRY, Appellant, v ANDREA EVANS, as
Chair of the Division of Parole, et al., Respondents.

Decided April 30, 2013

Reported below, 100 AD3d 1120.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

In the Matter of SHAWN G. GRANGER, Respondent, v DANIELLE
D. MISERCOLA, Appellant.

Submitted March 11, 2013; decided April 30, 2013

Reported below, 96 AD3d 1694.

Motion to strike addendum to respondent's brief and refer-
ences thereto in respondent's brief granted.

NELLA MANKO, Appellant, v BERNARD H. BROOME et al., Respon-
dents.

Submitted March 4, 2013; decided April 30, 2013

Reported below, 2011 NY Slip Op 66529(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]). Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v BERNARD H. BROOME et al., Defend-
ants, and PROFESSIONAL EVALUATION GROUP, INC., Respon-
dent.

Submitted March 4, 2013; decided April 30, 2013

Reported below, 2012 NY Slip Op 94762(U).

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]). Motion for poor person relief dismissed as academic.
Cross motion to hold appellant in contempt denied.

In the Matter of KEVIN MARTIN, Appellant, v TERESA TATE, Re-
spondent.

Submitted March 18, 2013; decided April 30, 2013

Reported below, 2013 NY Slip Op 61932(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JAMES L. MELCHER, Appellant, v GREENBERG TRAUIG, LLP, et al., Respondents.

Submitted February 25, 2013; decided April 30, 2013

Reported below, 102 AD3d 497.

Motion to dismiss appeal denied.

In the Matter of NEW YORK STATE HEALTH FACILITIES ASSOCIATION, INC., on Behalf of its MEMBER RESIDENTIAL HEALTH CARE FACILITIES, Appellant, v JAMES G. SHEEHAN, as Medicaid Inspector General of the State of New York, et al., Respondents.

Submitted March 18, 2013; decided April 30, 2013

Reported below, 100 AD3d 1086.

Motion by LeadingAge New York for leave to appear amicus curiae on the motion for leave to appeal herein granted, and the memorandum of law is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WAYNE JAMES, Also Known as CARL WAYNE JAMES, Appellant.

Submitted February 25, 2013; decided April 30, 2013

Reported below, 99 AD3d 775.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RAFAEL RODRIGUEZ, Appellant, v WILLIAM LEE, Respondent.

Submitted March 18, 2013; decided April 30, 2013

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 861 (2013)].

Judge RIVERA taking no part.

In the Matter of the Estate of GARY M. PHILLIPS, Deceased.
KELLY E. HEBERLEIN, as Executor of GARY M. PHILLIPS,
Deceased, Respondent; CHERIL M. EBERTH et al., Respon-
dents; LORRIE MACDIARMID, Appellant.

Submitted March 18, 2013; decided April 30, 2013

Reported below, 101 AD3d 1706.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

ALICE PUTNEY et al., Appellants, v THE PEOPLE OF THE STATE OF
NEW YORK, Acting By and Through the POWER AUTHORITY
OF THE STATE OF NEW YORK, et al., Respondents.

Submitted February 25, 2013; decided April 30, 2013

Reported below, 94 AD3d 1193.

Motion, insofar as it seeks leave to appeal from so much of
the Appellate Division order as dismissed the appeal from
Supreme Court's order denying reargument, dismissed upon the
ground that such portion of the order does not finally determine
the action within the meaning of the Constitution; motion for
leave to appeal otherwise denied.

SCOTT VV., Respondent, v JOY VV., Appellant.

Submitted March 4, 2013; decided April 30, 2013

Reported below, 103 AD3d 945.

Motion for leave to appeal denied. Motion for poor person
relief and a stay dismissed as academic.

In the Matter of TOWN OF NORTH HEMPSTEAD, Appellant, v
COUNTY OF NASSAU et al., Respondents.

Decided April 30, 2013

Reported below, 103 AD3d 734.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

**UNIFORMED FIRE OFFICERS ASSOCIATION, LOCAL 854, et al.,
Respondents, v CITY OF NEW YORK, Appellant.**

Submitted March 18, 2013; decided April 30, 2013

Reported below, 100 AD3d 546.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WENDY WEBB-WEBER, Appellant, v COMMUNITY ACTION FOR HUMAN SERVICES, INC., et al., Respondents, et al., Defendants.

Submitted February 19, 2013; decided April 30, 2013

Reported below, 98 AD3d 923.

Motion to enlarge the record on appeal granted.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2013 through April 30, 2013)

People v Russell	1st Dept: 99 AD3d 211	4/2/13
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APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2013 through April 30, 2013)

City of Rochester, Matter of (Duvall)	4th Dept: 92 AD3d 1297	4/25/13
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2013 through April 30, 2013)

People v Akinpelu	4th Dept: 101 AD3d 1690 (Genesee)	denied 4/1/13 (Rivera, J.)
People v Alvarado	4th Dept: 103 AD3d 1101 (Jefferson)	denied 4/17/13 (Pigott, J.)

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People v Antrum	1st Dept: 100 AD3d 570 (NY)	denied 4/29/13 (Read, J.)
People v Arnold	2d Dept: 102 AD3d 804 (Queens)	denied 4/17/13 (Smith, J.)
People v Bacchus	2d Dept: 103 AD3d 744 (Queens)	denied 4/12/13 (Smith, J.)
People v Batsford	County Ct, 2/22/13 (Onondaga)	denied 4/29/13 (Lippman, Ch. J.)
People v Baugh	3d Dept: 101 AD3d 1359 (Broome)	denied 4/2/13 (Smith, J.)
People v Bell	App Div, 4th Dept, 2/26/13 (Niagara)	dismissed 4/29/13 (Lippman, Ch. J.)
People v Binion	4th Dept: 100 AD3d 1514 (Monroe)	denied 4/5/13 (Pigott, J.)
People v Bloom	4th Dept: 103 AD3d 1245 (Genesee)	denied 4/17/13 (Smith, J.)
People v Bradford	App Div, 1st Dept: 2013 NY Slip Op 60482(U) (NY)	dismissed 4/2/13 (Pigott, J.)
People v Bristol	2d Dept: 102 AD3d 881 (Nassau)	dismissed 4/3/13 (Rivera, J.)
People v Brown	3d Dept: 100 AD3d 1035 (Broome)	denied reconsideration 4/17/13 (Smith, J.)
People v Calaff	1st Dept: 103 AD3d 500 (NY)	denied 4/30/13 (Grafteo, J.)
People v Caroselli	2d Dept: 99 AD3d 1021 (Kings)	denied 4/30/13 (Lippman, Ch. J.)
People v Castro	1st Dept: 102 AD3d 546 (NY)	denied 4/16/13 (Rivera, J.)
People v Chatman	4th Dept: 103 AD3d 1189 (Monroe)	denied 4/12/13 (Smith, J.)
People v Chenphang	2d Dept: 102 AD3d 884 (Kings)	denied 4/2/13 (Pigott, J.)
People v Covington	App Term, 2d Dept, 9th & 10th Jud Dists: 37 Misc 3d 142(A) (Westchester)	denied 4/19/13 (Smith, J.)
People v Crobok	3d Dept: 100 AD3d 1185 (Rensselaer)	denied 4/30/13 (Lippman, Ch. J.)
People v Cuevas	App Term, 1st Dept: 37 Misc 3d 126(A) (NY)	denied 4/23/13 (Read, J.)
People v DeJesus	1st Dept: 99 AD3d 580 (NY)	denied 4/16/13 (Lippman, Ch. J.)
People v Dinkins	1st Dept: 104 AD3d 413 (NY)	withdrawn 4/30/13 (Grafteo, J.)
People v Dockery	App Div, 1st Dept: 2012 NY Slip Op 76557(U) (NY)	granted 4/10/13 (Pigott, J.)
People v Dove	App Div, 3d Dept: 2010 NY Slip Op 72259(U) (Broome)	denied reconsideration 4/10/13 (Pigott, J.)

People v Dunbar	1st Dept: 103 AD3d 420 (Bronx)	denied 4/30/13 (Grafteo, J.)
People v Edwards	4th Dept: 101 AD3d 1643 (Erie)	denied 4/30/13 (Lippman, Ch. J.)
People v Espinal	2d Dept: 102 AD3d 885 (Queens)	denied 4/15/13 (Rivera, J.)
People v Feldhousen	4th Dept: 103 AD3d 1114 (Niagara)	denied 4/2/13 (Smith, J.)
People v Fernandez (Hasuan)	2d Dept: 103 AD3d 813 (Orange)	denied 4/29/13 (Lippman, Ch. J.)
People v Fernandez (Larry)	1st Dept: 102 AD3d 636 (Bronx)	denied 4/29/13 (Lippman, Ch. J.)
People v Freeman	4th Dept: 103 AD3d 1177 (Erie)	denied 4/17/13 (Pigott, J.)
People v Furquan	County Ct, 8/22/12 (Erie)	denied 4/23/13 (Read, J.)
People v Galberth	1st Dept: 102 AD3d 487 (NY)	denied 4/10/13 (Pigott, J.)
People v Galindo	1st Dept: 101 AD3d 408 (NY)	granted 4/5/13 (Pigott, J.)
People v Garris	2d Dept: 99 AD3d 1018 (Queens)	denied 4/2/13 (Pigott, J.)
People v Gomez	1st Dept: 102 AD3d 636 (NY)	denied 4/2/13 (Pigott, J.)
People v Gordon	3d Dept: 101 AD3d 1158 (Albany)	granted 4/11/13 (Pigott, J.)
People v Harris	App Div, 1st Dept: 2012 NY Slip Op 76557(U) (NY)	granted 4/10/13 (Pigott, J.)
People v Harrison	App Div, 2d Dept: 2013 NY Slip Op 64854(U) (Queens)	dismissed 4/16/13 (Pigott, J.)
People v Horan	2d Dept: 99 AD3d 1021 (Kings)	denied 4/30/13 (Lippman, Ch. J.)
People v Hunter	1st Dept: 102 AD3d 627 (Bronx)	denied 4/17/13 (Pigott, J.)
People v Hyra	App Term, 2d Dept, 9th & 10th Jud Dists: 2012 NY Slip Op 95017(U) (Westchester)	denied 4/29/13 (Lippman, Ch. J.)
People v Jenkins	App Div, 1st Dept: 2013 NY Slip Op 63974(U) (Bronx)	denied 4/30/13 (Grafteo, J.)
People v Johnson (Johnathan)	2d Dept: 101 AD3d 750 (Queens)	denied reconsideration 4/30/13 (Grafteo, J.)
People v Johnson (Jonathan)	2d Dept: 101 AD3d 750 (Queens)	denied reconsideration 4/30/13 (Grafteo, J.)
People v Johnston	4th Dept: 103 AD3d 1202 (Yates)	denied 4/17/13 (Smith, J.)
People v Jones	1st Dept: 100 AD3d 473 (NY)	denied 4/29/13 (Lippman, Ch. J.)

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People v Keitz	4th Dept: 99 AD3d 1254 (Ontario)	denied reconsideration 4/5/13 (Pigott, J.)
People v Kelly	1st Dept: 102 AD3d 617 (NY)	denied 4/30/13 (Grafteo, J.)
People v Kims	4th Dept: 96 AD3d 1595 (Jefferson)	granted 4/24/13 (Smith, J.)
People v Kindred	3d Dept: 100 AD3d 1038 (Albany)	denied 4/4/13 (Pigott, J.)
People v Kordish	App Div, 2d Dept: 2012 NY Slip Op 83087(U) (Queens)	granted 4/2/13 (Smith, J.)
People v Latimer	App Div, 2d Dept: 2013 NY Slip Op 67067(U) (Orange)	dismissed 4/29/13 (Read, J.)
People v Leone	3d Dept: 101 AD3d 1352 (Greene)	denied 4/30/13 (Lippman, Ch. J.)
People v Mateo	3d Dept: 101 AD3d 1458 (Ulster)	denied 4/29/13 (Lippman, Ch. J.)
People v Maxwell	App Div, 2d Dept: 2013 NY Slip Op 64237(U) (Westchester)	dismissed 4/3/13 (Smith, J.)
People v McAvoy	2d Dept: 103 AD3d 666 (Suffolk)	denied 4/12/13 (Smith, J.)
People v McCarty	4th Dept: 103 AD3d 1212 (Erie)	denied 4/25/13 (Lippman, Ch. J.)
People v McNamara (David)	4th Dept: 99 AD3d 1248 (Cayuga)	denied 4/12/13 (Smith, J.)
People v McNamara (David)	4th Dept: 103 AD3d 1273 (Cayuga)	denied 4/12/13 (Smith, J.)
People v Mears	App Div, 1st Dept: 2012 NY Slip Op 65490(U) (NY)	dismissed 4/12/13 (Rivera, J.)
People v Mosby	4th Dept: 101 AD3d 1698 (Monroe)	denied 4/30/13 (Grafteo, J.)
People v Munoz	1st Dept: 99 AD3d 546 (NY)	denied 4/1/13 (Rivera, J.)
People v Niedwieski	2d Dept: 100 AD3d 1023 (Suffolk)	denied 4/30/13 (Read, J.)
People v Odojin	1st Dept: 102 AD3d 551 (NY)	denied 4/29/13 (Lippman, Ch. J.)
People v Palompelli	2d Dept: 100 AD3d 1023 (Orange)	denied 4/29/13 (Read, J.)
People v Patrick	2d Dept: 102 AD3d 892 (Kings)	denied 4/2/13 (Pigott, J.)
People v Persaud	2d Dept: 98 AD3d 527 (Queens)	denied reconsideration 4/10/13 (Pigott, J.)
People v Pilgrim	2d Dept: 100 AD3d 932 (Kings)	denied 4/30/13 (Read, J.)
People v Poole	4th Dept: 100 AD3d 1472 (Monroe)	denied reconsideration 4/30/13 (Grafteo, J.)

People v Poverelli	App Term, 1st Dept: 37 Misc 3d 139(A) (NY)	denied 4/30/13 (Lippman, Ch. J.)
People v Prego	2d Dept: 102 AD3d 814 (Suffolk)	denied 4/4/13 (Pigott, J.)
People v Quinones	2d Dept: 103 AD3d 756 (Kings)	denied 4/29/13 (Lippman, Ch. J.)
People v Ramdass	2d Dept: 103 AD3d 818 (Kings)	denied 4/30/13 (Grafteo, J.)
People v Reaves	1st Dept: 102 AD3d 565 (NY)	denied 4/16/13 (Rivera, J.)
People v Reddick	2d Dept: 104 AD3d 708 (Richmond)	denied 4/30/13 (Grafteo, J.)
People v Reyes	App Term, 1st Dept: 38 Misc 3d 145(A) (NY)	denied 4/30/13 (Grafteo, J.)
People v Richardson	2d Dept: 103 AD3d 671 (Kings)	denied 4/29/13 (Lippman, Ch. J.)
People v Rivera	1st Dept: 101 AD3d 425 (NY)	denied 4/29/13 (Lippman, Ch. J.)
People v Roberts	App Div, 2d Dept: 2013 NY Slip Op 67072(U) (Queens)	dismissed 4/15/13 (Rivera, J.)
People v Rosa	1st Dept: 104 AD3d 436 (NY)	denied 4/29/13 (Lippman, Ch. J.)
People v Rozynski	App Div, 2d Dept: 2013 NY Slip Op 64049(U) (Suffolk)	dismissed 4/1/13 (Rivera, J.)
People v Sage	4th Dept: 98 AD3d 1254 (Monroe)	granted 4/10/13 (Smith, J.)
People v Sanchez	2d Dept: 102 AD3d 990 (Kings)	denied 4/4/13 (Pigott, J.)
People v Sandy	4th Dept: 104 AD3d 1215 (Niagara)	denied 4/29/13 (Lippman, Ch. J.)
People v Smart	4th Dept: 100 AD3d 1473 (Monroe)	granted 4/4/13 (Pigott, J.)
People v Smith	1st Dept: 103 AD3d 430 (NY)	withdrawn 4/30/13 (Grafteo, J.)
People v Suarez	2d Dept: 103 AD3d 673 (Suffolk)	denied 4/25/13 (Lippman, Ch. J.)
People v Sukhdeo	2d Dept: 103 AD3d 673 (Queens)	denied 4/12/13 (Smith, J.)
People v Sweeney	1st Dept: 102 AD3d 580 (NY)	denied 4/17/13 (Pigott, J.)
People v Taylor	1st Dept: 104 AD3d 431 (NY)	denied 4/30/13 (Grafteo, J.)
People v Terrell	2d Dept: 103 AD3d 674 (Nassau)	denied 4/29/13 (Lippman, Ch. J.)
People v Townley	4th Dept: 103 AD3d 1098 (Genesee)	denied 4/4/13 (Pigott, J.)
People v Trombley	3d Dept: 91 AD3d 1197 (Franklin)	denied 4/10/13 (Lippman, Ch. J.)
People v Velez	2d Dept: 102 AD3d 899 (Westchester)	denied 4/4/13 (Pigott, J.)

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People v Walston (Jamel)	2d Dept: 97 AD3d 609 (Kings)	withdrawn 4/23/13 (Smith, J.)
People v Walston (Jamel)	2d Dept: 101 AD3d 1156 (Kings)	granted 4/17/13 (Smith, J.)
People v Warren	3d Dept: 102 AD3d 1063 (Broome)	denied 4/5/13 (Pigott, J.)
People v Weissbach	2d Dept: 103 AD3d 758 (Suffolk)	denied 4/30/13 (Read, J.)
People v Wells	App Term, 1st Dept: 36 Misc 3d 144(A) (NY)	granted 4/3/13 (Smith, J.)
People v White	4th Dept: 103 AD3d 1094 (Onondaga)	denied 4/29/13 (Lippman, Ch. J.)
People v Williams (Kasiem)	4th Dept: 103 AD3d 1128 (Erie)	denied 4/30/13 (Grafteo, J.)
People v Williams (Prince)	1st Dept: 103 AD3d 442 (NY)	denied 4/1/13 (Rivera, J.)
People v Wilson	1st Dept: 101 AD3d 469 (NY)	denied 4/30/13 (Lippman, Ch. J.)
People v Wittman	4th Dept: 103 AD3d 1206 (Monroe)	denied 4/30/13 (Grafteo, J.)
People v Wright (Gerald)	2d Dept: 101 AD3d 767 (Kings)	denied 4/25/13 (Lippman, Ch. J.) (Case No. 80)
People v Wright (Gerald)	2d Dept: 101 AD3d 767 (Kings)	denied 4/25/13 (Lippman, Ch. J.) (Case No. 81)
People v Zhanay	4th Dept: 103 AD3d 1092 (Onondaga)	denied 4/30/13 (Grafteo, J.)

[988 NE2d 1285, 966 NYS2d 773]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EARL
BELL, JR., Appellant.

Decided May 2, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 15, 2011. The Appellate Division affirmed a judgment of the Orange County Court (Robert Freehill, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree (depraved indifference murder), murder in the second degree (felony murder), kidnapping in the first degree, and tampering with physical evidence.

The defendant and a codefendant, who was tried separately, were indicted for crimes related to their beating of the victim in an alley leading to the backyard of the defendant's home. During the beating, which lasted up to 20 minutes, the victim sustained multiple blows, abrasions and lacerations to the head, a fractured collarbone, three fractured ribs, and a punctured lung that caused air to enter his chest cavity. The victim was stripped of his clothing and his head was wrapped in a blanket secured with tape. The victim, while moaning, was placed into the trunk of the codefendant's car, driven approximately 18 miles, and dumped in a shallow creek. The medical examiner testified that the victim vomited inside the blanket and had lived for an hour or two after aspirating his gastric contents.

People v Bell, 82 AD3d 997, modified.

HEADNOTE

Crimes — Murder — Depraved Indifference Murder

An order of the Appellate Division, which affirmed a judgment convicting defendant of two counts of murder, kidnapping and tampering with physical evidence, was modified by reducing defendant's conviction of depraved indifference murder in the second degree to manslaughter in the second degree and remitting to County Court for resentencing.

APPEARANCES OF COUNSEL

Alex Smith, Middletown, for appellant.

Francis D. Phillips, II, District Attorney, Middletown (*Andrew R. Kass* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified by reducing defendant's conviction of depraved indifference murder in the second degree to manslaughter in the second degree and remitting to County Court, Orange County, for resentencing and, as so modified, affirmed (*see People v Bussey*, 19 NY3d 231 [2012]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

[989 NE2d 560, 967 NYS2d 322]

ROBERT BLOOMER, Appellant, v CHRISTINE M. SHAUGER, Respondent.

Argued March 21, 2013; decided May 2, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 12, 2012. The Appellate Division affirmed an order of the Supreme Court, Ulster County (Henry F. Zwack, J.), which had granted defendant's motion for summary judgment, dismissed the complaint, and denied plaintiff's cross motion for summary judgment. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in affirming the order of Supreme Court which, among other things, granted defendant's motion for summary judgment dismissing the complaint?"

Bloomer v Shauger, 94 AD3d 1273, affirmed.

HEADNOTE

Animals — Liability for Injuries — Domestic Animal — Horse Jerking Head Back — No Showing of Vicious Propensities

In a personal injury action in which plaintiff was injured when he was holding the halter of defendant's horse and the horse jerked its head back in reaction to an attempt by defendant to put a lead line on it, Supreme Court properly granted defendant's motion dismissing the complaint. Plaintiff could not recover in the absence of a showing that defendant had knowledge of the animal's "vicious propensity" or propensity to do any act that might endanger the safety of the persons or property of others, and no such showing was made by plaintiff. A tendency to shy away when a person reaches for a horse's throat or face is a trait typical of horses, and a vicious propensity cannot consist of behavior that is normal or typical for the particular type of animal in question.

APPEARANCES OF COUNSEL

Rusk, Wadlin, Heppner & Martuscello, L.L.P., Kingston (*John G. Rusk* of counsel), for appellant.

Law Offices of Theresa J. Puleo, Syracuse (*P. David Twichell* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs and the certified question not answered on the ground that it is unnecessary.

Plaintiff's hand was injured because, while plaintiff was holding the halter of defendant's horse, the horse jerked her head back. According to plaintiff, the horse was reacting to an attempt by defendant to put a lead line on the horse.

Under the rule of *Bard v Jahnke* (6 NY3d 592 [2006]), plaintiff cannot recover in the absence of a showing that defendant had knowledge of the animal's "vicious propensity" or "propensity to do any act that might endanger the safety of the persons and property of others" (6 NY3d at 596-597, quoting *Collier v Zambito*, 1 NY3d 444, 446 [2004]). No such showing was made here. A tendency to shy away when a person reaches for a horse's throat or face is, as the record shows, a trait typical of horses. The Appellate Division correctly held that a vicious propensity cannot consist of "behavior that is normal or typical for the particular type of animal in question" (*Bloomer v Shauger*, 94 AD3d 1273, 1275 [2012]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

Order affirmed, with costs, and certified question not answered on the ground that it is unnecessary, in a memorandum.

[988 NE2d 1285, 966 NYS2d 773]

ARPI KOULAJIAN, Appellant, v TAMARA SMITH et al., Respondents.

Decided May 2, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 13, 2012. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Milton A. Tingling, J.; op 2011 NY Slip Op 33678[U] [2011]), which had granted defendants' motion for summary judgment dismissing the complaint.

In a personal injury action, plaintiff was injured when she was walking down a sidewalk and tripped over a suitcase.

Koulajian v Smith, 101 AD3d 498, affirmed.

HEADNOTE

Judgments — Summary Judgment

In a personal injury action arising out of plaintiff's trip over a suitcase, the Appellate Division correctly held that defendants were entitled to summary judgment.

APPEARANCES OF COUNSEL

Law Office of Robert F. Danzi, Westbury (*Robert F. Danzi* of counsel), for appellant.

DeSena & Sweeney, LLP, Bohemia (*Shawn P. O'Shaughnessy* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division correctly held that defendants were entitled to summary judgment.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA.

JEANA BARENBOIM et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

EUGENE WINANS et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

Submitted April 29, 2013; decided May 2, 2013

See 698 F3d 104.

Motion by UNITE HERE! Local 100, Align: Alliance for a Greater New York et al. for leave to appear amici curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

JEANA BARENBOIM et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

EUGENE WINANS et al., on Behalf of Themselves and All Others Similarly Situated, Appellants, v STARBUCKS CORPORATION, Respondent.

Submitted April 29, 2013; decided May 2, 2013

See 698 F3d 104.

Motion by the New York City Hospitality Alliance for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

In the Matter of SHARON K. BLAND, Appellant, v GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (And Another Proceeding.)

Submitted April 1, 2013; decided May 2, 2013

Reported below, 103 AD3d 969.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

THERESA DEVITO, Appellant, v DENNIS FELICIANO et al., Respondents.

Submitted April 29, 2013; decided May 2, 2013

Reported below, 84 AD3d 645.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

ROGER FORBES, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 1, 2013; decided May 2, 2013

Reported below, 2012 NY Slip Op 87056(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GOLDEN CITY COMMERCIAL BANK, Plaintiff, v 207 SECOND AVENUE REALTY CORP. et al., Defendants. MICHAEL G. ZAPSON, as Temporary Receiver of the Rents and Profits of 207 Second Avenue, New York, New York, Nonparty Respondent; JANET CHANG, as Successor in Interest, Nonparty Appellant.

Submitted April 8, 2013; decided May 2, 2013

Reported below, 100 AD3d 403.

Motion for reargument denied [*see* 20 NY3d 1056 (2013)].

In the Matter of CHARLES GOODACRE, Appellant, v RAYMOND KELLY, as the Police Commissioner of the City of New York, and as Chairman of the Board of Trustees of the Police Pensions Fund, Article II, et al., Respondents.

Submitted April 1, 2013; decided May 2, 2013

Reported below, 96 AD3d 625.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 20 NY3d 860 (2013)].

NASSAU COUNTY, Appellant, v METROPOLITAN TRANSPORTATION AUTHORITY et al., Respondents.

Submitted March 25, 2013; decided May 2, 2013

Reported below, 99 AD3d 617.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's denial of appellant's motion for renewal, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of THEOPHILUS Y. OJUOLA, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Respondent.

Submitted April 1, 2013; decided May 2, 2013

Reported below, 95 AD3d 701.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 1032 (2013)]. Motion for poor person relief dismissed as academic.

Judge RIVERA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OLIV-
ERIO GALINDO, Appellant.

Submitted April 29, 2013; decided May 2, 2013

Reported below, 101 AD3d 408.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v HAZEL E. GORDON, Respondent-Appellant.

Submitted April 29, 2013; decided May 2, 2013

Reported below, 101 AD3d 1158.

Motion for assignment of counsel granted and Aaron A. Louridas, Esq., 25 Egmont Court, Delmar, New York 12054 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CALVIN LEE, Ap-
pellant, v WILLIAM A. LEE, Respondent.

Submitted March 25, 2013; decided May 2, 2013

Reported below, 2013 NY Slip Op 65026(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JOHN PETERS, Respondent, v NEW SCHOOL, Appellant.

Submitted March 25, 2013; decided May 2, 2013

Reported below, 102 AD3d 548.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NANDKUMAR RAMKUMAR, Appellant, v GRAND STYLE TRANSPORTATION ENTERPRISES INC. et al., Respondents. GRAND STYLE TRANSPORTATION ENTERPRISES INC. et al., Third-Party Plaintiffs-Respondents, v GEORGINA D. CASTILLO, Third-Party Defendant-Respondent.

Submitted April 29, 2013; decided May 2, 2013

Reported below, 94 AD3d 484.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respondents, v AMERICAN RE-INSURANCE COMPANY et al., Appellants, et al., Defendants.

Submitted March 18, 2013; decided May 2, 2013

Reported below, 93 AD3d 14.

Motions for reargument denied [*see* 20 NY3d 407 (2013)].

Judge RIVERA taking no part.

[989 NE2d 966, 967 NYS2d 684]

MARK A. PRINE, Appellant, v ADAM M. SANTEE, Appellant, and ANNA TORRES, Respondent, et al., Defendant.

Decided May 7, 2013

SUMMARY

APPEALS from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 21, 2012. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, so much of an order of the Supreme Court, Erie County (Donna M. Siwek, J.), as had

denied the cross motion of defendant Anna Torres for summary judgment, (2) granted the cross motion of Anna Torres, and (3) dismissed the amended complaint and all cross claims against her.

Defendant Torres, the driver of the first of the four vehicles involved in a chain-reaction accident, testified at her deposition that she had her foot on the brake and that her vehicle had come to a complete stop at a red light, approximately “half of a car” length behind the vehicle in front of her, when it was rear-ended by the second vehicle in the chain. That vehicle was owned and operated by defendant Simon M. Coal-Aloor, who testified at his deposition that his vehicle was also stopped in the line of vehicles at the traffic signal, with 10 to 15 feet between the front of his vehicle and the rear of defendant’s vehicle, when he was rear-ended and propelled into the rear of defendant’s vehicle by plaintiff’s vehicle, which was third in the chain. Plaintiff in turn testified at his deposition that the Coal-Aloor vehicle immediately in front of him came to a “sudden stop.” Plaintiff was able to bring his vehicle to a safe stop, but it was then rear-ended by a vehicle owned and operated by defendant Adam M. Santee, which was fourth in the chain.

Prine v Santee, 101 AD3d 1601, affirmed.

HEADNOTE

Motor Vehicles — Collision — Four-Vehicle-Chain-Reaction

In an action arising out of a four-vehicle-chain-reaction accident, viewing the evidence in a light most favorable to plaintiff, the driver of the third vehicle, and the defendant who drove the fourth vehicle, the defendant who operated the first vehicle demonstrated her entitlement to summary judgment dismissing the complaint and all cross claims against her. The nonmoving parties failed to raise a triable issue of fact as to whether the moving defendant’s actions as the lead driver in the accident constituted a contributing cause of the collision.

APPEARANCES OF COUNSEL

Magavern Magavern Grimm LLP, Buffalo (*Edward J. Markarian* of counsel), for Mark A. Prine, appellant.

Chelus, Herdzik, Speyer & Monte, P.C., Buffalo (*Katelyn E. Dieffenderfer* and *Scott R. Orndoff* of counsel), for Adam M. Santee, appellant.

Law Office of Daniel R. Archilla, Buffalo (*Jill Z. Florkowski* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Viewing the evidence in a light most favorable to plaintiff Mark A. Prine and defendant Adam M. Santee (*see e.g. Branham v Loews Orpheum Cinemas, Inc.*, 8 NY3d 931, 932 [2007]), defendant Anna Torres demonstrated her entitlement to summary judgment dismissing the complaint and all cross claims against her. The nonmoving parties failed to raise a triable issue of fact as to whether Torres's actions as the lead driver in this four-vehicle-chain-reaction accident constituted a contributing cause of the collision (*cf. Tutrani v County of Suffolk*, 10 NY3d 906, 907-908 [2008]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[990 NE2d 125, 967 NYS2d 887]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
PRESCOTT, Appellant.

Argued March 21, 2013; decided May 7, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 30, 2011. The Appellate Division denied defendant's application for a writ of error coram nobis to vacate an order of that Court entered October 2, 2009 (66 AD3d 1357 [2009]), which had affirmed a judgment of the Supreme Court, Erie County (Russell P. Buscaglia, J.), convicting defendant, after a nonjury trial, of gang assault in the first degree and assault in the first degree.

People v Prescott, 87 AD3d 1413, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Unwaived Actual Conflict of Interest

Defendant's coram nobis application asserting ineffective assistance of appellate counsel was granted where defendant was not apprised, prior to or

during the appeal process, that his counsel was simultaneously representing him and his codefendant at the latter's sentencing hearing and where defendant did not waive the actual conflict of interest. Simultaneous representation of two clients with conflicting interests means the lawyer cannot give either client undivided loyalty, and counsel has the duty to inform the client and the court so that the court may ascertain the nature of the conflict and give the client an opportunity to waive it. Appellate counsel's arguments at the sentencing hearing were in direct conflict with his strategy on defendant's appeal and this conflict was no less significant because counsel's representation of the codefendant ended prior to completion of defendant's representation. The successive representation concerned substantially related matters, but depended on mutually incompatible legal strategies, which undermined appellate counsel's loyalties. Moreover, conflicts arise even in cases of successive representation because even though a representation has ended, a lawyer has continuing professional obligations to a former client, including the duty to maintain that client's confidences and secrets, which may potentially create a conflict between the former client and a present client.

APPEARANCES OF COUNSEL

Gleason, Dunn, Walsh & O'Shea, Albany (*Thomas F. Gleason* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Matthew B. Powers* and *Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's application for a writ of error coram nobis granted, the Appellate Division's October 2009 order of affirmance vacated, and the case remitted to the Appellate Division for a de novo determination of the appeal to that Court.

Defendant Tyrone Prescott alleges that he was denied effective assistance of counsel due to an unwaived actual conflict of interest occasioned by his appellate counsel's representation of defendant's codefendant, Calvin Martin, at Martin's sentencing hearing. The People concede the simultaneous representation, but maintain that it is legally inconsequential because it was of a relatively short duration, appellate counsel did not represent Martin by the time defendant's appeal was perfected, and because it did not operate on defendant's direct appeal. We disagree.

Defendant retained counsel to represent him on his appeal from his conviction for gang assault, but without defendant's knowledge or consent, this same counsel represented codefendant Martin at Martin's sentencing hearing. Martin had served as a prosecution witness, and testified against defendant. At the

sentencing hearing, counsel argued for leniency, in part, because of Martin's cooperation with the prosecution and testimony adverse to defendant.

Counsel thereafter represented defendant on his appeal, wherein he argued that the weight of the evidence did not support the conviction, and specifically sought to discredit codefendant Martin. Counsel argued before the Appellate Division that the Court should reject Martin's testimony as the words of an admitted liar, who sought to gain from his "incredible" testimony against defendant. Counsel never informed defendant, or the court, that he represented Martin. Nor did he provide defendant the transcript of Martin's sentencing hearing, even after defendant contacted counsel and inquired as to whether comments at the hearing revealed that Martin lied on the stand. The Appellate Division affirmed defendant's conviction (66 AD3d 1357 [4th Dept 2009], *lv denied* 13 NY3d 909 [2009]).

Defendant subsequently learned of his appellate counsel's representation of Martin and moved for a writ of error coram nobis. The Appellate Division denied the motion for the writ (87 AD3d 1413 [4th Dept 2011]), and a Judge of this Court granted defendant leave to appeal (19 NY3d 866 [2012]).

It is undisputed that appellate counsel represented defendant and his codefendant simultaneously, that appellate counsel argued at Martin's sentencing hearing for leniency based on Martin's trial testimony adverse to the defendant, and that defendant neither knew nor had the opportunity to waive any conflict arising from appellate counsel's representation of defendant and Martin. Under these circumstances, an actual unwaived conflict existed.

An attorney may not simultaneously represent a criminal defendant and a codefendant or prosecution witness whose interests actually conflict unless the conflict is validly waived (*see People v Solomon*, 20 NY3d 91, 96-97 [2012]; *People v Macerola*, 47 NY2d 257, 264 [1979]). Simultaneous representation of two clients with conflicting interests means the lawyer "cannot give either client undivided loyalty" (*People v Ortiz*, 76 NY2d 652, 656 [1990]). Counsel has the duty to inform the client and the court so that the court may ascertain the nature of the conflict and give the client an opportunity to waive it (*see People v Wandell*, 75 NY2d 951, 952 [1990]; *People v Gomborg*, 38 NY2d 307, 313-314 [1975]), if indeed it is waivable (*People v Carncross*, 14 NY3d 319, 328 [2010]).

Here, counsel represented defendant on appeal, and at the same time represented codefendant Martin at Martin's sentencing

hearing. Appellate counsel's arguments at the sentencing hearing, where counsel argued for leniency based on the codefendant's cooperation with the prosecution and testimony against defendant, were in direct conflict with his strategy on defendant's appeal, which depended on discrediting the testimony of the codefendant. Thus, the interests of defendant and codefendant Martin were conflicting.

The conflict is no less significant, nor defendant's ineffective assistance of counsel claim rendered any less meritorious, because appellate counsel's representation of Martin ended prior to completion of defendant's representation. The successive representation concerned substantially related matters, but depended on mutually incompatible legal strategies, which undermined appellate counsel's loyalties. Moreover, conflicts arise even in cases of successive representation because "[e]ven though a representation has ended, a lawyer has continuing professional obligations to a former client, including the duty to maintain that client's confidences and secrets (*People v Alicea*, 61 NY2d 23, 29 [1983]), which may potentially create a conflict between the former client and a present client" (*Ortiz*, 76 NY2d at 656). Holding otherwise would render an ineffective assistance of counsel claim based on conflict meaningless if the conflicted counsel could merely terminate representation of one party while continuing to represent another.

On these facts, where appellate counsel failed to apprise defendant of this conflict prior to or during the appeal process, in disregard of his duty to his client, and where defendant did not waive the conflict, the writ should be granted.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur.

Order reversed, defendant's coram nobis application granted, the Appellate Division's October 2009 order of affirmance vacated, and case remitted to the Appellate Division, Fourth Department, for a de novo determination of the appeal to that Court, in a memorandum.

In the Matter of the Claim of SOPHIE ACKERMANN, Appellant.
NEW YORK CITY DEPARTMENT OF CITYWIDE ADMINISTRATIVE
SERVICES, Respondent; COMMISSIONER OF LABOR, Respon-
dent.

Submitted April 8, 2013; decided May 7, 2013

Reported below, 2013 NY Slip Op 64078(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

KIMBERLY MITCHELL CONVERSE, Plaintiff, v DOLE FOOD COM-
PANY, INC., et al., Respondents, and LEONARD'S EXPRESS,
INC., Appellant.

Submitted March 25, 2013; decided May 7, 2013

Reported below, 103 AD3d 1192; 98 AD3d 1284, 1287.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

PAWEL CZERNICKI, Appellant, v MAREK LAWNICZAK, Respondent.

Submitted April 8, 2013; decided May 7, 2013

Reported below, 103 AD3d 769.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RAGHUBIR K. GUPTA, a Disbarred Attorney, Ap-
pellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH,
AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Submitted April 15, 2013; decided May 7, 2013

Reported below, 2013 NY Slip Op 66888(U).

Motion for leave to appeal granted. Motion for a stay of so much of the Appellate Division order as suspended appellant from the practice of law granted, without prejudice to an

application by petitioner-respondent to the Appellate Division, on notice to appellant, for an interim suspension.

In the Matter of THAD L. KEMPISTY, Petitioner, and MICHAEL KEMPISTY, Appellant, v TOWN OF GEDDES et al., Respondents.

Submitted December 10, 2012; decided May 7, 2013

Reported below, 93 AD3d 1167.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 19 NY3d 815 (2012)].

Judge RIVERA taking no part.

NELLA MANKO, Appellant, v BERNARD H. BROOME et al., Respondents.

Submitted April 8, 2013; decided May 7, 2013

Reported below, 2013 NY Slip Op 62551(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of NEW YORK TIMES COMPANY et al., Appellants, v CITY OF NEW YORK POLICE DEPARTMENT, Respondent.

Submitted April 1, 2013; decided May 7, 2013

Reported below, 103 AD3d 405.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NIAGARA FRONTIER TRANSIT METRO SYSTEM, INC., Respondent, v AMALGAMATED TRANSIT UNION LOCAL 1342 et al., Appellants.

Submitted April 15, 2013; decided May 7, 2013

Reported below, 103 AD3d 1146.

Motion by Civil Service Employees Association, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of PAULINA D., Appellant. CHARLES BARRON, as Director of the Department of Psychiatry at Elmhurst Hospital, Respondent.

Submitted April 22, 2013; decided May 7, 2013

Reported below, 104 AD3d 883.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO RODRIGUEZ, Appellant.

Submitted March 4, 2013; decided May 7, 2013

Reported below, 102 AD3d 457.

Motion to dismiss appeal denied.

In the Matter of STATE OF NEW YORK, Respondent, v WILLIAM W., Appellant.

Decided May 7, 2013

Reported below, 103 AD3d 521.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

[990 NE2d 129, 967 NYS2d 891]

In the Matter of GLEN R. GEORGE, a Justice of the Middletown Town Court, Delaware County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Decided May 30, 2013

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law

§ 44 (8), of whether Honorable Glen R. George should be suspended from the office of Justice of the Middletown Town Court, Delaware County.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office.

APPEARANCES OF COUNSEL

Thomas K. Petro, Kingston, for petitioner.

Robert H. Tembeckjian, New York City, for respondent.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Glen R. George is suspended, with pay, effective immediately, from the office of Justice of the Middletown Town Court, Delaware County, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[991 NE2d 195, 969 NYS2d 421]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY WILLIAMS, Appellant.

Argued May 1, 2013; decided May 30, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 6, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree and criminal sale of a controlled substance in or near school grounds.

People v Williams, 88 AD3d 463, affirmed.

HEADNOTES

Crimes — Agency Defense in Narcotics Prosecution — Refusal to Give Agency Charge

1. In a drug prosecution arising from a buy-and-bust operation where defendant asked an undercover police officer and two others to "wait" when asked

if anyone was “out” and then, after walking around a corner, told the group to “go around the corner” where a woman selling cocaine was sitting on building steps, it was not error for the trial court to refuse to give an agency charge. A defendant is entitled to a jury charge on the agency defense where there is some reasonable view of the evidence that the defendant acted as a mere instrumentality of the buyer. However, there was no reasonable view of the evidence that defendant acted as a buyer’s agent. He did not have a prior relationship with any of the buyers—much less an individual relationship with the undercover, who was part of a group of purchasers. He instantly knew what to do when asked if anyone was “out,” had 37 \$20 bills in his pocket, and covered his mouth with a shirt when speaking about where to procure drugs, prior to directing the group to the person who actually completed the transactions.

Crimes — Fair Trial — Jury Note — No Mode of Proceedings Error

2. No mode of proceedings error occurred during a drug prosecution where the trial court, having received several jury notes requesting further legal instruction during deliberations, read one note out loud before responding directly to the jury and, after considering another jury note asking for a written copy of the court’s charge, sent a court officer to inform the jury that no written instructions were allowed. While the trial court did not comply precisely with the requirements of *People v O’Rama* (78 NY2d 270 [1991]; CPL 310.30), lack of preservation bars the claim of a mode of proceedings error where defense counsel had notice of a jury note and failed to object when the error could have been cured. Nor did the court commit a mode of proceedings error by delegating delivery of its answer to another jury question to a court officer, who told the jurors that no written instructions were allowed. That task was practically ministerial in this context and defense counsel consented to the procedure.

APPEARANCES OF COUNSEL

Steven Banks, Legal Aid Society, New York City (Laura Lieberman Cohen of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Daniel R. Alonso and Hilary Hassler of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On June 5, 2007, an undercover police officer on a buy-and-bust operation joined two other people who approached defendant and asked if anyone was “out.” Defendant responded that they should “wait” and then walked around the corner. He returned and the undercover heard defendant, with his hand in his shirt covering his mouth, tell the group to “go around the corner,” motioning with his head in that direction. The buyers approached a woman sitting on building steps in the middle of the block. The undercover gave the woman \$20 in pre-recorded buy money in exchange for two ziplock bags of cocaine. The

woman was arrested at the scene, and the marked money and other drugs were recovered from her. Defendant was arrested several minutes later. He did not have drugs, but he did have over \$800 in cash in his left front pants pocket, organized in a stack, including eight \$10 bills, and 37 \$20 bills.

The court refused defense counsel's agency charge request, noting that the defense in the case was not that defendant had bought drugs on behalf of buyers, but rather that he was not involved in a drug deal at all.

During deliberations, the jury sent several notes requesting further legal instruction. One jury note requested clarification of a legal term, and after asking the jury to return to the courtroom, the court read the note out loud before responding directly to the jury. After considering another jury note asking for a written copy of the court's charge, the court sent a court officer to "[t]ell them no written instructions allowed. The Court will tell them about [the charge] as often as they need to hear it."

Defendant was convicted of third degree criminal sale of a controlled substance and criminal sale of a controlled substance in or near school grounds.

The Appellate Division affirmed, holding that there was no reasonable view of the evidence to support an agency charge, and rejecting defendant's claims that the trial court committed mode of proceedings errors by failing to disclose the contents of a jury note to defense counsel and by delegating to a court officer the task of delivering a message to the jury (88 AD3d 463 [2011]).

It was not error for the trial court to refuse to give an agency charge in this case. A defendant is entitled to a jury charge on the agency defense where "there is some reasonable view of the evidence that the defendant acted as a mere instrumentality of the buyer" (*People v Echevarria*, 21 NY3d 1, 20 [2013] [internal quotation marks omitted], quoting *People v Roche*, 45 NY2d 78, 86 [1978]). But here, there was no reasonable view of the evidence that defendant acted as a buyer's agent. He did not have a prior relationship with any of the buyers—much less an individual relationship with the undercover. He instantly knew what to do when asked if anyone was "out," had 37 \$20 bills in his pocket, and covered his mouth with a shirt when speaking about where to procure drugs.

We are not persuaded by defendant's argument that a mode of proceedings error occurred, when the trial court did not

comply precisely with the requirements of *People v O’Rama* (78 NY2d 270 [1991]; CPL 310.30). Where, as here, defense counsel had notice of a jury note and “failed to object . . . when the error could have been cured,” lack of preservation bars the claim (*People v Ramirez*, 15 NY3d 824, 826 [2010]; see also *People v Ippolito*, 20 NY3d 615 [2013]; *People v Starling*, 85 NY2d 509, 516 [1995]).

Nor did the court commit a mode of proceedings error by delegating delivery of its answer to a jury question to a court officer. That task was in this context practically ministerial and defense counsel consented to the procedure (*People v Mays*, 20 NY3d 969, 971 [2012]; see also *People v Bonaparte*, 78 NY2d 26, 31 [1991] [unless a non-judicial officer delivers substantive instructions, the mode of proceedings is not implicated, and the preservation requirement fully applies]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order affirmed, in a memorandum.

[990 NE2d 129, 967 NYS2d 891]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAAC
DIGGINS, Appellant.

Argued April 24, 2013; decided May 30, 2013

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 26, 2011. The Appellate Division affirmed an order of the Supreme Court, New York County (Arlene D. Goldberg, J.; op 25 Misc 3d 1218[A], 2009 NY Slip Op 52187[U] [2009]), which had denied a motion by defendant pursuant to CPL 440.10 to vacate a judgment of that court convicting defendant, upon a jury trial held in absentia, of criminal possession of a weapon in the second degree, criminal possession of a weapon in the third degree, and menacing in the second degree.

The Appellate Division concluded that defendant did not demonstrate that his attorney, who pursued a “protest strategy” or “strategy of silence,” rendered ineffective assistance of counsel when the attorney generally declined to participate in defendant’s trial in absentia, and that counsel’s strategic decisions were objectively reasonable.

People v Diggins, 84 AD3d 667, reversed.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Counsel's Lack of Participation during Defendant's Trial in Absentia

The judgment convicting defendant, in absentia, of weapons offenses and menacing was reversed, defendant's motion to vacate his conviction and sentence was granted and the case was remitted to Supreme Court for further proceedings on the indictment where counsel's lack of participation during the jury trial amounted to the ineffective assistance of counsel. Although a defendant's willful absence from trial surely hampers an attorney's ability to represent the client adequately and must be taken into consideration, a defendant may not, by his absence alone, waive his right to effective assistance of counsel. On the record, including defendant's cooperation with his attorney in formulating a defense before absconding, there was a reasonable basis for an active defense.

APPEARANCES OF COUNSEL

Simpson Thacher & Bartlett LLP, New York City (*Roy L. Reardon* of counsel), and *Richard M. Greenberg*, *Office of the Appellate Defender* (*Rosemary Herbert* of counsel) for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Sheryl Feldman* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, defendant's motion pursuant to CPL 440.10 to vacate the judgment of conviction and sentence granted and the case remitted to Supreme Court for further proceedings on the indictment.

It is well established that a defendant may not, by his absence alone, "waive his right to effective assistance of counsel" (*People v Aiken*, 45 NY2d 394, 398 [1978]). Although a defendant's willful absence from trial surely hampers an attorney's ability to represent the client adequately and must be taken into consideration, under the circumstances of this case, we conclude that counsel's lack of participation during the jury trial amounted to the ineffective assistance of counsel. On this record, including defendant's cooperation with his attorney in formulating a defense before absconding, there was a "reasonable basis for an active defense" (*United States v Sanchez*, 790 F2d 245, 254 [2d Cir 1986]).

Chief Judge LIPPMAN and Judges GRAFFEO, PIGOTT and RIVERA concur; Judges READ and SMITH dissent and vote to affirm, concluding that defendant's trial counsel pursued a protest

strategy (*see People v Diggins*, 11 NY3d 518, 525 [2008]). Judge ABDUS-SALAAM taking no part.

Order reversed, defendant's motion pursuant to CPL 440.10 to vacate the judgment of conviction and sentence granted, and case remitted to Supreme Court, New York County, for further proceedings on the indictment, in a memorandum.

TIFFANY APPLEWHITE et al., Respondents, v ACCUHEALTH, INC.,
et al., Defendants, CITY OF NEW YORK, Appellant.

Submitted May 28, 2013; decided May 30, 2013

Reported below, 90 AD3d 501.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

MARCIA L. CARONIA et al., Appellants, v PHILIP MORRIS USA,
INC., Respondent.

Decided May 30, 2013

See 715 F3d 417.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

ELIZABETH GONZALEZ, Appellant, v CITY OF NEW YORK, Respondent.

Submitted April 1, 2013; decided May 30, 2013

Reported below, 94 AD3d 559.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 859 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

In the Matter of ISABELITA GONZALEZ, Appellant, et al.,
Petitioner, v DIVISION OF HOUSING AND COMMUNITY RENEWAL
OF THE STATE OF NEW YORK et al., Respondents.

Submitted March 4, 2013; decided May 30, 2013

Reported below, 95 AD3d 681.

Motion for reargument denied [*see* 20 NY3d 1003 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

In the Matter of METROPOLITAN TRANSPORTATION AUTHORITY,
Respondent. WASHED AGGREGATE RESOURCES, INC., Appel-
lant.

Decided May 30, 2013

Reported below, 102 AD3d 787.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and
CHRISTOPHER BRAMWELL, Respondents.

Submitted April 1, 2013; decided May 30, 2013

Reported below, 2012 NY Slip Op 89180(U).

Motion for reargument of motion for leave to appeal denied
[*see* 20 NY3d 1000 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALEX-
ANDER DOCKERY, Also Known as JOHN HARRIS, Appellant.

Submitted May 6, 2013; decided May 30, 2013

Reported below, 2012 NY Slip Op 76557(U)

Motion for assignment of counsel granted and Robert S. Dean,
Esq., Center for Appellate Litigation, 74 Trinity Place, 11th
Floor, New York, NY 10006 assigned as counsel to the appellant
on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
KORDISH, Appellant.

Submitted May 6, 2013; decided May 30, 2013

Reported below, 2012 NY Slip Op 83087(U).

Motion for assignment of counsel granted and Diane V. Bruns, Esq., care of Schlather, Stumbar, Parks & Salk, LLP, 200 East Buffalo St., Ithaca, New York 14850 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRIS-
TOPHER OATHOUT, Appellant.

Submitted May 6, 2013; decided May 30, 2013

Reported below, 90 AD3d 1418.

Motion by John A. Aretakis for leave to appear amicus curiae on the appeal herein etc. dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [1] [iii]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ENNIS
E. RUFFIN, Appellant.

Submitted May 20, 2013; decided May 30, 2013

Reported below, 101 AD3d 1793.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MERLIN
G. SAGE, Appellant.

Submitted May 20, 2013; decided May 30, 2013

Reported below, 98 AD3d 1254.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FLOYD L. SMART, Appellant.

Submitted May 6, 2013; decided May 30, 2013

Reported below, 100 AD3d 1473.

Motion for assignment of counsel granted and Mark D. Funk, Esq., 144 Exchange Blvd., Ste. 400, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL WALSTON, Appellant.

Submitted May 13, 2013; decided May 30, 2013

Reported below, 101 AD3d 1156.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

In the Matter of TONYA A., Respondent, v HAL H., Appellant.

Decided May 30, 2013

Reported below, 2013 NY Slip Op 60069(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge ABDUS-SALAAM taking no part.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2013 through May 31, 2013)

Welch, Matter of, v Farkas

App Div, 4th Dept: 2013
NY Slip Op 63197(U)

5/9/13

APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2013 through May 31, 2013)

People v Elmer

3d Dept: 98 AD3d 810

5/17/13

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2013 through May 31, 2013)

People v Alexander (Anthony)	App Div, 2d Dept: 2012 NY Slip Op 94784(U) (Suffolk)	dismissed 5/14/13 (Pigott, J.)
People v Alexander (Brandy)	4th Dept: 104 AD3d 1221 (Monroe)	denied 5/17/13 (Pigott, J.)
People v Allen	4th Dept: 98 AD3d 1323 (Onondaga)	denied reconsideration 5/6/13 (Grafteo, J.)
People v Alnutt	3d Dept: 101 AD3d 1461 (Fulton)	denied 5/6/13 (Read, J.)
People v Amaya	1st Dept: 103 AD3d 568 (Bronx)	denied 5/17/13 (Pigott, J.)
People v Azhar	1st Dept: 102 AD3d 633 (NY)	denied 5/30/13 (Lippman, Ch. J.)
People v Baliraj	3d Dept: 101 AD3d 1175 (Schenectady)	denied 5/10/13 (Read, J.)
People v Barrow	2d Dept: 103 AD3d 745 (Kings)	denied 5/14/13 (Pigott, J.)
People v Bazemore	2d Dept: 100 AD3d 915 (Kings)	denied 5/13/13 (Lippman, Ch. J.)
People v Beliard	App Div, 3d Dept: 2013 NY Slip Op 64726(U) (Rensselaer)	denied 5/17/13 (Pigott, J.)
People v Boga	4th Dept: 104 AD3d 1310 (Monroe)	denied 5/31/13 (Grafteo, J.)
People v Bowerbank	App Div, 2d Dept: 2013 NY Slip Op 71621(U) (Kings)	dismissed 5/22/13 (Rivera, J.)
People v Bradberry	4th Dept: 101 AD3d 1739 (Niagara)	denied 5/28/13 (Read, J.)
People v Bridgefourth	4th Dept: 103 AD3d 1190 (Erie)	denied 5/28/13 (Lippman, Ch. J.) (Appeal Nos. 1 and 2)
People v Bristol	County Ct, 3/6/13 (Albany)	denied 5/30/13 (Lippman, Ch. J.)
People v Brown	1st Dept: 102 AD3d 521 (NY)	denied 5/28/13 (Read, J.)
People v Brummel	2d Dept: 103 AD3d 805 (Kings)	denied 5/15/13 (Pigott, J.)
People v Burgess	2d Dept: 102 AD3d 883 (Westchester)	denied 5/30/13 (Lippman, Ch. J.)
People v Burnett	2d Dept: 103 AD3d 662 (Queens)	denied 5/22/13 (Smith, J.)
People v Candelaria	2d Dept: 101 AD3d 1139 (Kings)	denied 5/2/13 (Lippman, Ch. J.)
People v Class	2d Dept: 101 AD3d 1041 (Queens)	denied 5/30/13 (Lippman, Ch. J.)
People v Cole	2d Dept: 97 AD3d 762 (Kings)	denied 5/16/13 (Read, J.)

People v Coleman	2d Dept: 102 AD3d 807 (Queens)	denied 5/14/13 (Pigott, J.)
People v Collins (Michael)	2d Dept: 104 AD3d 702 (Suffolk)	denied 5/8/13 (Smith, J.)
People v Collins (Shamel)	2d Dept: 104 AD3d 785 (Kings)	denied 5/17/13 (Pigott, J.)
People v Colon	2d Dept: 102 AD3d 705 (Kings)	denied 5/6/13 (Read, J.)
People v Cuesta	2d Dept: 103 AD3d 913 (Suffolk)	denied 5/31/13 (Grafteo, J.)
People v Cunningham	2d Dept: 103 AD3d 916 (Westchester)	denied 5/15/13 (Smith, J.)
People v Daniels	2d Dept: 103 AD3d 807 (Suffolk)	denied 5/22/13 (Smith, J.)
People v Davis	1st Dept: 104 AD3d 559 (NY)	denied 5/22/13 (Smith, J.)
People v Devaney	2d Dept: 100 AD3d 1016 (Nassau)	denied 5/6/13 (Grafteo, J.)
People v Dickie	App Term, 1st Dept: 38 Misc 3d 127(A) (NY)	denied 5/2/13 (Lippman, Ch. J.)
People v Dove	App Div, 3d Dept: 2013 NY Slip Op 64725(U) (Broome)	denied 5/15/13 (Pigott, J.)
People v Dunbar	2d Dept: 104 AD3d 198 (Queens)	granted 5/20/13 (Smith, J.)
People v Elufe	2d Dept: 102 AD3d 982 (Kings)	denied 5/7/13 (Smith, J.)
People v Encarnacion	App Div, 1st Dept: 2012 NY Slip Op 94612(U) (Bronx)	denied 5/31/13 (Grafteo, J.)
People v Evans	2d Dept: 104 AD3d 703 (Kings)	denied 5/30/13 (Read, J.)
People v Flemming (Sherry)	3d Dept: 101 AD3d 1483 (Chemung)	denied 5/6/13 (Grafteo, J.)
People v Flemming (Woodrow)	App Div, 1st Dept: 2012 NY Slip Op 76452(U) (NY)	denied reconsideration 5/30/13 (Lippman, Ch. J.)
People v Flemming (Woodrow)	App Div, 1st Dept: 2013 NY Slip Op 65975(U) (NY)	dismissed 5/14/13 (Pigott, J.)
People v Fling	App Div, 3d Dept: 2013 NY Slip Op 66097(U) (Saratoga)	dismissed 5/10/13 (Read, J.)
People v Flores	2d Dept: 102 AD3d 707 (Queens)	denied 5/6/13 (Read, J.)
People v Flowers	2d Dept: 102 AD3d 885 (Kings)	denied* 5/14/13 (Rivera, J.)
People v Floyd	2d Dept: 104 AD3d 873 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Fountain	2d Dept: 102 AD3d 887 (Queens)	denied 5/6/13 (Read, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Brown* (90 AD3d 575 [2011]), *lv granted* 19 NY3d 958 [2012]) and *People v Harris* (96 AD3d 502 [2012], *lv granted* 19 NY3d 1026 [2012]).

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People v Fox (Anthony)	2d Dept: 104 AD3d 789 (Kings)	denied 5/15/13 (Smith, J.)
People v Fox (James)	4th Dept: 103 AD3d 1225 (Ontario)	denied 5/7/13 (Smith, J.)
People v Frank	4th Dept: 103 AD3d 1094 (Ontario)	denied 5/30/13 (Read, J.)
People v Galindez	1st Dept: 103 AD3d 566 (Bronx)	denied 5/14/13 (Pigott, J.)
People v Garcia (Andy)	1st Dept: 103 AD3d 508 (NY)	denied 5/22/13 (Grafteo, J.)
People v Garcia (David)	2d Dept: 104 AD3d 874 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Garrison	2d Dept: 103 AD3d 751 (Kings)	denied 5/6/13 (Read, J.)
People v Gonzalez	2d Dept: 103 AD3d 664 (Queens)	denied 5/6/13 (Grafteo, J.)
People v Goupil	4th Dept: 104 AD3d 1215 (Niagara)	denied 5/31/13 (Grafteo, J.)
People v Graves	2d Dept: 103 AD3d 752 (Dutchess)	denied 5/14/13 (Pigott, J.)
People v Grullon	1st Dept: 104 AD3d 533 (NY)	denied 5/30/13 (Lippman, Ch. J.)
People v Gssime	App Div, 2d Dept: 2012 NY Slip Op 92031(U) (Nassau)	denied reconsideration 5/15/13 (Pigott, J.)
People v Guamal	2d Dept: 104 AD3d 957 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Guarneri	App Div, 3d Dept: 2013 NY Slip Op 64718(U) (Schoharie)	dismissed 5/22/13 (Grafteo, J.)
People v Hampton	App Div, 1st Dept: 2013 NY Slip Op 60049(U) (NY)	denied 5/15/13 (Pigott, J.)
People v Harper (Glendine)	2d Dept: 100 AD3d 772 (Queens)	denied 5/6/13 (Read, J.)
People v Harper (Mark)	2d Dept: 103 AD3d 665 (Queens)	denied 5/2/13 (Lippman, Ch. J.)
People v Harris	1st Dept: 103 AD3d 427 (NY)	denied 5/6/13 (Grafteo, J.)
People v Harvey	4th Dept: 100 AD3d 1451 (Herkimer)	denied 5/14/13 (Pigott, J.)
People v Hawkins	App Div, 1st Dept: 2013 NY Slip Op 60049(U) (NY)	denied 5/15/13 (Pigott, J.)
People v Haywood	App Div, 2d Dept: 2013 NY Slip Op 68647(U) (Westchester)	dismissed 5/14/13 (Rivera, J.)
People v Heary	4th Dept: 104 AD3d 1208 (Erie)	denied 5/15/13 (Smith, J.)
People v Herring	2d Dept: 101 AD3d 1151 (Queens)	denied 5/10/13 (Read, J.)
People v Hira	2d Dept: 100 AD3d 922 (Nassau)	denied 5/6/13 (Read, J.)

People v Holmes	4th Dept: 101 AD3d 1632 (Genesee)	denied 5/10/13 (Pigott, J.)
People v Horne	1st Dept: 104 AD3d 409 (NY)	denied 5/8/13 (Smith, J.)
People v Howard	4th Dept: 101 AD3d 1749 (Erie)	denied 5/10/13 (Read, J.)
People v Hunter	App Div, 1st Dept: 2012 NY Slip Op 91886(U) (NY)	denied reconsideration 5/17/13 (Pigott, J.)
People v Jackson (Gregory)	4th Dept: 103 AD3d 1245 (Ontario)	denied 5/6/13 (Grafteo, J.)
People v Jackson (Stanley)	App Div, 1st Dept: 2012 NY Slip Op 89920(U) (Bronx)	denied reconsideration 5/30/13 (Read, J.)
People v Jamison	4th Dept: 103 AD3d 1190 (Onondaga)	denied 5/13/13 (Lippman, Ch. J.)
People v Jesus	4th Dept: 103 AD3d 1190 (Ontario)	denied 5/10/13 (Read, J.)
People v Jimmeson	4th Dept: 101 AD3d 1678 (Monroe)	denied 5/10/13 (Read, J.)
People v Johnson (Kevin)	4th Dept: 103 AD3d 1226 (Monroe)	denied 5/9/13 (Smith, J.)
People v Johnson (Robert)	1st Dept: 104 AD3d 479 (NY)	denied 5/31/13 (Grafteo, J.)
People v Jones (Harold)	1st Dept: 103 AD3d 411 (NY)	granted 5/6/13 (Grafteo, J.)
People v Jones (Jetone)	4th Dept: 103 AD3d 1215 (Erie)	dismissed 5/22/13 (Grafteo, J.)
People v Jones (Joseph)	2d Dept: 103 AD3d 753 (Richmond)	denied 5/7/13 (Smith, J.)
People v Jones (Kumar)	4th Dept: 103 AD3d 1190 (Ontario)	denied 5/10/13 (Read, J.)
People v Jones (Qumar)	4th Dept: 103 AD3d 1190 (Ontario)	denied 5/10/13 (Read, J.)
People v Jones (Shelton)	3d Dept: 101 AD3d 1241 (Delaware)	denied 5/10/13 (Read, J.)
People v Joseph	2d Dept: 103 AD3d 665 (Suffolk)	denied 5/9/13 (Smith, J.)
People v Joslyn	4th Dept: 103 AD3d 1254 (Yates)	denied 5/14/13 (Pigott, J.)
People v Kidkarndee	App Div, 1st Dept: 2012 NY Slip Op 87645(U) (NY)	denied 5/31/13 (Grafteo, J.)
People v Lima	2d Dept: 105 AD3d 774 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Lloyd-Douglas	2d Dept: 102 AD3d 986 (Queens)	granted 5/20/13 (Smith, J.)
People v Lopez (Joshua)	2d Dept: 104 AD3d 876 (Suffolk)	denied 5/31/13 (Pigott, J.)
People v Lopez (Nelson)	1st Dept: 103 AD3d 416 (NY)	denied 5/30/13 (Read, J.)

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People v Lopez (William)	1st Dept: 103 AD3d 460 (NY)	denied 5/15/13 (Smith, J.)
People v Louis	App Div, 2d Dept: 2013 NY Slip Op 67814(U) (Kings)	dismissed 5/22/13 (Lippman, Ch. J.)
People v Lourie	1st Dept: 102 AD3d 606 (NY)	denied 5/6/13 (Read, J.)
People v Machado	1st Dept: 104 AD3d 619 (NY)	denied 5/31/13 (Grafteo, J.)
People v Mack (Allen)	1st Dept: 102 AD3d 438 (NY)	denied 5/6/13 (Read, J.)
People v Mack (Tony)	2d Dept: 104 AD3d 706 (Queens)	denied 5/31/13 (Pigott, J.)
People v Macpherson	County Ct, 1/6/12 (Essex)	denied 5/1/13 (Lippman, Ch. J.)
People v Madupu	County Ct, 2/27/13 (Oneida)	denied 5/7/13 (Smith, J.)
People v Marshall	4th Dept: 103 AD3d 1252 (Monroe)	denied 5/15/13 (Smith, J.)
People v Maxwell	4th Dept: 103 AD3d 1239 (Erie)	denied 5/14/13 (Pigott, J.)
People v Mays	1st Dept: 103 AD3d 546 (NY)	denied 5/9/13 (Smith, J.)
People v McCray	2d Dept: 103 AD3d 666 (Suffolk)	denied 5/22/13 (Grafteo, J.)
People v McFadden	4th Dept: 104 AD3d 1219 (Monroe)	denied 5/22/13 (Lippman, Ch. J.)
People v Mendez	4th Dept: 104 AD3d 1145 (Onondaga)	denied 5/22/13 (Smith, J.)
People v Mills	4th Dept: 103 AD3d 1223 (Niagara)	denied 5/10/13 (Read, J.)
People v Montero	4th Dept: 100 AD3d 1555 (Monroe)	denied 5/14/13 (Pigott, J.)
People v Moreland	4th Dept: 103 AD3d 1275 (Erie)	denied 5/7/13 (Smith, J.)
People v Morford	4th Dept: 103 AD3d 1238 (Erie)	denied 5/6/13 (Read, J.)
People v Mullings	1st Dept: 105 AD3d 407 (Bronx)	denied 5/30/13 (Lippman, Ch. J.)
People v Nicholson	2d Dept: 101 AD3d 904 (Kings)	denied 5/10/13 (Read, J.)
People v Ogando	1st Dept: 104 AD3d 466 (NY)	denied 5/31/13 (Grafteo, J.)
People v Oliver	2d Dept: 103 AD3d 817 (Queens)	denied 5/22/13 (Pigott, J.)
People v Pelaez	2d Dept: 100 AD3d 803 (Queens)	denied 5/15/13 (Pigott, J.)
People v Perad	2d Dept: 100 AD3d 805 (Queens)	denied 5/6/13 (Read, J.)
People v Perez (Juan)	2d Dept: 103 AD3d 670 (Kings)	denied 5/9/13 (Smith, J.)

People v Perez (Reynaldo)	App Div, 1st Dept: 2013 NY Slip Op 63657(U) (Bronx)	granted 5/9/13 (Pigott, J.)
People v Peterson	1st Dept: 101 AD3d 641 (NY)	denied 5/30/13 (Lippman, Ch. J.)
People v Piazza	4th Dept: 103 AD3d 1189 (Onondaga)	denied 5/14/13 (Pigott, J.) (Appeal Nos. 1 and 2)
People v Pilgrim	1st Dept: 101 AD3d 435 (Bronx)	denied 5/7/13 (Pigott, J.)
People v Polhill	2d Dept: 102 AD3d 988 (Queens)	granted 5/20/13 (Smith, J.)
People v Price	2d Dept: 101 AD3d 905 (Queens)	denied 5/30/13 (Lippman, Ch. J.)
People v Quesado	1st Dept: 102 AD3d 444 (NY)	denied 5/10/13 (Read, J.)
People v Quinn	4th Dept: 103 AD3d 1258 (Erie)	denied 5/16/13 (Pigott, J.)
People v Ramos	1st Dept: 103 AD3d 470 (NY)	denied 5/30/13 (Read, J.)
People v Reid	2d Dept: 100 AD3d 1025 (Kings)	denied 5/10/13 (Read, J.)
People v Rickman	2d Dept: 103 AD3d 757 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Riley	2d Dept: 103 AD3d 818 (Kings)	denied 5/22/13 (Smith, J.)
People v Riso	App Term, 1st Dept: 39 Misc 3d 129(A) (NY)	denied 5/31/13 (Grafteo, J.)
People v Rodriguez	1st Dept: 103 AD3d 522 (NY)	denied 5/9/13 (Smith, J.)
People v Rogers (Anthony)	2d Dept: 105 AD3d 776 (Kings)	denied 5/31/13 (Grafteo, J.)
People v Rogers (Johnny)	4th Dept: 103 AD3d 1150 (Onondaga)	denied 5/13/13 (Lippman, Ch. J.)
People v Ropiza	2d Dept: 100 AD3d 935 (Suffolk)	denied reconsideration 5/17/13 (Pigott, J.)
People v Rosario	2d Dept: 103 AD3d 671 (Orange)	denied 5/8/13 (Smith, J.)
People v Rosenberg	1st Dept: 103 AD3d 531 (NY)	denied 5/14/13 (Pigott, J.)
People v Royster	1st Dept: 102 AD3d 600 (NY)	denied 5/30/13 (Read, J.)
People v Sanders	App Div, 1st Dept: 2013 NY Slip Op 63992(U) (NY)	dismissed 5/10/13 (Read, J.)
People v Sandoval	2d Dept: 100 AD3d 1025 (Nassau)	denied 5/30/13 (Lippman, Ch. J.)
People v Santiago	4th Dept: 101 AD3d 1715 (Monroe)	denied 5/10/13 (Read, J.)
People v Seymore	App Div, 1st Dept: 2013 NY Slip Op 66311(U) (Bronx)	denied 5/31/13 (Grafteo, J.)

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People v Shenandoah	County Ct, 38 Misc 3d 1219(A) (St. Lawrence)	denied 5/8/13 (Smith, J.)
People v Simpkins	2d Dept: 102 AD3d 815 (Nassau)	denied 5/8/13 (Smith, J.)
People v Smith	2d Dept: 104 AD3d 960 (Queens)	denied 5/31/13 (Pigott, J.)
People v Sommerville	2d Dept: 104 AD3d 880 (Richmond)	denied 5/22/13 (Lippman, Ch. J.)
People v Stephenson	1st Dept: 101 AD3d 512 (NY)	denied 5/10/13 (Read, J.)
People v Stewart	App Div, 1st Dept: 2012 NY Slip Op 94671(U) (NY)	dismissed 5/31/13 (Grafteo, J.)
People v Stunt	4th Dept: 103 AD3d 1226 (Monroe)	denied 5/9/13 (Smith, J.)
People v Swinton	App Div, 1st Dept: 2013 NY Slip Op 63119(U) (Bronx)	denied 5/29/13 (Read, J.)
People v Taylor (Garth)	App Div, 2d Dept: 2013 NY Slip Op 66709(U) (Kings)	dismissed 5/17/13 (Pigott, J.)
People v Taylor (Lawrence)	App Div, 1st Dept: 2012 NY Slip Op 94657(U) (NY)	denied 5/10/13 (Read, J.)
People v Taylor (Phillip)	1st Dept: 104 AD3d 603 (Bronx)	denied 5/31/13 (Pigott, J.)
People v Toledo	1st Dept: 101 AD3d 571 (Bronx)	denied 5/10/13 (Pigott, J.)
People v Torres	1st Dept: 101 AD3d 460 (Bronx)	denied 5/10/13 (Read, J.)
People v Vasquez	2d Dept: 101 AD3d 1054 (Kings)	denied 5/10/13 (Read, J.)
People v Velilla	2d Dept: 104 AD3d 881 (Kings)	denied 5/31/13 (Pigott, J.)
People v Veras	3d Dept: 103 AD3d 984 (Albany)	denied 5/14/13 (Pigott, J.)
People v Waring	2d Dept: 104 AD3d 711 (Nassau)	denied 5/15/13 (Pigott, J.)
People v Warner	2d Dept: 103 AD3d 821 (Orange)	denied 5/14/13 (Pigott, J.)
People v West	App Div, 3d Dept: 2013 NY Slip Op 67460(U) (Schoharie)	denied 5/7/13 (Smith, J.)
People v Williams (Angela)	4th Dept: 98 AD3d 1234 (Onondaga)	denied 5/2/13 (Lippman, Ch. J.)
People v Williams (John)	4th Dept: 103 AD3d 1180 (Orleans)	denied 5/9/13 (Pigott, J.) (Appeal No. 1)
People v Williams (John)	4th Dept: 103 AD3d 1180 (Orleans)	denied 5/9/13 (Pigott, J.) (Appeal No. 2)
People v Witherspoon (Eric)	App Div, 2d Dept: 2013 NY Slip Op 67937(U) (Suffolk)	dismissed 5/13/13 (Rivera, J.)
People v Witherspoon (Eric)	App Div, 2d Dept: 2012 NY Slip Op 93124(U) (Suffolk)	dismissed 5/13/13 (Rivera, J.)

People v Wolff	4th Dept: 103 AD3d 1264 (Ontario)	denied 5/31/13 (Grafteo, J.)
People v Zeh	3d Dept: 101 AD3d 1353 (Ulster)	granted 5/10/13 (Pigott, J.)

In the Matter of JEMAL ALBRITTON, Appellant, v BRIAN FISHER,
as Commissioner of Corrections and Community Supervi-
sion, Respondent.

Submitted April 22, 2013; decided June 4, 2013

Reported below, 2013 NY Slip Op 61718(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of ANONYMOUS, an Attorney, Appellant. DEPART-
MENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL
DEPARTMENT, Respondent.

Decided June 4, 2013

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the order appealed from does not
finally determine the proceeding within the meaning of the
Constitution.

Judge ABDUS-SALAAM taking no part.

In the Matter of CRAIG S., Appellant, v DONNA S., Respondent.

Submitted May 13, 2013; decided June 4, 2013

Reported below, 101 AD3d 505.

Motion for reargument of motion for leave to appeal denied
[see 20 NY3d 862 (2013)].

Judge ABDUS-SALAAM taking no part.

In the Matter of ANTONIO C. CUNHA, Respondent, v ROSA E.
URIAS, Appellant.

Submitted April 15, 2013; decided June 4, 2013

Reported below, 101 AD3d 996.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DALTUN A.B., an Infant. STEUBEN COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; DANIEL B., JR., Appellant. (And Two Other Proceedings.)

Submitted April 22, 2013; decided June 4, 2013

Reported below, 103 AD3d 1181.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. PRINCE BACKMAN, Appellant, v JIM WALSH, as Superintendent of Sullivan Correctional Facility, Respondent.

Submitted May 6, 2013; decided June 4, 2013

Reported below, 101 AD3d 1316.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 863 (2013)].

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MITCHEL D.G., Appellant, v INTERFAITH MEDICAL CENTER et al., Respondents.

Submitted May 13, 2013; decided June 4, 2013

Reported below, 2012 NY Slip Op 94111(U).

Motion for sanctions and other relief denied.

[991 NE2d 707, 969 NYS2d 849]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TRAVIS AUGUSTINE, Appellant.

Argued April 30, 2013; decided June 6, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the Third Judicial Department, entered November 10, 2011. The Appellate Division affirmed a judgment of the Greene County Court (George J. Pulver, Jr., J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, aggravated cruelty to animals and criminal possession of stolen property in the fourth degree (two counts).

People v Augustine, 89 AD3d 1238, affirmed.

HEADNOTE

Crimes — Harmless and Prejudicial Error — Right to Counsel Violation

In a prosecution for murder and other crimes, assuming that defendant's indelible right to counsel was violated when he was questioned about the victim's disappearance while in jail for a violation of probation, any error was harmless beyond a reasonable doubt. There was no reasonable possibility that the introduction of the two challenged statements affected defendant's conviction in view of the other evidence, including two counseled statements to police and testimony of numerous witnesses, that overwhelmingly established his guilt.

APPEARANCES OF COUNSEL

Matthew C. Hug, Troy, for appellant.

Terry J. Wilhelm, District Attorney, Catskill, and *New York Prosecutor's Training Institute, Inc.*, Albany (*Hannah E.C. Moore* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Travis Augustine was convicted after a jury trial of second-degree murder, aggravated cruelty to animals, and fourth-degree criminal possession of stolen property (two counts). The victim, who died from a gunshot wound to the head, was discovered buried in the remote property she owned in Greene County, New York, where she had been living with defendant for several months in a camper; her pet bulldog, shot five times in the head, was buried above her. While in jail for a violation of probation (VOP), defendant was twice questioned by police about the victim's disappearance, the second time after her body had been discovered. Counsel was not present. Defendant claims that his constitutional right to counsel was violated because he was represented by counsel on the VOP at the time, as evidenced by the notation made on an arraignment memorandum by the Town Justice who arraigned him on the VOP.

Assuming, without deciding, that defendant's indelible right to counsel was violated, any error was harmless beyond a reasonable doubt (*see People v Lopez*, 16 NY3d 375, 386-387 [2011], citing *People v Douglas*, 4 NY3d 777, 779 [2005]; *see also People v Crimmins*, 36 NY2d 230, 240-241 [1975]). There is no reasonable possibility that the introduction of the two challenged statements affected defendant's conviction in view of the other evidence, including two counseled statements to police and testimony of numerous witnesses, that overwhelmingly established his guilt.

Defendant's claim of insufficient evidence to support his conviction for aggravated cruelty to animals is unpreserved; his remaining claims are without merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order affirmed, in a memorandum.

[991 NE2d 704, 969 NYS2d 846]

MARCIA A. WILD et al., as Coexecutors of MARGUERITE HORN, Deceased, et al., Respondents, v CATHOLIC HEALTH SYSTEM, Doing Business as MERCY HOSPITAL OF BUFFALO, et al., Defendants, and BUFFALO EMERGENCY ASSOCIATES, LLP, et al., Appellants.

Argued April 24, 2013; decided June 6, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 17, 2011. The Appellate Division modified, on the law, a judgment of the Supreme Court, Erie County (Tracey A. Bannister, J.), which had awarded plaintiffs money damages against defendants Buffalo Emergency Associates, LLP and Raquel Martin, D.O. The modification consisted of granting that part of defendants' post-trial motion to set aside the verdict and for a new trial with respect to the award of damages for loss of consortium only, unless plaintiffs stipulated to reduce the award of damages for loss of consortium to \$200,000. Plaintiffs so stipulated. The Appellate Division affirmed the judgment as modified.

Wild v Catholic Health Sys., 85 AD3d 1715, affirmed.

HEADNOTES**Appeal — Preservation of Issue for Review — Jury Challenge — Theory of Liability**

1. In a medical malpractice action, defendants' challenge at trial that the facts of the case did not support a loss-of-chance charge failed to preserve defendants' challenge on appeal that a loss-of-chance charge was wholly unavailable under New York law. The trial court charged the jury that the negligence of any of the defendants could be considered a cause of the injuries to decedent "if you find the defendant[s'] actions or omissions deprived [decedent] of a substantial possibility of avoiding the consequences of" having a permanent feeding tube. Defendants' argument before the trial judge was that plaintiffs failed to present evidence in support of the charge which sought to instruct the jury on a negligence theory of loss-of-chance, and that the jury charge erroneously reduced the plaintiffs' burden of proof and relaxed the standard for causation. However, on appeal, defendants contended that the trial court improperly instructed the jury on the loss-of-chance theory of liability because New York State had not yet adopted this theory. Defendants' broad challenge to the loss-of-chance doctrine was unpreserved and was not properly before the Court of Appeals.

Trial — Instructions — Medical Malpractice Action — Burden of Proof

2. In a medical malpractice action, the trial court's charge on plaintiffs' burden of proof, instructing the jury that an "act or omission is regarded as a cause of an injury if it was a substantial factor in bringing about the injury . . . [t]hat is, if it had such an effect in producing the injury that reasonable people would regard it as a cause of the injury," did not improperly reduce plaintiffs' burden of proof. A plaintiff must generally show that the defendant's negligence was a substantial factor in producing the injury to satisfy the burden of proving a prima facie case in a medical malpractice action. The trial court recited the proximate cause charge directly from the Pattern Jury Instructions, explicitly instructing the jury as to plaintiffs' burden of proof in the case. Further, at the outset of the charge, the court instructed the jury that "the burden of the proof in this case rests with the plaintiffs," and made clear that the plaintiffs had to establish by a preponderance of the evidence defendants' negligence. Taking the jury charge as a whole, it did not improperly alter the causation standard or plaintiffs' burden of proof.

APPEARANCES OF COUNSEL

Damon Morey LLP, Buffalo (*Michael J. Willett* and *Patrick B. Curran* of counsel), for appellants.

Paul William Beltz, P.C., Buffalo (*Debra A. Norton* and *William A. Quinlan* of counsel), for respondents.

OPINION OF THE COURT**MEMORANDUM.**

The Appellate Division order should be affirmed, with costs.

Defendants Dr. Raquel Martin and her firm, Buffalo Emergency Associates, LLP, challenge a jury verdict in favor of plaintiffs in this medical malpractice action against Dr. Martin

and several other institutional and individual defendants, for negligence resulting in injury to plaintiff Marguerite Horn. Defendants claim that the jury charge improperly reduced plaintiffs' burden of proof. We disagree.

In 2005, decedent, an 83-year-old woman, was rushed to a hospital after her 89-year-old husband, Joseph Horn, found her unresponsive and on the floor of their home. At the hospital, the emergency room physician, defendant Dr. Martin, concluded that Horn had difficulty breathing and may have suffered a stroke. Attempts were made to insert an endotracheal tube in Horn's throat, including two unsuccessful attempts by Dr. Martin, during one of which Dr. Martin inserted the tube into Horn's esophagus. After several failed attempts an anesthesiologist successfully intubated her.

During the intubation procedure Dr. Martin observed a subcutaneous emphysema under Horn's skin. However, not until days later did physicians finally discover that Horn's esophagus had been perforated during intubation. Surgical attempts at repair proved unsuccessful, and, as a consequence, for the three remaining years of her life, until her death of an unrelated cause, Horn was unable to consume foods or liquids by mouth, and required a feeding tube, as well as the daily assistance of her husband, for her nutritional intake.

A jury found Dr. Martin solely liable and returned a one million dollar plaintiffs' verdict of \$500,000 for the decedent's pain and suffering and \$500,000 for the husband's loss of consortium. The Appellate Division unanimously affirmed, on plaintiffs' stipulation to a reduction of the loss of consortium damages to \$200,000 (85 AD3d 1715 [2011]).

On appeal, defendants contend that the trial court improperly instructed the jury on the loss-of-chance theory of liability because New York State has not yet adopted this theory, and the charge relaxed the plaintiffs' burden of proof.* Defendants base their argument on the following jury charge language:

“The negligence of any of the defendants may be considered a cause of the injuries to [decedent] if

* The loss-of-chance theory, in certain jurisdictions, “ ‘grant[s] recovery to patients for deprivation of the opportunity of more beneficial treatment and the resulting gain in life expectancy or comfort, although the evidence fails to establish a reasonable probability that without defendant's negligence a cure was achievable’ ” (*Hill v Novartis Pharms. Corp.*, 944 F Supp 2d 943, 963 [ED Cal 2013], quoting *Williams v Wraxall*, 33 Cal App 4th 120, 135, 39 Cal Rptr 2d 658, 667 [1995]).

you find the defendant[s'] actions or omissions deprived [decedent] of a substantial possibility of avoiding the consequences of . . . having a permanent feeding tube. The chance of avoiding the need for a [permanent] feeding tube in order to be substantial does not have to be more likely than not, it does not have to be more than 50 percent, but it has to be more than . . . slight.”

In response, plaintiffs argue that defendants’ challenge based on the viability of a loss-of-chance theory of liability under New York law is unpreserved, and that regardless, the jury charge was proper.

[1] As a threshold matter we agree that the defendants’ challenge to the viability of the loss-of-chance theory as articulated on appeal is unpreserved. The record indicates that defendants did not present the trial court with a direct challenge to the underlying theory of negligence propounded during the trial and eventually charged to the jury. Instead, counsel challenged the jury charge on the ground that the “facts of this case” do not support a loss-of-chance charge, not that such charge is wholly unavailable under New York law. Thus, the concern raised with the trial court was that plaintiffs had failed to present a factual basis for the charge, not that as a legal matter, regardless of the evidence, such a charge was prohibited under New York law. Moreover, defendants’ challenge was asserted as part of counsel’s request for adherence to the Pattern Jury Instructions (PJI) because, counsel argued, the proposed language deviated from the PJI in a way that changed the burden of proof. Thus, the sum and substance of defendants’ argument before the trial judge was that plaintiffs failed to present evidence in support of the charge which sought to instruct the jury on a negligence theory of loss-of-chance, and that the jury charge erroneously reduced the plaintiffs’ burden of proof and relaxed the standard for causation. Defendants’ broad challenge to the loss-of-chance doctrine is unpreserved and is not properly before the Court (*see generally Up-Front Indus. v U.S. Indus.*, 63 NY2d 1004 [1984]; *see also Matter of Bitchatchi v Board of Trustees of the N.Y. City Police Dept. Pension Fund, Art. II*, 20 NY3d 268, 284 [2012]).

[2] We now turn to defendants’ contention, preserved below, that the trial court improperly reduced plaintiffs’ burden of proof. It is well settled that a “plaintiff must generally show that the defendant’s negligence was a substantial factor in

producing the injury” to satisfy “the burden of proving a prima facie case” in a medical malpractice action (*see Lyons v McCauley*, 252 AD2d 516, 517 [2d Dept 1998], *lv denied* 92 NY2d 814 [1998]; *see also Derdarian v Felix Contr. Corp.*, 51 NY2d 308, 315 [1980]). Here, the trial court recited the proximate cause charge directly from the PJI and explicitly instructed the jury as to plaintiffs’ burden of proof in the case. The court charged the jury using the language from PJI 2:70, as follows: “An act or omission is regarded as a cause of an injury if it was a substantial factor in bringing about the injury. That is, if it had such an effect in producing the injury that reasonable people would regard it as a cause of the injury.” Further, at the outset of the charge, the court instructed the jury that “the burden of the proof in this case rests with the plaintiffs,” and made clear that the plaintiffs had to establish by a preponderance of the evidence defendants’ negligence. Taking this jury charge as a whole, we do not find support for defendants’ contention of an improper alteration of the causation standard or plaintiffs’ burden of proof (*Nestorowich v Ricotta*, 97 NY2d 393, 401 [2002]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

Order affirmed, with costs, in a memorandum.

MANINDER BHUGRA, Appellant, v MASSACHUSETTS CASUALTY INSURANCE COMPANY et al., Respondents.

Decided June 6, 2013

Reported below, 2013 NY Slip Op 63975(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the BOARD OF MANAGERS OF FRENCH OAKS CONDOMINIUM, Respondent, v TOWN OF AMHERST et al., Appellants, and WILLIAMSVILLE CENTRAL SCHOOL DISTRICT, Intervenor-Respondent.

Submitted April 22, 2013; decided June 6, 2013

Reported below, 103 AD3d 1102.

Motion to dismiss appeal denied.

HSBC BANK USA, N.A., as Trustee for the REGISTERED HOLDERS OF RENAISSANCE HOME EQUITY LOAN TRUST 2006-1, Respondent, v ROBERT T. ASHLEY et al., Appellants.

Submitted April 22, 2013; decided June 6, 2013

Reported below, 104 AD3d 975.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

L&L ASSOCIATES HOLDING CORP., Respondent, v JOSEPH A.F. SADOWSKI, Appellant, et al., Defendants.

Submitted April 15, 2013; decided June 6, 2013

Reported below, 2012 NY Slip Op 91501(U).

Motion for reargument denied [*see* 20 NY3d 1057 (2013)].
Motion for a stay dismissed as academic.

Judge ABDUS-SALAAM taking no part.

MICHAEL LURIE, Appellant, v HOLLY LURIE, Respondent.

Submitted April 15, 2013; decided June 6, 2013

Reported below, 101 AD3d 1429.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the portion of Supreme Court's order denying reargument, dismissed upon the ground that such part of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LYNN & CAHILL, LLP, Respondent, v NADINE WITKIN, Appellant.

Submitted April 8, 2013; decided June 6, 2013

Reported below, 101 AD3d 515.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER B., Appellant.

Submitted April 1, 2013; decided June 6, 2013

Reported below, 102 AD3d 115.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 860 (2013)].

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARK RUSSELL, Respondent.

Submitted April 29, 2013; decided June 6, 2013

Reported below, 99 AD3d 211.

Motion to vacate this Court's April 2, 2013 dismissal order granted [*see* 21 NY3d 910 (2013)].

In the Matter of TIMOTHY QUINN, Appellant, v RAYMOND KELLY, Police Commissioner of the City of New York, et al., Respondents.

Submitted March 18, 2013; decided June 6, 2013

Reported below, 92 AD3d 589.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 19 NY3d 813 (2012)].

Judges RIVERA and ABDUS-SALAAM taking no part.

JUDITH LYNN STENROOS, Respondent, v WILLIAM A. MAECKER,
Appellant.

Decided June 6, 2013

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies to the Court of Appeals from the order of County Court affirming the Silver Creek Village Court judgment (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

[995 NE2d 128, 972 NYS2d 166]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY
LAM, Appellant.

Argued April 24, 2013; decided June 11, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered December 23, 2011. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Marc J. Whiten, J., on motion to dismiss; Matthew A. Sciarrino, J., at trial and sentence), which had convicted defendant, after a non-jury trial, of unlicensed general vending in violation of Administrative Code of the City of New York § 20-453.

People v Lam, 34 Misc 3d 130(A), 2011 NY Slip Op 52327(U), affirmed.

HEADNOTE

Crimes — Unlicensed General Vending — Selling T-Shirts Containing Expressive Content

An order of the Appellate Term, which affirmed a judgment convicting defendant of unlicensed general vending in violation of Administrative Code of the City of New York § 20-453 for his selling of T-shirts allegedly containing artistic images of constitutionally protected expression, was affirmed. Although Criminal Court may have overemphasized the fact that the T-shirts defendant had been selling without a license could be worn as apparel, the Appellate Term reasonably found that their dominant purpose was utilitarian and, therefore, their sale was unprotected by the First Amendment. That court considered, among other factors, the way in which the shirts were displayed and their low, uniform selling price in coming to the conclusion that the T-shirts were primarily commercial goods. Accordingly, it could not be said that the Appellate Term's conclusion was error as a matter of law.

APPEARANCES OF COUNSEL

Steven Banks, Legal Aid Society, New York City (*Martin M. Lucente* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Andrew E. Seewald* and *Eleanor J. Ostrow* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be affirmed.

Defendant was convicted of unlicensed general vending, in violation of section 20-453 of the Administrative Code of the City of New York, for selling T-shirts in Union Square Park without a vendor's license. He argues that his conviction should be vacated because the vending of T-shirts containing artistic images was constitutionally protected expression.

Addressing a similar issue, the Second Circuit found that the relevant inquiry is whether the vendor is "genuinely and primarily engaged in artistic self-expression or whether the sale of such goods is instead a chiefly commercial exercise" (*Mastrovincenzo v City of New York*, 435 F3d 78, 91 [2d Cir 2006]). The court recognized that certain items, including apparel, could simultaneously contain potentially expressive and non-expressive components and, in that situation, a reviewing court must determine which purpose—expression or utility—is dominant (*see Mastrovincenzo*, 435 F3d at 95).

"Where an object's dominant purpose is expressive, the vendor of such an object has a stronger claim to protection under the First Amendment; conversely, where an object has a dominant non-expressive purpose, it will be classified as a 'mere commercial good[],' the sale of which likely falls outside the scope of the First Amendment" (*Mastrovincenzo*, 435 F3d at 95).

Although Criminal Court may have overemphasized the fact that the T-shirts can be worn as apparel, the Appellate Term reasonably found that their dominant purpose was utilitarian. That court considered, among other factors, the way in which the shirts were displayed and their low, uniform selling price in coming to the conclusion that the T-shirts were primarily

commercial goods. We are unable to determine that this conclusion was error as a matter of law.*

Since the dominant purpose here was not expressive, it is unnecessary to determine whether the statute leaves open ample alternative channels of communication.

SMITH, J. (dissenting). But for the fact that the key evidence has been destroyed, this would be an interesting and important case. It raises the issue, considered by the Court of Appeals for the Second Circuit in *Bery v City of New York* (97 F3d 689 [2d Cir 1996]) and *Mastrovincenzo v City of New York* (435 F3d 78 [2d Cir 2006]), of the degree of First Amendment protection available to visual art that is sold commercially.

But we are unable to address that question in any useful way without looking at, or at least having a clear description of, the T-shirts that defendant was prosecuted for selling. The People, according to their brief, “have been informed by the New York Police Department Property Clerk’s Office that the t-shirts were destroyed some time after trial,” and the record contains neither a photograph nor a description of them. In light of that, I find it hard to understand how the Appellate Term decided that “Criminal Court was warranted in concluding that defendant’s wares were mere commercial goods whose dominant purpose was utilitarian, and not expressive” (*People v Lam*, 34 Misc 3d 130[A], 2011 NY Slip Op 52327[U], *1 [App Term, 1st Dept 2011]), or how the majority decides that the Appellate Term’s finding was reasonable (majority mem at 959). Presumably, both the Appellate Term and the majority are going on the theory that, since nothing in the appellate record contradicts Criminal Court’s finding, the finding should be accepted.

Since it was the Police Department that destroyed the evidence, I would resolve the doubt in the opposite way, in defendant’s favor. There is testimony from defendant that T-shirts allegedly similar to the ones on which his arrest was based were “a statement on the state of surveillance” and “about the Iraq War.” (Pictures of these allegedly similar T-shirts were admitted into evidence but these pictures too have been lost, apparently by defendant or his counsel.) The testimony is ambiguous, but I

* We note that, although the T-shirts themselves were apparently destroyed some time after trial, defendant does not argue that their destruction was in bad faith or that he has been prejudiced by their loss. At trial he provided an exhibit consisting of drawings that were representative of the designs on the T-shirts he had been selling—an exhibit that likewise can no longer be found. He also testified concerning the subject matter of his work.

would draw the inference, in the absence of better proof, that the T-shirts expressed a clear political message, similar to the message on the jacket worn in *Cohen v California* (403 US 15 [1971]). On that assumption, it is surely not open to doubt that defendant's sale of the T-shirts was protected by the First Amendment and article I, § 8 of the New York Constitution. I would hold that the courts below erred in deciding otherwise.

Two other features of this case seem to me to call for comment. First, while I find much to admire in the Second Circuit's *Mastrovincenzo* opinion, I am not convinced—and we should not decide, in a case without a useful record—that we should accept its “dominant purpose” test (435 F3d at 95). Here, it does not matter what test is applied: the only issue is whether to assume the facts in the People's favor, as the majority apparently does, or in defendant's favor, as I think we should. Certainly, today's memorandum should not be viewed as committing us to follow *Mastrovincenzo*.

Secondly, I point out, but do not complain, that neither the Appellate Term nor today's majority has been punctilious in following the rule of *People v LaFontaine* (92 NY2d 470 [1998]). *LaFontaine* holds that neither an intermediate appellate court nor this Court may affirm a judgment in a criminal case “on a ground not decided *adversely* to the appellant by the trial court” (*People v Concepcion*, 17 NY3d 192, 195 [2011]). Criminal Court rejected defendant's First Amendment argument on the ground that “[t]he transferring of an artistic image to the T-shirt changed the art, the non-expressive purpose became dominant.” Neither the Appellate Term nor the majority embraces this simple (and, I think, untenable) “a shirt is a shirt” rationale. The Appellate Term replaced it with what seems to be a balancing test, relying, unlike Criminal Court, on the manner in which the shirts were displayed and their price, and the majority expresses a preference for the Appellate Term's approach (majority mem at 959-960).

It is not clear to me why *LaFontaine* permits either the Appellate Term or the majority to proceed in this way; but I welcome the erosion of *LaFontaine*. This case confirms my belief that the *LaFontaine* rule is essentially unworkable (*see Concepcion*, 17 NY3d at 201-207 [Smith, J., dissenting]).

Finally, I express the hope that in future cases counsel and the Property Clerk will bear in mind that exhibits should not be destroyed while an appeal is pending.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, PIGOTT and RIVERA concur; Judge SMITH dissents in an opinion; Judge ABDUS-SALAAM taking no part.

Order affirmed, in a memorandum.

[992 NE2d 420, 970 NYS2d 492]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS L. MASON, Appellant.

Decided June 11, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 21, 2012. The Appellate Division affirmed a judgment of the Seneca County Court (Dennis F. Bender, J.), which had convicted defendant, upon a jury verdict, of official misconduct.

In a prosecution arising out of defendant correction officer's alleged sexual conduct with an inmate, defendant was initially acquitted of two counts of criminal sexual act in the third degree and found guilty of official misconduct. County Court set aside the verdict finding him guilty of that offense based on the People's failure to disclose *Brady* and *Rosario* material. Defendant was thereafter again convicted of official misconduct following a second jury trial. He appealed, contending, among other things, that the verdict following the first trial was against the weight of the evidence. The Appellate Division concluded, in part, that defendant was not actually challenging the weight of the evidence but was contending that the verdict in his first trial was either repugnant or inconsistent. The Appellate Division held that that contention was not preserved for review and was not properly before that court inasmuch as defendant had failed to object to the inconsistency of the verdict after the verdict was rendered, but before the jury was discharged. Moreover, the Appellate Division concluded that the verdict in the first trial was neither repugnant nor inconsistent because there was a possible theory under which a split verdict could be legally permissible.

People v Mason, 101 AD3d 1659, reversed.

HEADNOTE

Crimes — Appeal — Review Power of Appellate Division

In a prosecution for official misconduct, in which defendant argued on appeal that the jury's verdict was against the weight of the evidence, the order of the Appellate Division, which concluded that that argument was not properly before it, manifested a lack of application of that review power. Consequently, the Appellate Division order, which affirmed defendant's conviction, was reversed and the case remitted for a proper consideration of defendant's claim.

APPEARANCES OF COUNSEL

Mary J. Fahey, Syracuse, for appellant.

Barry L. Porsch, District Attorney, Waterloo, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for further proceedings in accordance with this memorandum.

On appeal, defendant argued that the jury's verdict was against the weight of the evidence. The order of the Appellate Division (101 AD3d 1659 [2012]), however, “ ‘manifest[s] a lack of application of that review power’ ” (*People v Romero*, 7 NY3d 633, 646 [2006], quoting *People v Bleakley*, 69 NY2d 490, 496 [1987]). Consequently, we must reverse and remit for a proper consideration of the claim. Defendant's remaining contention lacks merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

[993 NE2d 405, 970 NYS2d 919]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT MITCHELL, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSUE DELISER, Appellant.

Argued May 2, 2013; decided June 11, 2013

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 29, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Michael A. Gross, J., at suppression hearing; Megan Tallmer, J., at plea and sentence), which had convicted defendant, upon his plea of guilty, of murder in the second degree (two counts).

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 21, 2011. The Appellate Division affirmed two judgments of the Supreme Court, Kings County (Abraham Gerges, J.), which had convicted defendant, upon his pleas of guilty, of attempted murder in the second degree and robbery in the first degree.

People v Mitchell, 89 AD3d 628, affirmed.

People v Deliser, 85 AD3d 1047, reversed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Conflict of Interest — Counsel Taking Position Adverse to Defendant on Motion to Withdraw Guilty Plea

1. In a criminal prosecution, the trial court properly exercised its discretion in assigning new counsel when, prior to sentencing, defendant moved to withdraw his guilty plea arguing that his counsel coerced him into pleading guilty and defense counsel stated on the record his opposition to the motion. When asked by the court if defense counsel had anything to say on defendant's behalf, counsel said that he did not "adopt the merits or factual assertions relative to" the motion. Defense counsel expressed his concern to the court that if he did not respond to the motion, his silence might be deemed an acknowledgment that there was merit to the claims. A defendant has a right to the effective assistance of counsel on his or her motion to withdraw a guilty plea. The motion court has broad discretion in its fact-finding inquiry on the motion and often a limited interrogation by the court will suffice. When certain actions or inaction on the part of defense counsel is challenged on the motion,

it may be necessary for defense counsel to address the matter when asked to by the court. When doing so, defense counsel should be afforded the opportunity to explain his performance with respect to the plea, but may not take a position on the motion that is adverse to the defendant. At that point, a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion.

Crimes — Right to Counsel — Effective Representation — Conflict of Interest — Counsel Taking Position Adverse to Defendant on Motion to Withdraw Guilty Plea

2. In a criminal prosecution, the trial court abused its discretion in not assigning new counsel when, prior to sentencing, defendant moved to withdraw his guilty plea arguing that his counsel coerced him into pleading guilty and defense counsel took a position contrary to the one taken by his client on the motion. Asked for his response, defense counsel stated that, in his opinion, the People had “two strong cases against [defendant] and I think he made a knowing plea and I think it was in his best interest.” A defendant has a right to the effective assistance of counsel on his or her motion to withdraw a guilty plea. The motion court has broad discretion in its fact-finding inquiry on the motion and often a limited interrogation by the court will suffice. When certain actions or inaction on the part of defense counsel is challenged on the motion, it may be necessary for defense counsel to address the matter when asked to by the court. When doing so, defense counsel should be afforded the opportunity to explain his performance with respect to the plea, but may not take a position on the motion that is adverse to the defendant. At that point, a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion.

APPEARANCES OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Rebekah J. Pazmiño of counsel), for appellant in the first above-entitled action.

Robert T. Johnson, District Attorney, Bronx (Richard J. Ramsay, Joseph N. Ferdenzi and Peter D. Coddington of counsel), for respondent in the first above-entitled action.

Lynn W.L. Fahey, Appellate Advocates, New York City (Winston McIntosh of counsel), for appellant in the second above-entitled action.

Charles J. Hynes, District Attorney, Brooklyn (Diane R. Eisner and Leonard Joblove of counsel), for respondent in the second above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed in *People v Mitchell*, and the order of the Appellate Division should be reversed and the case remitted to Supreme Court in *People v Deliser* for further proceedings in accordance with this memorandum.

People v Mitchell

Defendant pleaded guilty to two counts of murder in the second degree. Prior to sentencing, he filed a pro se motion to withdraw that plea, arguing, among other things, that his counsel coerced him into pleading guilty. When asked by the court if defense counsel had anything to say on defendant's behalf, counsel said: "[O]nly that I do not adopt the merits or factual assertions relative to this [motion]." Defense counsel expressed his concern to the court that if he did not respond to the motion, his silence might be deemed an acknowledgment that there was merit to the claims. In response to this concern, the court indicated it would assign new counsel. The court permitted defense counsel to be heard, and defense counsel took a position contrary to defendant's claim of coercion. After a proceeding with new defense counsel, the motion was denied. The Appellate Division affirmed the judgment of conviction and sentence (89 AD3d 628 [1st Dept 2011]).

People v Deliser

Defendant pleaded guilty to attempted murder in the second degree and robbery in the first degree in satisfaction of two indictments. He subsequently made a pro se motion to withdraw his plea in both cases, claiming that his pleas had been coerced by, among other things, defense counsel's alleged undue pressure on him. Asked for his response, defense counsel explained the actions he took on defendant's behalf. He concluded with the statement that, in his opinion, the People had "two strong cases against [defendant] and I think he made a knowing plea and I think it was in his best interest."

After reading portions of the plea minutes, the court denied defendant's motion to withdraw the pleas. The Appellate Division affirmed the judgments of conviction and sentence (85 AD3d 1047 [2d Dept 2011]) concluding, among other things, that defendant's attorney did not take a position adverse to defendant's motion to withdraw his pleas.

A Judge of this Court granted defendants leave to appeal.

It is well settled that a defendant has a right to the effective assistance of counsel on his or her motion to withdraw a guilty plea (see *People v Boyd*, 22 NY2d 707 [1968]; *People v Rozzell*, 20 NY2d 712 [1967]). The motion court has broad discretion in its fact-finding inquiry on the motion and often a "limited interrogation by the court will suffice" (*People v Tinsley*, 35 NY2d 926, 927 [1974]). "Only in the rare instance will a defendant be entitled to an evidentiary hearing" (*id.*).

Thus, when a motion to withdraw a plea is patently insufficient on its face, a court may simply deny the motion without making any inquiry. When certain actions or inaction on the part of defense counsel is challenged on the motion, it may very well be necessary for defense counsel to address the matter when asked to by the court. When doing so, defense counsel should be afforded the opportunity to explain his performance with respect to the plea (*see People v Nelson*, 7 NY3d 883 [2006]), but may not take a position on the motion that is adverse to the defendant (*see People v Kennedy*, 22 NY2d 280, 282 [1968]). At that point, a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion.

[1] In *Mitchell*, when defense counsel stated on the record his opposition to the motion, the court providently exercised its discretion in assigning new counsel. The court's decision to deny defendant's motion after hearing from new defense counsel is supported by the record.

[2] In *Deliser*, the court abused its discretion in not assigning new counsel once defense counsel took a position contrary to the one taken by his client on the motion. Thus defendant is entitled to be heard on his plea withdrawal motion with new assigned counsel.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

In *People v Mitchell*: Order affirmed, in a memorandum.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

In *People v Deliser*: Order reversed and case remitted to Supreme Court, Kings County, for further proceedings in accordance with the memorandum herein.

In the Matter of CARL R., Respondent. GERALD G. WRIGHT, Appellant.

Submitted April 29, 2013; decided June 11, 2013

Reported below, 93 AD3d 728.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Respondent, v DEPARTMENT OF HOMELESS SERVICES OF THE CITY OF NEW YORK et al., Appellants.

Submitted May 6, 2013; decided June 11, 2013

Reported below, 103 AD3d 464.

Motion to intervene denied.

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

In the Matter of DAVID DALE, Appellant, v CHRISTOPHER J. BURNS, Justice of the Supreme Court, et al., Respondents.

Submitted April 22, 2013; decided June 11, 2013

Reported below, 103 AD3d 1243.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for a stay dismissed as academic.

In the Matter of AMY R. GURVEY (Admitted as AMY REBECCA WEISSBROD), an Attorney and Counselor-at-Law, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted May 6, 2013; decided June 11, 2013

Reported below, 102 AD3d 197.

Motion for reconsideration of this Court's March 26, 2013 dismissal order denied [*see* 20 NY3d 1085 (2013)].

Judge ABDUS-SALAAM taking no part.

RONALD MIZRAHI, Respondent, v EZRA COHEN, Appellant.

Submitted April 29, 2013; decided June 11, 2013

Reported below, 104 AD3d 917.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BEN NEHMADI, Appellant, v E. WILLIAM DAVIS, Respondent.

Submitted April 8, 2013; decided June 11, 2013

Reported below, 95 AD3d 1181.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KATISHA BEATY, Appellant.

Submitted May 13, 2013; decided June 11, 2013

Reported below, 96 AD3d 1515.

Motion for assignment of counsel granted and Harvey L. Greenberg, Esq., 232 Madison Ave., Room 909, New York, NY 10016 assigned as counsel to the appellant on the appeal herein.

[993 NE2d 1255, 971 NYS2d 234]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TAWOND LEACH, Appellant.

Argued May 29, 2013; decided June 25, 2013

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 27, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Raymond Guzman, J.), which had convicted defendant, upon a jury verdict, of attempted assault in the first degree (two counts), criminal possession of a weapon in the second degree, and reckless endangerment in the first degree.

People v Leach, 90 AD3d 1073, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Standing — Failure to Establish Legitimate Expectation of Privacy in Guest Bedroom of Apartment

There was record support for the lower courts' determination that defendant, who was convicted of criminal possession of a weapon and other crimes

arising from a shooting, lacked standing to contest a search that turned up a loaded gun found in the guest bedroom of his grandmother's apartment where defendant was residing because he had failed to establish a legitimate expectation of privacy in that bedroom. Whether a defendant demonstrates a legitimate expectation of privacy in premises is a mixed question of law and fact and, if there is record support for the Appellate Division's findings, those findings are beyond the Court of Appeals' review. There was no question that defendant resided in his grandmother's apartment. But there was record support for a finding that defendant's grandmother did not want defendant to have unfettered access to all areas of the apartment. She told the hearing court that defendant had his own bedroom and she reserved the extra or guest bedroom solely for use by other grandchildren when they came to visit. The record was silent as to whether defendant had ever used that bedroom for any purpose. While a contrary finding might also have been reasonable, it could not be said that there was no record support for the lower courts' determination.

APPEARANCES OF COUNSEL

Levitt & Kaizer, New York City (*Yvonne Shivers* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Thomas M. Ross* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On March 20, 2008, shortly before 7:00 p.m., two shooters fired at and hit a parked sport utility vehicle (SUV) occupied by three young men, brothers who survived the onslaught unhurt. Two of them were able to see the attackers, whom they identified to the police as defendant Tawond Leach and his brother Derek. The victims had grown up and gone to school with the Leach brothers in the same Brooklyn neighborhood where this incident occurred. They told the police that defendant shot at the SUV using a silver gun, and that he and his brother resided in a nearby building. About an hour later, defendant and his brother were arrested when they arrived at their grandmother's apartment on the second floor of this building. The police recovered a loaded silver gun from a bedroom in the apartment.

Defendant and his brother were charged with multiple counts of attempted murder, attempted assault, reckless endangerment, and weapon possession. Before trial, defendant moved to suppress the gun. At the hearing, his grandmother testified that she was the only one who had keys to her apartment, which had three bedrooms—hers, defendant's, which was furnished with a single bed, and an "extra" one reserved for the exclusive use of other grandchildren when they visited. She testified that she

had nine grandchildren, some lived nearby and two or three slept over in the extra bedroom “quite often.” The extra or guest bedroom was furnished with two twin beds, an armoire and a dresser. The police recovered the gun from this bedroom.

At the hearing’s conclusion, Supreme Court denied the motion to suppress. The judge credited the grandmother’s testimony that the bedroom where the gun was found was an extra or guest bedroom; and that defendant had a separate room and did not stay in the guest bedroom. Given these facts, Supreme Court held that defendant failed to meet his burden of establishing a reasonable expectation of privacy in “a room that wasn’t his, that was used by several other people.”

Defendant was subsequently convicted by a jury of two counts of first-degree attempted assault (Penal Law §§ 110.00, 120.10 [1]), second-degree criminal possession of a weapon (Penal Law § 265.03 [3]) and first-degree reckless endangerment (Penal Law § 120.25).^{*} He appealed, claiming for various reasons that the gun should have been suppressed. The Appellate Division unanimously affirmed, agreeing with Supreme Court that defendant lacked standing to contest the search that turned up the gun because he had no reasonable expectation of privacy in the guest bedroom of his grandmother’s apartment (90 AD3d 1073 [2d Dept 2011]). A Judge of this Court granted defendant leave to appeal (19 NY3d 975 [2012]), and we now affirm.

“A defendant seeking suppression of evidence has the burden of establishing standing by demonstrating a legitimate expectation of privacy in the premises or object searched” (*People v Ramirez-Portoreal*, 88 NY2d 99, 108 [1996]). “A legitimate expectation of privacy exists where defendant has manifested an expectation of privacy [a subjective component] that society recognizes as reasonable [an objective component]” (*id.* at 108). Whether a defendant demonstrates a legitimate expectation of privacy is a mixed question of law and fact and so, if there is record support for the Appellate Division’s findings, those findings are beyond our review (*see People v Jose*, 94 NY2d 844 [1999]; *People v Ortiz*, 83 NY2d 840, 843 [1994]).

Here, there is record support for the lower courts’ findings. There is no question that defendant resided in his grandmother’s apartment. But there is record support for a finding that defendant’s grandmother did not want defendant to have unfettered access to all areas of the apartment. She told the hearing court

^{*} The jury did not reach a verdict on the two counts of attempted murder, and defendant was not re-tried for these crimes.

that defendant had his own bedroom and she reserved the extra or guest bedroom solely for use by other grandchildren when they came to visit. The record was silent as to whether defendant had ever used that bedroom for any purpose. While a contrary finding might also have been reasonable under these circumstances, we cannot say there was no record support for the lower courts' determination that defendant failed to establish a legitimate expectation of privacy in the guest bedroom.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[992 NE2d 1085, 970 NYS2d 742]

In the Matter of JEAN LANG, Appellant, v RAYMOND KELLY, as the Police Commissioner of the City of New York and as Chairman of the Board of Trustees of the Police Pension Fund, Article II, et al., Respondents.

Decided June 25, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered December 20, 2012. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Donna M. Mills, J.; op 2012 NY Slip Op 30907[U] [2012]), entered in a proceeding pursuant to CPLR article 78, which had (1) denied a petition to annul respondents' denial of petitioner's application for accidental disability retirement benefits, and (2) dismissed the proceeding. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the [judgment] of Supreme Court, properly made?"

Matter of Lang v Kelly, 101 AD3d 561, affirmed.

HEADNOTE

Civil Service — Retirement and Pension Benefits — Accidental Disability Retirement — Failure to Establish Sudden Fortuitous or Extraordinary Nature of Injury

In a proceeding to review a determination denying petitioner's application for accidental disability retirement benefits based on injuries sustained when she tripped over computer wires strung on the floor across a locker room doorway, respondent Board of Trustees could find on the record that the statement of petitioner, which claimed that tape ordinarily securing the wires to

the floor was not present on the date she fell, was not credible. Because the record did not establish as a matter of law that petitioner's injury resulted from an incident that was sudden, fortuitous, unexpected or out of the ordinary, the Board's determination must be upheld.

APPEARANCES OF COUNSEL

Jean Lang, appellant pro se.

Michael A. Cardozo, Corporation Counsel, New York City
(*Keith M. Snow* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs, and the certified question not answered on the ground that it is unnecessary.

In March 2008, petitioner tripped over computer wires that for several months had been strung on the floor across a locker room doorway in her precinct. In a 6-6 decision, respondent Board of Trustees denied her application for accidental disability retirement benefits (*Matter of City of New York v Schoeck*, 294 NY 559, 568 [1945] [tie vote of the Board of Trustees will be resolved against applicant]).

We agree with the Appellate Division that the Board of Trustees could find on this record that petitioner's 2010 statement, which claimed that tape ordinarily secured the wires to the floor but was no longer present on the date she fell, was not credible. Because the record does not establish as a matter of law that petitioner's injury resulted from an incident that was "sudden, fortuitous . . . unexpected [or] out of the ordinary," the Board's determination must be upheld (*Matter of McCambridge v McGuire*, 62 NY2d 563, 568 [1984]; *Matter of Lichtenstein v Board of Trustees of Police Pension Fund of Police Dept. of City of N.Y., Art. II*, 57 NY2d 1010, 1012 [1982]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and RIVERA concur; Judge ABDUS-SALAAM taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered on the ground that it is unnecessary, in a memorandum.

In the Matter of PERRY BELLAMY, Appellant, v NEW YORK CITY
POLICE DEPARTMENT, Respondent.

Submitted April 15, 2013; decided June 25, 2013

Reported below, 87 AD3d 874.

Motion for reargument denied [*see* 20 NY3d 1028 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

In the Matter of the Claim of LEKAN J. BOWEN, Appellant. COM-
MISSIONER OF LABOR, Respondent.

Submitted April 29, 2013; decided June 25, 2013

Reported below, 2013 NY Slip Op 64126(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

ALEXANDER BREYTMAN, Appellant, v ROBERTA S. SCHECHTER, as
Executor of DONALD SCHECHTER, Deceased, et al., Respon-
dents, et al., Defendant.

Submitted May 13, 2013; decided June 25, 2013

Reported below, 101 AD3d 783.

Motion for leave to appeal dismissed for failure to demon-
strate timeliness as required by the Rules of the Court of Ap-
peals (22 NYCRR) § 500.22 (b) (2). Motion for poor person relief
etc. dismissed as academic.

In the Matter of CORRINA W., Respondent, v JENNIFER J. et al.,
Respondents. ATTORNEY FOR THE CHILDREN, Appellant. (And
Another Proceeding.)

Submitted May 6, 2013; decided June 25, 2013

Reported below, 104 AD3d 995.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceedings within the meaning of the Constitution.

EXECUTIVE PLAZA, LLC, Appellant, v PEERLESS INSURANCE COMPANY, Respondent.

Decided June 25, 2013

See 717 F3d 114.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of GENA S., an Infant. GENESEE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; KAREN M., Appellant. (Appeal No. 1.)

In the Matter of MISTY S., an Infant. GENESEE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; KAREN M., Appellant. (Appeal No. 2.)

In the Matter of SHAUNDRA D., an Infant. GENESEE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; KAREN M., Appellant. (Appeal No. 3.)

Submitted April 29, 2013; decided June 25, 2013

Reported below, 101 AD3d 1593, 1596.

Motion, insofar as it seeks leave to appeal from the Appellate Division order reversing the Family Court order of disposition as to Gena S. and remitting to Family Court for further proceedings, dismissed upon the ground that such order does not finally determine that proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of JOHN KAPON et al., Appellants, v WILLIAM I. KOCH, Respondent.

Submitted June 10, 2013; decided June 25, 2013

Reported below, 105 AD3d 650.

Motion for leave to appeal granted. Motion for a stay granted. Judge SMITH taking no part.

In the Matter of KIMBERLY J.G. WESTCHESTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; CHANTEL J.G.V., Appellant. (And Another Proceeding.)

Submitted May 6, 2013; decided June 25, 2013

Reported below, 2013 NY Slip Op 67122(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

PAUL MARINACCIO, SR., Respondent, v TOWN OF CLARENCE, Defendant, and KIEFFER ENTERPRISES, INC., Appellant.

Submitted May 6, 2013; decided June 25, 2013

Reported below, 90 AD3d 1599.

Motion for reargument etc. denied [*see* 20 NY3d 506 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JERMAINE DUNBAR, Respondent.

Submitted June 10, 2013; decided June 25, 2013

Reported below, 104 AD3d 198.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v VICTOR GONZALEZ, Appellant.

Submitted June 17, 2013; decided June 25, 2013

Reported below, 91 AD3d 453.

Motion for assignment of counsel granted and V. Marika Meis, Esq., The Bronx Defenders, 360 East 161st Street, Bronx, New York 10451 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HAR-
OLD JONES, Appellant.

Submitted June 3, 2013; decided June 25, 2013

Reported below, 103 AD3d 411.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v COLLIN F.
LLOYD-DOUGLAS, Respondent.

Submitted June 10, 2013; decided June 25, 2013

Reported below, 102 AD3d 986.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAY-
MOND MICHAEL, Appellant.

Submitted June 17, 2013; decided June 25, 2013

Reported below, 39 Misc 3d 138(A).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v EUGENE
POLHILL, Respondent.

Submitted June 10, 2013; decided June 25, 2013

Reported below, 102 AD3d 988.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New

York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARSHA SIBBLIES, Appellant.

Submitted June 10, 2013; decided June 25, 2013

Reported below, 98 AD3d 458.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge ABDUS-SALAAM taking no part.

In the Matter of RCN TELECOM SERVICES OF NEW YORK, LP, et al., Appellants, v DAVID M. FRANKEL et al., Respondents.

Submitted April 29, 2013; decided June 25, 2013

Reported below, 100 AD3d 538.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

ELIZABETH A. SPIELFOGEL, Appellant, v LARRY R. SPIELFOGEL, Respondent.

Submitted April 29, 2013; decided June 25, 2013

Reported below, 96 AD3d 443.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements.

Motion for a stay dismissed as academic.

SUNRISE CHECK CASHING AND PAYROLL SERVICES, INC., et al., Respondents, v TOWN OF HEMPSTEAD, Appellant.

Submitted March 25, 2013; decided June 25, 2013

Reported below, 91 AD3d 126.

Motion for reargument denied [*see* 20 NY3d 481 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Respondent. (And Other Actions.)

Submitted June 3, 2013; decided June 25, 2013

Reported below, 94 AD3d 1094.

Motion by County of Suffolk for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

JOSEPH O. YEBO, Appellant, v HELENE M. CUADRA, Respondent.

Submitted January 7, 2013; decided June 25, 2013

Reported below, 98 AD3d 504.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 905 (2012)].

Judges RIVERA and ABDUS-SALAAM taking no part.

[994 NE2d 387, 971 NYS2d 491]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISIDORO MARRA, Appellant.

Argued May 28, 2013; decided June 26, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 15, 2012. The Appellate Division modified, as a matter of discretion in the interest of justice, a judgment of the Herkimer County Court (Patrick L. Kirk, J.), which had convicted defendant, upon a jury verdict, of rape in the first degree, sentenced defendant to a determinate term of imprisonment of 18 years followed by 15 years of postrelease supervision, and imposed a 20-year order of protection. The modification consisted of reducing the sentence to a determinate term of imprisonment of 10 years and a period of postrelease supervision of five years. The Appellate Division affirmed the judgment as modified.

People v Marra, 96 AD3d 1623, affirmed.

HEADNOTES

Crimes — Evidence — Photographic Evidence

1. In a prosecution for first-degree rape in which defendant was charged with engaging in sexual intercourse with a person incapable of consent by reason of being physically helpless, the trial judge did not abuse his discretion by allowing into evidence seven photographs taken of the victim at the hospital where she was examined after calling 911 to report a rape. The transcript of the hearing on defendant's motion in limine showed that the trial judge considered whether the photographs were properly authenticated, relevant and not unduly prejudicial.

Crimes — Right to Counsel — Effective Representation — Rape Prosecution

2. In a prosecution for first-degree rape in which defendant was charged with engaging in sexual intercourse with a person incapable of consent by reason of being physically helpless, defense counsel's alleged failings, such as his neglect to object to the prosecutor's comment in summation about condom use, did not amount to ineffective assistance of counsel. Defendant received meaningful representation.

APPEARANCES OF COUNSEL

Girvin & Ferlazzo, P.C., Albany (*Salvatore D. Ferlazzo* and *Stuart M. Cohen* of counsel), for appellant.

Jeffrey S. Carpenter, District Attorney, Herkimer, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Isidoro Marra was convicted by jury verdict of first-degree rape (Penal Law § 130.35 [2] [engaging in sexual intercourse with a person incapable of consent by reason of being physically helpless]). The trial judge sentenced him to a determinate term of imprisonment of 18 years followed by 15 years of postrelease supervision, and imposed a 20-year order of protection. Observing that the case “turned largely upon the credibility of the victim, and the jury evidently believed the victim’s testimony that defendant inserted his penis into her vagina without her consent while she was asleep,” the Appellate Division declined to substitute its credibility determinations for the jury’s and held that the verdict was not against the weight of the evidence (96 AD3d 1623, 1624-1625 [4th Dept 2012]). Additionally, the Court rejected defendant’s claims of evidentiary error and prosecutorial misconduct as unpreserved and, in any event, without merit. But “in light of [defendant’s]

age, his lack of a prior criminal record and other mitigating circumstances,” the Appellate Division modified the judgment by reducing defendant’s sentence to a determinate term of imprisonment of 10 years plus a five-year period of postrelease supervision (*id.* at 1627). A Judge of this Court granted defendant leave to appeal (19 NY3d 998 [2012]), and we now affirm.

[1, 2] Defendant objects to the trial judge’s decision to admit seven photographs taken of the victim at the hospital where she was examined after calling 911 to report a rape. These photographs depict red marks and bruises on her body. As an initial matter, we conclude that defendant preserved the objections he makes on appeal to the admission of these photographs into evidence. The transcript of the hearing on defendant’s motion in limine shows that the trial judge considered whether the photographs were properly authenticated, relevant and not unduly prejudicial. We cannot say the judge abused his discretion by allowing the photographs into evidence in view of the circumstances of this case, including the People’s theory of physical helplessness. Finally, we conclude that defense counsel’s alleged failings, such as his neglect to object to the prosecutor’s comment in summation about condom use, did not amount to ineffective assistance of counsel, and that defendant received meaningful representation.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, in a memorandum.

[993 NE2d 1264, 971 NYS2d 243]

ISLAND PARK, LLC, Appellant, v STATE OF NEW YORK, Respondent.

Argued May 30, 2013; decided June 26, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered March 22, 2012. The Appellate Division affirmed an order of the Court of Claims (W. Brooks DeBow, J.), which, among other things, had granted defendant’s cross motion for summary judgment dismissing the complaint.

Island Park, LLC v State of New York, 93 AD3d 1064, affirmed.

HEADNOTE**State — Claim against State — Regulatory Taking — Closing of Railroad Crossing**

A claim against the State to recover compensation for an alleged regulatory taking of claimant's property based on the Department of Transportation's order requiring the closure of a railroad crossing that claimant had used to move equipment from one part of its land to another, was without merit. The record showed that the Department ordered the closure after it had determined that the crossing presented a safety hazard, and that determination was upheld in a prior CPLR article 78 proceeding as being supported by substantial evidence. The conclusion was inescapable that the closure of the crossing was a proper exercise of the State's police power. Moreover, claimant failed to show the extent to which the Department's action diminished the value of its land, and did not argue that its easement to cross the railroad tracks should have been treated as an item of property separate from the land itself.

APPEARANCES OF COUNSEL

Young/Sommer LLC, Albany (*J. Michael Naughton* of counsel), for appellant.

Eric T. Schneiderman, Attorney General, Albany (*Andrew D. Bing*, *William E. Storrs*, *Peter H. Schiff* and *Barbara D. Underwood* of counsel), for respondent.

Elizabeth Dribusch, General Counsel, New York Farm Bureau, Albany (*Cynthia Feathers* of counsel), for New York Farm Bureau, amicus curiae.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

Claimant brought this action in the Court of Claims to recover compensation for an alleged regulatory taking of its property. The basis for the claim is that the State Department of Transportation required the closure of a railroad crossing that claimant had used to move equipment from one part of its land to another. The record shows that the Department ordered the closure after it determined that the crossing presented a safety hazard. It found that fast-moving trains passed by frequently; that a curve in the tracks limited the distance at which a train could be seen from the crossing; that heavy, slow-moving farm equipment was being transported over the tracks; and that there was a substantial grade at the approaches to the crossing, which made it necessary for crossing vehicles to reduce their speed. In a CPLR article 78 proceeding brought by claimant, the Department's determination was upheld as being supported by

substantial evidence (*Matter of Island Park, LLC v New York State Dept. of Transp.*, 61 AD3d 1023 [3d Dept 2009]).

On this record, the conclusion is inescapable that the closure of the crossing was a proper exercise of the State's police power. Moreover, claimant has failed to show the extent to which the Department's action diminished the value of its land, and has not argued that its easement to cross the railroad tracks should be treated for these purposes as an item of property separate from the land itself. Claimant's claim of a regulatory taking is without merit.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, with costs, in a memorandum.

[993 NE2d 409, 970 NYS2d 923]

MIA PLAZA, an Infant by Her Mother and Natural Guardian,
CLARIBEL RODRIGUEZ, Appellant, v NEW YORK CITY HEALTH
AND HOSPITALS CORPORATION (JACOBI MEDICAL CENTER),
Respondent.

Decided June 26, 2013

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 17, 2012. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Douglas E. McKeon, J.), which had granted a motion by defendant for summary judgment dismissing the complaint. The following question was certified by the Appellate Division: "Was the order of this Court, which affirmed the order of Supreme Court, properly made?"

In a medical malpractice action arising out of defendant's alleged negligence during the birth of the infant plaintiff on July 11, 2003, defendant asserted, among other things, that plaintiff's failure to serve a timely notice of claim required dismissal of the complaint.

Plaza v New York Health & Hosps. Corp. (Jacobi Med. Ctr.), 97 AD3d 466, affirmed.

HEADNOTE**Municipal Corporations — Notice of Claim — Late Notice — Infancy**

The dismissal of a medical malpractice action brought against defendant municipal corporation was affirmed where plaintiff admittedly served a late notice of claim against defendant without seeking leave of court (*see* General Municipal Law § 50-e [1], [5]; CPLR 208).

APPEARANCES OF COUNSEL

Law Offices of Fitzgerald & Fitzgerald, P.C., Yonkers (*John M. Daly* of counsel), for appellant.

Michael A. Cardozo, Corporation Counsel, New York City (*Janet L. Zaleon* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs. The certified question should not be answered on the ground that it is unnecessary.

Plaintiff admittedly served a late notice of claim against defendant without seeking leave of court.

General Municipal Law § 50-e (1) requires that a claimant serve a notice of claim against a public corporation within 90 days after a tort claim arises. However, section 50-e (5) provides that a court, “in its discretion,” may grant an application extending the time to serve a notice of claim as long as the application is made within the limitations period for commencing the action, including any tolls or extensions. CPLR 208 provides that “[i]f a person entitled to commence an action is under a disability because of infancy . . . at the time the cause of action accrues, and . . . the time otherwise limited [for commencing the action] is less than three years, the time shall be extended by the period of disability.” Where a medical malpractice action accrues during infancy, the extension is limited to 10 years from the time of accrual (*see* CPLR 208).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered on the ground that it is unnecessary, in a memorandum.

JOAN COCCIA, Respondent, v THOMAS F. LIOTTI, Appellant.

Submitted May 15, 2013; decided June 26, 2013

Reported below, 101 AD3d 664.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

ANDREW CORRIGAN, Appellant, v STELLAR MANAGEMENT, LLC, et al., Respondents.

Submitted May 28, 2013; decided June 26, 2013

Reported below, 99 AD3d 632; 2013 NY Slip Op 67003(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order of affirmance, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

WINIFRED K. DAY, Appellant, v ONE BEACON INSURANCE, Respondent.

Submitted May 6, 2013; decided June 26, 2013

Reported below, 96 AD3d 1678.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 20 NY3d 862 (2013)].

Judge ABDUS-SALAAM taking no part.

WINIFRED K. DAY, Appellant, v ONE BEACON INSURANCE, Respondent.

Submitted May 20, 2013; decided June 26, 2013

Reported below, 96 AD3d 1678.

Motion by the New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on the motion for reargument herein granted and the brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

In the Matter of EMPIRE CENTER FOR NEW YORK STATE POLICY,
Appellant, v NEW YORK STATE TEACHERS' RETIREMENT SYSTEM, Respondent.

Submitted April 8, 2013; decided June 26, 2013

Reported below, 103 AD3d 1009.

Motion by the Albany Times Union et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

In the Matter of EMPIRE CENTER FOR NEW YORK STATE POLICY,
Appellant, v TEACHERS' RETIREMENT SYSTEM OF THE CITY OF NEW YORK, Respondent.

Submitted April 8, 2013; decided June 26, 2013

Reported below, 103 AD3d 593.

Motion by the Albany Times Union et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

Judge ABDUS-SALAAM taking no part.

In the Matter of A. DENNIS GARDNER, Respondent, v COXSACKIE-ATHENS CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, Appellant.

Submitted May 20, 2013; decided June 26, 2013

Reported below, 92 AD3d 1093.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

KENNETH J. HECKER, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 6, 2013; decided June 26, 2013

Reported below, 92 AD3d 1261.

Motion for reargument denied [*see* 20 NY3d 1087 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

In the Matter of DEANA R. MENSCHKE, Appellant, v DEBRA I. MENSCHKE, Respondent.

Submitted May 13, 2013; decided June 26, 2013

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GARY WHITE, Appellant.

Submitted May 20, 2013; decided June 26, 2013

Reported below, 40 AD3d 662.

Motion for reargument denied [*see* 10 NY3d 286 (2008)].

Judges RIVERA and ABDUS-SALAAM taking no part.

In the Matter of DEBRA A. RAMALLO, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted May 13, 2013; decided June 26, 2013

Reported below, 2012 NY Slip Op 81157(U); 2012 NY Slip Op 72868(U).

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

TRUMP SECURITIES, LLC, et al., Respondents, v PUROLITE COMPANY et al., Appellants, et al., Defendant.

Submitted May 6, 2013; decided June 26, 2013

Reported below, 98 AD3d 904.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev]).

Judge ABDUS-SALAAM taking no part.

In the Matter of EARL WHITE, Respondent, v COUNTY OF SULLIVAN, Appellant.

Submitted May 13, 2013; decided June 26, 2013

Reported below, 101 AD3d 1552.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

[995 NE2d 168, 972 NYS2d 206]

CHRISTOPHER J. ALF, Appellant, v THE BUFFALO NEWS, INC., Respondent.

Decided June 27, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 16, 2012. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Erie County (Gerald J. Whalen, J.), which had granted defendant's motion for summary judgment, dismissed the complaint, and denied plaintiff's cross motion for summary judgment.

Alf v Buffalo News, Inc., 100 AD3d 1487, affirmed.

HEADNOTE

Libel and Slander — Privilege — Fair and True Report of Judicial Proceeding

In a defamation action alleging that defendant newspaper's reporting was false and misleading in a series of published articles charging that plaintiff and the company he chaired had admitted that the company cheated the government over a period of several years on military freight contracts that had been the subject of federal litigation ultimately settled by the company's guilty plea, the challenged statements were entitled to immunity under Civil Rights Law § 74, which provides that "[a] civil action cannot be maintained against any person, firm or corporation, for the publication of a fair and true

report of any judicial proceeding.” Plaintiff maintained that the articles and editorials reported prolonged wrongdoing as opposed to a single admitted false statement and that the average reader would think that plaintiff had personally engaged in wrongful conduct. Viewing the articles as a whole, the average reader would conclude that the company, and not the plaintiff, pleaded guilty to wrongdoing and that a multimillion dollar restitution amount covered more than the single incident to which plaintiff had admitted. Newspaper accounts of legislative or other official proceedings must be accorded some degree of liberality. Defendant provided substantially accurate reporting of the plea agreement and the fines and restitution, as discussed in open court.

APPEARANCES OF COUNSEL

Carter Ledyard & Milburn LLP, New York City (*John J. Walsh* and *Michael K. Plumb* of counsel), and *Harris Beach PLLC*, Buffalo (*Richard T. Sullivan* of counsel), for appellant.

Hiscock & Barclay, LLP, Buffalo (*Joseph M. Finnerty* and *Karim A. Abdulla* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

This defamation case arose from a series of articles and editorials published by The Buffalo News (News) in 2007 and 2008 concerning a federal investigation, related lawsuits and a guilty plea in federal court by National Air Cargo (NAC), an air freight forwarder, to settle allegations that it had overcharged the federal government on military freight contracts in the continental United States. The newspaper reported that NAC and its owner and chairman, plaintiff Christopher Alf, had admitted that NAC “cheated” the government over a period of several years in the amount of millions of dollars, that NAC would pay almost \$28 million in fines and restitution, and that no executives would face jail time. Plaintiff sued for defamation, arguing that the News’s reporting was false and misleading because it reported prolonged wrongdoing as opposed to a single admitted false statement and because the average reader would think that plaintiff had personally engaged in wrongful conduct. Supreme Court granted summary judgment to the newspaper, holding that the News was entitled to the defense of absolute privilege under Civil Rights Law § 74, which provides that “[a] civil action cannot be maintained against any person, firm or corporation, for the publication of a fair and true report of any judicial proceeding.” The Appellate Division affirmed, with two Justices dissenting (100 AD3d 1487 [4th Dept 2012]). We now affirm as well.

When examining a claim of libel, we do not view statements in isolation. Instead, “[t]he publication must be considered in its entirety when evaluating the defamatory effect of the words” (*Dibble v WROC TV Channel 8*, 142 AD2d 966, 967 [1988], citing *James v Gannett Co.*, 40 NY2d 415, 419 [1976], *rearg denied* 40 NY2d 990 [1976]). As both Supreme Court and the Appellate Division held, viewing the articles as a whole, the average reader would conclude that the company, and not plaintiff, pleaded guilty to wrongdoing and that the amount of restitution covered more than the single, admitted incident. As we have said, “newspaper accounts of legislative or other official proceedings must be accorded some degree of liberality. When determining whether an article constitutes a ‘fair and true’ report, the language used therein should not be dissected and analyzed with a lexicographer’s precision” (*Holy Spirit Assn. for Unification of World Christianity v New York Times Co.*, 49 NY2d 63, 68 [1979]). Here, the News provided substantially accurate reporting of the plea agreement and the fines and restitution, as discussed in open court. Thus, all the challenged statements concerning NAC and plaintiff relating to these proceedings are entitled to immunity under Civil Rights Law § 74.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, RIVERA and ABDUS-SALAAM concur; Judge PIGOTT taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[995 NE2d 164, 972 NYS2d 202]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEREK CHISHOLM, Appellant.

Argued May 30, 2013; decided June 27, 2013

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 9, 2011. The Appellate Division affirmed (1) a judgment of the Supreme Court, Queens County (Michael Aloise, J., on pretrial omnibus motion; Kenneth C. Holder, J., at trial and sentence), which had convicted defendant, after a nonjury trial, of criminal

possession of a weapon in the second degree (two counts), criminal possession of a weapon in the third degree (three counts), criminally using drug paraphernalia in the second degree, and criminal possession of marihuana in the fifth degree, and (2) a resentence of that court.

People v Chisholm, 89 AD3d 859, modified.

HEADNOTE

Crimes — Search Warrant — Confidential Informant — Failure to Establish Reliability of Informant

On a motion to controvert a search warrant, Supreme Court erred by failing to examine the transcript of the confidential informant's testimony before the magistrate issuing the warrant to determine whether the search warrant was issued upon probable cause and that the formal requirements of CPL 690.40 (1) had been substantially complied with and the matter was remitted to that court. The warrant and a police officer's supporting affidavit did not by themselves establish probable cause as there were no factual averments in the officer's affidavit that could have afforded the magistrate a basis for determining the reliability of the confidential informant. The affidavit did not state that the informant had a proven "track record" of supplying reliable information, and it was not evident that the informant had been under oath when information was given to the officer. Nor could the reliability of the informant be inferred solely from the statement in the affidavit that the informant had purchased drugs from defendant. While admissions against penal interest may be sufficient to support a finding of probable cause, details provided by the informant were not corroborated by the police and did not establish that the informant was reliable. Moreover, by upholding the validity of the warrant without examining the transcript of the confidential informant's testimony, the Supreme Court failed to determine that the magistrate substantially complied with the requirements of CPL 690.40 (1), which concerns the examination, on the record, of persons possessing pertinent information in search warrant applications.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (*Allegra Glashausser* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Donna Aldea, Robert J. Masters, John M. Castellano and Josette Simmons McGhee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by remitting to Supreme Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Defendant was convicted of multiple drug and weapon possession charges after a search of his home revealed marijuana and two firearms. Before trial, defendant moved to suppress the evidence and to controvert the search warrant, which was based

on the affidavit of a police officer, her testimony, and the oral deposition of a confidential informant who was brought before the issuing magistrate. Defendant also requested a hearing pursuant to *People v Darden* (34 NY2d 177 [1974]). Supreme Court denied defendant's motion based on the warrant papers alone and without reviewing the transcript of the confidential informant's testimony. The Appellate Division affirmed on appeal from the judgment of conviction and sentence, holding that Supreme Court providently exercised its discretion in denying defendant's application for a *Darden* hearing (89 AD3d 859, 860 [2d Dept 2011]).

While the courts below properly determined that defendant was not entitled to a *Darden* hearing (see *People v Serrano*, 93 NY2d 73, 77 [1999]), we agree with defendant that Supreme Court erred by failing to examine the transcript of the confidential informant's testimony before the magistrate to determine whether the search warrant was issued upon probable cause and that the formal requirements of CPL 690.40 (1) had been substantially complied with (see *id.* at 77-78; *People v Taylor*, 73 NY2d 683, 688-690 [1989]).

The search warrant and supporting affidavit do not by themselves establish probable cause in this case (see *People v Serrano*, 93 NY2d at 77-78). A warrant application containing information provided by a confidential informant must demonstrate "the veracity or reliability of the source of the information" (*id.* at 78, quoting *People v Griminger*, 71 NY2d 635, 639 [1988]; see *Spinelli v United States*, 393 US 410 [1969]; *Aguilar v Texas*, 378 US 108 [1964]). There are no "factual averments" in the police officer's affidavit that could have afforded the magistrate a basis for determining the reliability of the confidential informant (*People v Serrano*, 93 NY2d at 78). The affidavit does not state that the informant had a proven "track record" of supplying reliable information in the past (*People v Johnson*, 66 NY2d 398, 403 [1985] [internal quotation marks omitted]), and it is not evident that the informant was under oath when information was given to the officer (see *People v Wheatman*, 29 NY2d 337, 345 [1971], *cert denied sub nom. Marcus v New York*, 409 US 1027 [1972], *reh denied* 409 US 1119 [1973]).

Nor may the reliability of the confidential informant be inferred solely from the statement, set forth in the affidavit, that the informant bought cocaine from defendant. While admissions against penal interest may be sufficient to support a finding of probable cause (see *People v McCann*, 85 NY2d 951, 953

[1995]), “[s]uch admissions are not guarantees of truthfulness and they should be accepted only after careful consideration of all the relevant circumstances of the case indicates that there exists a basis for finding reliability” (*People v Johnson*, 66 NY2d at 403-404).

Here, unlike *People v McCann*, where the informant was a co-defendant, the confidential informant did not provide a “detailed signed statement” that was made “against [the informant’s] penal interests, and with the express understanding that making a false written statement was a crime” (85 NY2d at 953). Instead, the officer’s affidavit merely avers that the confidential informant told her that cocaine was purchased from defendant at his home on three occasions. While these statements were contrary to the informant’s penal interests, the details provided by the informant, other than the location of defendant’s home, were not corroborated by the police (*see People v Comforto*, 62 NY2d 725, 727 [1984] [police corroboration of informant’s statement contrary to his penal interests “provided a sufficient basis for the magistrate to conclude that the tip was credible”]).

Because neither the search warrant nor the supporting affidavit establishes that the informant was reliable, they did not by themselves establish probable cause (*see People v Serrano*, 93 NY2d at 78). Thus, Supreme Court “needed the transcript of the examination of the informant in order properly to determine that there was probable cause to issue the search warrant” (*id.*).

Moreover, by upholding the validity of the warrant without examining the transcript of the confidential informant’s testimony, Supreme Court failed to determine that the magistrate substantially complied with the requirements of CPL 690.40 (1) (*see id.*). This statute provides that in determining a search warrant application, “the court may examine, under oath, any person whom it believes may possess pertinent information. Any such examination must be either recorded or summarized on the record by the court.” We have made clear that “[t]he suppression court must find that there was substantial compliance with CPL 690.40 (1) in order to provide an ‘assurance of the regularity of the application process and preservation for appellate review of the grounds upon which a search warrant is issued’ ” (*People v Serrano*, 93 NY2d at 78 [alterations omitted], quoting *People v Taylor*, 73 NY2d at 689).

Accordingly, we remit this matter to Supreme Court to review the transcript of the confidential informant's testimony* and determine whether the warrant was supported by probable cause and that CPL 690.40 (1) was substantially complied with. On remittal, if Supreme Court concludes that the warrant was not supported by probable cause or that CPL 690.40 (1) was not substantially complied with, then the judgment of conviction and sentence should be vacated and the motion to suppress granted. If, on the other hand, the court concludes that probable cause and compliance with CPL 690.40 (1) were established, then the judgment should be amended to reflect that result.

SMITH, J. (dissenting). In my view, the affidavit submitted in support of the search warrant was sufficient, without testimony from the confidential informant, to support a finding of probable cause and thus to justify the warrant's issuance. I would therefore hold it unnecessary for Supreme Court to examine the transcript of the informant's testimony, and would affirm the Appellate Division's order.

Under the so-called *Aguilar-Spinelli* test, an application for a warrant based on information from an undisclosed informant must show both the informant's veracity or reliability and the basis of his or her knowledge (*Aguilar v Texas*, 378 US 108, 114 [1964]; *Spinelli v United States*, 393 US 410, 416 [1969]). This two-pronged test, though abandoned by the federal courts (*Illinois v Gates*, 462 US 213, 238 [1983]), remains the law of New York (*People v Griminger*, 71 NY2d 635, 639 [1988]). Here, there is no dispute that the affidavit stated the basis for the informant's knowledge; the issue is whether it sufficiently showed his veracity or reliability.

We held in *People v McCann* (85 NY2d 951, 953 [1995]) that the reliability of an informant could be inferred from "a detailed signed statement" made "against his own penal interests, and with the express understanding that making a false written statement was a crime." The statement here was against the informant's penal interests, and it was detailed, but it was oral

* Because Supreme Court denied defendant's motion to suppress the evidence and controvert the warrant without reviewing the transcript of the confidential informant's testimony, remittal to that court is appropriate in this case. However, we are troubled by the People's failure to see that the court reporter at the magistrate's hearing timely produced the transcript as directed by the Appellate Division. We trust that the People will implement procedures to prevent this from reoccurring.

rather than written and did not express the informant's knowledge that a false statement would be criminal. I do not find these distinctions to be decisive.

Some common sense is in order in deciding when to infer that an informant's statements have been shown to be reliable. Where the informant claims to be the customer of a drug dealer, and is admitting to purchasing drugs from the dealer, the informant is essentially confessing to a crime. Of course, the confession is self-serving in that the informant, almost invariably, expects leniency in exchange for the information he supplies. But he cannot get the leniency by supplying false information. His best hope is to prove to the police that he can be trusted. I think these circumstances sufficiently supported an inference that the information provided by the informant here was reliable, and I therefore conclude that the warrant was properly issued.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, PIGOTT, RIVERA and ABDUS-SALAAM concur; Judge SMITH dissents and votes to affirm in an opinion.

Order modified by remitting to Supreme Court, Queens County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted March 25, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by plaintiffs for reargument granted and case set down for a future session of this Court [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted March 25, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by New York Committee for Occupational Safety and Health for leave to appear amicus curiae on the motions for reargument herein granted and the affirmation is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted March 25, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by Injured Workers Bar Association for leave to file a brief amicus curiae on the motions for reargument herein granted and the brief is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted March 25, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by New York State AFL-CIO et al. for leave to file a brief amici curiae on the motions for reargument herein granted and the brief is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by New York State Bar Association for leave to file a brief amicus curiae on the motions for reargument herein

granted and the brief is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by Workers Injury Law & Advocacy Group for leave to file a brief amicus curiae on the motions for reargument herein granted and the brief is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by The Center for Popular Democracy for leave to appear amicus curiae on the motions for reargument herein granted and the affirmation and brief are accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the motions for reargument herein

granted and the affirmation is accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by Make the Road New York et al. for leave to appear *amici curiae* on the motions for reargument herein granted and the affirmation and brief are accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by The Black Institute for leave to appear *amicus curiae* on the motions for reargument herein granted and the affirmation and brief are accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted March 25, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by defendants for reargument granted and case set down for a future session of this Court [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

MARIA AUQUI, as Guardian of the Property of JOSE VERDUGO, et al., Respondents, v SEVEN THIRTY ONE LIMITED PARTNERSHIP et al., Appellants.

Submitted April 1, 2013; decided June 27, 2013

Reported below, 83 AD3d 407.

Motion by New York Communities for Change for leave to appear amicus curiae on the motions for reargument herein granted and the affirmation and brief are accepted as filed [*see* 20 NY3d 1035 (2013)].

Judges RIVERA and ABDUS-SALAAM taking no part.

LUIS CASAS, Appellant, v CONSOLIDATED EDISON COMPANY OF NEW YORK, INC., Respondent.

Submitted May 13, 2013; decided June 27, 2013

Reported below, 105 AD3d 471.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

ELIZABETH CIOFFI-PETRAKIS, Respondent, v PANAGIOTIS PETRAKIS, Appellant.

Submitted June 3, 2013; decided June 27, 2013

Reported below, 103 AD3d 766.

Motion by the American Academy of Matrimonial Lawyers for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

In the Matter of RONNIE COVINGTON, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, Respondent.

Decided June 27, 2013

Appeal transferred, without, costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that a direct appeal does not lie when questions

other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

In the Matter of MAX CRANE, Deceased. ALAN M. CRANE, Respondent; JUDITH HOLLANDER, Appellant.

Submitted May 28, 2013; decided June 27, 2013

Reported below, 100 AD3d 626.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DEUTSCHE BANK NATION TRUST COMPANY, Respondent, v FRANCISCO FELICIANO et al., Defendants, and SHEILA ELLERBE, Appellant.

Submitted May 28, 2013; decided June 27, 2013

Reported below, 105 AD3d 889.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CHARLES R. LIVECCHI, Appellant, v JOHN NACCA, Respondent.

Submitted May 20, 2013; decided June 27, 2013

Reported below, 2013 NY Slip Op 70726(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MITCHEL D.G., Appellant, v INTERFAITH MEDICAL CENTER et al., Respondents.

Submitted June 3, 2013; decided June 27, 2013

Reported below, 2013 NY Slip Op 94111(U).

Motion to dismiss appeal granted and appeal dismissed, without costs, on the ground that relator has been released and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see* CPLR 7002 [a]; *see also* *People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

JUDITH LYNN STENROOS, Respondent, v WILLIAM A. MAECKER,
Appellant.

Submitted June 3, 2013; decided June 27, 2013

Motion for a stay dismissed as academic.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2013 through June 30, 2013)

Gyabaah v Rivlab Transp. Corp.	1st Dept: 102 AD3d 451	6/5/13
Hernandez v City of New York	1st Dept: 100 AD3d 433	6/17/13

APPEALS WITHDRAWN AND DISCONTINUED

(June 1, 2013 through June 30, 2013)

Sciara v Surgical Assoc. of W. N.Y., P.C.	4th Dept: 104 AD3d 1256	6/27/13
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2013 through June 30, 2013)

People v Acevedo (Dennys)	2d Dept: 104 AD3d 862 (Kings)	denied 6/6/13 (Pigott, J.)
People v Acevedo (Yudelka)	1st Dept: 104 AD3d 610 (Bronx)	denied 6/26/13 (Smith, J.)
People v Alcantara	2d Dept: 100 AD3d 1010 (Kings)	denied 6/25/13 (Lippman, Ch. J.)
People v Alexander	2d Dept: 100 AD3d 649 (Queens)	denied 6/17/13 (Lippman, Ch. J.)
People v Allen	4th Dept: 104 AD3d 1170 (Niagara)	denied 6/26/13 (Smith, J.)
People v Amaya	2d Dept: 103 AD3d 907 (Suffolk)	denied 6/5/13 (Read, J.)

People v Anderson	App Div, 4th Dept, 4/11/13 (Erie)	dismissed 6/24/13 (Grafteo, J.)
People v Andrade	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 136(A) (Suffolk)	denied 6/7/13 (Lippman, Ch. J.)
People v Atherly	1st Dept: 105 AD3d 419 (NY)	denied 6/10/13 (Smith, J.)
People v Austin	2d Dept: 100 AD3d 1010 (Queens)	denied 6/18/13 (Read, J.)
People v Baret	1st Dept: 99 AD3d 408 (Bronx)	granted 6/5/13 (Smith, J.)
People v Bennett	2d Dept: 102 AD3d 881 (Kings)	denied 6/26/13 (Lippman, Ch. J.)
People v Benton	2d Dept: 103 AD3d 746 (Queens)	denied 6/25/13 (Lippman, Ch. J.)
People v Bieganowski	4th Dept: 104 AD3d 1276 (Oswego)	denied 6/11/13 (Lippman, Ch. J.)
People v Birot	2d Dept: 99 AD3d 933 (Kings)	denied 6/5/13 (Read, J.)
People v Bowers	App Div, 3d Dept: 2013 NY Slip Op 69647(U) (Chemung)	denied 6/14/13 (Pigott, J.)
People v Brewer	4th Dept: 103 AD3d 1213 (Ontario)	denied 6/5/13 (Read, J.)
People v Brown (Deanna)	2d Dept: 102 AD3d 977 (Suffolk)	denied 6/5/13 (Read, J.)
People v Brown (Kelvin)	2d Dept: 103 AD3d 662 (Orange)	denied 6/5/13 (Read, J.)
People v Brown (Malik)	1st Dept: 105 AD3d 517 (NY)	denied 6/13/13 (Grafteo, J.)
People v Bruzzley	1st Dept: 105 AD3d 576 (NY)	denied 6/28/13 (Pigott, J.)
People v Bulgin	1st Dept: 105 AD3d 551 (Bronx)	denied 6/14/13 (Pigott, J.)
People v Byrd	2d Dept: 100 AD3d 1013 (Kings)	denied 6/6/13 (Read, J.)
People v Caesar	1st Dept: 91 AD3d 503 (NY)	denied 6/6/13 (Read, J.)
People v Campbell	4th Dept: 106 AD3d 1507 (Steuben)	denied 6/25/13 (Grafteo, J.)
People v Caruso	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 137(A) (Nassau)	denied 6/7/13 (Lippman, Ch. J.)
People v Chandler	1st Dept: 104 AD3d 618 (NY)	denied 6/26/13 (Smith, J.)
People v Churchill	App Term, 1st Dept: 38 Misc 3d 148(A) (NY)	denied 6/18/13 (Read, J.)
People v Clark	2d Dept: 100 AD3d 1013 (Orange)	denied 6/25/13 (Lippman, Ch. J.)
People v Coleman	App Div, 1st Dept: 2013 NY Slip Op 66319(U) (Bronx)	denied 6/5/13 (Smith, J.)
People v Collazo	2d Dept: 104 AD3d 866 (Kings)	denied 6/6/13 (Read, J.)

MEMORANDA

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People v Collins	4th Dept: 105 AD3d 1378 (Monroe)	denied 6/27/13 (Smith, J.)
People v Colon	3d Dept: 101 AD3d 1161 (Albany)	denied 6/18/13 (Read, J.)
People v Concepcion (Felipe)	1st Dept: 104 AD3d 442 (Bronx)	denied 6/7/13 (Lippman, Ch. J.)
People v Concepcion (Luis)	3d Dept: 105 AD3d 1073 (Sullivan)	denied 6/7/13 (Lippman, Ch. J.)
People v Cooper	1st Dept: 99 AD3d 453 (NY)	denied 6/10/13 (Smith, J.)
People v Couch	2d Dept: 104 AD3d 955 (Westchester)	denied 6/4/13 (Pigott, J.)
People v Crosdale	2d Dept: 103 AD3d 749 (Queens)	denied 6/18/13 (Read, J.)
People v Cubi	4th Dept: 104 AD3d 1225 (Monroe)	denied 6/25/13 (Grafteo, J.)
People v Cunningham	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 126(A) (Kings)	denied 6/4/13 (Smith, J.)
People v Dame	3d Dept: 100 AD3d 1032 (Clinton)	denied 6/18/13 (Pigott, J.)
People v Davis (Collin)	2d Dept: 103 AD3d 810 (Queens)	denied 6/19/13 (Read, J.)
People v Davis (Ramal)	3d Dept: 105 AD3d 1095 (Chemung)	denied 6/10/13 (Smith, J.)
People v Deal (Derek)	App Div, 2d Dept: 2013 NY Slip Op 69393(U) (Suffolk)	dismissed 6/26/13 (Smith, J.)
People v Deal (Derek)	App Div, 2d Dept: 2013 NY Slip Op 70018(U) (Suffolk)	dismissed 6/26/13 (Smith, J.)
People v DeJesus (Christopher)	1st Dept: 105 AD3d 461 (NY)	denied 6/18/13 (Read, J.)
People v DeJesus (Payamps)	1st Dept: 104 AD3d 539 (Bronx)	denied 6/6/13 (Read, J.)
People v DeJesus-Garcia	1st Dept: 105 AD3d 554 (NY)	denied 6/7/13 (Lippman, Ch. J.)
People v Delacruz	2d Dept: 104 AD3d 867 (Rockland)	denied 6/14/13 (Read, J.)
People v De La Rosa (Angel)	1st Dept: 104 AD3d 571 (NY)	denied 6/24/13 (Pigott, J.)
People v Delarosa (Ramon)	2d Dept: 104 AD3d 956 (Queens)	denied 6/14/13 (Pigott, J.)
People v DeSmarat	App Div, 2d Dept: 2013 NY Slip Op 69681(U) (Kings)	dismissed 6/5/13 (Rivera, J.)
People v Dickson	3d Dept: 103 AD3d 989 (Albany)	denied 6/5/13 (Read, J.)
People v Dobbins	1st Dept: 105 AD3d 552 (NY)	denied 6/26/13 (Smith, J.)
People v Dominique	App Div, 2d Dept: 2013 NY Slip Op 70019(U) (Nassau)	dismissed 6/5/13 (Read, J.)

People v Donovan	4th Dept: 105 AD3d 1453 (Genesee)	denied 6/25/13 (Lippman, Ch. J.)
People v Dumay	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 36 Misc 3d 159(A) (Kings)	granted 6/6/13 (Read, J.)
People v E	3d Dept: 103 AD3d 987 (Albany)	denied 6/4/13 (Pigott, J.)
People v Ellison	1st Dept: 106 AD3d 419 (Bronx)	denied 6/14/13 (Grafteo, J.)
People v Facey	2d Dept: 104 AD3d 788 (Kings)	denied* 6/10/13 (Lippman, Ch. J.)
People v Fratangelo	County Ct, 2/21/13 (Seneca)	granted 6/11/13 (Read, J.)
People v Fumia	4th Dept: 104 AD3d 1281 (Monroe)	denied 6/6/13 (Read, J.)
People v Gabriel	1st Dept: 105 AD3d 650 (Bronx)	denied 6/25/13 (Lippman, Ch. J.)
People v George	App Div, 3d Dept: 2012 NY Slip Op 91230(U) (Schoharie)	denied 6/6/13 (Read, J.)
People v Gonzales	2d Dept: 101 AD3d 1149 (Nassau)	denied 6/13/13 (Read, J.)
People v Gousse	2d Dept: 98 AD3d 584 (Nassau)	denied 6/7/13 (Lippman, Ch. J.)
People v Gowdy	App Term, 1st Dept: 38 Misc 3d 143(A) (NY)	denied 6/14/13 (Read, J.)
People v Greenberg	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 126(A) (Kings)	denied 6/6/13 (Pigott, J.)
People v Guantero (Fernando)	4th Dept: 100 AD3d 1386 (Oneida)	denied 6/11/13 (Read, J.)
People v Guantero (Fernando)	4th Dept: 100 AD3d 1387 (Oneida)	denied 6/11/13 (Read, J.)
People v Gumbs (Eddie)	2d Dept: 105 AD3d 759 (Suffolk)	denied 6/18/13 (Read, J.)
People v Gumbs (Edward)	2d Dept: 105 AD3d 759 (Suffolk)	denied 6/18/13 (Read, J.)
People v Hamilton	2d Dept: 104 AD3d 874 (Kings)	denied 6/25/13 (Grafteo, J.)
People v Harris	1st Dept: 99 AD3d 608 (Bronx)	denied 6/13/13 (Lippman, Ch. J.)
People v Harrison	App Div, 1st Dept: 2013 NY Slip Op 60045(U) (NY)	denied 6/12/13 (Read, J.)
People v Hawkins	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 131(A) (Kings)	denied 6/24/13 (Pigott, J.)
People v Hicks (Chris)	App Div, 1st Dept: 2011 NY Slip Op 93283(U) (Bronx)	denied 6/10/13 (Smith, J.)
People v Hicks (Christopher)	App Div, 1st Dept: 2011 NY Slip Op 93283(U) (Bronx)	denied 6/10/13 (Smith, J.)
People v Hightower	1st Dept: 104 AD3d 510 (Bronx)	denied 6/10/13 (Read, J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Alcide* (95 AD3d 897 [2012], *lv granted* 19 NY3d 956 [2012]).

MEMORANDA

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People v Hirsh	App Div, 4th Dept, 4/10/13 (Oswego)	dismissed 6/11/13 (Read, J.)
People v Huggins	2d Dept: 105 AD3d 760 (Nassau)	denied 6/26/13 (Lippman, Ch. J.)
People v Hutchinson	1st Dept: 95 AD3d 741 (NY)	denied 6/6/13 (Read, J.)
People v Izzo	3d Dept: 104 AD3d 964 (Franklin)	denied 6/11/13 (Read, J.)
People v Jackson (Bryant)	App Div, 1st Dept: 2013 NY Slip Op 73671(U) (NY)	dismissed 6/18/13 (Read, J.)
People v Jackson (Leonard)	4th Dept: 101 AD3d 1685 (Monroe)	denied 6/5/13 (Lippman, Ch. J.)
People v Jackson (Raysomon)	3d Dept: 100 AD3d 1258 (Albany)	denied 6/14/13 (Pigott, J.)
People v Jean	App Div, 2d Dept: 2013 NY Slip Op 62825(U) (Rockland)	denied 6/5/13 (Smith, J.)
People v Jefferson	2d Dept: 104 AD3d 875 (Suffolk)	denied 6/25/13 (Grafteo, J.)
People v Jingzhi Li	2d Dept: 104 AD3d 704 (Kings)	denied 6/27/13 (Smith, J.)
People v Johnson (Bobby)	4th Dept: 103 AD3d 1251 (Oswego)	denied 6/21/13 (Pigott, J.)
People v Johnson (Raul)	2d Dept: 100 AD3d 777 (Rockland)	granted 6/18/13 (Read, J.)
People v Jones (Alan)	4th Dept: 100 AD3d 1362 (Oswego)	denied 6/6/13 (Read, J.)
People v Jones (Jeffrey)	App Term, 1st Dept: 39 Misc 3d 135(A) (NY)	denied 6/14/13 (Pigott, J.)
People v Jones (Jesse)	4th Dept: 104 AD3d 1213 (Erie)	denied 6/25/13 (Grafteo, J.)
People v Jones (Shareef)	2d Dept: 105 AD3d 869 (Kings)	denied 6/24/13 (Pigott, J.)
People v Khan (Abu)	2d Dept: 105 AD3d 975 (Queens)	denied 6/25/13 (Grafteo, J.)
People v Khan (Javed)	2d Dept: 104 AD3d 875 (Queens)	denied 6/18/13 (Read, J.)
People v Kidd	3d Dept: 105 AD3d 1267 (St. Lawrence)	denied 6/25/13 (Lippman, Ch. J.)
People v Kitt	2d Dept: 102 AD3d 984 (Kings)	denied 6/4/13 (Smith, J.)
People v Kucmierowski	2d Dept: 103 AD3d 755 (Westchester)	denied 6/5/13 (Lippman, Ch. J.)
People v Lacy	1st Dept: 104 AD3d 422 (NY)	denied 6/18/13 (Read, J.)
People v Lake	App Div, 3d Dept: 2013 NY Slip Op 61166(U) (Albany)	denied 6/18/13 (Read, J.)
People v Lanoce	App Div, 4th Dept: 2013 NY Slip Op 72549(U) (Oneida)	dismissed 6/14/13 (Rivera, J.)
People v Lantigua	1st Dept: 86 AD3d 429 (NY)	denied 6/4/13 (Pigott, J.)

People v Le	4th Dept: 101 AD3d 1699 (Erie)	denied reconsideration 6/14/13 (Grafteo, J.)
People v Lebron	App Div, 1st Dept: 2013 NY Slip Op 75334(U) (Bronx)	dismissed 6/26/13 (Lippman, Ch. J.)
People v Letriz	1st Dept: 103 AD3d 446 (NY)	denied 6/5/13 (Lippman, Ch. J.)
People v Lewis	2d Dept: 104 AD3d 958 (Queens)	denied 6/6/13 (Pigott, J.)
People v Lopez	1st Dept: 104 AD3d 554 (Bronx)	denied 6/7/13 (Lippman, Ch. J.)
People v Mack	App Div, 3d Dept: 2013 NY Slip Op 68869(U) (Schuyler)	denied 6/14/13 (Grafteo, J.)
People v Madera	4th Dept: 103 AD3d 1197 (Monroe)	denied 6/13/13 (Read, J.)
People v Marshall (Anthony)	1st Dept: 106 AD3d 1 (NY)	denied 6/7/13 (Smith, J.)
People v Marshall (Kalvin)	2d Dept: 104 AD3d 707 (Kings)	denied 6/4/13 (Pigott, J.)
People v Martinez	1st Dept: 106 AD3d 427 (NY)	denied 6/24/13 (Grafteo, J.)
People v Matthews (Hashim)	2d Dept: 102 AD3d 709 (Kings)	denied reconsideration 6/25/13 (Grafteo, J.)
People v Matthews (Laquean)	2d Dept: 103 AD3d 666 (Queens)	denied 6/10/13 (Read, J.)
People v McBride	2d Dept: 103 AD3d 920 (Westchester)	denied 6/11/13 (Read, J.)
People v McCray	1st Dept: 102 AD3d 560 (NY)	granted 6/6/13 (Read, J.)
People v McKay	2d Dept: 106 AD3d 837 (Kings)	denied 6/25/13 (Grafteo, J.)
People v McLaughlin	1st Dept: 104 AD3d 615 (Bronx)	denied 6/5/13 (Smith, J.)
People v Mendoza	1st Dept: 104 AD3d 531 (NY)	denied 6/25/13 (Grafteo, J.)
People v Miller	4th Dept: 103 AD3d 1190 (Erie)	denied 6/5/13 (Read, J.)
People v Molaro	4th Dept: 100 AD3d 1426 (Genesee)	denied 6/6/13 (Read, J.)
People v Montalvo	2d Dept: 105 AD3d 774 (Queens)	denied 6/25/13 (Grafteo, J.)
People v Morency	2d Dept: 104 AD3d 877 (Kings)	denied 6/25/13 (Grafteo, J.)

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People v Morris	4th Dept: 101 AD3d 1631 (Erie)	denied 6/12/13 (Read, J.)
People v Morrison	2d Dept: 104 AD3d 959 (Kings)	denied 6/7/13 (Lippman, Ch. J.)
People v Morrissey	1st Dept: 106 AD3d 1 (NY)	denied 6/7/13 (Smith, J.)
People v Muller	App Div, 3d Dept: 2012 NY Slip Op 94438(U) (Columbia)	denied 6/27/13 (Smith, J.)
People v Munn	4th Dept: 105 AD3d 1456 (Erie)	denied 6/25/13 (Grafteo, J.)
People v Musto (John)	3d Dept: 106 AD3d 1380 (Albany)	denied 6/11/13 (Pigott, J.)
People v Musto (John)	3d Dept: 106 AD3d 1380 (Albany)	denied reconsideration 6/24/13 (Pigott, J.)
People v Myers (Scott)	App Div, 3d Dept: 2013 NY Slip Op 74104(U) (Greene)	dismissed 6/25/13 (Lippman, Ch. J.)
People v Nadal (John)	2d Dept: 98 AD3d 1136 (Westchester)	denied 6/25/13 (Lippman, Ch. J.)
People v Nadal (Juan)	2d Dept: 98 AD3d 1136 (Westchester)	denied 6/25/13 (Lippman, Ch. J.)
People v Nance	App Div, 4th Dept, 3/8/13 (Erie)	dismissed 6/4/13 (Smith, J.)
People v Natal	1st Dept: 100 AD3d 509 (NY)	denied 6/5/13 (Read, J.)
People v Neff	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 136(A) (Suffolk)	denied 6/25/13 (Grafteo, J.)
People v Nichols	App Div, 2d Dept: 2013 NY Slip Op 68661(U) (Kings)	withdrawn 6/5/13 (Lippman, Ch. J.)
People v Norrell	1st Dept: 105 AD3d 546 (NY)	denied 6/10/13 (Smith, J.)
People v O'Conner	1st Dept: 90 AD3d 431 (NY)	denied 6/27/13 (Smith, J.)
People v O'Connor	1st Dept: 90 AD3d 431 (NY)	denied 6/27/13 (Smith, J.)
People v Omwathath	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 41 (Queens)	denied 6/6/13 (Pigott, J.)
People v Oquendo	1st Dept: 105 AD3d 447 (Bronx)	denied 6/25/13 (Grafteo, J.)
People v Ortiz	App Term, 1st Dept: 39 Misc 3d 135(A) (NY)	denied 6/25/13 (Grafteo, J.)
People v Pacheco	1st Dept: 104 AD3d 539 (NY)	denied 6/10/13 (Smith, J.)
People v Pacquette	2d Dept: 105 AD3d 976 (Kings)	denied 6/13/13 (Grafteo, J.)
People v Parker	2d Dept: 99 AD3d 732 (Orange)	denied 6/6/13 (Pigott, J.)
People v Payamps	1st Dept: 104 AD3d 539 (Bronx)	denied 6/6/13 (Read, J.)

People v Peck (Jay)	4th Dept: 96 AD3d 1468 (Onondaga)	denied 6/6/13 (Read, J.)
People v Peck (Tomas)	2d Dept: 100 AD3d 658 (Suffolk)	denied 6/25/13 (Lippman, Ch. J.)
People v Peterson	4th Dept: 71 AD3d 1419 (Onondaga)	denied reconsideration 6/25/13 (Grafteo, J.)
People v Petrie	1st Dept: 105 AD3d 430 (NY)	denied 6/27/13 (Smith, J.)
People v Philpot	2d Dept: 99 AD3d 1025 (Dutchess)	denied 6/17/13 (Lippman, Ch. J.)
People v Pichardo	4th Dept: 98 AD3d 1325 (Monroe)	denied 6/7/13 (Lippman, Ch. J.)
People v Pisciotta	1st Dept: 105 AD3d 456 (NY)	denied 6/26/13 (Smith, J.)
People v Pittman (Abdus)	3d Dept: 104 AD3d 1027 (Franklin)	denied 6/5/13 (Lippman, Ch. J.)
People v Pittman (Henry)	3d Dept: 104 AD3d 1027 (Franklin)	denied 6/5/13 (Lippman, Ch. J.)
People v Pizarro	App Div, 1st Dept: 2013 NY Slip Op 65574(U) (Bronx)	denied 6/26/13 (Smith, J.)
People v Powelette	1st Dept: 99 AD3d 613 (NY)	denied 6/25/13 (Lippman, Ch. J.)
People v Poznanski	2d Dept: 105 AD3d 775 (Nassau)	denied 6/6/13 (Read, J.)
People v Proctor	4th Dept: 104 AD3d 1290 (Erie)	denied 6/27/13 (Smith, J.)
People v Pruitt	1st Dept: 99 AD3d 413 (NY)	denied 6/25/13 (Lippman, Ch. J.)
People v Quinney	4th Dept: 104 AD3d 1161 (Erie)	denied 6/25/13 (Grafteo, J.)
People v Ramirez	1st Dept: 103 AD3d 444 (NY)	denied 6/6/13 (Read, J.)
People v Ramos	App Div, 2d Dept: 2013 NY Slip Op 71515(U) (Westchester)	dismissed 6/24/13 (Pigott, J.)
People v Reid	1st Dept: 104 AD3d 58 (NY)	granted 6/13/13 (Lippman, Ch. J.)
People v Resto	2d Dept: 104 AD3d 709 (Suffolk)	denied 6/10/13 (Read, J.)
People v Rhem	2d Dept: 98 AD3d 987 (Kings)	denied 6/26/13 (Smith, J.)
People v Rivera (Anner)	2d Dept: 102 AD3d 893 (Kings)	granted 6/26/13 (Lippman, Ch. J.)
People v Rivera (Benjamin)	4th Dept: 98 AD3d 1325 (Monroe)	denied 6/6/13 (Read, J.)
People v Rivera (David)	1st Dept: 99 AD3d 535 (NY)	granted 6/6/13 (Read, J.)
People v Robinson	4th Dept: 104 AD3d 1312 (Monroe)	denied 6/25/13 (Grafteo, J.)

MEMORANDA

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People v Roesinger	County Ct, 4/24/13 (Onondaga)	denied 6/26/13 (Smith, J.)
People v Rojas	2d Dept: 105 AD3d 977 (Suffolk)	denied 6/24/13 (Pigott, J.)
People v Romero	App Div, 1st Dept: 2013 NY Slip Op 60466(U) (NY)	denied 6/5/13 (Read, J.)
People v Ross	2d Dept: 104 AD3d 878 (Kings)	denied 6/5/13 (Smith, J.)
People v Ruiz	1st Dept: 104 AD3d 469 (Bronx)	denied 6/4/13 (Pigott, J.)
People v Safran (David)	App Div, 2d Dept: 2012 NY Slip Op 92757(U) (Suffolk)	dismissed 6/24/13 (Grafteo, J.)
People v Safran (David)	App Div, 2d Dept: 2012 NY Slip Op 92757(U) (Queens)	dismissed 6/24/13 (Grafteo, J.)
People v Safran (David)	App Div, 2d Dept: 2013 NY Slip Op 72158(U) (Suffolk) (Appeal No. 1)	dismissed 6/24/13 (Grafteo, J.)
People v Safran (David)	App Div, 2d Dept: 2013 NY Slip Op 72158(U) (Queens) (Appeal No. 2)	dismissed 6/24/13 (Grafteo, J.)
People v Sanchez	2d Dept: 105 AD3d 1064 (Orange)	denied 6/25/13 (Lippman, Ch. J.)
People v Santana	1st Dept: 100 AD3d 479 (NY)	denied 6/10/13 (Read, J.)
People v Schaffer	2d Dept: 104 AD3d 880 (Suffolk)	denied 6/7/13 (Smith, J.)
People v Schunk	County Ct, 4/11/13 (Saratoga)	denied 6/6/13 (Pigott, J.)
People v Scott	4th Dept: 103 AD3d 1190 (Genesee)	denied 6/5/13 (Read, J.)
People v Sealy	1st Dept: 102 AD3d 591 (Bronx)	denied 6/5/13 (Read, J.)
People v Seck	1st Dept: 105 AD3d 502 (NY)	denied 6/25/13 (Grafteo, J.)
People v Serrano	1st Dept: 99 AD3d 485 (NY)	denied 6/17/13 (Lippman, Ch. J.)
People v Seuffert	3d Dept: 104 AD3d 1021 (Sullivan)	denied 6/25/13 (Grafteo, J.)
People v Shackelford	4th Dept: 100 AD3d 1527 (Monroe)	denied 6/6/13 (Read, J.)
People v Shand	2d Dept: 105 AD3d 777 (Westchester)	denied 6/7/13 (Smith, J.)
People v Sharp	4th Dept: 104 AD3d 1325 (Cattaraugus)	denied 6/25/13 (Grafteo, J.)
People v Simmons	3d Dept: 103 AD3d 1027 (Columbia)	denied 6/10/13 (Read, J.)
People v Sims	1st Dept: 105 AD3d 415 (Bronx)	denied 6/7/13 (Smith, J.)
People v Skrok	County Ct, 4/1/13 (Erie)	denied 6/24/13 (Pigott, J.)
People v Smalls (Ervin)	4th Dept: 100 AD3d 1428 (Monroe)	denied 6/25/13 (Lippman, Ch. J.)

People v Smalls (Ervin)	4th Dept: 100 AD3d 1430 (Monroe)	denied 6/26/13 (Lippman, Ch. J.)
People v Smith (Harry)	1st Dept: 88 AD3d 487 (NY)	denied 6/24/13 (Pigott, J.)
People v Smith (Harry)	App Div, 1st Dept: 2013 NY Slip Op 69172(U) (NY)	denied 6/24/13 (Pigott, J.)
People v Smith (Kenneth)	2d Dept: 139 AD2d 783 (Kings)	denied 6/5/13 (Read, J.)
People v Smith (Kenneth)	2d Dept: 221 AD2d 385 (Kings)	denied 6/5/13 (Read, J.)
People v Smith (Laurell)	2d Dept: 103 AD3d 758 (Westchester)	denied 6/25/13 (Grafteo, J.)
People v Smith (Lawrence)	2d Dept: 102 AD3d 896 (Suffolk)	denied 6/5/13 (Lippman, Ch. J.)
People v Smith (Terrance)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 20 (Kings)	denied 6/14/13 (Grafteo, J.)
People v Snyder (Butch)	4th Dept: 100 AD3d 1367 (Yates)	denied 6/17/13 (Lippman, Ch. J.)
People v Snyder (Walter)	4th Dept: 100 AD3d 1367 (Yates)	denied 6/17/13 (Lippman, Ch. J.)
People v Souffrant	3d Dept: 104 AD3d 992 (Otsego)	denied 6/13/13 (Grafteo, J.)
People v Sparks	3d Dept: 105 AD3d 1073 (Sullivan)	denied 6/7/13 (Lippman, Ch. J.)
People v Stenson	4th Dept: 96 AD3d 1511 (Monroe)	denied 6/7/13 (Lippman, Ch. J.)
People v Stevens	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 131(A) (Kings)	denied 6/24/13 (Pigott, J.)
People v Stewart	1st Dept: 102 AD3d 439 (Bronx)	denied 6/5/13 (Read, J.)
People v Sweat	County Ct, 1/15/13 (Erie)	granted 6/7/13 (Pigott, J.)
People v Tavaras-Payamps	1st Dept: 104 AD3d 539 (Bronx)	denied 6/6/13 (Read, J.)
People v Taylor (Carl)	3d Dept: 101 AD3d 1235 (Albany)	denied 6/25/13 (Lippman, Ch. J.)
People v Taylor (Maurice)	2d Dept: 104 AD3d 961 (Suffolk)	denied 6/25/13 (Grafteo, J.)
People v Thomas (Kenneth)	3d Dept: 105 AD3d 1068 (Albany)	denied 6/27/13 (Smith, J.)
People v Thomas (Timothy)	App Div, 4th Dept, 1/8/13 (Monroe)	dismissed 6/17/13 (Lippman, Ch. J.)
People v Thomas (William)	App Term, 1st Dept: 38 Misc 3d 127(A) (NY)	denied 6/25/13 (Lippman, Ch. J.)
People v Thornton	2d Dept: 105 AD3d 779 (Suffolk)	denied 6/14/13 (Pigott, J.)
People v Tisdale	3d Dept: 103 AD3d 987 (Albany)	denied 6/4/13 (Pigott, J.)
People v Toland	App Div, 3d Dept: 2013 NY Slip Op 71161(U) (Montgomery)	dismissed 6/10/13 (Rivera, J.)

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People v Toliver	1st Dept: 102 AD3d 411 (NY)	denied 6/13/13 (Lippman, Ch. J.)
People v Torres	2d Dept: 105 AD3d 978 (Kings)	denied 6/13/13 (Grafteo, J.)
People v Tracey	2d Dept: 106 AD3d 759 (Nassau)	denied 6/25/13 (Grafteo, J.)
People v Travis F.	App Div, 1st Dept: 2013 NY Slip Op 60452(U) (NY)	denied 6/25/13 (Grafteo, J.)
People v Trevis L.F.	App Div, 1st Dept: 2013 NY Slip Op 60452(U) (NY)	denied 6/25/13 (Grafteo, J.)
People v Trumpet	2d Dept: 100 AD3d 664 (Kings)	denied 6/27/13 (Smith, J.)
People v Tufano	1st Dept: 105 AD3d 648 (NY)	denied 6/25/13 (Grafteo, J.)
People v Vacca	1st Dept: 105 AD3d 456 NY)	denied 6/26/13 (Smith, J.)
People v Vargas	1st Dept: 99 AD3d 481 (NY)	denied 6/18/13 (Read, J.)
People v Votra	4th Dept: 104 AD3d 1160 (Oswego)	denied 6/6/13 (Pigott, J.)
People v Walters	1st Dept: 103 AD3d 557 (NY)	denied 6/4/13 (Smith, J.)
People v Ward	4th Dept: 104 AD3d 1323 (Erie)	denied 6/6/13 (Pigott, J.)
People v Watley	1st Dept: 103 AD3d 425 (NY)	denied 6/7/13 (Pigott, J.)
People v Watts	App Div, 2d Dept: 2013 NY Slip Op 72159(U) (Kings)	dismissed 6/4/13 (Lippman, Ch. J.)
People v West	2d Dept: 105 AD3d 781 (Kings)	denied 6/14/13 (Grafteo, J.)
People v White (Davon)	1st Dept: 105 AD3d 579 (Bronx)	denied 6/26/13 (Smith, J.)
People v White (Michael)	4th Dept: 103 AD3d 1213 (Ontario)	denied 6/5/13 (Read, J.)
People v Wiley	4th Dept: 104 AD3d 1314 (Erie)	denied 6/7/13 (Lippman, Ch. J.)
People v Wilkins (Mel)	4th Dept: 104 AD3d 1156 (Erie)	denied 6/6/13 (Pigott, J.)
People v Wilkins (Melzee)	4th Dept: 104 AD3d 1156 (Erie)	denied 6/6/13 (Pigott, J.)
People v Wilkins (Melzer)	4th Dept: 104 AD3d 1156 (Erie)	denied 6/6/13 (Pigott, J.)
People v Williams	1st Dept: 103 AD3d 486 (NY)	denied 6/5/13 (Read, J.)
People v Wilson (Njera)	4th Dept: 104 AD3d 1231 (Erie)	denied 6/11/13 (Read, J.)
People v Wilson (Wilbert)	1st Dept: 104 AD3d 593 (NY)	denied 6/25/13 (Lippman, Ch. J.)
People v Wise	1st Dept: 99 AD3d 584 (NY)	denied 6/13/13 (Lippman, Ch. J.)

People v Wongsam	2d Dept: 105 AD3d 980 (Suffolk)	denied 6/27/13 (Smith, J.)
People v Word	App Div, 1st Dept: 2010 NY Slip Op 68440(U) (NY)	denied reconsideration 6/25/13 (Lippman, Ch. J.)
People v Wright (Curtis)	4th Dept: 104 AD3d 1327 (Ontario) (Appeal No. 1)	denied 6/4/13 (Smith, J.)
People v Wright (Curtis)	4th Dept: 104 AD3d 1327 (Ontario) (Appeal No. 2)	denied 6/4/13 (Smith, J.)
People v Wright (Darryl)	2d Dept: 105 AD3d 876 (Queens)	denied 6/14/13 (Pigott, J.)
People v Wright (Solomon)	1st Dept: 101 AD3d 645 (NY)	denied 6/7/13 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(June 1, 2013 through June 30, 2013)

People v Arena	4th Dept: 106 AD3d 1445 (Monroe)	granted 6/24/13 (Martoché, J.)
People v Jin Cheng Lin	2d Dept: 105 AD3d 761 (Queens)	granted 6/13/13 (Hall, J.)
People v Myers (Ariel)	3d Dept: 105 AD3d 1250 (Rensselaer)	granted 6/21/13 (Garry, J.)
People v Sims	4th Dept: 106 AD3d 1473 (Erie)	granted 6/28/13 (Fahey, J.)
People v Washington	2d Dept: 107 AD3d 4 (Nassau)	granted 6/19/13 (Angiolillo, J.)

APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE OF COURT OF APPEALS OR ON CONSENT

(July 1, 2013 through July 31, 2013)

People v Russell	1st Dept: 99 AD3d 211	7/19/13
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APPEALS WITHDRAWN AND DISCONTINUED

(July 1, 2013 through July 31, 2013)

Christopher C., Matter of, v Wood	2d Dept: 101 AD3d 1112	7/23/13
Norman D., Matter of, v Wood	2d Dept: 101 AD3d 1119	7/23/13

* Includes only applications that were granted.

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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(July 1, 2013 through July 31, 2013)

People v Agron	3d Dept: 106 AD3d 1126 (Broome)	denied 7/12/13 (Grafteo, J.)
People v Alexander	1st Dept: 106 AD3d 577 (NY)	denied 7/18/13 (Lippman, Ch. J.)
People v Allen (Jamie)	3d Dept: 101 AD3d 1491 (Broome)	denied 7/18/13 (Lippman, Ch. J.)
People v Allen (Mark)	2d Dept: 102 AD3d 881 (Kings)	denied 7/16/13 (Lippman, Ch. J.)
People v Allen (Sam)	1st Dept: 105 AD3d 655 (Bronx)	denied 7/2/13 (Smith, J.)
People v Allen (Terrell)	2d Dept: 105 AD3d 754 (Queens)	granted 7/25/13 (Lippman, Ch. J.)
People v Alleyne	2d Dept: 106 AD3d 752 (Queens)	denied 7/18/13 (Lippman, Ch. J.)
People v Alnutt	3d Dept: 101 AD3d 1461 (Fulton)	denied reconsideration 7/23/13 (Read, J.)
People v Alvarez	1st Dept: 106 AD3d 568 (NY)	denied 7/31/13 (Smith, J.)
People v Anderson (Brendon)	3d Dept: 104 AD3d 968 (Albany)	denied 7/9/13 (Read, J.)
People v Anderson (Brendon)	App Div, 3d Dept: 2013 NY Slip Op 73410(U) (Albany)	dismissed 7/8/13 (Read, J.)
People v Arce	2d Dept: 106 AD3d 752 (Queens)	denied 7/23/13 (Read, J.)
People v Argyris	2d Dept: 99 AD3d 808 (Queens)	granted 7/9/13 (Read, J.)
People v Ariosa	3d Dept: 100 AD3d 1264 (Washington)	denied 7/30/13 (Rivera, J.)
People v Baez	1st Dept: 103 AD3d 509 (NY)	denied 7/17/13 (Rivera, J.)
People v Baker	2d Dept: 104 AD3d 783 (Westchester)	denied 7/9/13 (Read, J.)
People v Barracks	2d Dept: 106 AD3d 752 (Westchester)	denied 7/2/13 (Smith, J.)
People v Basile	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 44 (Queens)	denied 7/24/13 (Lippman, Ch. J.)
People v Batson	2d Dept: 103 AD3d 910 (Queens)	denied 7/17/13 (Lippman, Ch. J.)
People v Benton	1st Dept: 104 AD3d 601 (NY)	denied 7/18/13 (Lippman, Ch. J.)
People v Blake (Andrew)	1st Dept: 105 AD3d 431 (NY)	granted 7/3/13 (Grafteo, J.)
People v Blake (Jameg)	1st Dept: 106 AD3d 417 (NY)	denied 7/9/13 (Read, J.)
People v Borges	2d Dept: 103 AD3d 747 (Suffolk)	denied 7/10/13 (Smith, J.)

People v Bradshaw	2d Dept: 105 AD3d 758 (Westchester)	denied 7/2/13 (Smith, J.)
People v Brown (Daniel)	2d Dept: 106 AD3d 754 (Kings)	denied 7/12/13 (Grafteo, J.)
People v Brown (Donnell)	4th Dept: 104 AD3d 1203 (Monroe)	denied 7/9/13 (Read, J.)
People v Brown (Mark)	3d Dept: 101 AD3d 1267 (Schenectady)	denied 7/16/13 (Lippman, Ch. J.)
People v Brown (Melvin)	2d Dept: 102 AD3d 704 (Kings)	denied 7/30/13 (Rivera, J.)
People v Brujan	1st Dept: 104 AD3d 481 (Bronx)	denied 7/9/13 (Read, J.)
People v Cabrera	2d Dept: 103 AD3d 748 (Kings)	denied 7/29/13 (Read, J.)
People v Caesar	2d Dept: 105 AD3d 1055 (Nassau)	denied 7/24/13 (Read, J.)
People v Cameron	1st Dept: 100 AD3d 457 (Bronx)	denied 7/16/13 (Lippman, Ch. J.)
People v Camino	2d Dept: 105 AD3d 1055 (Nassau)	denied 7/24/13 (Read, J.)
People v Cardelle	1st Dept: 104 AD3d 517 (NY)	denied 7/9/13 (Read, J.)
People v Carr	4th Dept: 98 AD3d 1324 (Erie)	denied 7/16/13 (Lippman, Ch. J.)
People v Chatmon	2d Dept: 103 AD3d 663 (Westchester)	denied 7/16/13 (Lippman, Ch. J.)
People v Cheeley	1st Dept: 105 AD3d 470 (NY)	denied 7/24/13 (Read, J.)
People v Chinn	4th Dept: 104 AD3d 1167 (Onondaga)	denied 7/31/13 (Smith, J.)
People v Cole	2d Dept: 97 AD3d 762 (Kings)	denied reconsideration 7/15/13 (Read, J.)
People v Conroy	2d Dept: 102 AD3d 979 (Suffolk)	denied 7/16/13 (Lippman, Ch. J.)
People v Cordero	1st Dept: 104 AD3d 456 (NY)	denied 7/9/13 (Read, J.)
People v Cotsifas	2d Dept: 100 AD3d 1015 (Nassau)	denied 7/24/13 (Lippman, Ch. J.)
People v Crawford	2d Dept: 106 AD3d 832 (Kings)	denied 7/3/13 (Smith, J.)
People v Crump	3d Dept: 107 AD3d 1046 (Sullivan)	denied 7/26/13 (Lippman, Ch. J.)
People v Curras	2d Dept: 105 AD3d 973 (Kings)	denied 7/12/13 (Grafteo, J.)
People v Daniels	3d Dept: 106 AD3d 1189 (Ulster)	denied 7/17/13 (Lippman, Ch. J.)
People v Davis (Sammy)	App Div, 4th Dept: 2013 NY Slip Op 73821(U) (Onondaga)	dismissed 7/30/13 (Rivera, J.)

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People v Davis (Warren)	2d Dept: 103 AD3d 813 (Westchester)	denied 7/3/13 (Grafteo, J.)
People v Dean	4th Dept: 101 AD3d 1781 (Ontario)	denied 7/29/13 (Read, J.)
People v DeFazio	4th Dept: 105 AD3d 1438 (Monroe)	denied 7/12/13 (Smith, J.)
People v DeGelleke	County Ct, 4/24/13 (Wayne)	denied 7/15/13 (Read, J.)
People v Diaz (Ramon)	1st Dept: 105 AD3d 652 (NY)	denied 7/23/13 (Read, J.)
People v Diaz (Sandra)	1st Dept: 100 AD3d 446 (NY)	granted 7/9/13 (Read, J.)
People v Dingle	1st Dept: 105 AD3d 417 (NY)	denied 7/30/13 (Rivera, J.)
People v DiSalvo	2d Dept: 99 AD3d 811 (Queens)	granted 7/9/13 (Read, J.)
People v Dobmeier	County Ct, 3/21/12 (Allegany)	denied 7/29/13 (Read, J.)
People v Emma	2d Dept: 101 AD3d 1146 (Richmond)	denied 7/16/13 (Lippman, Ch. J.)
People v Fogle	2d Dept: 104 AD3d 873 (Queens)	denied 7/23/13 (Read, J.)
People v Fomby	3d Dept: 103 AD3d 28 (Chemung)	denied 7/25/13 (Lippman, Ch. J.)
People v Fonseca	1st Dept: 106 AD3d 557 (NY)	denied 7/12/13 (Smith, J.)
People v Fuller	App Div, 4th Dept: 2012 NY Slip Op 81676(U) (Erie)	denied reconsideration 7/18/13 (Lippman, Ch. J.)
People v Garcia (Isidoro)	App Div, 1st Dept: 2012 NY Slip Op 88716(U) (NY)	granted 7/3/13 (Smith, J.)
People v Garcia (Jeffrey)	1st Dept: 105 AD3d 606 (NY)	denied 7/24/13 (Lippman, Ch. J.)
People v Gardner	1st Dept: 103 AD3d 595 (NY)	denied 7/18/13 (Lippman, Ch. J.)
People v Gartler	4th Dept: 105 AD3d 1440 (Genesee)	denied 7/12/13 (Smith, J.)
People v Gist	2d Dept: 101 AD3d 899 (Kings)	denied 7/12/13 (Smith, J.)
People v Green	1st Dept: 105 AD3d 611 (NY)	denied 7/31/13 (Smith, J.)
People v Grubstein	App Term, 2d Dept, 9th & 10th Jud Dists: 37 Misc 3d 142(A) (Orange)	granted 7/26/13 (Read, J.)
People v Gutierrez	2d Dept: 100 AD3d 656 (Queens)	denied 7/16/13 (Lippman, Ch. J.)
People v Guzman	1st Dept: 105 AD3d 679 (NY)	denied 7/12/13 (Grafteo, J.)
People v Haggerty	1st Dept: 103 AD3d 438 (NY)	granted 7/16/13 (Lippman, Ch. J.)

People v Hall (Gregory)	1st Dept: 105 AD3d 658 (NY)	denied 7/2/13 (Smith, J.)
People v Hall (Lammar)	4th Dept: 103 AD3d 1099 (Monroe)	denied 7/18/13 (Lippman, Ch. J.)
People v Hanson	2d Dept: 100 AD3d 771 (Kings)	granted 7/10/13 (Smith, J.)
People v Heary	4th Dept: 104 AD3d 1208 (Erie)	denied reconsideration 7/3/13 (Smith, J.)
People v Hecker	1st Dept: 105 AD3d 606 (NY)	denied 7/12/13 (Smith, J.)
People v Henriquez	App Term, 1st Dept: 39 Misc 3d 134(A) (NY)	denied 7/8/13 (Read, J.)
People v Hernandez	2d Dept: 102 AD3d 983 (Queens)	denied 7/24/13 (Lippman, Ch. J.)
People v Hill	1st Dept: 105 AD3d 472 (NY)	granted 7/1/13 (Grafteo, J.)
People v Hold	4th Dept: 101 AD3d 1692 (Erie)	denied 7/18/13 (Lippman, Ch. J.)
People v Horton	3d Dept: 106 AD3d 1192 (Broome)	denied 7/3/13 (Smith, J.)
People v Hubbard	2d Dept: 105 AD3d 760 (Suffolk)	denied 7/18/13 (Lippman, Ch. J.)
People v Hunter	1st Dept: 105 AD3d 495 (NY)	denied 7/9/13 (Read, J.)
People v Ingles	1st Dept: 105 AD3d 504 (NY)	denied 7/9/13 (Smith, J.)
People v Jackson (Deshun)	1st Dept: 105 AD3d 607 (NY)	denied 7/10/13 (Smith, J.)
People v Jackson (Robert)	2d Dept: 105 AD3d 866 (Kings)	denied 7/16/13 (Lippman, Ch. J.)
People v James	3d Dept: 104 AD3d 968 (Albany)	denied 7/9/13 (Read, J.)
People v James	App Div, 3d Dept: 2013 NY Slip Op 73410(U) (Albany)	dismissed 7/8/13 (Read, J.)
People v Jamison	1st Dept: 103 AD3d 537 (NY)	denied 7/15/13 (Read, J.)
People v Jenkins	2d Dept: 100 AD3d 924 (Kings)	granted 7/10/13 (Smith, J.)
People v Jennings	2d Dept: 102 AD3d 708 (Dutchess)	denied 7/18/13 (Lippman, Ch. J.)
People v Johnson (Shaheem)	3d Dept: 106 AD3d 1331 (Albany)	denied 7/31/13 (Smith, J.)
People v Johnson (Wayne)	4th Dept: 105 AD3d 1452 (Monroe)	denied 7/9/13 (Read, J.)
People v Johnson (Wayne)	4th Dept: 105 AD3d 1454 (Monroe)	denied 7/9/13 (Read, J.)
People v Jones (Jermal)	2d Dept: 105 AD3d 1059 (Kings)	denied 7/9/13 (Smith, J.)

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People v Jones (Sidney)	3d Dept: 101 AD3d 1482 (Albany)	denied 7/23/13 (Read, J.)
People v Jules	1st Dept: 105 AD3d 591 (NY)	denied 7/30/13 (Rivera, J.)
People v Julius	4th Dept: 104 AD3d 1204 (Erie)	denied 7/23/13 (Read, J.)
People v Kevorkian	1st Dept: 104 AD3d 564 (NY)	denied 7/25/13 (Rivera, J.)
People v Konoski	2d Dept: 104 AD3d 958 (Suffolk)	denied 7/30/13 (Rivera, J.)
People v Kruger	2d Dept: 104 AD3d 875 (Orange)	granted 7/15/13 (Read, J.)
People v Ladieu	3d Dept: 105 AD3d 1265 (Clinton)	denied 7/9/13 (Read, J.)
People v Leone	3d Dept: 105 AD3d 1249 (Columbia)	denied 7/12/13 (Grafteo, J.)
People v Lewis	3d Dept: 99 AD3d 1104 (Rensselaer)	denied 7/16/13 (Lippman, Ch. J.)
People v Liao	2d Dept: 103 AD3d 757 (Queens)	denied 7/30/13 (Rivera, J.)
People v Lopez (Garcia)	App Div, 1st Dept: 2012 NY Slip Op 88716(U) (NY)	granted 7/3/13 (Smith, J.)
People v Lopez (Jason)	App Div, 1st Dept: 2012 NY Slip Op 87291(U) (Bronx)	denied reconsideration 7/9/13 (Read, J.)
People v Lopez (Teofilo)	App Div, 1st Dept: 2012 NY Slip Op 88716(U) (NY)	granted 7/3/13 (Smith, J.)
People v Lynch	2d Dept: 103 AD3d 919 (Nassau)	denied 7/9/13 (Read, J.)
People v Macpherson	County Ct, 1/6/12 (Essex)	denied reconsideration 7/17/13 (Lippman, Ch. J.)
People v Madera	1st Dept: 105 AD3d 680 (NY)	denied 7/15/13 (Read, J.)
People v Manley	1st Dept: 102 AD3d 605 (NY)	denied 7/15/13 (Read, J.)
People v McCullough	4th Dept: 104 AD3d 1343 (Niagara)	denied 7/16/13 (Lippman, Ch. J.)
People v McKinley	4th Dept: 101 AD3d 1747 (Onondaga)	denied 7/18/13 (Lippman, Ch. J.)
People v Mendola	County Ct, 2/14/13 (Erie)	denied 7/23/13 (Rivera, J.)
People v Mercer	3d Dept: 105 AD3d 1091 (Ulster)	denied 7/16/13 (Lippman, Ch. J.)
People v Milland	2d Dept: 103 AD3d 669 (Kings)	denied 7/18/13 (Lippman, Ch. J.)
People v Miller (James)	2d Dept: 102 AD3d 813 (Kings)	denied 7/16/13 (Lippman, Ch. J.)
People v Miller (Joshua)	4th Dept: 104 AD3d 1223 (Monroe)	denied 7/23/13 (Rivera, J.)

People v Miller (Patrick)	County Ct, 10/19/12 (Monroe)	denied 7/16/13 (Lippman, Ch. J.)
People v Miller (Patrick)	County Ct, 10/19/12 (Monroe)	denied 7/16/13 (Lippman, Ch. J.)
People v Mitchell (Daquan)	1st Dept: 106 AD3d 435 (Bronx)	denied 7/9/13 (Smith, J.)
People v Mitchell (Rodney)	4th Dept: 104 AD3d 1261 (Erie)	denied 7/15/13 (Read, J.)
People v Mobley	2d Dept: 100 AD3d 1021 (Nassau)	denied 7/9/13 (Read, J.)
People v Mohamed	2d Dept: 104 AD3d 707 (Queens)	denied 7/23/13 (Read, J.)
People v Montulli	4th Dept: 103 AD3d 1100 (Ontario)	denied 7/18/13 (Rivera, J.)
People v Morales	1st Dept: 104 AD3d 560 (Bronx)	denied 7/18/13 (Lippman, Ch. J.)
People v Moreno	2d Dept: 101 AD3d 903 (Queens)	denied 7/18/13 (Lippman, Ch. J.)
People v Morris	1st Dept: 103 AD3d 468 (NY)	denied 7/23/13 (Read, J.)
People v Murphy	County Ct, 7/30/13 (Erie)	denied 7/30/13 (Read, J.)
People v Murray	1st Dept: 104 AD3d 426 (NY)	denied 7/9/13 (Read, J.)
People v Nestman	App Div, 3d Dept: 2013 NY Slip Op 68868(U) (Ulster)	denied 7/16/13 (Lippman, Ch. J.)
People v Nunez	1st Dept: 106 AD3d 597 (NY)	denied 7/24/13 (Lippman, Ch. J.)
People v O'Daniel	3d Dept: 105 AD3d 1144 (Clinton)	granted 7/26/13 (Lippman, Ch. J.)
People v P	3d Dept: 104 AD3d 1056 (Albany)	denied 7/17/13 (Lippman, Ch. J.)
People v Pagan	3d Dept: 103 AD3d 978 (Sullivan)	denied 7/25/13 (Lippman, Ch. J.)
People v Panek	4th Dept: 104 AD3d 1201 (Cayuga)	denied 7/24/13 (Lippman, Ch. J.)
People v Pariss	1st Dept: 106 AD3d 555 (Bronx)	denied 7/24/13 (Lippman, Ch. J.)
People v Parris	1st Dept: 106 AD3d 555 (Bronx)	denied 7/24/13 (Lippman, Ch. J.)
People v Parsons	4th Dept: 100 AD3d 1450 (Monroe)	denied 7/16/13 (Lippman, Ch. J.)
People v Patterson	2d Dept: 106 AD3d 757 (Richmond)	denied 7/18/13 (Lippman, Ch. J.)
People v Perales	2d Dept: 100 AD3d 1025 (Queens)	granted 7/10/13 (Smith, J.)
People v Perry	1st Dept: 103 AD3d 489 (Bronx)	denied 7/25/13 (Rivera, J.)
People v Pitman	1st Dept: 102 AD3d 595 (NY)	denied 7/16/13 (Lippman, Ch. J.)

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People v Porath	3d Dept: 104 AD3d 1028 (Montgomery)	denied 7/16/13 (Lippman, Ch. J.)
People v Powell	3d Dept: 101 AD3d 1369 (Albany)	denied 7/12/13 (Smith, J.)
People v Rera	2d Dept: 103 AD3d 922 (Suffolk)	denied 7/30/13 (Rivera, J.)
People v Rigby	4th Dept: 105 AD3d 1383 (Cayuga)	denied 7/18/13 (Lippman, Ch. J.)
People v Rios (Luis)	2d Dept: 106 AD3d 1029 (Suffolk)	denied 7/24/13 (Lippman, Ch. J.)
People v Rios (Michael)	2d Dept: 105 AD3d 873 (Queens)	denied 7/24/13 (Read, J.)
People v Robertson	1st Dept: 106 AD3d 539 (NY)	denied 7/12/13 (Grafteo, J.)
People v Rowe	3d Dept: 105 AD3d 1088 (Chemung)	denied 7/9/13 (Read, J.)
People v Ruffin	4th Dept: 101 AD3d 1793 (Niagara)	denied 7/12/13 (Grafteo, J.)
People v Rumsey	4th Dept: 105 AD3d 1448 (Steuben)	denied 7/23/13 (Read, J.)
People v Sabino	2d Dept: 104 AD3d 960 (Kings)	denied 7/18/13 (Rivera, J.)
People v Said (Richard)	4th Dept: 105 AD3d 1392 (Erie)	denied 7/18/13 (Lippman, Ch. J.)
People v Said (Richard)	4th Dept: 105 AD3d 1394 (Erie)	denied 7/18/13 (Lippman, Ch. J.)
People v Saladeen	4th Dept: 103 AD3d 1190 (Erie)	denied 7/30/13 (Rivera, J.)
People v Saldano	1st Dept: 104 AD3d 582 (NY)	denied 7/9/13 (Read, J.)
People v Sanchez	2d Dept: 103 AD3d 819 (Suffolk)	denied 7/16/13 (Lippman, Ch. J.)
People v Santiago	1st Dept: 106 AD3d 423 (NY)	denied 7/3/13 (Smith, J.)
People v Santos	2d Dept: 105 AD3d 1064 (Queens)	denied 7/18/13 (Lippman, Ch. J.)
People v Scott (Christopher)	4th Dept: 103 AD3d 1238 (Erie)	denied 7/16/13 (Lippman, Ch. J.)
People v Scott (Cornelius)	1st Dept: 105 AD3d 651 (NY)	denied 7/12/13 (Smith, J.)
People v Scott (Dennis)	4th Dept: 101 AD3d 1773 (Cayuga)	denied 7/25/13 (Lippman, Ch. J.)
People v Secore (Brandon)	3d Dept: 102 AD3d 1057 (St. Lawrence)	denied 7/25/13 (Rivera, J.)
People v Secore (Brandon)	3d Dept: 102 AD3d 1059 (St. Lawrence)	denied 7/25/13 (Rivera, J.)
People v Sessions	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 133(A) (Kings)	denied 7/23/13 (Rivera, J.)
People v Sha	3d Dept: 106 AD3d 1331 (Albany)	denied 7/31/13 (Smith, J.)

People v Sheehan	2d Dept: 105 AD3d 873 (Queens)	denied 7/9/13 (Read, J.)
People v Silva	1st Dept: 99 AD3d 522 (NY)	granted 7/10/13 (Smith, J.)
People v Simpson	App Div, 1st Dept: 2013 NY Slip Op 76457(U) (Bronx)	dismissed 7/25/13 (Rivera, J.)
People v Singleton	1st Dept: 102 AD3d 517 (Bronx)	denied 7/18/13 (Rivera, J.)
People v Snipes	1st Dept: 101 AD3d 472 (NY)	withdrawn 7/24/13 (Lippman, Ch. J.)
People v Spratley	4th Dept: 103 AD3d 1211 (Oneida)	denied 7/9/13 (Smith, J.)
People v Springer	2d Dept: 104 AD3d 794 (Kings)	denied 7/16/13 (Lippman, Ch. J.)
People v Stephenson	4th Dept: 104 AD3d 1277 (Cattaraugus)	denied 7/9/13 (Smith, J.)
People v Stillwagon	4th Dept: 101 AD3d 1629 (Genesee)	denied 7/29/13 (Read, J.)
People v Swindon	4th Dept: 105 AD3d 1442 (Onondaga)	denied 7/16/13 (Lippman, Ch. J.)
People v Tapia	1st Dept: 100 AD3d 418 (NY)	denied 7/18/13 (Lippman, Ch. J.)
People v Thomas	1st Dept: 102 AD3d 561 (Bronx)	denied 7/17/13 (Rivera, J.)
People v Thompson (Bernard)	App Div, 3d Dept: 2013 NY Slip Op 71098(U) (Rensselaer)	denied 7/18/13 (Lippman, Ch. J.)
People v Thompson (Rahmel)	2d Dept: 100 AD3d 1028 (Queens)	denied 7/26/13 (Lippman, Ch. J.)
People v Thompson (Tracy)	App Div, 3d Dept: 2013 NY Slip Op 71103(U) (Albany)	denied 7/26/13 (Lippman, Ch. J.)
People v Thousand	4th Dept: 105 AD3d 1466 (Monroe)	denied 7/23/13 (Read, J.)
People v Tinkler	3d Dept: 105 AD3d 1140 (Rensselaer)	denied 7/9/13 (Smith, J.)
People v Topolski	4th Dept: 106 AD3d 1532 (Onondaga)	denied 7/12/13 (Grafteo, J.)
People v Trombley	4th Dept: 105 AD3d 1438 (Niagara)	denied 7/2/13 (Smith, J.)
People v Trott	4th Dept: 105 AD3d 1416 (Erie)	denied 7/12/13 (Grafteo, J.)
People v Ukasoanya	2d Dept: 101 AD3d 911 (Kings)	denied 7/16/13 (Lippman, Ch. J.)
People v Varela-Carias	2d Dept: 105 AD3d 780 (Nassau)	denied 7/9/13 (Read, J.)
People v Walker (Carlton)	App Div, 2d Dept: 2013 NY Slip Op 74431(U) (Queens)	dismissed 7/12/13 (Smith, J.)

MEMORANDA

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People v Walker (Darrell)	2d Dept: 95 AD3d 1240 (Westchester)	denied reconsideration 7/16/13 (Lippman, Ch. J.)
People v Wesolowski	4th Dept: 105 AD3d 1466 (Allegany)	denied 7/24/13 (Read, J.)
People v White	3d Dept: 104 AD3d 1056 (Albany)	denied 7/17/13 (Lippman, Ch. J.)
People v Williams (Eric)	4th Dept: 105 AD3d 1428 (Genesee)	denied 7/16/13 (Lippman, Ch. J.)
People v Williams (Isiah)	4th Dept: 101 AD3d 1728 (Ontario)	denied 7/24/13 (Lippman, Ch. J.)
People v Williams (Isiah)	4th Dept: 101 AD3d 1730 (Monroe)	denied 7/24/13 (Lippman, Ch. J.)
People v Wingo	3d Dept: 103 AD3d 1036 (Delaware)	denied 7/30/13 (Rivera, J.)
People v Withfield	2d Dept: 106 AD3d 760 (Kings)	denied 7/12/13 (Smith, J.)
People v Wolfe	3d Dept: 103 AD3d 1031 (Broome)	denied 7/12/13 (Graffeo, J.)
People v Woods	4th Dept: 104 AD3d 1309 (Monroe)	denied 7/24/13 (Lippman, Ch. J.)
People v Young	3d Dept: 100 AD3d 1186 (Albany)	denied 7/26/13 (Lippman, Ch. J.)
People v Yusuf	2d Dept: 104 AD3d 881 (Nassau)	denied 7/3/13 (Smith, J.)

In the Matter of MAUREEN S. HOERGER et al., Appellants, v THOMAS J. SPOTA III et al., Respondents.

Submitted August 21, 2013; decided August 21, 2013

Reported below, 109 AD3d 564.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

[995 NE2d 170, 972 NYS2d 208]

In the Matter of ROBERT E. ALEXANDER.

Decided August 22, 2013

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law

§ 44 (8), of whether Honorable Robert E. Alexander should be suspended from the office of Justice of the Pembroke Town Court, Genesee County.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Robert E. Alexander is suspended, with pay, effective immediately, from the office of Justice of the Pembroke Town Court, Genesee County, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

[995 NE2d 170, 972 NYS2d 208]

In the Matter of DAGAN LACORTE, Appellant, v HOWARD L. CYTRYN et al., Respondents, et al., Respondent. (And Another Proceeding.)

Argued August 21, 2013; decided August 22, 2013

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 14, 2013. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Rockland County (Gerald E. Loehr, J.), which had (a) denied a motion to dismiss a proceeding to validate a petition designating petitioner Dagan Lacorte as a candidate for the public office of Rockland County Executive in the Democratic Party primary election to be held on September 10, 2013, (b) granted the petition to validate the designating petition, and (c) denied the petition to invalidate the designating petition, (2) granted the motion to dismiss the proceeding to validate the designating petition, (3) dismissed the proceeding to validate the designating petition, and (4) dismissed as academic a related proceeding to invalidate the designating petition.

The Appellate Division noted that a validating petition must specify the individual determinations of a board of elections that the candidate claims were erroneous, including the signatures that the candidate claims were improperly invalidated, and concluded that the validating petition in question was not sufficiently particularized to give notice of which determinations were claimed to be erroneous or which signatures Lacorte claimed were improperly invalidated by the County Board of Elections, and that Lacorte failed to establish that he did not receive adequate and timely notice of the objections that were sustained by the Board.

Matter of Lacorte v Cytryn, 109 AD3d 544, affirmed.

HEADNOTE

Elections — Designating Petitions — Petition to Validate

The Appellate Division, in dismissing a proceeding to validate a petition designating petitioner-respondent as a candidate in a primary election, properly determined that the validating petition did not sufficiently specify which determinations of the board of elections petitioner claimed were erroneous.

APPEARANCES OF COUNSEL

Stroock, Stroock & Lavan, LLP, New York City (*Jerry H. Goldfeder* of counsel), for appellant.

Alan Goldston, Scarsdale, for Howard L. Cytryn and others, respondents.

Jeffrey J. Fortunato, County Attorney, New City (*Thomas M. Mascola* of counsel), for Rockland County Board of Elections, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

The Appellate Division properly determined that the validating petition did not sufficiently specify which determinations of the Board petitioner claimed were erroneous (*see Matter of Krueger v Richards*, 59 NY2d 680, 682 [1983]).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

Order affirmed, without costs, in a memorandum.

In the Matter of COUNCIL OF THE CITY OF NEW YORK, Respondent, v DEPARTMENT OF HOMELESS SERVICES OF THE CITY OF NEW YORK et al., Appellants.

Submitted August 5, 2013; decided August 22, 2013

Reported below, 103 AD3d 464.

Motion by Coalition for the Homeless et al. for leave to appear amici curiae on the appeal herein denied.

Chief Judge LIPPMAN and Judge ABDUS-SALAAM taking no part.

ANN C. CUNNINGHAM, Respondent, v JULIA M. BALDARI, Appellant, et al., Defendants. (And a Third-Party Action.) (And Another Action.)

Submitted May 28, 2013; decided August 22, 2013

Reported below, 100 AD3d 584.

Motion for reargument of motion for leave to appeal denied [see 20 NY3d 862 (2013)].

Judge ABDUS-SALAAM taking no part.

MEADOWBROOK FARMS HOMEOWNERS ASSOCIATION, INC., Respondent, v JZG RESOURCES, INC., Appellant.

Submitted May 28, 2013; decided August 22, 2013

Reported below, 105 AD3d 820.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW BLAKE, Appellant.

Submitted July 29, 2013; decided August 22, 2013

Reported below, 105 AD3d 431.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place,

Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SANDRA DIAZ, Appellant.

Submitted August 19, 2013; decided August 22, 2013

Reported below, 100 AD3d 446.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH DUMAY, Appellant.

Submitted August 19, 2013; decided August 22, 2013

Reported below, 36 Misc 3d 159(A).

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILSON FELICIANO, Appellant.

Submitted July 1, 2013; decided August 22, 2013

Reported below, 101 AD3d 617.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LUIS GUAMAN, Appellant.

Submitted July 1, 2013; decided August 22, 2013

Reported below, 36 Misc 3d 128(A).

Motion by Evan Kent for leave to appear amicus curiae on the appeal herein denied.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAMELA HANSON, Appellant.

Submitted August 5, 2013; decided August 22, 2013

Reported below, 100 AD3d 771.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER JACKSON, Appellant.

Submitted July 1, 2013; decided August 22, 2013

Reported below, 101 AD3d 1153.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TEOFILO LOPEZ, Also Known as GARCIA LOPEZ, Also Known as ISIDORO GARCIA, Appellant.

Submitted August 5, 2013; decided August 22, 2013

Reported below, 2012 NY Slip Op 88716(U).

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EFFRIN McNEILL, Appellant.

Submitted August 5, 2013; decided August 22, 2013

Reported below, 107 AD3d 1430.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GRAHAM REID, Appellant.

Submitted July 8, 2013; decided August 22, 2013

Reported below, 104 AD3d 58.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILFREDO REINA, Appellant.

Submitted July 15, 2013; decided August 22, 2013

Reported below, 2012 NY Slip Op 78833(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed upon the ground that no application for leave to appeal pursuant to CPL 460.20 will lie from an order of a single Justice of the Appellate Division denying leave to appeal to that Court pursuant to CPL 460.15.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AMANDA RICHARDSON, Appellant.

Submitted July 8, 2013; decided August 22, 2013

Reported below, 102 AD3d 614.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ANNER RIVERA, Respondent.

Submitted July 29, 2013; decided August 22, 2013

Reported below, 102 AD3d 893.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER ROBBS, Appellant.

Submitted July 8, 2013; decided August 22, 2013

Reported below, 98 AD3d 691.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUENTIN A. SIMS, Appellant.

Submitted July 29, 2013; decided August 22, 2013

Reported below, 106 AD3d 1473.

Motion for assignment of counsel granted and David C. Schopp, Esq., The Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL THOMAS, Also Known as NEIL ADAMS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD DIAZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUAN JOSE PEQUE, Also Known as JUAN JOSE PEQUE SICAJAN, Appellant.

Submitted August 5, 2013; decided August 22, 2013

Reported below, *People v Thomas*, 89 AD3d 964; *People v Diaz*, 92 AD3d 413; *People v Peque*, 88 AD3d 1024.

Motion by Immigrant Defense Project for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JOHN F. RYAN,
on Behalf of RICHARD SHAVER, Respondent, v KEVIN
CHEVERKO et al., Appellants.

Submitted July 29, 2013; decided August 22, 2013

Reported below, 102 AD3d 990.

Motion by New York State Defenders Association et al. for
leave to file a brief amici curiae on the appeal herein granted
and the proposed brief is accepted as filed.

PINNACLE CHARTER SCHOOL et al., Appellants, v BOARD OF RE-
GENTS OF THE UNIVERSITY OF THE STATE OF NEW YORK et al.,
Respondents.

Submitted July 29, 2013; decided August 22, 2013

Reported below, 108 AD3d 1024.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for a stay dismissed as academic.

NANDKUMAR RAMKUMAR, Appellant, v GRAND STYLE TRANSPORTA-
TION ENTERPRISES INC. et al., Respondents. GRAND STYLE
TRANSPORTATION ENTERPRISES INC. et al., Third-Party
Plaintiffs-Respondents, v GEORGINA D. CASTILLO, Third-
Party Defendant-Respondent.

Submitted August 19, 2013; decided August 22, 2013

Reported below, 94 AD3d 484.

Motion by New York Insurance Association for leave to ap-
pear amicus curiae on the appeal herein granted only to the
extent that the proposed brief is accepted as filed. Two copies of
the brief must be served and nine copies filed within seven
days.

AYODELE SANDIFORD, Respondent, v CITY OF NEW YORK DEPART-
MENT OF EDUCATION et al., Appellants, et al., Defendants.

Submitted August 5, 2013; decided August 22, 2013

Reported below, 94 AD3d 593.

Motion by National Employment Lawyers Association/New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

OSCAR STARKER, Appellant, v TRUMP VILLAGE SECTION 4, INC., et al., Defendants, and NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

Submitted May 13, 2013; decided August 22, 2013

Reported below, 104 AD3d 937.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

TOWN OF OYSTER BAY, Appellant, v LIZZA INDUSTRIES, INC., Respondent. (And Other Actions.)

Submitted June 24, 2013; decided August 22, 2013

Reported below, 94 AD3d 1094.

Motion by Associated General Contractors of New York State, LLC for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

[995 NE2d 178, 972 NYS2d 215]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JULIO RODRIGUEZ, Appellant.

Decided August 27, 2013

SUMMARY

APPEAL, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 10, 2013. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County

(Cassandra Mullen, J.), which had adjudicated defendant a level three sex offender and a sexually violent offender pursuant to the Sex Offender Registration Act.

At the Appellate Division, defendant argued that the lower court's notice, in writing, of the date of his hearing, was late by one day. The Appellate Division concluded that defendant never argued at the hearing that he had not been provided the 20-day notice required by Correction Law § 168-n (3), and that in any event, defendant could not establish that the court did not afford him an opportunity to respond to the People's application. Moreover, the Appellate Division found that defendant's adjudication satisfied the requirements of due process and Correction Law § 168-n (3) and that the lower court properly exercised its discretion in denying defendant's request for a lengthy adjournment to obtain additional information about his prison record. The Appellate Division held that, given the remarkably strong case for adjudication as a level three offender, defendant was not prejudiced by the court's denial of an adjournment or by any other alleged procedural defects and that there was ample basis for the court's upward departure, regardless of defendant's prison record.

People v Rodriguez, 102 AD3d 457, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review — Sex Offender Classification

Defendant failed to preserve his claim that he did not receive 20 days' notice prior to his sex offender designation proceeding as required under Correction Law § 168-n (3) and his argument that an adjournment of unspecified duration was required as a matter of due process was similarly unreviewable.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Lisa A. Packard* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Patricia Curran* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

Defendant failed to preserve his claim that he did not receive 20 days' notice prior to his sex offender designation proceeding as required under Correction Law § 168-n (3). His argument

that an adjournment of unspecified duration was required as a matter of due process is similarly unreviewable.

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, FIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

In the Matter of PABLO COSTELLO, Appellant, v NEW YORK STATE BOARD OF PAROLE et al., Respondents.

Submitted June 17, 2013; decided August 27, 2013

Reported below, 101 AD3d 1512.

Motion by Robert Dennison et al. for leave to file a brief *amici curiae* on the motion for leave to appeal herein granted and the brief is accepted as filed.

ECHOSTAR SATELLITE L.L.C., Appellant, v ESPN, INC., et al., Respondents.

Submitted May 13, 2013; decided August 27, 2013

Reported below, 105 AD3d 420.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. The order affirming the denial of the motion for judgment notwithstanding the verdict and affirming the denial of the motion to set aside the verdict resolves the issues raised on those motions; it does not dispose of all of the issues in the action (*see* CPLR 5611). The final and appealable paper to the Court of Appeals is the final judgment entered after the denial of the motions, or an Appellate Division order resolving an appeal from that judgment (*see Anderson v Young & Rubicam*, 14 NY3d 909 [2010]; *Butler v New York City Tr. Auth.*, 14 NY3d 909 [2010]).

In the Matter of RIVEN FLAMENBAUM, Deceased. VORDERASIATISCHES MUSEUM, Respondent; HANNAH K. FLAMENBAUM, Appellant; ISRAEL FLAMENBAUM, Objectant-Respondent.

Submitted April 15, 2013; decided August 27, 2013

Reported below, 95 AD3d 1318.

Motion to strike portions of the brief of respondent Vorderasiatisches Museum denied.

ADWOA GYABAAH, Respondent, v RIVLAB TRANSPORTATION CORP., Appellant, et al., Defendant. JEFFREY A. ARONSKY, P.C., Nonparty Respondent.

Submitted June 24, 2013; decided August 27, 2013

Reported below, 102 AD3d 451.

Motion to vacate this Court's June 5, 2013 dismissal order granted [*see* 21 NY3d 1001 (2013)].

Judge ABDUS-SALAAM taking no part.

In the Matter of the Guardianship of KEVIN Z., a Person Alleged to be Mentally Retarded and/or Developmentally Disabled. CARMELLA AA., Respondent; EDWARD Z., Appellant. (And Another Proceeding.)

Submitted June 17, 2013; decided August 27, 2013

Reported below, 105 AD3d 1269.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JANNETTE MORALES, Plaintiff, v ASARESE MATTERS COMMUNITY CENTER et al., Defendants, CITY OF BUFFALO, Appellant, and COUNTY OF ERIE, Respondent. (Appeal No. 2.)

Submitted June 10, 2013; decided August 27, 2013

Reported below, 103 AD3d 1262.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN HEIDGEN, Appellant.

Submitted March 11, 2013; decided August 27, 2013

Reported below, 87 AD3d 1035.

Motion to require respondent to provide appellant's counsel with a copy of respondent's supplementary appendix granted.

In the Matter of RANDOLPH W., Appellant, v COMMISSIONER OF SOCIAL SERVICES, on Behalf of ANA B., Respondent.

Submitted June 10, 2013; decided August 27, 2013

Reported below, 105 AD3d 414.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[995 NE2d 845, 972 NYS2d 530]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v TERRENCE McFARLANE, Respondent.

Decided August 29, 2013

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 13, 2012. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Nicholas Iacovetta, J.), which had granted a motion by defendant to suppress evidence.

After a lawful traffic stop, a police officer, having observed a large wad of rolled-up cash, a partly empty liquor bottle, and crushed papers, and having received suspicious responses to his questions, asked defendant if there was anything in the vehicle that he should know about. Defendant answered, "[N]o." The officer then asked, "[D]o you mind if I take a look," or whether it would be okay if he "checked." Defendant replied, "[G]o ahead." After checking the seats and the center console, the officer, without asking, took the keys from the ignition and unlocked the glove compartment, where he found a loaded gun.

The Appellate Division concluded that the record supported the hearing court's finding that defendant did not consent to a search of the car's locked glove compartment, and that the officer's request to "take a look" into the car or "check" it for

contraband could reasonably have been understood to be a request to search the vehicle, possibly to include closed containers, but it did not reasonably imply a request for permission to open the locked glove compartment.

People v McFarlane, 93 AD3d 467, affirmed.

HEADNOTE

Appeal — Matters Reviewable — Mixed Question of Law and Fact

In a criminal prosecution where the Appellate Division affirmed Supreme Court's grant of defendant's motion to suppress evidence, there was record support for the Appellate Division's determination as to whether defendant had consented to a search and that mixed question of law and fact was beyond further review at the Court of Appeals.

APPEARANCES OF COUNSEL

Robert T. Johnson, District Attorney, Bronx (*Stanley R. Kaplan* of counsel), for appellant.

Respondent precluded.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. The determination as to whether a defendant has consented to a search involves a mixed question of law and fact (*People v Valerio*, 95 NY2d 924, 925 [2000]). Where, as here, there exists record support for the Appellate Division's resolution of this question, the issue is beyond this Court's further review (*id.*).

Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

ARCHSTONE et al., Appellants, v TOCCI BUILDING CORPORATION OF NEW JERSEY, INC., et al., Defendants, and PERKINS EASTMAN ARCHITECTS, INC., et al., Respondents. (And Third-Party Actions.)

Submitted June 17, 2013; decided August 29, 2013

Reported below, 101 AD3d 1059.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARK W. BOROWSKI, Respondent, v JEREMY J. PTAK, Appellant,
et al., Defendant.

Decided August 29, 2013

Reported below, 107 AD3d 1498.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF
MIDDLEFIELD, Respondent.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 106 AD3d 1170.

Motion by New York Farm Bureau for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF
MIDDLEFIELD, Respondent.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 106 AD3d 1170.

Motion by the Associated General Contractors of New York State, LLC, et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

COOPERSTOWN HOLSTEIN CORPORATION, Appellant, v TOWN OF
MIDDLEFIELD, Respondent.

Submitted July 1, 2013; decided August 29, 2013

Reported below, 106 AD3d 1170.

Motion by the American Petroleum Institute et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of AMIL DINSIO, Appellant, v SUPREME COURT, APPELLATE DIVISION, THIRD DEPARTMENT, Respondent.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 2013 NY Slip Op 74820(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

FELIX HERNANDEZ, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendants.

Submitted June 17, 2013; decided August 29, 2013

Reported below, 100 AD3d 433.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BLANCHE HUNTER, Deceased. JPMORGAN CHASE BANK, N.A., Appellant; MARGARET HUNTER et al., Respondents.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 100 AD3d 996.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARENESS COALITION, Proposed Intervenor.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 108 AD3d 25.

Motion by New York Farm Bureau for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARENESS COALITION, Proposed Intervenor.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 108 AD3d 25.

Motion by the Washington Legal Foundation for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARENESS COALITION, Proposed Intervenor.

Submitted June 24, 2013; decided August 29, 2013

Reported below, 108 AD3d 25.

Motion by the Associated General Contractors of New York State, LLC, et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of NORSE ENERGY CORP. USA, Appellant, v TOWN OF DRYDEN et al., Respondents. DRYDEN RESOURCES AWARENESS COALITION, Proposed Intervenor.

Submitted July 1, 2013; decided August 29, 2013

Reported below, 108 AD3d 25.

Motion by the American Petroleum Institute et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of STATE OF NEW YORK, Respondent, v DANIEL OO., Appellant.

Decided August 29, 2013

Reported below, 88 AD3d 212.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the stipulation and order of Supreme Court is not a final judgment within the meaning of the Constitution and CPLR 5601 (d) because the Mental Hygiene Law article 10 application was withdrawn without prejudice to renewal in the event of certain conditions.

YUAN ZHAI, Appellant, v CHEMICAL BANK et al., Respondents.

Decided August 29, 2013

Reported below, 2010 NY Slip Op 77325(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

Judge ABDUS-SALAAM taking no part.

In the Matter of ANNABELLE ZARATZIAN, Appellant, v ADEL RAMSEY ABADIR, Respondent. (Proceeding No. 1.)

In the Matter of ADEL RAMSEY ABADIR, Respondent, v ANNABELLE ZARATZIAN, Appellant. (Proceeding No. 2.)

Submitted July 1, 2013; decided August 29, 2013

Reported below, 105 AD3d 1054.

Motion by the Women's Bar Association of the State of New York for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(August 1, 2013 through August 31, 2013)

Kausal v Educational Prods.
Info. Exch. Inst.

2d Dept: 105 AD3d 909

8/27/13

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(August 1, 2013 through August 31, 2013)

People v Agard

1st Dept: 107 AD3d 613 (NY)

denied 8/20/13
(Smith, J.)

People v Agosto	App Div, 1st Dept: 2013 NY Slip Op 76456(U) (Bronx)	dismissed 8/20/13 (Read, J.)
People v Aitken	3d Dept: 101 AD3d 1383 (Delaware)	denied 8/2/13 (Smith, J.)
People v Alexis	4th Dept: 107 AD3d 1457 (Monroe)	denied 8/28/13 (Rivera, J.)
People v Alicea	1st Dept: 106 AD3d 619 (NY)	denied 8/16/13 (Lippman, Ch. J.)
People v Almeyda	1st Dept: 107 AD3d 450 (NY)	denied 8/28/13 (Rivera, J.)
People v Andrango	1st Dept: 106 AD3d 461 (NY)	denied 8/5/13 (Lippman, Ch. J.)
People v Andrews	4th Dept: 105 AD3d 1460 (Genesee)	denied 8/7/13 (Grafteo, J.)
People v Arena	4th Dept: 107 AD3d 1440 (Monroe)	denied 8/28/13 (Grafteo, J.)
People v Atkins	4th Dept: 107 AD3d 1465 (Monroe)	denied 8/28/13 (Grafteo, J.)
People v Bailey (Richard)	4th Dept: 105 AD3d 1359 (Niagara)	denied 8/8/13 (Pigott, J.)
People v Bailey (Richard)	4th Dept: 105 AD3d 1365 (Niagara)	denied 8/8/13 (Pigott, J.)
People v Balgobin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 149(A) (Queens)	denied 8/8/13 (Pigott, J.)
People v Barrett	2d Dept: 105 AD3d 862 (Nassau)	denied 8/1/13 (Pigott, J.)
People v Battle	4th Dept: 107 AD3d 1467 (Onondaga)	denied 8/13/13 (Smith, J.)
People v Belgrave (Sylveste)	2d Dept: 104 AD3d 862 (Kings)	denied 8/28/13 (Rivera, J.)
People v Belgrave (Sylvester)	2d Dept: 104 AD3d 862 (Kings)	denied 8/28/13 (Rivera, J.)
People v Belvett	1st Dept: 105 AD3d 538 (NY)	denied 8/1/13 (Pigott, J.)
People v Benton	4th Dept: 106 AD3d 1451 (Monroe)	denied 8/5/13 (Pigott, J.)
People v Bjork	3d Dept: 105 AD3d 1258 (St. Lawrence)	denied 8/5/13 (Lippman, Ch. J.)
People v Bosse	County Ct, 7/15/13 (Genesee)	denied 8/27/13 (Grafteo, J.)
People v Boula	3d Dept: 106 AD3d 1371 (Clinton)	denied 8/28/13 (Grafteo, J.)
People v Boyd	1st Dept: 107 AD3d 526 (NY)	denied 8/28/13 (Grafteo, J.)
People v Brown (Clayton)	1st Dept: 107 AD3d 499 (NY)	denied 8/28/13 (Grafteo, J.)
People v Brown (Craig)	4th Dept: 107 AD3d 1477 (Monroe)	denied 8/20/13 (Smith, J.)
People v Brown (James)	2d Dept: 106 AD3d 927 (Suffolk)	denied 8/6/13 (Lippman, Ch. J.)

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People v Buck	3d Dept: 106 AD3d 1272 (Schenectady)	denied 8/5/13 (Pigott, J.)
People v Buckley	1st Dept: 105 AD3d 588 (Bronx)	denied 8/1/13 (Pigott, J.)
People v Butchino	4th Dept: 107 AD3d 1473 (Oswego)	denied 8/28/13 (Rivera, J.)
People v Campbell	1st Dept: 107 AD3d 435 (NY)	denied 8/8/13 (Pigott, J.)
People v Carrington	2d Dept: 105 AD3d 970 (Kings)	denied 8/1/13 (Pigott, J.)
People v Cazeau	2d Dept: 107 AD3d 910 (Kings)	denied 8/19/13 (Smith, J.)
People v Cedenio	2d Dept: 107 AD3d 734 (Kings)	denied 8/14/13 (Pigott, J.)
People v Cephas (Sean)	2d Dept: 107 AD3d 821 (Westchester)	denied 8/19/13 (Smith, J.)
People v Cephas (Shawn)	2d Dept: 107 AD3d 821 (Westchester)	denied 8/19/13 (Smith, J.)
People v Chance	2d Dept: 105 AD3d 758 (Westchester)	denied 8/28/13 (Rivera, J.)
People v Coffey	3d Dept: 107 AD3d 1047 (Tioga)	denied 8/28/13 (Grafteo, J.)
People v Copp	2d Dept: 107 AD3d 911 (Suffolk)	denied 8/28/13 (Rivera, J.)
People v Crewe	2d Dept: 102 AD3d 981 (Westchester)	denied 8/7/13 (Rivera, J.)
People v Cunningham	1st Dept: 107 AD3d 512 (NY)	denied 8/5/13 (Lippman, Ch. J.)
People v Darryl P.	4th Dept: 105 AD3d 1439 (Onondaga)	denied 8/5/13 (Pigott, J.)
People v Davis	App Div, 3d Dept: 2013 NY Slip Op 75386(U) (Albany)	dismissed 8/15/13 (Rivera, J.)
People v Dekenipp	4th Dept: 105 AD3d 1346 (Ontario)	denied 8/23/13 (Smith, J.)
People v Dembert	2d Dept: 107 AD3d 822 (Suffolk)	denied 8/28/13 (Rivera, J.)
People v DeSantis	2d Dept: 106 AD3d 1100 (Queens)	denied 8/13/13 (Pigott, J.)
People v Devodier	2d Dept: 102 AD3d 884 (Suffolk)	denied 8/7/13 (Grafteo, J.)
People v Diagouraga	App Term, 1st Dept: 39 Misc 3d 134(A) (NY)	denied 8/28/13 (Rivera, J.)
People v Dixon	1st Dept: 107 AD3d 530 (NY)	denied 8/27/13 (Grafteo, J.)
People v Dove	App Div, 3d Dept: 2013 NY Slip Op 71908(U) (Broome)	denied 8/1/13 (Pigott, J.)
People v Dunne	2d Dept: 106 AD3d 928 (Orange)	denied 8/28/13 (Grafteo, J.)
People v Eastment	2d Dept: 106 AD3d 1019 (Suffolk)	denied 8/5/13 (Pigott, J.)

People v Edwards	1st Dept: 107 AD3d 494 (NY)	denied 8/16/13 (Smith, J.)
People v England	1st Dept: 105 AD3d 599 (NY)	denied 8/5/13 (Pigott, J.)
People v Escalera	County Ct, 6/19/13 (Erie)	dismissed 8/29/13 (Grafteo, J.)
People v Esco	2d Dept: 103 AD3d 917 (Westchester)	denied 8/28/13 (Rivera, J.)
People v Estella	3d Dept: 107 AD3d 1029 (Schenectady)	denied 8/7/13 (Grafteo, J.)
People v Flemming	App Div, 1st Dept: 2013 NY Slip Op 65975(U) (NY)	denied reconsideration 8/5/13 (Pigott, J.)
People v Foos	4th Dept: 105 AD3d 1429 (Monroe)	denied 8/5/13 (Pigott, J.)
People v 4 Park Place Corp.	App Term, 2d Dept, 9th & 10th Jud Dists: 2013 NY Slip Op 76907(U) (Nassau)	dismissed 8/16/13 (Smith, J.)
People v Francis	App Div, 1st Dept: 2013 NY Slip Op 74645(U) (NY)	dismissed 8/15/13 (Lippman, Ch. J.)
People v Friscia	2d Dept: 107 AD3d 914 (Kings)	denied 8/28/13 (Grafteo, J.)
People v Fudge	4th Dept: 104 AD3d 1169 (Onondaga)	denied 8/7/13 (Rivera, J.)
People v Galvan	3d Dept: 107 AD3d 1058 (Schenectady)	denied 8/20/13 (Smith, J.)
People v Garrett	2d Dept: 106 AD3d 929 (Suffolk)	granted 8/19/13 (Grafteo, J.)
People v Gary	2d Dept: 106 AD3d 932 (Kings)	denied 8/13/13 (Smith, J.)
People v Giles	1st Dept: 95 AD3d 670 (NY)	granted 8/6/13 (Lippman, Ch. J.)
People v Grason	2d Dept: 107 AD3d 1015 (Queens)	withdrawn 8/27/13 (Lippman, Ch. J.)
People v Grimm	3d Dept: 107 AD3d 1040 (Sullivan)	denied 8/30/13 (Pigott, J.)
People v Hauenstein	3d Dept: 106 AD3d 1339 (Rensselaer)	denied 8/20/13 (Smith, J.)
People v Hazare	2d Dept: 105 AD3d 975 (Queens)	denied 8/5/13 (Pigott, J.)
People v Hines	2d Dept: 102 AD3d 889 (Westchester)	denied 8/7/13 (Rivera, J.)
People v Howard	App Div, 1st Dept: 2013 NY Slip Op 74645(U) (NY)	dismissed 8/15/13 (Lippman, Ch. J.)
People v Howell	2d Dept: 106 AD3d 835 (Queens)	denied 8/5/13 (Pigott, J.)
People v Hoyt	4th Dept: 107 AD3d 1426 (Erie)	denied 8/16/13 (Smith, J.)
People v Hutchinson	2d Dept: 106 AD3d 1105 (Queens)	denied 8/13/13 (Smith, J.)

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People v Jackson	3d Dept: 100 AD3d 1258 (Albany)	denied reconsideration 8/22/13 (Pigott, J.)
People v Jenkins	2d Dept: 105 AD3d 758 (Westchester)	denied 8/28/13 (Rivera, J.)
People v John	2d Dept: 107 AD3d 824 (Kings)	denied 8/22/13 (Pigott, J.)
People v Johnson (Aloysius)	App Div, 4th Dept, 5/30/13 (Monroe)	dismissed 8/5/13 (Pigott, J.)
People v Johnson (Shawndell)	3d Dept: 106 AD3d 1272 (Schenectady)	denied 8/5/13 (Pigott, J.)
People v Jones (Charlie)	1st Dept: 102 AD3d 541 (NY)	denied 8/7/13 (Rivera, J.)
People v Jones (Kenneth)	4th Dept: 107 AD3d 1611 (Erie)	denied 8/28/13 (Grafteo, J.)
People v "K"	4th Dept: 107 AD3d 1465 (Monroe)	denied 8/28/13 (Grafteo, J.)
People v Khan	2d Dept: 107 AD3d 740 (Queens)	denied 8/16/13 (Smith, J.)
People v Kinney	1st Dept: 107 AD3d 563 (NY)	denied 8/28/13 (Grafteo, J.)
People v Kirkland	4th Dept: 105 AD3d 1337 (Ontario)	denied 8/16/13 (Smith, J.)
People v Kruppenbacher	App Div, 3d Dept: 2013 NY Slip Op 74808(U) (Schenectady)	denied 8/14/13 (Pigott, J.)
People v Landri	2d Dept: 104 AD3d 791 (Dutchess)	denied 8/8/13 (Pigott, J.)
People v Lane (Rondula)	4th Dept: 105 AD3d 1426 (Oneida)	denied 8/1/13 (Pigott, J.)
People v Lane (Rondula)	4th Dept: 106 AD3d 1478 (Oneida)	denied 8/13/13 (Pigott, J.)
People v Langenbach	3d Dept: 106 AD3d 1338 (Rensselaer)	denied 8/28/13 (Pigott, J.)
People v Lapi	3d Dept: 105 AD3d 1084 (Montgomery)	denied 8/1/13 (Pigott, J.)
People v Larmond	2d Dept: 106 AD3d 934 (Queens)	denied 8/22/13 (Pigott, J.)
People v Lester	App Div, 1st Dept: 2013 NY Slip Op 74645(U) (NY)	dismissed 8/15/13 (Lippman, Ch. J.)
People v Lopez	2d Dept: 106 AD3d 1109 (Westchester)	denied 8/13/13 (Smith, J.)
People v Lowry	County Ct, 6/11/13 (Monroe)	denied 8/28/13 (Grafteo, J.)
People v Ludwig	4th Dept: 104 AD3d 1162 (Monroe)	granted 8/16/13 (Smith, J.)
People v Mack	App Div, 3d Dept: 2013 NY Slip Op 68869(U) (Schuyler)	denied reconsideration 8/28/13 (Grafteo, J.)
People v Mackey- Meggs	County Ct, 5/20/13 (Albany)	granted 8/19/13 (Grafteo, J.)

People v Malave	1st Dept: 106 AD3d 657 (NY)	denied 8/19/13 (Smith, J.)
People v Maldonado	2d Dept: 100 AD3d 657 (Kings)	granted 8/6/13 (Lippman, Ch. J.)
People v Marquardt	County Ct, 3/7/13 (Genesee)	denied 8/7/13 (Grafteo, J.)
People v Matista	2d Dept: 106 AD3d 1020 (Queens)	denied 8/28/13 (Grafteo, J.)
People v McClary	2d Dept: 107 AD3d 744 (Westchester)	denied 8/15/13 (Smith, J.)
People v McCray	2d Dept: 106 AD3d 1110 (Dutchess)	denied 8/19/13 (Abdus-Salaam, J.)
People v Mears	App Div, 1st Dept: 2013 NY Slip Op 74346(U) (NY)	denied 8/15/13 (Smith, J.)
People v Melvin	2d Dept: 106 AD3d 1112 (Queens)	denied 8/5/13 (Lippman, Ch. J.)
People v Michael Miran, Ph.D. Psychologist, P.C.	4th Dept: 107 AD3d 43 (Monroe)	denied 8/5/13 (Pigott, J.)
People v Miran (Esta)	4th Dept: 107 AD3d 41 (Monroe)	denied 8/5/13 (Pigott, J.)
People v Miran (Michael)	4th Dept: 107 AD3d 28 (Monroe)	denied 8/5/13 (Pigott, J.)
People v Morrow	App Div, 3d Dept: 2013 NY Slip Op 74121(U) (Albany)	denied 8/15/13 (Smith, J.)
People v Motz	App Div, 3d Dept: 2013 NY Slip Op 77461(U) (Sullivan)	dismissed 8/22/13 (Pigott, J.)
People v Moxley	County Ct, 6/14/13 (Monroe)	denied 8/28/13 (Pigott, J.)
People v Murphy	2d Dept: 107 AD3d 744 (Queens)	denied 8/28/13 (Pigott, J.)
People v Myers	App Div, 3d Dept: 2013 NY Slip Op 74104(U) (Greene)	denied reconsideration 8/5/13 (Lippman, Ch. J.)
People v Nelson	4th Dept: 105 AD3d 1389 (Ontario)	denied 8/1/13 (Pigott, J.)
People v Newson	2d Dept: 106 AD3d 839 (Queens)	denied 8/1/13 (Pigott, J.)
People v Ojo	4th Dept: 105 AD3d 1466 (Jefferson)	denied 8/16/13 (Smith, J.)
People v Oseni	2d Dept: 107 AD3d 829 (Westchester)	denied 8/28/13 (Grafteo, J.)
People v Paddyfote	2d Dept: 107 AD3d 745 (Dutchess)	denied 8/28/13 (Pigott, J.)
People v Palmer	2d Dept: 103 AD3d 670 (Kings)	denied 8/7/13 (Rivera, J.)
People v Pasley	App Div, 1st Dept: 2013 NY Slip Op 70341(U) (NY)	denied 8/2/13 (Smith, J.)
People v Phillips (William)	App Div, 1st Dept, 4/11/13 (NY)	dismissed 8/7/13 (Grafteo, J.)

MEMORANDA

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People v Phillips (William)	App Div, 1st Dept: 2013 NY Slip Op 71398(U) (NY)	denied 8/7/13 (Grafteo, J.)
People v Pilgrim	1st Dept: 101 AD3d 435 (Bronx)	denied reconsideration 8/5/13 (Pigott, J.)
People v Primakov	4th Dept: 105 AD3d 1397 (Monroe)	denied 8/7/13 (Grafteo, J.)
People v Rambert (Shadron)	1st Dept: 105 AD3d 642 (NY)	denied 8/1/13 (Pigott, J.)
People v Rambert (Shadron)	1st Dept: 105 AD3d 642 (Bronx)	denied 8/1/13 (Pigott, J.)
People v Ramos	1st Dept: 105 AD3d 684 (NY)	denied 8/1/13 (Pigott, J.)
People v Reed	1st Dept: 106 AD3d 673 (NY)	denied 8/20/13 (Smith, J.)
People v Rice	App Div, 1st Dept: 2013 NY Slip Op 73238(U) (Bronx)	denied 8/22/13 (Pigott, J.)
People v Rivera	4th Dept: 105 AD3d 1343 (Monroe)	denied 8/2/13 (Smith, J.)
People v Rogers	2d Dept: 106 AD3d 1029 (Queens)	denied 8/7/13 (Grafteo, J.)
People v Roman	4th Dept: 107 AD3d 1441 (Oneida)	denied 8/6/13 (Lippman, Ch. J.)
People v Romance	App Div, 1st Dept: 2013 NY Slip Op 63659(U) (NY)	dismissed 8/27/13 (Grafteo, J.)
People v Rossborough	4th Dept: 105 AD3d 1332 (Allegany)	denied 8/8/13 (Pigott, J.)
People v Sancho- Hernandez	2d Dept: 106 AD3d 841 (Dutchess)	denied 8/1/13 (Pigott, J.)
People v Seymore	2d Dept: 106 AD3d 1033 (Suffolk)	denied 8/7/13 (Grafteo, J.)
People v Shehabeldin	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 39 Misc 3d 149(A) (Kings)	denied 8/15/13 (Smith, J.)
People v Shorter	2d Dept: 106 AD3d 1115 (Nassau)	dismissed 8/28/13 (Rivera, J.)
People v Simmons	2d Dept: 107 AD3d 1020 (Suffolk)	denied 8/28/13 (Grafteo, J.)
People v Smith	App Div, 2d Dept: 2013 NY Slip Op 69914(U) (Orange)	dismissed 8/8/13 (Pigott, J.)
People v Smrek (Daniel)	4th Dept: 107 AD3d 1604 (Cattaraugus)	denied 8/28/13 (Pigott, J.) (Appeal No. 1)
People v Smrek (Daniel)	4th Dept: 107 AD3d 1604 (Cattaraugus)	denied 8/28/13 (Pigott, J.) (Appeal No. 2)
People v Snipes	1st Dept: 106 AD3d 581 (NY)	denied 8/5/13 (Lippman, Ch. J.)
People v Southside	3d Dept: 106 AD3d 1272 (Schenectady)	denied 8/5/13 (Pigott, J.)
People v Spirles	4th Dept: 105 AD3d 1465 (Monroe)	denied 8/7/13 (Grafteo, J.)

People v Spruill	1st Dept: 108 AD3d 425 (NY)	denied 8/28/13 (Grafteo, J.)
People v Streets	3d Dept: 107 AD3d 1029 (Schenectady)	denied 8/28/13 (Grafteo, J.)
People v Stroman (Isaac)	3d Dept: 106 AD3d 1268 (Ulster)	denied 8/7/13 (Grafteo, J.)
People v Stroman (Marcus)	3d Dept: 107 AD3d 1023 (Chemung)	denied 8/27/13 (Grafteo, J.)
People v Sudol (Ronald)	1st Dept: 102 AD3d 403 (NY)	dismissed 8/6/13 (Lippman, Ch. J.)
People v Sudol (Ronald)	1st Dept: 102 AD3d 403 (NY)	denied 8/6/13 (Lippman, Ch. J.)
People v Suttles	4th Dept: 107 AD3d 1467 (Erie)	denied 8/27/13 (Grafteo, J.)
People v Sweeper	App Div, 1st Dept: 2013 NY Slip Op 76010(U) (NY)	denied 8/13/13 (Pigott, J.)
People v Sydlar	3d Dept: 106 AD3d 1368 (Otsego)	dismissed 8/29/13 (Grafteo, J.)
People v Tamayo	1st Dept: 105 AD3d 418 (NY)	denied 8/8/13 (Pigott, J.)
People v Taro	4th Dept: 107 AD3d 1468 (Cayuga)	denied 8/27/13 (Grafteo, J.)
People v Terry	App Div, 2d Dept: 2013 NY Slip Op 75812(U) (Queens)	dismissed 8/6/13 (Lippman, Ch. J.)
People v Texidor	1st Dept: 105 AD3d 516 (NY)	denied 8/5/13 (Lippman, Ch. J.)
People v Thomas (Forrest)	2d Dept: 104 AD3d 710 (Dutchess)	denied 8/15/13 (Rivera, J.)
People v Thomas (George)	1st Dept: 107 AD3d 585 (NY)	denied 8/28/13 (Pigott, J.)
People v Torrecella	App Div, 1st Dept: 2013 NY Slip Op 65941(U) (NY)	denied 8/15/13 (Rivera, J.)
People v Torrecilla	App Div, 1st Dept: 2013 NY Slip Op 65941(U) (NY)	denied 8/15/13 (Rivera, J.)
People v Trammel	4th Dept: 103 AD3d 1189 (Monroe)	denied 8/7/13 (Rivera, J.)
People v Trinidad	4th Dept: 107 AD3d 1432 (Onondaga)	denied 8/28/13 (Grafteo, J.)
People v Turrentine	4th Dept: 107 AD3d 1569 (Erie)	denied 8/14/13 (Pigott, J.)
People v Umanzor	2d Dept: 107 AD3d 919 (Suffolk)	denied 8/19/13 (Smith, J.)
People v Valentine	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 28 (Kings)	denied 8/28/13 (Grafteo, J.)
People v Vazquez	1st Dept: 103 AD3d 460 (Bronx)	denied 8/8/13 (Pigott, J.)
People v Voulgaousn	3d Dept: 106 AD3d 1272 (Schenectady)	denied 8/5/13 (Pigott, J.)
People v White	App Div, 1st Dept: 2013 NY Slip Op 76011(U) (NY)	denied 8/27/13 (Grafteo, J.)

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People v Whitehead	2d Dept: 107 AD3d 746 (Suffolk)	denied 8/6/13 (Lippman, Ch. J.)
People v Wiley	1st Dept: 107 AD3d 448 (NY)	denied 8/6/13 (Lippman, Ch. J.)
People v Williams (Clarence)	4th Dept: 107 AD3d 1516 (Monroe)	denied 8/19/13 (Smith, J.)
People v Williams (Herbert)	1st Dept: 106 AD3d 518 (Bronx)	denied 8/7/13 (Grafteo, J.)
People v Williams (Mario)	2d Dept: 107 AD3d 746 (Queens)	denied 8/28/13 (Grafteo, J.)
People v Wilson	2d Dept: 107 AD3d 919 (Suffolk)	denied 8/22/13 (Pigott, J.)
People v Wocjik	2d Dept: 101 AD3d 766 (Queens)	denied 8/5/13 (Lippman, Ch. J.)
People v Wroblewski	4th Dept: 107 AD3d 1577 (Niagara)	denied 8/15/13 (Smith, J.)
People v Xiao He Lu	2d Dept: 106 AD3d 1036 (Kings)	denied 8/22/13 (Pigott, J.)
People v Yankovich	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 133(A) (Putnam)	denied 8/8/13 (Pigott, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(August 1, 2013 through August 31, 2013)

People v DeLee	App Div, 4th Dept: 108 AD3d 1145 (Onondaga)	granted 8/14/13 (Peradotto, J.)
People v Turner	App Div, 4th Dept: 107 AD3d 1543 (Monroe)	granted 8/6/13 (Martoché, J.)
People v Webb	App Div, 4th Dept: 108 AD3d 1064 (Genesee)	granted 8/28/13 (Scudder, J.)

ALTSCHULER SHAHAM PROVIDENT FUNDS, LTD., Appellant, v GML
TOWER, LLC, et al., Defendants, and THE PIKE COMPANY,
INC., et al., Respondents.

Submitted July 22, 2013; decided September 3, 2013

Reported below, 83 AD3d 1563.

Motion for clarification or reargument denied with \$100 costs
and necessary reproduction disbursements [*see* 21 NY3d 352
(2013)].

Judge ABDUS-SALAAM taking no part.

* Includes only applications that were granted.

In the Matter of ANGEL H., Also Known as ANGEL L.H., and Another. MERCY FIRST, Respondent; Omayra G., Appellant, et al., Respondent. (And Another Proceeding.)

Submitted August 5, 2013; decided September 3, 2013

Reported below, 107 AD3d 891.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of SANAYI BECKLES, Appellant, v RAFAEL E. CESTERO, Respondent.

Submitted July 1, 2013; decided September 3, 2013

Reported below, 102 AD3d 559.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

Judge ABDUS-SALAAM taking no part.

In the Matter of DONALD MACK BENNETT, Appellant, v JEFF McKOY, Superintendent, et al., Respondents.

Decided September 3, 2013

Reported below, 2013 NY Slip Op 71111(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ANNA CIANO, Appellant, v MAXWELL J. WILEY et al., Respondents.

Submitted July 8, 2013; decided September 3, 2013

Reported below, 106 AD3d 568.

Motion for leave to appeal dismissed upon the ground that the issues presented have become moot.

Judge ABDUS-SALAAM taking no part.

In the Matter of EASYLINK SERVICES INTERNATIONAL, INC., Appellant, v NEW YORK STATE TAX APPEALS TRIBUNAL et al., Respondents.

Submitted July 1, 2013; decided September 3, 2013

Reported below, 101 AD3d 1180.

Motion by Institute for Professionals in Taxation for leave to file a brief amicus curiae on the motion for leave to appeal herein dismissed as academic.

SHAWN GREEN, Appellant, v STATE OF NEW YORK, Respondent.

Submitted June 24, 2013; decided September 3, 2013

Reported below, 2013 NY Slip Op 73425(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PATRICIA KANE, as Limited Administratrix of the Estate of JEANNE KANE, Deceased, and PATRICIA KANE, Individually, Respondent, v JOHN GALTIERI, Appellant, and MARILYN GALTIERI, Intervenor-Appellant.

Decided September 3, 2013

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Papers Rejection Notice appealed from is neither a judgment nor an order from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; 5601).

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY, Appellant-Respondent.

Submitted July 22, 2013; decided September 3, 2013

Reported below, 91 AD3d 401.

Motion for reargument granted and case set down for a future session of the Court of Appeals [*see* 21 NY3d 384 (2013)].

Judge ABDUS-SALAAM taking no part.

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v
AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY,
Appellant-Respondent.

Submitted July 29, 2013; decided September 3, 2013

Reported below, 91 AD3d 401.

Motion by Complex Insurance Claims Litigation Association
et al. for leave to file a brief amici curiae on the motion for re-
argument herein granted and the brief is accepted as filed [see
21 NY3d 384 (2013)].

Judge ABDUS-SALAAM taking no part.

In the Matter of LARRY TT., Appellant. JAMES CONWAY, as Su-
perintendent of Attica Correctional Facility, et al., Respon-
dents. (Proceeding No. 1.)

In the Matter of STATE OF NEW YORK, Respondent, v LARRY TT.,
Appellant. (Proceeding No. 2.)

Decided September 3, 2013

Reported below, 68 AD3d 1229.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no substantial constitutional ques-
tion is directly involved.

In the Matter of DOUGLAS LATTA, Appellant, v MAXWELL WILEY
et al., Respondents.

Submitted July 8, 2013; decided September 3, 2013

Reported below, 106 AD3d 567.

Motion for leave to appeal dismissed upon the ground that
the issues presented have become moot.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SELBIN
MARTINEZ, Appellant.

Submitted June 24, 2013; decided September 3, 2013

Reported below, 100 AD3d 537.

Motion to strike page 520 of appellant's appendix and references thereto in appellant's brief granted.

In the Matter of RONALD RABASCO, Appellant, v STACEY LAMAR, Respondent. (And Two Other Proceedings.)

Submitted July 22, 2013; decided September 3, 2013

Reported below, 106 AD3d 1095.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

MANUEL REIS, Respondent-Appellant, v VOLVO CARS OF NORTH AMERICA et al., Appellants-Respondents. (And a Third-Party Action.)

Submitted July 1, 2013; decided September 3, 2013

Reported below, 105 AD3d 663.

Motion to dismiss appeal taken by respondent-appellant Manuel Reis granted and that appeal dismissed, with \$400 costs and \$100 cost of motion, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law in favor of respondent-appellant (*see* CPLR 5601 [a]).

Judge ABDUS-SALAAM taking no part.

In the Matter of MICHAEL SACKS et al., Appellants, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Submitted July 22, 2013; decided September 3, 2013

Reported below, 99 AD3d 1120.

Motion for reargument of motion for leave to appeal denied [*see* 21 NY3d 857 (2013)].

Judge ABDUS-SALAAM taking no part.

ROBERT L. SCHULZ, Appellant, et al., Plaintiffs, v STATE OF NEW YORK EXECUTIVE et al., Respondents.

Submitted July 15, 2013; decided September 3, 2013

Reported below, 108 AD3d 856.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not a nonfinal order of the type within the meaning of CPLR 5602 (a) (2).

ELDRID SEQUEIRA, Appellant, v RACHEL SEQUEIRA, Respondent.

Submitted June 24, 2013; decided September 3, 2013

Reported below, 105 AD3d 504.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge ABDUS-SALAAM taking no part.

JOHNNY WATSON, Appellant, v SALVATORE PRIORE et al., Defendants, and STEVEN A. ABDOO et al., Respondents.

Submitted July 22, 2013; decided September 3, 2013

Reported below, 104 AD3d 1300, 1304, 1307.

Motion, insofar as it seeks leave to appeal from the Appellate Division order affirming the June 2012 Supreme Court order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

ESTHER YORK, Appellant, v JOSEPH YORK, Respondent.

Submitted July 8, 2013; decided September 3, 2013

Reported below, 98 AD3d 1042.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARTIN DEKOM, Appellant, v JOSEPH TRANI et al., Respondents.

Submitted September 6, 2013; decided September 6, 2013

Reported below, 109 AD3d 769.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

Judge RIVERA taking no part.

[996 NE2d 904, 974 NYS2d 24]

BRUNO KEARNEY ARCHITECTS, LLP, Appellant, v LISA ROSE, Respondent.

Decided September 10, 2013

SUMMARY

APPEAL, pursuant to CPLR 5601 (c), from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 12, 2013. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Milton A. Tingling, J.), entered after a nonjury trial in favor of plaintiff awarding it damages against defendant; (2) vacated the judgment; and (3) remanded the matter for a new trial. Plaintiff stipulated that judgment absolute should be entered against it in the event of affirmance.

In an action by an architectural firm arising out of the proposed construction of a house for defendant, the Appellate Division concluded that, contrary to the trial court's determination, plaintiff failed to demonstrate that the parties intended to be bound by the terms of a written agreement without signing the agreement; that it was clear from the agreement that plaintiff was required to provide a design for a house with an estimated cost of construction consistent with defendant's project budget; and that to construe the agreement as plaintiff urged would mean that the estimate, and therefore plaintiff's fee (15% of the estimate), would be untethered to any objective measure, thus rendering the agreement unenforceable. Moreover, given the existence of an express agreement, plaintiff could not recover in quantum meruit; nor did plaintiff establish an account stated, since defendant never paid any invoice related to the new construction or the \$1,000,000 estimate. Furthermore, plaintiff's attorneys' fees were awarded not only pursuant to the unsigned agreement not adopted by the parties, but also without an evidentiary basis, since no evidence was given, either at trial or an inquest, as to the proper amount of fees.

Bruno Kearney Architects, LLP v Rose, 104 AD3d 472, affirmed.

HEADNOTE

Contracts — Formation of Contract

In an action by an architect arising out of the proposed design of a house for defendant, the order of the Appellate Division reversing the judgment in plaintiff's favor and remanding the matter for a new trial was affirmed, and judgment absolute dismissing the complaint granted upon plaintiff's stipulation, since the Appellate Division correctly determined that plaintiff was not entitled to recovery against defendant.

APPEARANCES OF COUNSEL

Gogick, Byrne & O'Neill, LLP, New York City (*John M. Rondello, Jr.*, of counsel), for appellant.

Law Offices of William R. Garbarino, Sayville (*Donald R. Hamill* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and judgment absolute dismissing the complaint granted upon plaintiff's stipulation. The Appellate Division correctly determined that plaintiff was not entitled to recovery against defendant.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT and ABDUS-SALAAM. Taking no part: Judge RIVERA.

CHRISTINE ADAMI, Appellant, v WARWICK VALLEY CENTRAL SCHOOL DISTRICT et al., Respondents.

Submitted June 17, 2013; decided September 10, 2013

Reported below, 105 AD3d 982.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of ANTHONY BRANDON, Appellant, v MELVYN R. CLAUSON, Respondent.

Submitted July 1, 2013; decided September 10, 2013

Reported below, 2013 NY Slip Op 67246(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CHEYENNE J., a Child Alleged to be Neglected. CHRISTIAN J., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent.

Submitted July 15, 2013; decided September 10, 2013

Reported below, 103 AD3d 467; 2013 NY Slip Op 77062(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Judge ABDUS-SALAAM taking no part.

ROBERTO CIAPRAZI, Appellant, v STATE OF NEW YORK, Respondent.

Submitted June 24, 2013; decided September 10, 2013

Reported below, 2013 NY Slip Op 73418(U).

Motion, insofar as it seeks leave to appeal from the May 2013 Appellate Division order, denied; motion for leave to appeal otherwise dismissed upon the ground that the other orders sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ECHO W. DIXON, Appellant, v STATE OF NEW YORK et al., Respondents.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ECHO W. DIXON, Appellant, v STATE OF NEW YORK et al., Respondents.

Submitted July 15, 2013; decided September 10, 2013

Reported below, 2013 NY Slip Op 76015(U); 2013 NY Slip Op 74322(U).

On the Court's own motion, appeal, insofar as taken from the June 2013 Appellate Division order, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

INDYMAC BANK, F.S.B., Respondent, v DIANA J. YANO-HOROSKI, Appellant, et al., Defendants.

Submitted July 22, 2013; decided September 10, 2013

Reported below, 107 AD3d 672.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LEON R. KOZIOL, Individually and as Parent of CHILD A and Another, Appellant, v STATE OF NEW YORK et al., Respondents, et al., Defendant.

Decided September 10, 2013

Reported below, 107 AD3d 1078.

Appeal, insofar as taken from that part of the Appellate Division order that affirmed so much of Supreme Court's order as dismissed the complaint, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from that part of the Appellate Division order that affirmed so much of Supreme Court's order as denied appellant's motion for reconsideration of a prior order denying appellant's application for a preliminary injunction, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution.

In the Matter of LEON R. KOZIOL, a Suspended Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted July 15, 2013; decided September 10, 2013

Reported below, 107 AD3d 1137.

On the Court's own motion, appeal, insofar as taken from that portion of the Appellate Division order denying reconsideration of the application for reinstatement, dismissed, without costs, upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal, insofar as taken from that portion of the Appellate Division order denying reconsideration of the application for reinstatement, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for a stay and other relief dismissed as academic.

RALPH MASSARO et al., Appellants, v JAINA NETWORK SYSTEMS, INC., et al., Respondents.

Submitted June 24, 2013; decided September 10, 2013

Reported below, 106 AD3d 701.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MICHAEL S. PASCAZI, Appellant, v COLLEEN C. GARDNER, as Commissioner of Labor, Respondent.

Decided September 10, 2013

Reported below, 106 AD3d 1143.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v OLIVIERIO GALINDO, Appellant.

Submitted May 28, 2013; decided September 10, 2013

Reported below, 101 AD3d 408.

Motion to dismiss appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIGUEL MEJIAS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTONIO RODRIGUEZ, Appellant.

Submitted June 10, 2013; decided September 10, 2013

Reported below, 86 AD3d 429.

Motion for reargument denied [*see* 21 NY3d 73 (2013)].

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. KEITH TODD, Appellant, v SANDRA DOLCE, Respondent.

Submitted July 22, 2013; decided September 10, 2013

Reported below, 2013 NY Slip Op 72161(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

EUGENE TENENBAUM, Appellant, v STATE COMMISSIONER OF HOUSING AND COMMUNITY RENEWAL, Respondent.

Decided September 10, 2013

Reported below, 2009 NY Slip Op 72962(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie (*see* CPLR 5601).

SAMUEL TOMAINO, Appellant, v THOMAS MAROTTA, JR., Respondent.

Submitted July 29, 2013; decided September 10, 2013

Reported below, 106 AD3d 1527.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 65 AD3d 434 [2009], *lv dismissed* 14 NY3d 748 [2010]).

WARSHAW BURSTEIN COHEN SCHLESINGER & KUH, LLP, Respondent, v ERIC A. LONGMIRE, Appellant.

Submitted July 1, 2013; decided September 10, 2013

Reported below, 106 AD3d 536.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge RIVERA taking no part.

WELLS FARGO BANK, N.A., as Trustee under POOLING AND SERVICING AGREEMENT DATED AS OF AUGUST 1, 2005 ASSET-BACKED PASS-THROUGH CERTIFICATES SERIES 2005-WHQ4, Respondent, v OSWALD RUSSELL, Appellant, et al., Defendants.

Submitted February 25, 2013; decided September 10, 2013

Reported below, 101 AD3d 860.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

[996 NE2d 910, 974 NYS2d 29]

HIDEKI SATO et al., Appellants, v IPPUDO NY et al., Respondents.

Decided September 12, 2013

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 7, 2013. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, New York County (Saliann Scarpulla, J.; op 2012 NY Slip Op 31290[U] [2012]), which had denied defendants' motion for summary judgment dismissing the complaint, (2) granted the motion, and (3) dismissed the complaint.

Plaintiff Hideki Sato was injured when he fell down a flight of stairs that led to the restroom area in defendants' restaurant.

Sato testified that his left heel hit the top step whereupon he lost consciousness and when he regained consciousness he found himself lying at the bottom of the staircase. The Appellate Division concluded that on the basis of Sato's testimony, none of the stairway's alleged structural or design defects could have been a proximate cause of the accident, and that the deposition of the restaurant's general manager was unrefuted insofar as it established adequate warning as a matter of law. Accordingly, the Appellate Division found that defendants established, *prima facie*, that the staircase was neither inherently dangerous nor constituted a hidden trap, and plaintiff's mere assertion that he did not see any signs was insufficient to raise an issue of fact as to their adequacy.

Sato v Ippudo NY, 104 AD3d 423, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Fall Down Staircase

In an action arising out of plaintiff's fall down a restaurant staircase, the Appellate Division properly granted defendants' motion for summary judgment since plaintiff failed to raise a triable issue of fact concerning whether defendants' alleged negligence in failing to provide adequate warning of the presence of the staircase or adequate lighting in the staircase and surrounding area caused his fall.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* of counsel), for appellants.

Molod Spitz & DeSantis, P.C., New York City (*Marcy Sonneborn* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. Plaintiff failed to raise a triable issue of fact concerning whether defendants' alleged negligence in failing to provide adequate warning of the presence of the staircase or adequate lighting in the staircase and surrounding area caused his fall.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

BRADFORD APPELEGATE, Appellant, v STATE OF NEW YORK, Respondent.

Decided September 12, 2013

Reported below, 2013 NY Slip Op 71546(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BARBARA N., Appellant. ROBERT DOAR, Respondent.

Submitted July 8, 2013; decided September 12, 2013

Reported below, 104 AD3d 948.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 5514 [c]).

In the Matter of the Claim of SHARON K. BLAND, Appellant, v GELLMAN, BRYDGES & SCHROFF et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent. (And Another Proceeding.)

Submitted April 1, 2013; decided September 12, 2013

Reported below, 100 AD3d 1289.

Motion for reargument of motion for leave to appeal denied [*see* 20 NY3d 1055 (2013)].

Judge ABDUS-SALAAM taking no part.

MICHAEL BUXBAUM, Appellant, v NADINE CASTRO, Respondent.

Decided September 12, 2013

Reported below, 104 AD3d 895.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF
SULLIVAN, Respondent. WITOLD MATEJKOWSKI, Appellant.

Decided September 12, 2013

Reported below, 105 AD3d 1170.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JAMES HOLMES, Respondent, v JANA WINTER,
Appellant.

Submitted September 9, 2013; decided September 12, 2013

Reported below, 110 AD3d 134.

Motion by Reporters Committee for the Freedom of the Press et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

MATTHEW ISABELLA et al., Plaintiffs, and DORIS A. HALLOCK et al., Third-Party Plaintiff-Respondents, v MICHAEL W. KOUBEK, Third-Party Defendant-Appellant.

Decided September 12, 2013

See 733 F3d 384.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

NOREX PETROLEUM LIMITED, Appellant, v LEONARD BLAVATNIK et al., Respondents.

Submitted June 17, 2013; decided September 12, 2013

Reported below, 105 AD3d 659.

Motion by Thomas D. Rowe, Jr., et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

NOREX PETROLEUM LIMITED, Appellant, v LEONARD BLAVATNIK et al., Respondents.

Submitted June 24, 2013; decided September 12, 2013

Reported below, 105 AD3d 659.

Motion by Jonathan R. Siegel for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TERRELL ALLEN, Appellant.

Submitted September 9, 2013; decided September 12, 2013

Reported below, 105 AD3d 754.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARK GARRETT, Respondent.

Submitted September 9, 2013; decided September 12, 2013

Reported below, 106 AD3d 929.

Motion for assignment of counsel granted and Steven A. Feldman, Esq., 626 Reckson Plaza, West Tower, 6th Floor, Uniondale, New York 11556 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT GILES, Appellant.

Submitted September 3, 2013; decided September 12, 2013

Reported below, 95 AD3d 670.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HOWARD GRUBSTEIN, Appellant.

Submitted September 3, 2013; decided September 12, 2013

Reported below, 37 Misc 3d 142(A).

Motion for assignment of counsel granted and Richard L. Herzfeld, Esq., 104 West 40th Street, 20th Floor, New York, NY 10018 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTIN HEIDGEN, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANKLIN MCPHERSON, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TALIAH TAYLOR, Appellant.

Submitted September 9, 2013; decided September 12, 2013

Reported below, *People v Heidgen*, 87 AD3d 1035; *People v McPherson*, 89 AD3d 752; *People v Taylor*, 98 AD3d 593.

Motion by District Attorneys Association of the State of New York for leave to appear amicus curiae on the appeals herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BENJAMIN JENKINS, Appellant.

Submitted September 3, 2013; decided September 12, 2013

Reported below, 100 AD3d 924.

Motion for assignment of counsel granted and Steven Banks, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAUL JOHNSON, Appellant.

Submitted September 9, 2013; decided September 12, 2013

Reported below, 100 AD3d 777.

Motion for assignment of counsel granted and James D. Licata, Esq., Rockland County Public Defender, 11 New Hempstead Road, New City, New York 10956 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE MALDONADO, Appellant.

Submitted August 26, 2013; decided September 12, 2013

Reported below, 100 AD3d 657.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v MARK RUSSELL, Respondent.

Submitted August 12, 2013; decided September 12, 2013

Reported below, 99 AD3d 211.

Motion to vacate this Court's July 19, 2013 dismissal order granted [*see* 21 NY3d 1012 (2013)].

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SIDNEY WISDOM, Respondent.

Submitted March 11, 2013; decided September 12, 2013

Reported below, 98 AD3d 241.

Motion to require appellant to provide respondent's counsel with material granted to the extent that appellant is required to provide respondent's counsel with copies of the DVD recordings of the videotaped statements and the related excerpt from the transcript (minutes of Apr. 19, 1996 at 7, lines 3-8).

ROCKY POINT DRIVE-IN, L.P., Appellant, v TOWN OF BROOKHAVEN
et al., Respondents.

Submitted September 9, 2013; decided September 12, 2013

Reported below, 93 AD3d 653.

Motion by Association of Towns of the State of New York for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and nine copies filed within seven days.

In the Matter of SAMUEL A. GARRASI AND MARY H. GARRASI FAMILY REVOCABLE TRUST. G. ROBERT GARRASI, as Cotrustee of the SAMUEL A. GARRASI AND MARY H. GARRASI FAMILY REVOCABLE TRUST, Appellant, et al., Respondent; SALLIE HUME GARRASI, Respondent.

Submitted July 15, 2013; decided September 12, 2013

Reported below, 104 AD3d 990.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TOWN OF MONTAUK, Appellant, v LORRAINE CORTEZ-VASQUEZ, as Secretary of State of the State of New York, with Control of, and Responsibility for, the Division of Corporations of the Department of State, Respondent.

Decided September 12, 2013

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Third Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]).

TRAHWEN, LLC, Respondent, v MING 99 CENT CITY #7, INC., Doing Business as 99 CENT CITY, et al., Appellants.

Submitted August 5, 2013; decided September 12, 2013

Reported below, 106 AD3d 1467.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RHONDA WITTORF, Appellant, v CITY OF NEW YORK, Respondent.

Submitted September 3, 2013; decided September 12, 2013

Reported below, 104 AD3d 584.

Motion by New York State Trial Lawyers Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

[997 NE2d 139, 974 NYS2d 314]

In the Matter of ROBERT E. ALEXANDER.

Decided September 17, 2013

SUMMARY

CONSIDERATION, by the Court of Appeals, of whether the suspension of Honorable Robert E. Alexander from the office of Justice of the Pembroke Town Court, Genesee County, should be continued.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals continued the suspension, with pay, of a Town Court Justice from office.

OPINION OF THE COURT

On consideration of the continuation of this Court's August 22, 2013 suspension of Honorable Robert E. Alexander from the office of Justice of the Pembroke Town Court, Genesee County, it is ordered that the suspension is continued, with pay, effective immediately (*see* 21 NY3d 1021 [2013]).

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

In the Matter of ANNETTE J.S.J. ADMINISTRATION FOR CHILDREN'S SERVICES et al., Respondents; REBECCA F., Appellant. (Proceeding No. 1.)

In the Matter of SABRINA R.M.I. ADMINISTRATION FOR CHILDREN'S SERVICES et al., Respondents; REBECCA F., Appellant. (Proceeding No. 2.)

Submitted July 29, 2013; decided September 17, 2013

Reported below, 106 AD3d 1087.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

OLGA CARO, Appellant, v MARSH USA, INC., et al., Respondents.

Submitted June 24, 2013; decided September 17, 2013

Reported below, 101 AD3d 1068.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from so much of the Supreme Court order as directed that the video recording of all future depositions be at appellant's attorney's expense, dismissed upon the ground that as to that part of the Appellate Division order, appellant is not a party aggrieved; motion for leave to appeal otherwise dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEUTSCHE BANK NATIONAL TRUST COMPANY, Respondent, v DEMETRES SPANOS et al., Defendants, and ISADORA SIDROULA SPANOS, Appellant.

Submitted August 12, 2013; decided September 17, 2013

Reported below, 102 AD3d 909.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE GOLDMAN SACHS GROUP, INC., et al., Respondents, v ALMAH LLC, Appellant.

Submitted July 15, 2013; decided September 17, 2013

Reported below, 107 AD3d 448.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

Judge ABDUS-SALAAM taking no part.

MELANIE KELLEY, Individually and as Administrator of the Estate of ALEX DUSTIN SMITH, Deceased, et al., Appellants, v RICHARD SCHNECK, Doing Business as SCHNECK SERVICE & INSTALLATION AND/OR SCHNECK APPLIANCE SERVICE, Respondent.

Submitted June 24, 2013; decided September 17, 2013

Reported below, 106 AD3d 1175.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MADISON REALTY CAPITAL, L.P., Respondent, v BROKEN ANGEL, LLC, et al., Defendants, and ARTHUR N. WOOD, Appellant.
ARTHUR N. WOOD, Appellant, v MADISON REALTY CAPITAL, L.P., Respondent.

Submitted June 24, 2013; decided September 17, 2013

Reported below, 2013 NY Slip Op 74028(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

ALEKSANDR PALATKEVICH, Respondent, v STANACARD, LLC, Appellant.

Decided September 17, 2013

Reported below, 105 AD3d 496.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge ABDUS-SALAAM taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEAN CANTAVE, Appellant.

Submitted August 12, 2013; decided September 17, 2013

Reported below, 93 AD3d 677.

Motion to clarify opinion denied [*see* 21 NY3d 374 (2013)].

QUAKER HILLS, LLC, Respondent, v PACIFIC INDEMNITY Co., Appellant.

Decided September 17, 2013

See 728 F3d 171.

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges GRAFFEO, READ, SMITH, PIGOTT, RIVERA and ABDUS-SALAAM.

TRUMP SECURITIES, LLC, et al., Respondents, v PUROLITE COMPANY et al., Appellants, et al., Defendant.

Submitted July 15, 2013; decided September 17, 2013

Reported below, 98 AD3d 904.

Motion for reargument granted and, upon reargument, motion for leave to appeal denied [*see* 21 NY3d 987 (2013)].

Judge ABDUS-SALAAM taking no part.

UNION SQUARE PARK COMMUNITY COALITION, INC., et al., Appellants, v NEW YORK CITY DEPARTMENT OF PARKS AND RECREATION et al., Respondents.

Submitted August 12, 2013; decided September 17, 2013

Reported below, 107 AD3d 525.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied appellants' motion for a preliminary injunction, dismissed upon the ground that such portion of the order does not finally determine the action

within the meaning of the Constitution; motion for leave to appeal otherwise granted.

U.S. BANK NATIONAL ASSOCIATION, Appellant, v LISA ANN PIA et al., Respondents. (And a Third-Party Action.)

Submitted July 15, 2013; decided September 17, 2013

Reported below, 106 AD3d 991.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ARTUR ZAYTSEV, Respondent, v STANACARD, LLC, Appellant.

Decided September 17, 2013

Reported below, 105 AD3d 497.

Appeal, insofar as taken from that part of the Appellate Division order that affirmed Supreme Court's order denying summary judgment, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from that part of the Appellate Division order that affirmed Supreme Court's order granting respondent's application to voluntarily discontinue the action without prejudice, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Judge ABDUS-SALAAM taking no part.

APPEALS WITHDRAWN AND DISCONTINUED

(September 1, 2013 through September 30, 2013)

Navillus Tile, Inc., Matter of, v LC Main, LLC	2d Dept: 98 AD3d 979	9/27/13
People v Arena	4th Dept: 106 AD3d 1445	9/23/13

25 Ave. C New Realty, LLC v
Alea N. Am. Ins. Co.

1st Dept: 96 AD3d 489

9/17/13

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(September 1, 2013 through September 30, 2013)

People v Almestica	2d Dept: 97 AD3d 834 (Westchester)	denied 9/30/13 (Grafteo, J.)
People v Bacote	1st Dept: 107 AD3d 641 (NY)	denied 9/24/13 (Smith, J.)
People v Barnes	App Div, 1st Dept: 2013 NY Slip Op 78562(U) (NY)	denied 9/30/13 (Grafteo, J.)
People v Barnett	2d Dept: 108 AD3d 638 (Queens)	denied 9/19/13 (Rivera, J.)
People v Bates	3d Dept: 83 AD3d 1110 (Franklin)	denied 9/20/13 (Smith, J.)
People v Bernadotte	2d Dept: 107 AD3d 1012 (Kings)	denied 9/17/13 (Lippman, Ch. J.)
People v Beverly	2d Dept: 108 AD3d 678 (Suffolk)	denied 9/17/13 (Lippman, Ch. J.)
People v Blue	1st Dept: 107 AD3d 443 (NY)	denied 9/24/13 (Pigott, J.)
People v Bouton	3d Dept: 107 AD3d 1035 (Broome)	denied 9/19/13 (Rivera, J.)
People v Brock	3d Dept: 107 AD3d 1025 (Chemung)	denied 9/18/13 (Smith, J.)
People v Butler	4th Dept: 105 AD3d 1408 (Genesee)	denied 9/19/13 (Rivera, J.)
People v Cahill	4th Dept: 107 AD3d 1502 (Onondaga)	denied 9/19/13 (Rivera, J.)
People v Calaff	1st Dept: 103 AD3d 500 (NY)	granted 9/6/13 (Grafteo, J.)
People v Card	2d Dept: 107 AD3d 820 (Kings)	denied 9/18/13 (Smith, J.)
People v Certain	2d Dept: 108 AD3d 681 (Suffolk)	denied 9/24/13 (Smith, J.)
People v Clark	2d Dept: 100 AD3d 1013 (Orange)	denied reconsideration 9/17/13 (Lippman, Ch. J.)
People v Clyde	4th Dept: 107 AD3d 1642 (Cayuga)	denied 9/10/13 (Lippman, Ch. J.)
People v Colletta	2d Dept: 106 AD3d 927 (Queens)	denied 9/19/13 (Smith, J.)
People v Collins	4th Dept: 106 AD3d 1544 (Onondaga)	denied 9/12/13 (Read, J.)
People v Colon	App Div, 1st Dept: 2013 NY Slip Op 76012(U) (NY)	denied 9/17/13 (Read, J.)

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People v Cook	4th Dept: 108 AD3d 1107 (Monroe)	denied 9/27/13 (Smith, J.)
People v Corrica	2d Dept: 107 AD3d 1014 (Kings)	denied 9/30/13 (Grafteo, J.)
People v Cotton	4th Dept: 107 AD3d 1646 (Monroe)	denied 9/20/13 (Rivera, J.)
People v Cuddy	2d Dept: 108 AD3d 776 (Suffolk)	denied 9/19/13 (Rivera, J.)
People v Davenport	3d Dept: 106 AD3d 1197 (Rensselaer)	denied 9/19/13 (Rivera, J.)
People v Davis (Mark)	4th Dept: 106 AD3d 1510 (Oswego)	denied 9/12/13 (Read, J.)
People v Davis (Terrell)	1st Dept: 106 AD3d 144 (NY)	denied 9/13/13 (Read, J.)
People v De Sales	2d Dept: 108 AD3d 776 (Suffolk)	denied 9/19/13 (Rivera, J.)
People v Dixon	2d Dept: 107 AD3d 735 (Kings)	denied 9/10/13 (Lippman, Ch. J.)
People v Dyer	County Ct, 6/25/13 (Genesee)	denied 9/25/13 (Pigott, J.)
People v Eagle	4th Dept: 105 AD3d 1453 (Monroe)	denied 9/19/13 (Rivera, J.)
People v Eaglesgrave	1st Dept: 108 AD3d 434 (NY)	denied 9/24/13 (Smith, J.)
People v Ellison	4th Dept: 107 AD3d 1580 (Monroe)	denied 9/18/13 (Rivera, J.)
People v Epps	1st Dept: 105 AD3d 577 (NY)	denied 9/19/13 (Rivera, J.)
People v Faeth	4th Dept: 107 AD3d 1426 (Wayne)	denied 9/12/13 (Lippman, Ch. J.)
People v Farley	3d Dept: 107 AD3d 1295 (Essex)	denied 9/27/13 (Smith, J.)
People v Fauntleroy	3d Dept: 108 AD3d 885 (Albany)	denied 9/19/13 (Rivera, J.)
People v Fomby	4th Dept: 103 AD3d 1100 (Erie)	denied 9/19/13 (Rivera, J.)
People v Fraser	2d Dept: 105 AD3d 974 (Suffolk)	denied 9/19/13 (Rivera, J.)
People v Freeman	1st Dept: 106 AD3d 590 (NY)	denied 9/17/13 (Read, J.)
People v Fuentes	2d Dept: 107 AD3d 1015 (Suffolk)	denied 9/11/13 (Lippman, Ch. J.)
People v Garcia	App Div, 2d Dept: 2013 NY Slip Op 79692(U) (Kings)	dismissed 9/13/13 (Read, J.)
People v Gathers	3d Dept: 106 AD3d 1333 (Broome)	denied 9/13/13 (Read, J.)
People v Gilliam	App Term, 1st Dept: 39 Misc 3d 143(A) (NY)	denied 9/13/13 (Read, J.)
People v Gomez	1st Dept: 107 AD3d 411 (NY)	denied 9/20/13 (Rivera, J.)

People v Gonzalez	1st Dept: 107 AD3d 612 (NY)	denied 9/30/13 (Grafteo, J.)
People v Gordon	2d Dept: 107 AD3d 739 (Westchester)	denied 9/24/13 (Read, J.)
People v Goree	4th Dept: 107 AD3d 1568 (Erie)	denied 9/30/13 (Grafteo, J.)
People v Gowdy	App Term, 1st Dept: 38 Misc 3d 143(A) (NY)	denied reconsideration 9/13/13 (Read, J.)
People v Gray	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 131(A) (Kings)	denied 9/27/13 (Smith, J.)
People v Green (Avery)	2d Dept: 104 AD3d 874 (Dutchess)	denied 9/24/13 (Pigott, J.)
People v Green (Marcus)	3d Dept: 108 AD3d 782 (Albany)	denied 9/20/13 (Rivera, J.)
People v Griggs	4th Dept: 108 AD3d 1062 (Erie)	denied 9/20/13 (Rivera, J.)
People v Groat	County Ct, 4/9/13 (Delaware)	denied 9/28/13 (Rivera, J.)
People v Gutierrez	2d Dept: 100 AD3d 656 (Queens)	denied reconsideration 9/17/13 (Lippman, Ch. J.)
People v Gwynn	4th Dept: 107 AD3d 1469 (Erie)	denied 9/13/13 (Read, J.)
People v Hanely	2d Dept: 107 AD3d 917 (Queens)	denied 9/13/13 (Read, J.)
People v Harris	4th Dept: 107 AD3d 1646 (Erie)	denied 9/24/13 (Lippman, Ch. J.)
People v Hatcher	App Div, 2d Dept: 2013 NY Slip Op 81134(U) (Kings)	dismissed 9/26/13 (Lippman, Ch. J.)
People v Heck	4th Dept: 103 AD3d 1140 (Erie)	denied 9/27/13 (Smith, J.)
People v Hernandez	1st Dept: 107 AD3d 634 (NY)	denied 9/24/13 (Pigott, J.)
People v Highsmith	4th Dept: 107 AD3d 1501 (Erie)	denied 9/19/13 (Smith, J.)
People v Horton	County Ct, 1/30/13 (Wayne)	granted 9/17/13 (Smith, J.)
People v Hudson	2d Dept: 108 AD3d 778 (Kings)	denied 9/30/13 (Grafteo, J.)
People v Hueber	4th Dept: 107 AD3d 1561 (Niagara)	denied 9/27/13 (Smith, J.)
People v Hussain	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 40 Misc 3d 132(A) (Kings)	denied 9/17/13 (Lippman, Ch. J.)
People v Isasi	App Div, 2d Dept: 2011 NY Slip Op 77975(U) (Queens)	denied reconsideration 9/26/13 (Lippman, Ch. J.)
People v Izzo	3d Dept: 108 AD3d 944 (Chemung)	denied 9/27/13 (Smith, J.)

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People v Jackson (Barone)	1st Dept: 107 AD3d 551 (Bronx)	denied 9/30/13 (Grafteo, J.)
People v Jackson (Barron)	1st Dept: 107 AD3d 551 (Bronx)	denied 9/30/13 (Grafteo, J.)
People v Jiggetts	2d Dept: 108 AD3d 641 (Kings)	denied 9/20/13 (Rivera, J.)
People v Johnson (Andrea)	3d Dept: 107 AD3d 1161 (Schenectady)	denied 9/24/13 (Pigott, J.)
People v Johnson (Stephen)	App Div, 2d Dept: 2013 NY Slip Op 84424(U) (Queens)	dismissed 9/28/13 (Rivera, J.)
People v Jones	4th Dept: 107 AD3d 1589 (Onondaga)	denied 9/11/13 (Lippman, Ch. J.)
People v Kenyon	3d Dept: 108 AD3d 933 (Broome)	denied 9/25/13 (Pigott, J.)
People v Khan	2d Dept: 104 AD3d 875 (Queens)	denied reconsideration 9/18/13 (Read, J.)
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People v Larrabee	4th Dept: 107 AD3d 1575 (Oneida)	denied 9/19/13 (Smith, J.)
People v Laster (Keith)	4th Dept: 107 AD3d 1646 (Monroe)	denied 9/25/13 (Pigott, J.) (Appeal No. 1)
People v Laster (Keith)	4th Dept: 107 AD3d 1646 (Monroe)	denied 9/25/13 (Pigott, J.) (Appeal No. 2)
People v Lynes	1st Dept: 106 AD3d 433 (NY)	denied 9/13/13 (Read, J.)
People v Mac	3d Dept: 106 AD3d 1336 (Albany)	denied 9/13/13 (Read, J.)
People v Manning	2d Dept: 108 AD3d 642 (Kings)	denied 9/30/13 (Pigott, J.)
People v Marhone	2d Dept: 107 AD3d 743 (Queens)	denied 9/13/13 (Read, J.)
People v Maxwell	4th Dept: 107 AD3d 1502 (Erie)	denied 9/17/13 (Read, J.)
People v McCall	3d Dept: 106 AD3d 1336 (Albany)	denied 9/13/13 (Read, J.)
People v McFarlane	App Div, 2d Dept: 2013 NY Slip Op 78199(U) (Queens)	dismissed 9/19/13 (Smith, J.)
People v Miller (Jeffrey)	2d Dept: 105 AD3d 774 (Kings)	denied 9/28/13 (Rivera, J.)
People v Miller (Oscar)	1st Dept: 107 AD3d 406 (NY)	denied 9/10/13 (Lippman, Ch. J.)
People v Morris	4th Dept: 101 AD3d 1631 (Erie)	denied reconsideration 9/18/13 (Read, J.)
People v Motzer	4th Dept: 107 AD3d 1450 (Wyoming)	denied 9/17/13 (Read, J.)

People v Nash	App Div, 2d Dept: 2013 NY Slip Op 80596(U) (Westchester)	dismissed 9/13/13 (Read, J.)
People v Nettles	1st Dept: 103 AD3d 507 (NY)	denied 9/20/13 (Rivera, J.)
People v Newsom	2d Dept: 107 AD3d 918 (Suffolk)	denied 9/24/13 (Pigott, J.)
People v O'Harrow (William)	4th Dept: 107 AD3d 1601 (Niagara)	denied 9/13/13 (Read, J.)
People v O'Harrow (William)	4th Dept: 107 AD3d 1602 (Niagara)	denied 9/13/13 (Read, J.)
People v Oquendo	App Term, 1st Dept: 39 Misc 3d 70 (NY)	denied 9/12/13 (Read, J.)
People v Parker	2d Dept: 107 AD3d 1017 (Kings)	denied 9/30/13 (Grafteo, J.)
People v Paulk (Martin)	4th Dept: 107 AD3d 1413 (Onondaga)	denied 9/24/13 (Pigott, J.)
People v Paulk (Martin)	4th Dept: 107 AD3d 1416 (Onondaga)	denied 9/24/13 (Pigott, J.)
People v Perez	4th Dept: 107 AD3d 1502 (Monroe)	denied 9/19/13 (Smith, J.)
People v Perkins	3d Dept: 107 AD3d 1157 (Rensselaer)	denied 9/17/13 (Lippman, Ch. J.)
People v Phillip	App Div, 2d Dept: 2013 NY Slip Op 73529(U) (Queens)	denied 9/30/13 (Pigott, J.)
People v Pimentel	3d Dept: 108 AD3d 861 (Ulster)	denied 9/30/13 (Grafteo, J.)
People v Porterfield	4th Dept: 107 AD3d 1478 (Erie)	denied 9/17/13 (Read, J.)
People v Pulley	4th Dept: 107 AD3d 1560 (Onondaga)	denied 9/13/13 (Read, J.)
People v Pyatt	County Ct, 4/17/13 (Genesee)	denied 9/13/13 (Read, J.)
People v Rice	4th Dept: 105 AD3d 1443 (Monroe)	denied 9/17/13 (Read, J.)
People v Robinson	2d Dept: 108 AD3d 776 (Suffolk)	denied 9/19/13 (Rivera, J.)
People v Rodriguez (Lorenzo)	4th Dept: 106 AD3d 1444 (Erie)	denied 9/17/13 (Read, J.)
People v Rodriguez (Roberto)	App Div, 1st Dept: 2013 NY Slip Op 69182(U) (NY)	denied 9/28/13 (Rivera, J.)
People v Rogers	2d Dept: 108 AD3d 683 (Queens)	denied 9/20/13 (Smith, J.)
People v Rojas	2d Dept: 108 AD3d 576 (Kings)	denied 9/17/13 (Lippman, Ch. J.)
People v Rorick	3d Dept: 107 AD3d 1159 (Broome)	denied 9/25/13 (Grafteo, J.)
People v Saint Angel	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 149(A) (Dutchess)	denied 9/18/13 (Smith, J.)
People v Salters	1st Dept: 107 AD3d 599 (NY)	denied 9/17/13 (Read, J.)

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People v Sardella	App Term, 2d Dept, 9th & 10th Jud Dists: 39 Misc 3d 150(A) (Suffolk)	denied 9/17/13 (Read, J.)
People v Scott	4th Dept: 107 AD3d 1635 (Erie)	denied 9/30/13 (Pigott, J.)
People v Seye	App Term, 1st Dept: 40 Misc 3d 127(A) (NY)	denied 9/30/13 (Pigott, J.)
People v Sheehan	2d Dept: 106 AD3d 1112 (Queens)	denied 9/13/13 (Read, J.)
People v Shoker	2d Dept: 107 AD3d 1020 (Queens)	denied 9/30/13 (Grafteo, J.)
People v Sigl	4th Dept: 107 AD3d 1585 (Monroe)	denied 9/25/13 (Pigott, J.)
People v Siler	3d Dept: 107 AD3d 1242 (Rensselaer)	denied 9/30/13 (Grafteo, J.)
People v Singleton	2d Dept: 107 AD3d 1021 (Suffolk)	denied 9/19/13 (Smith, J.)
People v Smith	4th Dept: 108 AD3d 1075 (Onondaga)	denied 9/30/13 (Grafteo, J.)
People v South	2d Dept: 106 AD3d 1117 (Westchester)	denied 9/11/13 (Lippman, Ch. J.)
People v Spears	4th Dept: 106 AD3d 1534 (Monroe)	granted 9/23/13 (Pigott, J.)
People v Stauder	4th Dept: 108 AD3d 1219 (Niagara)	denied 9/30/13 (Grafteo, J.)
People v Stephens	1st Dept: 108 AD3d 414 (NY)	denied 9/20/13 (Smith, J.)
People v Stranton	2d Dept: 106 AD3d 1117 (Richmond)	denied 9/17/13 (Read, J.)
People v Sumpsster	4th Dept: 107 AD3d 1635 (Erie)	denied 9/30/13 (Pigott, J.)
People v Swift	4th Dept: 108 AD3d 1060 (Cayuga)	denied 9/25/13 (Pigott, J.)
People v Todd	2d Dept: 108 AD3d 684 (Suffolk)	denied 9/30/13 (Grafteo, J.)
People v Toliver (Michael)	1st Dept: 102 AD3d 411 (NY)	denied reconsideration 9/9/13 (Lippman, Ch. J.)
People v Toliver (Samuel)	4th Dept: 107 AD3d 1646 (Erie)	denied 9/24/13 (Smith, J.)
People v Twoguns	4th Dept: 108 AD3d 1091 (Erie)	denied 9/30/13 (Grafteo, J.)
People v Vaquero	2d Dept: 107 AD3d 830 (Queens)	denied 9/24/13 (Pigott, J.)
People v Vataj	1st Dept: 107 AD3d 610 (NY)	denied 9/24/13 (Pigott, J.)
People v Vega	1st Dept: 105 AD3d 582 (NY)	denied 9/12/13 (Read, J.)
People v Wadiak	1st Dept: 105 AD3d 572 (NY)	denied 9/28/13 (Rivera, J.)

People v Walker	App Div, 2d Dept: 2013 NY Slip Op 77211(U) (Queens)	dismissed 9/25/13 (Grafteo, J.)
People v Wallace	2d Dept: 106 AD3d 1034 (Suffolk)	denied 9/13/13 (Read, J.)
People v Ward	4th Dept: 107 AD3d 1605 (Oswego)	denied 9/19/13 (Smith, J.)
People v Weakfall	4th Dept: 108 AD3d 1115 (Onondaga)	denied 9/30/13 (Pigott, J.)
People v Weather (Vinnie)	4th Dept: 106 AD3d 1518 (Oneida)	denied 9/12/13 (Read, J.)
People v Weather (Vinnie)	4th Dept: 106 AD3d 1521 (Oneida)	denied 9/12/13 (Read, J.)
People v Weichert	County Ct, 6/5/13 (Onondaga)	denied 9/30/13 (Pigott, J.)
People v Wheeler	2d Dept: 108 AD3d 646 (Queens)	denied 9/24/13 (Smith, J.)
People v Wiggins	2d Dept: 107 AD3d 919 (Suffolk)	denied 9/17/13 (Read, J.)
People v Williams	App Div, 4th Dept, 7/8/13 (Monroe)	dismissed 9/25/13 (Grafteo, J.)
People v Wilson	4th Dept: 104 AD3d 1231 (Erie)	denied reconsideration 9/13/13 (Read, J.)
People v Wright	4th Dept: 105 AD3d 1466 (Wayne)	denied 9/17/13 (Read, J.)
People v Youngblood	3d Dept: 107 AD3d 1159 (St. Lawrence)	denied 9/10/13 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(September 1, 2013 through September 30, 2013)

People v Coleman	3d Dept: 110 AD3d 76 (Sullivan)	granted 9/17/13 (Stein, J.)
People v McLean	3d Dept: 109 AD3d 670 (Schenectady)	granted 9/18/13 (McCarthy, J.)

* Includes only applications that were granted.

DIGEST-INDEX

ABUSE OF PROCESS.

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ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

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See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

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ANIMALS.

LIABILITY FOR INJURIES.

1. Domestic Animal — Horse Jerking Head Back — No Showing of Vicious Propensities.—In a personal injury action in which plaintiff was injured when he was holding the halter of defendant's horse and the horse jerked its head back in reaction to an attempt by defendant to put a lead line on it, Supreme Court properly granted defendant's motion dismissing the complaint. Plaintiff could not recover in the absence of a showing that defendant had knowledge of the animal's "vicious propensity" or propensity to do any act that might endanger the safety of the persons or property of others, and no such showing was made by plaintiff. A tendency to shy away when a person reaches for a horse's throat or face is a trait typical of horses, and a vicious propensity cannot consist of behavior that is normal or typical for the particular type of animal in question. *Bloomer v Shauger*, 21 NY3d 917.

ROAMING ON HIGHWAY.

2. Negligently Permitting Cow to Stray from Property.—A landowner or the owner of an animal may be liable under ordinary tort-law principles when a farm animal, i.e., a domestic animal as that term is defined in Agriculture and Markets Law § 108 (7), is negligently allowed to stray from the property on which the animal is kept. Therefore, in an action to recover damages for personal injuries plaintiff sustained when the van she was driving hit a cow on a public road, summary judgment should not have been granted to defendants, the owners of the cow and owner of the property on which the animal was kept, where there was evidence that would support a finding that any or all of the defendants were negligent in allowing the cow to enter the roadway. The rule of *Bard v Jahnke* (6 NY3d 592 [2006]), that when harm is caused by a domestic animal, its owner's liability is determined solely by the vicious propensity rule, did not bar plaintiff's action since it did not involve aggressive or threatening behavior by an animal. To apply the rule of *Bard* in a case like this would be to immunize defendants who take little or no care to keep their livestock out of the roadway or off of other people's property. *Hastings v Sauve*, 21 NY3d 122.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. In an appeal from an order permitting medical personnel to insert a nasogastric tube and take other reasonable steps necessary to provide hydration and nutrition to respondent inmate, who was on a hunger strike, the Appellate Division did not err in applying the mootness exception to respondent's claim that the force-feeding order violated his constitutional right to refuse medical treatment. Although respondent resumed eating solid food after the order was issued, the issue of a hunger-striking inmate's constitutional right to refuse medical treatment fell within the exception to the mootness rule since it was novel, likely to recur and, given the exigencies involved in addressing a hunger strike, would typically evade review. *Matter of Bezio v Dorsey*, 21 NY3d 93.

2. Dismissal of Proceeding.—In a proceeding to review a determination denying petitioner's application for a certificate of need for its ambulance service, an order of the Appellate Division, which had reversed a judgment dismissing the petition, annulled the determination and granted the petition to that extent, was reversed, and the proceeding remitted to Supreme Court with directions to dismiss the proceeding solely on the ground of mootness. *Matter of City of Utica v Daines*, 21 NY3d 878.

MATTERS REVIEWABLE.

3. Mixed Question of Law and Fact.—In a criminal prosecution where the Appellate Division affirmed Supreme Court's grant of defendant's motion to suppress evidence, there was record support for the Appellate Division's determination as to whether defendant had consented to a search and that mixed question of law and fact was beyond further review at the Court of Appeals. *People v McFarlane*, 21 NY3d 1034.

PRESERVATION OF ISSUE FOR REVIEW.

4. In a proceeding requesting a court order permitting medical personnel to insert a nasogastric tube and take other reasonable steps necessary to provide hydration and nutrition to respondent inmate, who was on a hunger strike, respondent's claim that the force-feeding order violated his constitutional right to refuse medical treatment was preserved for review. Although respondent did not reference the Due Process Clause or articulate his constitutional objections in the hearing court with the specificity and clarity that he did in the Appellate Division or in the Court of Appeals, that was a consequence of the fact that respondent addressed several arguments pro se, having been assigned counsel only shortly before the hearing, which was conducted expeditiously out of concern for preservation of his health. Respondent did argue that "putting a tube in my nose, that's cruel and unusual punishment," and it was evident that he viewed the insertion of a nasogastric feeding tube as an unconstitutional invasion of his bodily integrity. *Matter of Bezio v Dorsey*, 21 NY3d 93.

5. In a civil suit brought by the Attorney General based on allegations that defendants, the former chief executive officer and chief financial officer of American International Group, Inc., violated Executive Law § 63 (12) and the Martin Act (General Business Law art 23-A) and committed common-law fraud, the Attorney General sufficiently preserved its argument that a basis exists for granting equitable relief, including a ban on defendants' participation in the securities industry and a ban on defendants' serving as officers or directors of a public company. The Attorney General specifically disputed in Supreme Court defendants' assertion that the claim for equitable relief was barred by a settlement in the litigation brought by the Securities and Exchange Commission. It was irrelevant to the preservation issue whether the argument was made in the Appellate Division. *People v Greenberg*, 21 NY3d 439.

APPEAL—Cont'd

6. Jury Challenge — Theory of Liability.—In a medical malpractice action, defendants' challenge at trial that the facts of the case did not support a loss-of-chance charge failed to preserve defendants' challenge on appeal that a loss-of-chance charge was wholly unavailable under New York law. The trial court charged the jury that the negligence of any of the defendants could be considered a cause of the injuries to decedent "if you find the defendant[s'] actions or omissions deprived [decedent] of a substantial possibility of avoiding the consequences of" having a permanent feeding tube. Defendants' argument before the trial judge was that plaintiffs failed to present evidence in support of the charge which sought to instruct the jury on a negligence theory of loss-of-chance, and that the jury charge erroneously reduced the plaintiffs' burden of proof and relaxed the standard for causation. However, on appeal, defendants contended that the trial court improperly instructed the jury on the loss-of-chance theory of liability because New York State had not yet adopted this theory. Defendants' broad challenge to the loss-of-chance doctrine was unpreserved and was not properly before the Court of Appeals. *Wild v Catholic Health Sys.*, 21 NY3d 951.

7. Sex Offender Classification.—Defendant failed to preserve his claim that he did not receive 20 days' notice prior to his sex offender designation proceeding as required under Correction Law § 168-n (3) and his argument that an adjournment of unspecified duration was required as a matter of due process was similarly unreviewable. *People v Rodriguez*, 21 NY3d 1030.

RAISING ISSUE FOR FIRST TIME ON APPEAL.

8. In determining respondent mother's appeal from the Family Court's order granting petitioner inmate visitation with the parties' child, the Appellate Division did not err in failing to consider the impact of petitioner's move from one prison to another while the appeal was pending. The Appellate Division correctly ruled that the question of petitioner's move from one prison to another should have been brought to the attention of Family Court, by means of a modification petition. That issue should not have been raised in the first instance for determination by an appellate court. *Matter of Granger v Misericola*, 21 NY3d 86.

ARBITRATION.

See, also, INSURANCE.

AGREEMENT TO ARBITRATE.

1. Compelling Arbitration by Nonsignatory — Direct Benefits Estoppel Theory.—Petitioner investor, a nonsignatory to the brokerage account agreement between respondent coinvestor and respondent's brokerage firm, could not be compelled under the direct benefits theory of estoppel to arbitrate respondent's claim against petitioner for petitioner's share of unpaid Canadian withholding taxes resulting from the parties' securities transactions to effect the merger of two companies. A nonsignatory to an arbitration agreement may be compelled to arbitrate where the nonsignatory knowingly exploits the benefits of an agreement containing an arbitration clause, and receives benefits flowing directly from the agreement. Where the benefits are merely indirect, a nonsignatory cannot be compelled to arbitrate a claim. A benefit is indirect where the nonsignatory exploits the contractual relation of the parties, but not the agreement itself. The guiding principle in distinguishing between direct and indirect benefits is whether the benefit gained by the nonsignatory is one that can be traced directly to the agreement containing the arbitration clause. Petitioner, as the financial advisor for the British Virgin Islands company that furnished the money for petitioner's share of the investment, diverted the profits attributable to that company's investment to one of petitioner's friends. Petitioner's diversion to his friend did not constitute a direct benefit from the underlying brokerage account. Petitioner's ability to divert those profits flowed directly from his status vis-à-vis the company, not as a result of any relationship with respondent or respondent's brokerage firm, and not based on the underlying agreement between those parties. *Matter of Belzberg v Verus Invs. Holdings Inc.*, 21 NY3d 626.

CONFIRMING OR VACATING AWARD.

2. Public Sector Retirement Plan.—The Court of Appeals reversed an order of the Appellate Division affirming a Supreme Court order, which had confirmed an

ARBITRATION—Cont'd

arbitration award requiring petitioner municipality to provide a retirement benefit to its firefighters, and the petition to vacate the award was granted. *Matter of City of Oswego (Oswego City Firefighters Assn., Local 2707)*, 21 NY3d 880.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

ATTORNEY AND CLIENT.

ASSIGNMENT OF COUNSEL.

1. Validity of Assigned Counsel Plan — Judicial Authority to Determine Compensation.—A county bar association's assigned counsel program's plan did not take away from the courts the ultimate authority to determine assigned counsel's compensation; it merely provided for a preliminary review and recommendation, which individual trial judges were free to accept or reject. *Roulan v County of Onondaga*, 21 NY3d 902.

ATTORNEY GENERAL.

ENJOINING FRAUDULENT OR ILLEGAL ACTS.

1. Martin Act and Executive Law Claims to Enjoin Corporate Fraud — Summary Judgment.—In a civil suit brought by the Attorney General based on allegations that defendants, the former chief executive officer and chief financial officer of American International Group, Inc. (AIG), violated Executive Law § 63 (12) and the Martin Act (General Business Law art 23-A) and committed common-law fraud, there was evidence sufficient for trial that both defendants participated in a fraud. The Attorney General claimed that defendants participated in causing AIG to enter into a sham transaction with a reinsurance corporation in which AIG purported to reinsure that corporation on certain insurance contracts. The claim asserted that the sole purpose of the transaction was to increase the insurance reserves shown on AIG's financial statements, thereby creating the impression of a healthy insurance business and bolstering AIG's stock price. The federal appeals court, in the criminal case arising from the same transaction, held that there was sufficient evidence to support a jury finding, beyond a reasonable doubt, that a fraudulent conspiracy had its inception in a telephone call from defendant former chief executive officer to the reinsurance corporation's chief executive officer. Thus, the evidence of defendants' knowledge of the fraudulent nature of the transaction was sufficient to raise an issue of fact for trial. *People v Greenberg*, 21 NY3d 439.

2. Martin Act and Executive Law Claims to Enjoin Corporate Fraud — Equitable Relief.—In a civil suit brought by the Attorney General based on allegations that defendants, the former chief executive officer and chief financial officer of American International Group, Inc., violated Executive Law § 63 (12) and the Martin Act (General Business Law art 23-A) and committed common-law fraud, the Attorney General was not barred as a matter of law from obtaining any equitable relief. Notwithstanding defendants' agreement, in their settlement of litigation brought by the Securities and Exchange Commission, to permanent injunctions against violations of the anti-fraud provisions of the federal securities laws, the Attorney General sought further equitable relief, including a ban on defendants' participation in the securities industry and a ban on defendants' serving as officers or directors of a public company. Whether the lifetime bans proposed would be a justifiable exercise of a court's discretion and the availability of any other equitable relief sought are questions that must be decided by the lower courts in the first instance. *People v Greenberg*, 21 NY3d 439.

BANKS AND BANKING.

See, also, BILLS, NOTES AND CHECKS.

BILLS, NOTES AND CHECKS.

See, also, BANKS AND BANKING.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

PUBLIC EMPLOYMENT RELATIONS BOARD.

1. Improper Employer Practice — Discontinuing Reimbursement of Medicare Part B Premiums of Certain Retirees.—Respondent Public Employment Relations Board's determination that petitioner School District had committed an improper employer practice by discontinuing petitioner's practice of reimbursing Medicare Part B premiums of certain retirees, made after the arbitrator in a related contract grievance arbitration ruled that petitioner was not contractually obligated to reimburse the premiums, was not based upon an error of law or arbitrary and capricious, and was supported by substantial evidence. In order for respondent in an improper practice proceeding to defer to an arbitration award it must be satisfied that the issues raised by the improper practice charge were fully litigated in the arbitration proceeding, that arbitral proceedings were not tainted by unfairness or serious procedural irregularities, and that the determination of the arbitrator was not clearly repugnant to the purposes and policies of the Taylor Law. It was reasonable for respondent not to defer to any finding of the arbitrator that there was no binding past practice under the Taylor Law: identity of issues was lacking and, to the extent the arbitrator purported to determine there was no past practice within the meaning of the Taylor Law, he exceeded his authority and his finding was repugnant to that statute. Moreover, respondent's decision in regard to past practice was supported by substantial evidence. Petitioner's knowledge of the payments was shown by the managerial oversight necessary to make them, as well as the memorandum circulated to its faculty and staff, announcing termination of petitioner's practice of reimbursing the premiums. Respondent Union's and bargaining unit employees' knowledge was established by the testimony given at the hearing. *Matter of Chenango Forks Cent. Sch. Dist. v New York State Pub. Empl. Relations Bd.*, 21 NY3d 255.

RETIREMENT AND PENSION BENEFITS.

2. Accidental Disability Retirement — Failure to Establish Sudden Fortuitous or Extraordinary Nature of Injury.—In a proceeding to review a determination denying petitioner's application for accidental disability retirement benefits based on injuries sustained when she tripped over computer wires strung on the floor across a locker room doorway, respondent Board of Trustees could find on the record that the statement of petitioner, which claimed that tape ordinarily securing the wires to the floor was not present on the date she fell, was not credible. Because the record did not establish as a matter of law that petitioner's injury resulted from an incident that was sudden, fortuitous, unexpected or out of the ordinary, the Board's determination must be upheld. *Matter of Lang v Kelly*, 21 NY3d 972.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONSTITUTIONAL LAW.

EQUAL PROTECTION OF LAWS.

1. Substantive Due Process — Amendments to Wicks Law.—Amendments to the Wicks Law which set differing monetary thresholds for the applicability of the law for different counties and establish apprenticeship requirements applicable to bidders for public contracts (L 2008, ch 57, part MM) did not deprive plaintiffs either of equal protection or of substantive due process under the Federal or State Constitution. The allegations of the complaint did not show that any provision of the amendments to the Wicks Law divided persons into classes, or deprived any person of property, without a rational basis, or that any such provision infringed any plaintiff's fundamental right or intentionally discriminated against a protected class. *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

GIFT OF PUBLIC FUNDS.

2. Reimbursement of Medicare Part B Premiums of Certain School District Retirees.—Reimbursement by petitioner School District of the Medicare Part B premiums of certain retirees was not an unconstitutional gift of public funds (*see* NY Const, art VIII, § 1). Respondent Public Employment Relations Board, in determining that petitioner had committed an improper employer practice by discontinuing petitioner's practice of reimbursing Medicare Part B premiums of certain retirees, found that the practice was a binding past practice under the Taylor Law. Although school districts may not "give or loan any money or property" (NY Const, art VIII, § 1) unless expressly authorized by law or pursuant to a contract term, the statutory permission here came from the definition of "terms and conditions of employment" (Civil Service Law § 201 [4]) and the bargaining right in certain binding past practices. As respondent Union had the right to reimbursement under the Taylor Law, the reimbursement could not be an unconstitutional gift of public funds. *Matter of Chenango Forks Cent. Sch. Dist. v New York State Pub. Empl. Relations Bd.*, 21 NY3d 255.

INTERSTATE COMMERCE.

3. Challenge to Legislation Favoring In-State over Out-of-State Contractors.—On a CPLR 3211 motion to dismiss, plaintiffs' complaint sufficiently alleged that the apprenticeship requirements in the second sentence of Labor Law § 222 (2) (e), which requires contractors bidding on public construction contracts exceeding certain cost thresholds to "participate in apprentice training programs in the trades of work it employs that have been approved by the department [of labor] for not less than three years and shall have graduated at least one apprentice in the last three years and shall have at least one apprentice currently enrolled in such apprenticeship training program," unconstitutionally excluded out-of-state contractors from some public construction work in New York. The Federal Commerce Clause has a "dormant" aspect, and along with the Privileges and Immunities Clause, limits the power of states to give preferential treatment to their own citizens. If the effect of the second sentence of section 222 (2) (e) is to exclude out-of-state contractors from bidding on certain New York contracts, both the Privileges and Immunities Clause and the dormant Commerce Clause would be violated. While defendants' contention that the challenged provision does not apply to all projects but only to those projects that are undertaken pursuant to project labor agreements is a reasonable one, and minimizes the constitutional problem, if section 222 (2) (e) unconstitutionally discriminates against out-of-state contractors, it is invalid whether it applies to many projects or to relatively few. From the face of the complaint, the statute and the relevant regulations, it could not be concluded that the apprenticeship requirements were not exclusionary. *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

VALIDITY OF STATUTE.

4. Statute Regulating Medallion Taxicabs and Livery Vehicles in City of New York — Municipal Home Rule Clause.—Chapter 602 of the Laws of 2011, as amended by chapter 9 of the Laws of 2012 (HAIL Act), which regulates medallion taxicabs and livery vehicles and addresses certain mobility deficiencies in the City of New York,

CONSTITUTIONAL LAW—Cont'd

does not violate NY Constitution, article IX, § 2 (b) (2) (Municipal Home Rule Clause). Although the HAIL Act is a special law and the Municipal Home Rule Clause could be read to direct that a home rule message was required before the Act's enactment, there is an exception to that requirement where the State possesses a substantial interest in the subject matter and the enactment bears a reasonable relationship to the legitimate, accompanying substantial State concern. In addressing the lack of yellow cabs within the Manhattan central business district that are accessible to the disabled and the general shortage of available yellow cab and livery vehicle transportation in underserved areas of the City, the HAIL Act addresses a substantial state concern. Efficient transportation services in the State's largest city and international center of commerce are important to the entire State. Moreover, the Act bears a reasonable relationship to that substantial State concern. It consists of a series of interlocking provisions to address its stated purposes. The delegation of a portion of the Act's implementation to the Mayor pursuant to section 8 of the Act was within the State legislature's purview and did not transfer any of the City Council's powers to the Mayor. Section 9's requirement calling for the Taxi and Limousine Commission's establishment of a grant program to distribute up to \$54 million in grants for the purchase or retrofitting of accessible HAIL vehicles does not interfere with the City Council's budgeting authority. Nor does section 23 of the Act, which requires that penalties for violations of the Act be transferred to the entity that issued the summons for a HAIL vehicle violation, intrude on the City's finances, as the City maintains control over the funds derived from its law enforcement entities that enforce the Act, while the New York State Police receive monies for the summonses they issue. *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289.

5. Statute Regulating Medallion Taxicabs and Livery Vehicles in City of New York — Double Enactment Clause.—Chapter 602 of the Laws of 2011, as amended by chapter 9 of the Laws of 2012 (HAIL Act), which regulates medallion taxicabs and livery vehicles and addresses certain mobility deficiencies in the City of New York, does not violate NY Constitution, article IX, § 2 (b) (1) (Double Enactment Clause). It has not been demonstrated that the HAIL Act “repealed, diminished, impaired or suspended” any power in “a statute of local governments” so as to require reenactment and approval of the Act the year after it was enacted. The HAIL Act, which addresses the lack of yellow cabs within the Manhattan central business district that are accessible to the disabled and the general shortage of available yellow cab and livery vehicle transportation in underserved areas of the City, addresses a matter of substantial state concern and bears a reasonable relationship to that concern. The Double Enactment Clause is no more exacting on the limits of state power than the Municipal Home Rule Clause, which the Act does not violate. *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289.

6. Statute Regulating Medallion Taxicabs and Livery Vehicles in City of New York — Exclusive Privileges Clause.—Chapter 602 of the Laws of 2011, as amended by chapter 9 of the Laws of 2012 (HAIL Act), which regulates medallion taxicabs and livery vehicles and addresses certain mobility deficiencies in the City of New York, does not violate NY Constitution, article III, § 17 (Exclusive Privileges Clause). The Exclusive Privileges Clause, which targets monopolies, may only be violated if the private or local bill is directed at a single entity and it confers a privilege upon the single entity to the exclusion of all others. The HAIL Act's licensing provisions apply to a class consisting of close to 60,000 livery vehicle drivers and owners. Although the Act provides that within the first three years of the first issuance, HAIL licenses may be issued only to owners of for-hire vehicles or for-hire drivers who have been licensed by the Taxi and Limousine Commission (TLC) for at least one year and are in good standing with the TLC (HAIL Act § 5 [b]), that does not limit the number of people who may obtain one. In order to qualify, all one needs to do is obtain a TLC license, operate a livery vehicle for one year and maintain good standing with the TLC. Thus, the number of persons who are able to obtain HAIL licenses will likely vary over time. That is not the type of “exclusivity” that the clause was meant to prohibit. *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289.

7. Restrictions on Equity Withdrawals and Asset Transfers by Nursing Homes — Substantive Due Process.—Public Health Law § 2808 (5) (c), which prohibits the

CONSTITUTIONAL LAW—Cont'd

withdrawal or transfer of residential health care facility equity or assets in an aggregate amount exceeding three percent of the facility's most recently reported annual revenue from patient care services without the prior approval of the State Commissioner of Health, does not violate the substantive due process property interests of facility owners. Economic regulation will violate an individual's substantive due process property interest only in those situations where there is absolutely no reasonable relationship to be perceived between the regulation and the achievement of a legitimate governmental purpose. The regulation here is not so outrageously arbitrary as to constitute a gross abuse of governmental authority, and plaintiffs have not met their extraordinary burden of proving beyond a reasonable doubt that the challenged provision suffers wholesale constitutional impairment. The legislature's prescription of means, particularly in the arena of economic regulation, is entitled to judicial deference so long as those means are in a very broad sense reasonably related to the achievement of a permissible regulatory end. In employing the three percent threshold based on annual facility revenue, the legislature put in place a mechanism that would at once identify contemplated withdrawals sufficiently substantial to be of legitimate regulatory concern, and afford owners of facilities with positive net worth a measure of unregulated access to facility assets and equity. Moreover, nursing homes are with ample historical and practical justification pervasively regulated and, in that context particularly, the additional regulatory increment cannot be viewed as a constitutionally untoward assault upon the private property interests of facility owners. *Brightonian Nursing Home v Daines*, 21 NY3d 570.

8. Restrictions on Equity Withdrawals and Asset Transfers by Nursing Homes — Separation of Powers.—Public Health Law § 2808 (5) (c), which prohibits the withdrawal or transfer of residential health care facility equity or assets in an aggregate amount exceeding three percent of the facility's most recently reported annual revenue from patient care services without the prior approval of the State Commissioner of Health, does not unconstitutionally delegate legislative policy-making power to the Commissioner by the statute's use of the catch-all phrase "and such other factors as the commissioner deems appropriate." The enumerated criteria to be reviewed by the Commissioner in reviewing a withdrawal or transfer application tie the Commissioner's disposition of the application to the financial condition of the facility and its quality of care record. Those are highly pertinent and not excessively general criteria and the catch-all's immediately subsequent reference to "such other factors" does not authorize application dispositions based on criteria that are generically different. *Brightonian Nursing Home v Daines*, 21 NY3d 570.

CONSUMER PROTECTION.**CONSUMER PRODUCTS.**

1. Maintenance Agreement — Violation of General Business Law § 395-a.—There is no express or implied private right of action to enforce General Business Law § 395-a which, with certain exceptions, forbids the termination before expiration of any "maintenance agreement covering parts and/or service" (General Business Law § 395-a [2]). The legislature chose to assign enforcement exclusively to government officials, and did not include in section 395-a specific language invalidating inconsistent contract provisions, as it did elsewhere in the General Business Law. The furniture protection plan that plaintiff purchased from defendant in connection with plaintiff's purchase of new furniture provided for a refund of the plan's purchase price should the store where the furniture was purchased close during the contract period. When plaintiff made a claim under the plan for damage to her furniture after the furniture store closed, defendant tendered plaintiff a full refund of the plan's purchase price pursuant to the store closure provision. Plaintiff's breach-of-contract claim against defendant would only succeed if General Business Law § 395-a rendered the store closure provision null and void, which would remove a refund as an option under the plan and cast defendant into breach. As General Business Law § 395-a does not make contract clauses that contradict its terms null and void, plaintiff could not maintain a private action for breach of contract. *Schlessinger v Valspar Corp.*, 21 NY3d 166.

CONSUMER PROTECTION—Cont'd**DECEPTIVE ACTS AND PRACTICES.**

2. Maintenance Agreement — Violation of General Business Law § 395-a.—A violation of General Business Law § 395-a which, with certain exceptions, forbids the termination before expiration of any “maintenance agreement covering parts and/or service” (General Business Law § 395-a [2]), alone does not give rise to a cause of action under General Business Law § 349. Plaintiffs alleged that the furniture protection plan that they purchased from defendant in connection with the purchase of new furniture, which provided for a refund of the plan's purchase price should the store where the furniture was purchased close during the contract period, violated General Business Law § 395-a. Plaintiffs alleged in their General Business Law § 349 claim that defendant's violation of section 395-a was perforce a violation of section 349 (a) because, by inserting an unlawful provision in the contract, defendant impliedly represented that the provision was valid and thereby engaged in a deceptive act or practice. General Business Law § 349, however, does not grant a private remedy for every improper or illegal business practice, but only for conduct that tends to deceive consumers. Including a termination provision in a maintenance agreement does not tend, in itself, to deceive consumers. *Schlessinger v Valspar Corp.*, 21 NY3d 166.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

FORMATION OF CONTRACT.

1. In an action by an architect arising out of the proposed design of a house for defendant, the order of the Appellate Division reversing the judgment in plaintiff's favor and remanding the matter for a new trial was affirmed, and judgment absolute dismissing the complaint granted upon plaintiff's stipulation, since the Appellate Division correctly determined that plaintiff was not entitled to recovery against defendant. *Bruno Kearney Architects, LLP v Rose*, 21 NY3d 1053.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

CREDITORS' SUITS.**TURNOVER ORDER.**

1. Banking Entity Must Have Actual Possession or Custody of Assets Sought.—For a court to issue a postjudgment turnover order pursuant to CPLR 5225 (b) against a banking entity, that entity itself must have actual, not merely constructive, possession or custody of the assets sought. It is not enough that the banking entity's subsidiary might have possession or custody of a judgment debtor's assets. A special proceeding for a turnover order is the procedural mechanism devised by the legislature to enforce a judgment against an asset of a judgment debtor, held in the “possession or custody” of a third party (CPLR 5225 [b]). The plain language of section 5225 (b) refers only to “possession or custody,” excluding any reference to “control,” whereas the predecessor statute referred to “possession” and “control” and made no mention of custody. The exclusion of the word “control” signaled a purposeful legislative modification of the applicable scope of turnover statutes. When the legislature has sought to encompass the concept of “control” it has done so explicitly, evincing a legislative intent to exclude consideration of “control” from those sections from which it is omitted. Consequently, because “possession, custody or control” has been construed to encompass constructive possession, then, by contrast, legislative use of the phrase “possession or custody” contemplates actual

CREDITORS' SUITS—Cont'd

possession. *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55.

2. Banking Entity Must Have Actual Possession or Custody of Assets Sought.—For a court to issue a postjudgment turnover order pursuant to CPLR 5225 (b) against a banking entity, that entity itself must have actual, not merely constructive, possession or custody of the assets sought. *Koehler v Bank of Bermuda Ltd.* (12 NY3d 533 [2009]), which addressed whether, under CPLR article 52, a New York court could order a bank over which it had personal jurisdiction to deliver out-of-state stock certificates to a judgment creditor, does not require a different reading of CPLR 5225 (b). *Koehler* does not interpret the meaning of the phrase “possession or custody,” and is only significant in holding that personal jurisdiction is the linchpin of authority under CPLR 5225 (b). It should not be so broadly construed as to require that a garnishee be compelled to direct another entity, which is not subject to this state’s personal jurisdiction, to deliver assets held in a foreign jurisdiction. *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

AGENCY DEFENSE IN NARCOTICS PROSECUTION.

1. Jury Charge.—Defendant, who was convicted of criminal sale of a controlled substance in the third degree and criminal sale of a controlled substance in or near school grounds for taking an undercover officer’s money to a nearby building and returning with three bags of crack cocaine for him, was entitled to a new trial based on the trial court’s erroneous jury charge on the agency defense. A charge on the agency defense is warranted where there is some reasonable view of the evidence the defendant acted as a mere instrumentality of the buyer. The Criminal Jury Instruction (CJI) charge consists of six factors that may be considered in assessing whether a defendant acted solely to accommodate the buyer. These factors include the nature and extent of the relationship between the defendant and the buyer, which party suggested the purchase, whether defendant had other drug dealings with this or other buyers or sellers, and whether defendant stood to profit from the transaction. Here, the court limited its charge to two of the CJI factors, both of which were unfavorable to defendant. Moreover, the court’s instruction that the lack of a prior relationship between defendant and the officer would negate the agency defense did not comport with precedent or the CJI, which provide that the relationship is but one factor for consideration. Hence, the imbalanced charge did not convey the proper analytical framework. The court’s error was not harmless in light of the record evidence that defendant was a drug addict who offered to help out someone he thought was a fellow addict, that he had never been convicted of selling drugs, and that prior to the transaction the drugs were in the exclusive control of a drug dealer in a nearby building. Defendant’s alleged receipt of the incidental benefit of a bag of crack for his assistance did not itself negate the defense. *People v Echevarria*, 21 NY3d 1.

2. Jury Charge.—The trial court gave a proper jury charge on the agency defense in a narcotics prosecution arising from a transaction where defendant took money from an undercover officer, entered a building and returned with crack cocaine. A defendant is entitled to a jury charge on the agency defense where there is some reasonable view of the evidence that the defendant acted as a mere instrumentality of the buyer. The Criminal Jury Instruction (CJI) charge consists of six factors that may be considered by the jury in assessing whether a defendant acted solely to accommodate the buyer. These factors include the nature and extent of the relationship between the defendant and the buyer, which party suggested the purchase, whether defendant has had other drug dealings with this or other buyers or sellers, and whether defendant stood to profit from the transaction. However, jurors must

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rely on their own common sense and experience in resolving the agency issue and should be able to perceive the reality of the situation without minutely detailed instruction from the court. Here, the court appropriately instructed the jury regarding the underlying theory of the agency defense and proceeded to list the first five factors in the CJI charge. The jury was capable of gathering from the language of the charge the correct rules to apply. *People v Echevarria*, 21 NY3d 1.

3. Refusal to Give Agency Charge.—In a drug prosecution arising from a buy-and-bust operation where defendant asked an undercover police officer and two others to “wait” when asked if anyone was “out” and then, after walking around a corner, told the group to “go around the corner” where a woman selling cocaine was sitting on building steps, it was not error for the trial court to refuse to give an agency charge. A defendant is entitled to a jury charge on the agency defense where there is some reasonable view of the evidence that the defendant acted as a mere instrumentality of the buyer. However, there was no reasonable view of the evidence that defendant acted as a buyer’s agent. He did not have a prior relationship with any of the buyers—much less an individual relationship with the undercover, who was part of a group of purchasers. He instantly knew what to do when asked if anyone was “out,” had 37 \$20 bills in his pocket, and covered his mouth with a shirt when speaking about where to procure drugs, prior to directing the group to the person who actually completed the transactions. *People v Williams*, 21 NY3d 932.

APPEAL.

4. Preservation of Issue for Review — Alleged Juror Misconduct.—In an appeal arising out of a drug prosecution in which appellants asserted that the trial court erred in failing to conduct an individual, in camera inquiry of a sworn juror who, before the jury was charged, had written a note to the court stating that “We want to know how/when and under what pretext” two codefendants had met, appellants’ argument that the phrase “under what pretext” implied that at least two of the jurors had accepted the prosecution’s theory that the benign lexicon of the participants in the drug trafficking was a mere pretext for discussions of illegal conduct was unpreserved for appellate review. Defense counsel never argued at trial that the complained of phrase had the sweeping implication that defendants claimed on appeal. *People v Mejias*, 21 NY3d 73.

5. Preservation of Issue for Review.—Defendant’s objection to the trial court’s *Sandoval* ruling permitting the People to cross-examine defendant during his assault trial about his recent rape conviction, which was still pending on direct appeal at the time, was preserved for appellate review. To preserve an issue for review, counsel must register an objection and apprise the court of grounds upon which the objection is based “at the time” of the allegedly erroneous ruling “or at any subsequent time when the court had an opportunity of effectively changing the same” (CPL 470.05 [2]). After the defense rested but before either side presented closing remarks, defense counsel asked the court to reconsider its *Sandoval* ruling, specifically informing the court that the rape conviction was then “under appeal,” and asserting that defendant’s Fifth Amendment privilege against self-incrimination should preclude cross-examination about it. That objection was lodged at a time when the court had the “opportunity of effectively changing” its ruling since neither side had yet presented closing remarks and the jury had not yet commenced deliberations. *People v Cantave*, 21 NY3d 374.

6. Preservation of Issue for Review — Meaningful Notice of Jury Notes — Failure to Object.—In a criminal prosecution, the trial judge’s procedure in responding to jury notes, wherein he stated, in the presence of defendant, counsel and the jury, that he had received notes requesting readbacks of the testimony of two prosecution witnesses and that he intended to personally participate in reading the testimony, did not constitute an error affecting the mode of proceedings so as to relieve defendant of the need to timely object to preserve the issue for appellate review. Under CPL 310.30, the trial court’s core responsibility in responding to a substantive juror inquiry is both to give meaningful notice to counsel of the specific content of the juror’s request and to provide a meaningful response to the jury. Failure to provide

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either constitutes a mode of proceedings error. While *People v O'Rama* (78 NY2d 270 [1991]) endorses a specific procedure for fulfilling the meaningful notice requirement, which includes allowing counsel an opportunity to suggest responses to the inquiry before the jury is recalled into the courtroom, the point of *O'Rama* was to delineate a set of guidelines calculated to maximize participation by counsel before the court gives its response, when counsel's input is most meaningful. Here, the two jury notes were disclosed in their entirety in open court before the trial judge responded to them and the judge explained exactly how he was going to respond to them. If defense counsel considered the judge's intended approach prejudicial, he had an opportunity to ask him to alter course, and it behooved him to do so. *People v Alcide*, 21 NY3d 687.

7. Preservation of Issue for Review — Trial Judge's Participation in Testimony Readback — No Mode of Proceedings Error.—In a criminal prosecution, any error in the trial judge's response to jury notes requesting readbacks of testimony of two prosecution witnesses, in which he participated by personally reading the prosecutor's direct examination questions of both witnesses while the court reporter read the responses and then switching roles with the reporter for the cross-examination questions and answers, did not constitute a mode of proceedings error obviating the need to timely object to preserve the issue for appellate review. A mode of proceedings error is a narrow exception to the preservation rule which is reserved for the most fundamental flaws. While a trial judge should shun engaging in readbacks of testimony to avoid any risk of creating a misperception in the minds of the jurors by conveying that the court is aligned with the party or counsel whose role the court has assumed in the readback, nothing in CPL 310.30 prohibits the court's participation. Here, the record did not suggest that the trial judge was so wedded to taking part in the readbacks that he could not have been dissuaded by timely protest. His stated reasons for participating were to move matters along and make the readbacks easier for the jury to follow. Further, requiring preservation was not unfair based on the danger that defense counsel's objection would draw the jury's attention to something unfavorable to his client or give the appearance of being argumentative or attempting to conceal evidence. Counsel in a criminal trial is responsible for bringing error to the court's attention at a time when the error could have been obviated, and defense counsel could have objected and asked to discuss the matter at a sidebar, out of the jury's hearing. *People v Alcide*, 21 NY3d 687.

8. Preservation of Issue for Review.—In the prosecution of defendant psychiatric patient for assaulting another patient in the psychiatric ward of a county hospital, defendant's claim that the trial court should have permitted defense counsel to cross-examine the victim's father about his pending lawsuit against the county in order to establish bias and thus impeach the witness was unpreserved because it was not made with specificity before the trial court. In support of the proposed questions, defense counsel argued that he was making an offer of proof that the witness "feels that there's some wrongdoing on the part of [the hospital] in addition to my client." Defense counsel's proffer referred specifically to the father's lawsuit as evidence that the father thought the hospital bore some responsibility for his son's injuries. No interpretation of the objection could encompass a line of questioning to reveal witness bias. *People v Daryl H.*, 21 NY3d 708.

9. Preservation of Issue for Review — Right to Public Trial.—In a homicide prosecution, the trial court improperly excluded defendant's mother from the courtroom before jury selection and defense counsel properly preserved his objection to her exclusion. Mere courtroom overcrowding is not an overriding interest justifying courtroom closure, and the trial judge failed to consider reasonable alternatives before excluding defendant's mother from the courtroom. That violation was per se prejudicial and required a new trial. In addition, defense counsel preserved his objection by stating to the trial court that, as a public spectator, defendant's mother had "an absolute right to be present . . . I can't think of anything else at this particular point about which I might make a record." His statements "unquestionably apprised" the trial judge of the constitutional rights at issue and the obligation to consider reasonable alternatives. *People v Floyd*, 21 NY3d 892.

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10. Review Power of Appellate Division.—In a prosecution for official misconduct, in which defendant argued on appeal that the jury's verdict was against the weight of the evidence, the order of the Appellate Division, which concluded that that argument was not properly before it, manifested a lack of application of that review power. Consequently, the Appellate Division order, which affirmed defendant's conviction, was reversed and the case remitted for a proper consideration of defendant's claim. *People v Mason*, 21 NY3d 962.

ARREST.

11. Identification of Defendant — Exploitation of Illegal Arrest.—There was record support for the Appellate Division's finding that defendant's illegal arrest by a police sergeant was not exploited to obtain defendant's subsequent lineup identification as the perpetrator of a robbery. While the defendant's initial arrest was without probable cause and therefore illegal, evidence discovered subsequent to an illegal arrest is not indiscriminately subject to the exclusionary rule; instead, the People must have exploited or benefited from the illegal conduct such that there is a connection between the violation of a constitutional right and the derivative evidence obtained by the police. The arresting officer admitted that, in addition to a disorderly conduct charge, he took defendant into custody because he also believed defendant to be the perpetrator of the earlier robbery. The Appellate Division concluded that the sergeant possessed some information connecting defendant to the robbery and acted in good faith on that information, but that it fell short of probable cause. Consequently, the issue was beyond further review by the Court of Appeals. *People v Jones*, 21 NY3d 449.

ASSAULT.

12. Recklessness — Sufficiency of Evidence.—In the prosecution of defendant arising from a fatal automobile crash that occurred when defendant crossed over into oncoming traffic while traveling at speeds far in excess of the posted 55 miles per hour, defendant's conviction for assault in the second degree, predicated on the mental state of recklessness, was supported by legally sufficient evidence. A person commits assault in the second degree when he or she "recklessly causes serious physical injury to another person by means of a deadly weapon or a dangerous instrument" (Penal Law § 120.05 [4]). In the context of automobile accidents involving speeding, the culpable risk-creating conduct necessary to support a finding of recklessness or criminal negligence generally requires some additional affirmative act aside from driving faster than the posted speed limit. Defendant did more than merely drive faster than the legal limit. Just before the collision, which occurred as defendant approached a sharp curve in the unlit road, defendant stopped his vehicle in the middle of the road, revved the engine, hit the gas pedal and accelerated to an extremely high rate of speed. He then crossed the double yellow line and struck another vehicle head-on, killing the other driver and seriously injuring the passengers in both vehicles. Although the jury acquitted defendant of driving while ability impaired by alcohol, there was evidence that he had been drinking and smoking marijuana that evening. The proof was sufficient to support the jury's conclusion that defendant acted recklessly—by consciously disregarding the risk he created—as opposed to negligently failing to perceive that risk. Defendant was familiar with the curve in the road, he had been warned twice about speeding into that very section of the road, and, just before the collision, one of defendant's passengers pleaded with him to slow down because they were "about to make the turn." *People v Asaro*, 21 NY3d 677.

CONFESSION.

13. Voluntariness — Actual Coercion during Extremely Lengthy Interrogation — Admissibility of Subsequent Confession.—In a murder prosecution, the trial court, which suppressed statements defendant made during a 49½-hour custodial interrogation, should have also suppressed defendant's inculpatory statements made some 10 hours later and in the presence of appointed counsel, because the taint of the wrongful police action during the initial interrogation was not sufficiently attenuated, as a matter of law, by the break in questioning. Given the extraordinary

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privation involved—defendant by the interrogation's conclusion had been sleepless for over 50 hours and gone without eating for 30 hours—he could not have rapidly recovered to the point that his basic capacity to exercise independent judgment was restored. His intervening stay in a holding pen and his arraignment did not transform his coerced capitulation into a voluntary disclosure. By the time of defendant's post-arraignment statements, his options would have seemed so constricted by what he had already divulged during the interrogation as to render the intervening temporal buffer practically irrelevant. Furthermore, the entry of counsel did not guarantee the voluntariness of defendant's confession. By the time assigned counsel arrived at the 10 by 10, windowless and clockless chamber in which defendant was interrogated, defendant had already promised to "give everybody what they want" and had been so depleted over two days of constant tag-team interrogation as to raise the most serious doubt as to his ability usefully to confer with counsel. There was no showing that the interposition of defendant's attorney between the pre-entry course of coercion and defendant's subsequent confession enabled a decision by defendant that was not the product of official compulsion. *People v Guilford*, 21 NY3d 205.

14. Custodial Interrogation — Defendant's Statements to Friend in Presence of Police.—In a murder prosecution, defendant was not entitled to suppression of statements he made to a friend in the presence of a police investigator at the station where defendant was being detained, notwithstanding the absence of *Miranda* warnings, since it could not be said as a matter of law that the conversation constituted interrogation. The investigator did not converse with or question defendant during the encounter. Nor did defendant establish that the discussion rose to the level of a psychological ploy that could be treated as the functional equivalent of interrogation or a subterfuge to circumvent attachment of the indelible right to counsel. The investigator initially refused to allow the friend to meet with defendant, but relented only after she persistently demanded to speak with him and after she was specifically informed that the officer would be in the room taking notes of the conversation. Defendant was also aware that the officer, who was only a few feet away, was listening to the exchange. On the facts, the courts below did not err in finding that defendant's assertions were voluntary and admissible at trial. *People v Doll*, 21 NY3d 665.

15. Custodial Interrogation — Right to Counsel — Emergency Exception to *Miranda*.—In a murder prosecution, the courts below correctly concluded that the detention and questioning of defendant by police without the issuance of *Miranda* warnings and despite his request for legal assistance were reasonable responses to a serious and ongoing exigent situation under the emergency doctrine where the police, responding to a 911 call, found defendant walking along a public road covered in fresh, wet blood and their reasonable inquiries regarding the source of the blood were met with inconsistent responses by defendant and his refusal to state whether the blood was from a human or an animal. The emergency doctrine is an exception to the rule that a person in custody cannot be questioned without first receiving *Miranda* warnings or after the right to counsel attaches and it excuses otherwise impermissible police conduct that is an objectively reasonable response to an apparently exigent situation. One element of the exception requires that the police have reasonable grounds to believe that there is an emergency at hand and an immediate need for assistance for the protection of life or property and the belief is grounded in empirical facts. Here, defendant failed to explain the source of fresh blood police found on his clothing and on and around his vehicle. Under the circumstances, it was reasonable for the police to believe that a person may have been seriously injured and in need of immediate emergency assistance. The fact that police did not know definitively whether a crime had occurred or the identity of the potential victim was not dispositive because the emergency doctrine is based on reasonableness, not certitude. *People v Doll*, 21 NY3d 665.

DEFENDANT AS WITNESS.

16. Impeachment — Unrelated Criminal Conviction on Appeal.—The prosecution may not cross-examine a criminal defendant about the underlying facts of an unre-

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lated criminal conviction on appeal, for the purpose of impeaching his credibility. Accordingly, the trial court's *Sandoval* ruling permitting the People to cross-examine defendant during his assault trial about his recent rape conviction, which was still pending on direct appeal, violated the defendant's privilege against self-incrimination with respect to the admission of the underlying facts of the rape conviction. Being questioned about the facts underlying a previous conviction while it is pending appeal would unduly compromise the defendant's right to testify with respect to the case on trial and simultaneously jeopardize the correspondingly important right not to incriminate oneself as to the pending matter. The practical effect of the trial court's *Sandoval* ruling was to prevent defendant's testimony entirely, as the assertion by defendant of his Fifth Amendment privilege in response to questions about the underlying rape conviction would have been highly prejudicial as to both the assault prosecution and the rape conviction pending appeal. *People v Cantave*, 21 NY3d 374.

DISCLOSURE.

17. Failure to Produce *Rosario* Material — Remedy.—In the prosecution of defendant arising from a fatal automobile crash, the trial court did not abuse its discretion by denying defendant's request to strike the entirety of the testimony of the accident reconstruction expert, who testified at trial that defendant had crossed the double yellow line heading into a sharp curve while driving at a minimum of 94 miles per hour, but admitted on cross-examination that the handwritten notes he had used to make the speed computations were lost while he was on medical leave and he could not replicate the math. As a result of the lost *Rosario* material, the trial court gave the jury an adverse inference charge. Defendant asked the trial court to strike all of the expert's testimony, which included a substantial amount of proof unrelated to the missing handwritten mathematical notes. Defendant did not, as he subsequently did on appeal, single out the testimony pertaining to speed. *People v Asaro*, 21 NY3d 677.

EVIDENCE.

18. Tape Recordings — 911 Emergency Call — Excited Utterance.—In the prosecution of defendant for assaulting a neighbor and acquaintance whom defendant claimed was the initial aggressor and had hit defendant in the face with a gun, the trial court did not abuse its discretion by excluding defendant's 911 call, which recorded defendant seeking police assistance and reporting an attack by a man with a gun who was still at the scene, because neither the tenor nor timing of the call served to qualify it as an excited utterance. The excited utterance hearsay exception applies when the declarant is exposed to a startling or upsetting event that is sufficiently powerful to render the declarant's normal reflective power inoperative. While somewhat agitated on the call, defendant's voice did not evidence an inability to reflect upon the events. It was somewhat suspect that defendant failed to report the names of his victim and the victim's wife to the 911 operator, since he knew them well. Additionally, despite claiming to have been assaulted, defendant did not complain of an injury or request an ambulance until questioned by the 911 operator. Defendant's statements on the recording could have reflected an evolving fabrication prompted by the operator's questioning. Defendant's failure to mention that he had bit off a part of the victim's ear and injured his finger was evidence that defendant had the opportunity, and likely the intent, to distort the facts. Moreover, defendant's medical records refuted any claim that defendant was injured in a way that would detract from his ability to reflect upon events. *People v Cantave*, 21 NY3d 374.

19. Tape Recordings — 911 Emergency Call — Present Sense Impression.—In the prosecution of defendant for assaulting a neighbor and acquaintance whom defendant claimed was the initial aggressor and had hit defendant in the face with a gun, the trial court did not abuse its discretion by excluding defendant's 911 call, which recorded defendant seeking police assistance and reporting an attack by a man with a gun who was still at the scene, because neither the tenor nor timing of the call served to qualify it as a present sense impression. To qualify as a present sense impression, the out-of-court statement must be made by a person perceiving

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the event as it is unfolding or immediately afterward, and corroborated by independent evidence establishing the reliability of the contents of the statement. There was no evidence to show that defendant's statements were made spontaneously and contemporaneously with the events described, nor was defendant's description of what happened corroborated by other evidence. *People v Cantave*, 21 NY3d 374.

20. Photographic Evidence.—In a prosecution for first-degree rape in which defendant was charged with engaging in sexual intercourse with a person incapable of consent by reason of being physically helpless, the trial judge did not abuse his discretion by allowing into evidence seven photographs taken of the victim at the hospital where she was examined after calling 911 to report a rape. The transcript of the hearing on defendant's motion in limine showed that the trial judge considered whether the photographs were properly authenticated, relevant and not unduly prejudicial. *People v Marra*, 21 NY3d 979.

FAIR TRIAL.

21. Denial of Request to Remove Interpreter.—The trial court did not abuse its discretion in denying defendant's request that the state-employed court interpreter for complainant wife be removed because the interpreter was acquainted with complainants. The interpreter complied with his ethical obligation by notifying the court that he was a friend of complainant husband. Upon receiving that information, the court questioned the interpreter as to whether he knew the facts of the case, and would be uncomfortable translating for complainant wife. Having received a negative answer to both questions, the trial court allowed defense counsel to question the interpreter. Satisfied that its questioning and that of defense counsel uncovered no bias on the part of the interpreter, the court properly exercised its discretion in not removing him. The court could have reasonably found that the danger the interpreter would distort complainant wife's testimony was remote, particularly because he possessed no knowledge concerning the facts of the case. There was no need to ascertain the interpreter's qualifications or warn him to translate exactly what complainant wife said. As a state employee who had taken an oath to interpret, it could be presumed that the interpreter knew his ethical/professional obligations to translate the testimony verbatim. *People v Lee*, 21 NY3d 176.

22. Jury Note — No Mode of Proceedings Error.—No mode of proceedings error occurred during a drug prosecution where the trial court, having received several jury notes requesting further legal instruction during deliberations, read one note out loud before responding directly to the jury and, after considering another jury note asking for a written copy of the court's charge, sent a court officer to inform the jury that no written instructions were allowed. While the trial court did not comply precisely with the requirements of *People v O'Rama* (78 NY2d 270 [1991]; CPL 310.30), lack of preservation bars the claim of a mode of proceedings error where defense counsel had notice of a jury note and failed to object when the error could have been cured. Nor did the court commit a mode of proceedings error by delegating delivery of its answer to another jury question to a court officer, who told the jurors that no written instructions were allowed. That task was practically ministerial in this context and defense counsel consented to the procedure. *People v Williams*, 21 NY3d 932.

HARMLESS AND PREJUDICIAL ERROR.

23. Admission of Prejudicial Evidence.—In a prosecution for murder, any errors made by the trial court when it admitted a statement made by defendant and certain testimony of prosecution witnesses, which were alleged by defendant to be prejudicial and in violation of his constitutional rights to a fair trial, were harmless because they did not taint the fairness of the trial and evidence of defendant's guilt was overwhelming. The evidence against defendant included three statements to police, confessing in detail to the crime about which no specifics were disclosed prior to defendant's confession. Those statements were corroborated by forensic evidence. Although defendant testified that he falsely confessed out of love, to protect his girlfriend, such a story was utterly incredible. At the time of the murder the girlfriend was on dialysis, debilitated and too weak physically to have repeatedly

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and fatally stabbed the obese decedent. Nor was there any conceivable motive explaining why the girlfriend would have attacked the victim, a close friend and protector. By contrast, defendant's confession made his own motive clear: the girlfriend had told him earlier in the day that she wanted to end their relationship and he vented his rage on her friend, the victim, who he thought was interfering in the relationship. The jury heard overwhelming evidence of defendant's guilt and there was no probability that defendant would have been acquitted had the allegedly prejudicial evidence been excluded. *People v Byer*, 21 NY3d 887.

24. Right to Counsel Violation.—In a prosecution for murder and other crimes, assuming that defendant's indelible right to counsel was violated when he was questioned about the victim's disappearance while in jail for a violation of probation, any error was harmless beyond a reasonable doubt. There was no reasonable possibility that the introduction of the two challenged statements affected defendant's conviction in view of the other evidence, including two counseled statements to police and testimony of numerous witnesses, that overwhelmingly established his guilt. *People v Augustine*, 21 NY3d 949.

IDENTIFICATION OF DEFENDANT.

25. Lineup Identification Sufficiently Attenuated from Wrongful Arrest.—There was record support for the Appellate Division's determination that the connection between defendant's illegal arrest by a police sergeant and his subsequent lineup identification as the perpetrator of a robbery was sufficiently attenuated as to dissipate the taint of the wrongful arrest, and since attenuation of evidence from police misconduct is generally a mixed question of law and fact, the issue was beyond further review by the Court of Appeals. While the defendant's initial arrest was without probable cause and therefore illegal, evidence discovered subsequent to an illegal arrest is not indiscriminately subject to the exclusionary rule. The People were required to demonstrate that the identification was acquired by means sufficiently distinguishable from the arrest to be purged of the illegality, i.e., that the taint of the illegal arrest was "attenuated." By the time defendant was illegally arrested, the detective investigating the robbery already had in his possession sufficient evidence to establish probable cause for defendant's arrest. Within 30 minutes of arriving at the precinct, the sergeant who had arrested defendant was in contact with that detective, and that conversation led the sergeant to the detective's case folder and a photograph of defendant. At that point, the sergeant possessed probable cause to detain defendant until the lineup identification eight hours later. *People v Jones*, 21 NY3d 449.

INDICTMENT.

26. Waiver of Indictment — Superior Court Information Naming Victims Not Identified in Felony Complaint.—In a criminal prosecution initiated by a felony complaint charging defendant with first-degree grand larceny and first-degree scheme to defraud, among other crimes, and alleging that defendant obtained personal identifying information from four named individuals and used the information of one of those individuals to obtain bank mortgages on two properties, the superior court information (SCI) under which defendant pleaded guilty was not jurisdictionally defective where it named the bank victims not identified in the felony complaint. The offenses charged in an SCI may include any offense for which the defendant was charged in a felony complaint (CPL 195.20). The felony complaint here named the victims of the alleged identity thefts, but not the victims of the grand larceny. There was nothing inappropriate about adding the names of the grand larceny victims to the SCI as it did not change the offense for which defendant was charged in the felony complaint. The complaint adequately specified the facts of the crime by identifying the specific mortgaged properties, the sales prices of the properties and the exact addresses. Notwithstanding its failure to name the grand larceny victims, the complaint did not suggest that defendant stole property worth more than \$1 million from the identity theft victims. It was evident from the factual recitation that the alleged victims of the grand larceny charge were the unnamed banks who provided mortgage loans totaling more than \$1 million. Moreover, the SCI referenced the docket number of the felony complaint, thereby avoid-

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ing confusion as to whether the crimes charged were the same. The fact that the SCI contained a narrower time frame for the crime, to defendant's benefit, did not render the SCI charge a different crime. *People v Milton*, 21 NY3d 133.

JURORS.

27. Discharge of Juror — In Camera Inquiry of Juror Suspected of Misconduct Not Required Where Juror Not Grossly Unqualified to Serve — Juror Possibly Engaged in Premature Deliberations.—In a criminal prosecution, the trial court did not err in failing to conduct an individual, in camera inquiry of a sworn juror who, before the jury was charged, had written a note to the court stating that “We want to know how/when” two codefendants had met. A trial court must first question a sworn juror individually in camera in the presence of the attorneys and defendant and conduct a probing and tactful inquiry in order to determine whether the juror will be able to deliberate fairly and render an impartial verdict before it dismisses the juror as “grossly unqualified” under CPL 270.35. There was no indication that the note-writing juror’s impartiality was in doubt or that the juror had committed any misconduct. The note’s contents were indicative either that there had been premature deliberations and/or the jury was requesting additional evidence after the evidence had closed. The court did what was warranted to address the first possibility by issuing an additional instruction to the jurors reminding them that they were not to deliberate prior to being charged. In addressing the second possibility, the court correctly apprised the jury that it was not permitted to ask questions before it had been charged. Absent some indication that the note-writing juror had engaged in some disqualifying conduct, the fact that one or more jurors may have engaged in premature deliberations or requested additional evidence was not sufficient to trigger an inquiry. Nor did the court abuse its discretion by asking the jury panel as a whole whether its members had engaged in premature deliberations and in issuing an unambiguous instruction that they were not to do so. *People v Mejias*, 21 NY3d 73.

MANSLAUGHTER.

28. Mens Rea.—In a prosecution in which defendant was accused of repeatedly striking or shaking his girlfriend’s 15-month-old boy so brutally as to cause multiple skull fractures, resulting in the child’s death two hours later, the evidence was legally sufficient to prove that defendant possessed the requisite mens rea of “intent to cause physical injury to a person less than eleven years old” to support his conviction of manslaughter in the first degree (Penal Law § 125.20 [4]). The jury could have rationally inferred that defendant intended to injure the child, because physical injury is the probable consequence of inflicting blunt force trauma on a young child. *People v Barboni*, 21 NY3d 393.

29. Recklessness — Sufficiency of Evidence.—In the prosecution of defendant arising from a fatal automobile crash that occurred when defendant crossed over into oncoming traffic while traveling at speeds far in excess of the posted speed limit of 55 miles per hour, defendant’s conviction for manslaughter in the second degree, predicated on the mental state of recklessness, was supported by legally sufficient evidence. A person is guilty of manslaughter in the second degree under Penal Law § 125.15 (1) when he or she “recklessly causes the death of another person.” In the context of automobile accidents involving speeding, the culpable risk-creating conduct necessary to support a finding of recklessness or criminal negligence generally requires some additional affirmative act aside from driving faster than the posted speed limit. Defendant did more than merely drive faster than the legal limit. Just before the collision, which occurred as defendant approached a sharp curve in the unlit road, defendant stopped his vehicle in the middle of the road, revved the engine, hit the gas pedal and accelerated to an extremely high rate of speed. He then crossed the double yellow line and struck another vehicle head-on, killing the other driver and seriously injuring the passengers in both vehicles. Although the jury acquitted defendant of driving while ability impaired by alcohol, there was evidence that he had been drinking and smoking marijuana that evening. The proof was sufficient to support the jury’s conclusion that defendant acted recklessly—by consciously disregarding the risk he created—as

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opposed to negligently failing to perceive that risk. Defendant was familiar with the curve in the road, he had been warned twice about speeding into that very section of the road, and, just before the collision, one of defendant's passengers pleaded with him to slow down because they were "about to make the turn." *People v Asaro*, 21 NY3d 677.

MURDER.

30. Depraved Indifference Murder of Child — Mens Rea — Utter Disregard for Value of Human Life.—In a prosecution in which defendant was accused of repeatedly striking or shaking his girlfriend's 15-month-old boy so brutally as to cause multiple skull fractures, and subsequently failing to summon medical assistance before the child died, the evidence was legally sufficient to prove the first mens rea element required to support defendant's conviction of depraved indifference murder of a child (Penal Law § 125.25 [4]): defendant's state of mind was one of utter disregard for the value of human life, i.e., that he did not care whether his victim lived or died. Defendant was the actor who had inflicted the injuries. Given his knowledge of how the injuries were inflicted and his failure to seek immediate medical attention, either directly or via consultation with his girlfriend, until it was too late, there was sufficient evidence for a jury to conclude that defendant evinced a wanton and uncaring state of mind. His dispassionate voice on the telephone, reporting to his girlfriend that the child was not breathing, was further, albeit circumstantial, evidence of that callous indifference to the child's life. The horrific nature of the assault was clearly intended to be encompassed within Penal Law § 125.25 (4), and the jury could properly find defendant guilty of that crime even if the murderous acts did not occur over an extended duration. While the physical assault may have been brief, by his failure, over some two hours, to seek medical attention for the child, defendant turned a brutal assault into a brutal and prolonged course of conduct against a vulnerable victim. There is no requirement that a violent course of conduct must occur over days or months, in order to be prolonged. *People v Barboni*, 21 NY3d 393.

31. Depraved Indifference Murder of Child — Mens Rea — Recklessness.—In a prosecution in which defendant was accused of repeatedly striking or shaking his girlfriend's 15-month-old boy so brutally as to cause multiple skull fractures, and subsequently failing to summon medical assistance before the child died, the evidence was legally sufficient to prove the second mens rea element required to support defendant's conviction of depraved indifference murder of a child (Penal Law § 125.25 [4]): recklessness as to a grave risk of serious physical injury or death. While the evidence presented may have led inexorably to the conclusion that defendant acted voluntarily in his course of conduct against the child, it did not show that he intended to cause death or serious physical injury in the sense of having that as a conscious objective or purpose. The extensive injuries suffered by the child were explicable in light of his tender age and did not in themselves require the conclusion that defendant intended to cause serious physical injury or death. Rather, the jury could have rationally found beyond a reasonable doubt that defendant consciously disregarded the substantial and unjustifiable risk that death or serious physical injury would result, in a manner that constituted a gross deviation from the standard of conduct that a reasonable person would have observed (*see* Penal Law § 15.05 [3]). *People v Barboni*, 21 NY3d 393.

32. Depraved Indifference Murder.—An order of the Appellate Division, which affirmed a judgment convicting defendant of two counts of murder, kidnapping and tampering with physical evidence, was modified by reducing defendant's conviction of depraved indifference murder in the second degree to manslaughter in the second degree and remitting to County Court for resentencing. *People v Bell*, 21 NY3d 915.

PLEA OF GUILTY.

33. Withdrawal of Plea — Failure of Court to Advise Defendant of Consequences of Violating Conditions of Postrelease Supervision.—Defendant was not entitled to withdraw his guilty plea on the ground that the sentencing court failed to inform him that he could be subject to an additional term of imprisonment if he violated the conditions of his postrelease supervision. Although a trial court must advise a

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defendant of the direct consequences of a plea, it has no obligation to explain to defendants who plead guilty the possibility that collateral consequences may attach to their criminal convictions. A direct consequence of a plea is one which has a definite, immediate and largely automatic effect on defendant's punishment, and consists of the core components of a defendant's sentence: a term of probation or imprisonment, a term of postrelease supervision, a fine. By contrast, collateral consequences are peculiar to the individual and generally result from the actions taken by agencies the court does not control. The consequences of violating postrelease supervision are uncertain at the time of the plea, depending upon how a defendant acts in relation to a condition tailored to his circumstances and imposed in the future. Also, the State Board of Parole is responsible for establishing the conditions of a defendant's postrelease supervision. The Board decides whether or not a defendant has violated a condition of postrelease supervision, and, in the event a violation is determined to have occurred, the proper remedy. *People v Monk*, 21 NY3d 27.

34. Withdrawal of Plea — Overrule of Case Interpreting Youthful Offender Statute.—The decision to overrule *People v McGowen* (42 NY2d 905 [1977]) and require a sentencing court to determine whether an eligible defendant should be treated as a youthful offender even where defendant has failed to ask to be treated as a youthful offender, or has purported to waive his or her right to make such a request, should not allow any defendants who have pleaded guilty to withdraw their pleas. Defendant, who failed to make a request for juvenile offender consideration when he pleaded guilty, did not and could not seek plea withdrawal. The Court's interpretation of the youthful offender statute (CPL 720.20 [1]) provides no reason that defendant's plea, or that of any other defendant similarly situated, was not knowing and voluntary. If anything, defendant pleaded guilty under the impression that the law was less favorable to him than the Court has held that it is—in other words, the plea offer he accepted may have been better than he thought. That was not a misapprehension that would support an application to withdraw a plea. Therefore, the only remedy that any defendant would be entitled to under the decision to overrule *McGowen* would be consideration by the sentencing court of whether youthful offender treatment were appropriate or not. *People v Rudolph*, 21 NY3d 497.

35. Vacatur — Improper Denial of Suppression Motion.—In the prosecution of defendant, who pleaded guilty to driving while ability impaired after his motion to suppress a crack pipe and an open bottle of rum found during an inventory search of the vehicle he had been driving was denied, the Appellate Division, having concluded on appeal that the inventory search was improper, erred in applying harmless error analysis and finding defendant's guilty plea to be valid. The harmless error doctrine generally cannot be used to uphold a guilty plea that is entered after the improper denial of a suppression motion, but there are exceptions to this principle. A guilty plea entered after an improper court ruling may be upheld if there is no reasonable possibility that the error contributed to the plea. If the defendant articulates a reason for the plea that is independent of the incorrect preplea court ruling or an appellate court is satisfied that the decision to accept responsibility was not influenced by the error, a guilty plea may be upheld as valid. Here, however, the denial of the motion to suppress could not be viewed as harmless and the guilty plea must be vacated. After Supreme Court ruled that the police conducted a valid inventory search, defendant explained that he hoped to obtain a "positive ruling" on the suppression motion but "was not planning on going to trial if [he] got a negative ruling." Defendant then admitted that he drove while impaired. Since the Appellate Division determined that defendant was entitled to the "positive ruling" he sought, his statements to the court indicated that he may not have accepted responsibility if the crack pipe and open bottle of rum had been excluded as evidence. The fact that the People had other inculpatory evidence that could have been used against defendant at a trial was not inherently dispositive. *People v Wells*, 21 NY3d 716.

36. Withdrawal of Plea — Plea Induced by Promise of its Effect on Defendant's Minimum Term of Incarceration.—An order of the Appellate Division, which affirmed the denial of defendant's request to withdraw his guilty plea and his motion

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for resentencing, was reversed and the case remitted for further proceedings. Defendant, who was serving concurrent 4½ to 9 year indeterminate sentences for two drug-related convictions when he pleaded guilty to conspiracy in exchange for an indeterminate sentence of 6 to 12 years in prison upon the judge's representations that the plea would extend his minimum term of incarceration by only a year and a half, moved to have his guilty plea vacated following the reduction of his drug sentences to concurrent determinate sentences of three years under the Drug Law Reform Act of 2009 (CPL 440.46). Defendant's plea to the conspiracy count was induced by the judge's specific representation to him that he would thereby extend his minimum incarceration term by a year and a half only. It could not be said that defendant, who was clearly working toward achieving the earliest release date possible, would have pleaded guilty absent the assurance concerning the extension of his minimum term. When a guilty plea has been induced by an unfulfilled promise either the plea must be vacated or the promise honored, but the choice rests in the discretion of the sentencing court. *People v Monroe*, 21 NY3d 875.

PROOF OF OTHER CRIMES.

37. 911 Call Reporting Uncharged Gunpoint Robbery by Person Matching Defendant's Description.—In the prosecution of defendant for resisting arrest and criminal possession of a weapon that police officers found after stopping defendant and engaging in an aggressive confrontation with him, the trial court did not abuse its discretion in permitting the People to introduce as evidence a recording of a 911 call reporting that a person matching defendant's description committed an uncharged gunpoint robbery and testimony describing the radio run the officers received about the call. A trial court may, with proper limiting instructions, admit evidence of a prior, uncharged crime to provide background information explaining the police actions to the jury upon a finding that the probative value of the uncharged crime evidence outweighs the risk of undue prejudice to defendant. Here, the trial court reasonably determined that, given the aggressive nature of the police confrontation with defendant and the attendant risk of improper speculation by the jury, the 911 evidence was necessary to provide background information explaining all the police actions. The evidence was also probative of the officer's credibility with regard to the resisting arrest charge where the officers' testimony was contrary to testimony proffered by defendant. Any potential for prejudice was offset by the trial court's four strong limiting instructions which emphasized that the 911 call was not to be considered proof of the uncharged crime and which the jurors were presumed to have followed. Defendant was also permitted to testify regarding his innocent possession defense and to challenge the officers' version of the arrest without the risk of being cross-examined about the purported robbery. While defendant admitted to possessing the gun and agreed not to challenge the propriety of the stop, a trial court is not required to suppress uncharged crime evidence every time a defendant proposes some less prejudicial alternative to admission. Nor did the trial court exceed its discretion in declining to instruct the jury that the stop was proper and to limit the testimony to exclude the details of the radio run. Without a complete picture of the events preceding the encounter, the jury would have had little reason not to fault the officers for being overly aggressive and to discredit their testimony as untruthful. *People v Morris*, 21 NY3d 588.

RIGHT OF CONFRONTATION.

38. No Hearsay Basis for Opinion of Psychiatrist.—In the prosecution of defendant psychiatric patient for assaulting another patient, the testimony of the psychiatrist who evaluated defendant the day after the assault and prepared a discharge report in which she described her findings about defendant's mental state and recommended his arrest did not implicate the Confrontation Clause, and her opinion did not provide an illicit conduit for hearsay. The psychiatrist did not introduce any hearsay statements, and testified that she based her capacity assessment of defendant on her interview with him. Moreover, defense counsel successfully precluded such hearsay during the People's direct examination. *People v Daryl H.*, 21 NY3d 708.

RIGHT TO COUNSEL.

39. Effective Representation — Unfamiliarity with or Disregard for Basic Criminal Procedural and Evidentiary Law.—In a homicide prosecution, defendant was

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deprived of effective assistance of counsel where defense counsel's failures were so significant that his representation viewed in its totality was not meaningful. Defense counsel demonstrated a complete lack of familiarity with the specific motions and relevant legal criteria at the pretrial hearings, and his performance at trial was similarly inadequate. Counsel repeatedly failed to object to uncharged crime evidence without any discernable strategic basis, and failed to object during summation when the prosecutor vouched for the credibility of a witness and remarked on the supposed significance of defendant's left-handedness when no evidence was presented that the crime was committed by a left-handed person. Defense counsel was unprepared for the charge conference and failed to request any lesser included offense charge. While defense counsel's errors individually may not have constituted ineffective assistance, the cumulative effect of counsel's actions deprived defendant of meaningful representation. Defense counsel's actions throughout the case showed an unfamiliarity with or disregard for basic criminal procedural and evidentiary law. At the very least, defendant was entitled to representation by counsel with such basic knowledge, particularly so, when defendant was facing a major felony with significant liberty implications. *People v Oathout*, 21 NY3d 127.

40. Effective Representation — Conflict of Interest.—In a robbery prosecution wherein defense counsel continued to represent defendant after advising the court and defendant that his office had previously represented, in an unrelated criminal matter, a man who had been a potential suspect during the robbery investigation, defendant failed to establish that his counsel was ineffective based on an alleged conflict of interest. When an ineffective representation claim is premised on a potential conflict of interest, the defendant bears the burden of establishing that the potential conflict affected, operated on or bore a substantial relation to the conduct of the defense. Here, defendant had been identified as the gunman in a two-person taxi robbery by the taxi driver and by detectives who viewed photographs of the robbery taken by a camera in the taxi. During jury selection, defense counsel learned that fingerprints found in the taxi matched those of a second individual and that another man was also rumored to be involved. A potential conflict of interest was established by defense counsel's office's prior representation of the man rumored to be involved and its possession of privileged information connecting him to the man whose fingerprints were found. However, there was no physical evidence linking the former client to the robbery and his connection thereto was based on an unsubstantiated rumor provided to the police by defendant's brother. Defense counsel reasonably concluded that the former client was unlikely to be a necessary component of the overall defense strategy. Counsel was able to present a defense theory without implicating the former client or acting adversely to his interests and mounted a cogent misidentification and third-party culpability defense. Thus, the record did not establish as a matter of law that the potential conflict actually affected the presentation of the defense or otherwise impaired counsel's performance. Defendant, however, was not precluded from raising the issue in a CPL article 440 proceeding in order to supplement the record with additional facts to bolster the contention that the potential conflict affected the presentation of the defense. *People v Sanchez*, 21 NY3d 216.

41. Effective Representation — Duty to Investigate.—In a murder prosecution where the only evidence directly connecting defendant with the crime was his inculpatory statements, trial counsel's failure to secure and review crucial records pertaining to defendant's psychiatric history to assist in the development of counsel's strategy to challenge the voluntariness of defendant's admissions deprived defendant of the effective assistance of counsel (US Const 6th Amend; NY Const, art I, § 6) as a matter of law and compromised his right to a fair trial. At a post-conviction CPL 440.10 hearing, trial counsel testified that he decided not to obtain defendant's psychiatric records because of defendant's objections and instead sought to rely on the testimony of defendant's mother to establish defendant's mental history. Counsel acknowledged that his strategy was "born in the blind" without those records but he was concerned that he would be required to turn the records over to the prosecution if he obtained them. Given that the People's case rested almost entirely on defendant's inculpatory statements, trial counsel's ability to undermine

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the voluntariness of those statements was crucial. The strategy to present defendant's mental capacity and susceptibility to police interrogation could only be fully developed after counsel's investigation of the facts and law, which required review of records that would reveal and explain defendant's mental illness history. At a bare minimum, trial counsel should have obtained and reviewed the relevant records, and, after considering the pertinent information contained in the records, considered the contents of those records and pursued a strategy informed by both the available evidence and defendant's concerns. *People v Oliveras*, 21 NY3d 339.

42. Effective Representation — Consent to Seizure of Defendant's Clothing at Police Station.—In a homicide prosecution, the trial court did not err when it denied defendant's motion to suppress the clothing that was seized from him during questioning at the police station and then subjected to forensic analysis, on the basis that his attorney was ineffective in consenting to the seizure. Even assuming that the right to effective assistance of counsel attached prior to the seizure of the clothing and that suppression is the appropriate remedy where a seizure arises from ineffective assistance of counsel, defendant failed to demonstrate the absence of a strategic explanation for his attorney's alleged shortcomings. *People v Barboni*, 21 NY3d 393.

43. Effective Representation — Decision Not to Challenge Prospective Juror.—In a homicide prosecution, trial counsel's decision not to challenge a prospective juror who was unsure whether he would give more weight to a police officer's testimony, if it conflicted with civilian testimony, did not constitute ineffective assistance of counsel, where defendant failed to show the absence of a legitimate explanation for counsel's decision. The record showed that counsel was only fleetingly confused when she thought for a moment that the prospective juror had already been removed, then recalled that he was one she wished to keep. Furthermore, a defense counsel may legitimately decide not to challenge a prospective juror, notwithstanding his or her willingness to attach more credibility to police officers' testimony, because the prospective juror is attractive to the defense in other respects. This is particularly likely in a case, such as here, where there was no expectation of a conflict between the police officers' and civilians' testimony, such that defense counsel would seek to undermine police testimony. Moreover, trial counsel may have considered the prospective juror to be beneficial to the defense on the basis of his jury questionnaire. The record did not show a substantial risk that the prospective juror would not properly discharge his responsibilities, nor did it cast doubt on his ability to be fair. *People v Barboni*, 21 NY3d 393.

44. Effective Representation — Single Error — Use of Peremptory Challenges.—In a murder prosecution, defense counsel's decision not to use a peremptory challenge against a prospective juror, who volunteered that he had been "a friend" of the prosecuting attorney "for forty plus years," after the trial court had denied counsel's for-cause challenge to that panelist, did not amount to ineffective assistance of counsel notwithstanding the possibility that the juror would be biased in the prosecution's favor. While defense counsel's decision to refrain from challenging an old friend of the prosecutor's was an unconventional, perhaps risky choice, counsel may have liked the prospective juror's demeanor, or may have believed that his relationship with the prosecutor would make him bend over backwards to be fair. Lawyers selecting juries are not ineffective because they make unconventional choices or play hunches. Moreover, an ineffective assistance claim cannot succeed without a showing that the fairness of the trial was impaired and the record provided no basis for concluding that the juror's presence prejudiced defendant. *People v Thompson*, 21 NY3d 555.

45. Effective Representation — Single Error — Use of Peremptory Challenges.—In a murder prosecution, defense counsel's decision not to use a peremptory challenge against a prospective juror, who volunteered that he had been "a friend" of the prosecuting attorney "for forty plus years," after the trial court had denied counsel's for-cause challenge to that panelist, did not amount to ineffective assistance of counsel although by not using an available peremptory challenge to excuse the prospective juror, counsel failed to preserve for appeal any claim that the court erred in rejecting the for-cause challenge (*see* CPL 270.20 [2]). While the trial

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court's decision to deny the challenge for cause may have been error, counsel's failure to preserve the issue was not the sort of egregious and prejudicial single error that amounted to a deprivation of defendant's constitutional right to counsel. The issue of the for-cause challenge was not clear-cut and completely dispositive. Although the prospective juror and the prosecutor had a long relationship that the prospective juror described as a friendship, how intimate they were or how often they socialized was unknown, and they did not have a professional relationship as well as a personal one. While defense counsel's decision not to use a peremptory challenge on the prospective juror was questionable, it cannot be said that it rendered his representation of defendant as a whole ineffective. *People v Thompson*, 21 NY3d 555.

46. Effective Representation — Contentious Exchanges with Judge.—In a criminal prosecution, defendant was not denied effective assistance of counsel by his second attorney, who accused the judge of being “sarcastic,” “down right mean” and “cruel” and made a number of comments that were personal attacks on the judge and did not serve any purpose or strategy. While defense counsel's egregious behavior and comments were not to be condoned, they were made outside the presence of the jury, and he otherwise provided meaningful representation. Among other things, he adequately attacked the credibility of the witnesses and effectively brought out on cross-examination deficiencies in the evidence. *People v Glynn*, 21 NY3d 614.

47. Effective Representation — Taking Position Adverse to Client.—In a criminal prosecution, defendant was not denied effective assistance of counsel by his first attorney when, after defendant had asked the court for a new attorney based on statements made by defense counsel, the court relieved defense counsel and assigned new counsel of defendant's choosing. During a pretrial hearing, defense counsel failed to object to the trial judge continuing to preside over the prosecution after the judge had informed the parties that he may have either represented or prosecuted defendant in the past. Defense counsel also told the judge that defendant was not cooperating with him and stated for the record that the judge was “abundantly fair” to defendant. Although defense counsel took it upon himself, unnecessarily, to alert the court that defendant had not been cooperating with him and expressed his opinion on defendant's recusal motion, he was replaced upon defendant's request. Thus, the assignment of the new attorney remedied any harm. *People v Glynn*, 21 NY3d 614.

48. Effective Representation — Unwaived Actual Conflict of Interest.—Defendant's coram nobis application asserting ineffective assistance of appellate counsel was granted where defendant was not apprised, prior to or during the appeal process, that his counsel was simultaneously representing him and his codefendant at the latter's sentencing hearing and where defendant did not waive the actual conflict of interest. Simultaneous representation of two clients with conflicting interests means the lawyer cannot give either client undivided loyalty, and counsel has the duty to inform the client and the court so that the court may ascertain the nature of the conflict and give the client an opportunity to waive it. Appellate counsel's arguments at the sentencing hearing were in direct conflict with his strategy on defendant's appeal and this conflict was no less significant because counsel's representation of the codefendant ended prior to completion of defendant's representation. The successive representation concerned substantially related matters, but depended on mutually incompatible legal strategies, which undermined appellate counsel's loyalties. Moreover, conflicts arise even in cases of successive representation because even though a representation has ended, a lawyer has continuing professional obligations to a former client, including the duty to maintain that client's confidences and secrets, which may potentially create a conflict between the former client and a present client. *People v Prescott*, 21 NY3d 925.

49. Effective Representation — Counsel's Lack of Participation during Defendant's Trial in Absentia.—The judgment convicting defendant, in absentia, of weapons offenses and menacing was reversed, defendant's motion to vacate his conviction and sentence was granted and the case was remitted to Supreme Court for further proceedings on the indictment where counsel's lack of participation dur-

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ing the jury trial amounted to the ineffective assistance of counsel. Although a defendant's willful absence from trial surely hampers an attorney's ability to represent the client adequately and must be taken into consideration, a defendant may not, by his absence alone, waive his right to effective assistance of counsel. On the record, including defendant's cooperation with his attorney in formulating a defense before absconding, there was a reasonable basis for an active defense. *People v Diggins*, 21 NY3d 935.

50. Effective Representation — Conflict of Interest — Counsel Taking Position Adverse to Defendant on Motion to Withdraw Guilty Plea.—In a criminal prosecution, the trial court properly exercised its discretion in assigning new counsel when, prior to sentencing, defendant moved to withdraw his guilty plea arguing that his counsel coerced him into pleading guilty and defense counsel stated on the record his opposition to the motion. When asked by the court if defense counsel had anything to say on defendant's behalf, counsel said that he did not "adopt the merits or factual assertions relative to" the motion. Defense counsel expressed his concern to the court that if he did not respond to the motion, his silence might be deemed an acknowledgment that there was merit to the claims. A defendant has a right to the effective assistance of counsel on his or her motion to withdraw a guilty plea. The motion court has broad discretion in its fact-finding inquiry on the motion and often a limited interrogation by the court will suffice. When certain actions or inaction on the part of defense counsel is challenged on the motion, it may be necessary for defense counsel to address the matter when asked to by the court. When doing so, defense counsel should be afforded the opportunity to explain his performance with respect to the plea, but may not take a position on the motion that is adverse to the defendant. At that point, a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion. *People v Mitchell*, 21 NY3d 964.

51. Effective Representation — Conflict of Interest — Counsel Taking Position Adverse to Defendant on Motion to Withdraw Guilty Plea.—In a criminal prosecution, the trial court abused its discretion in not assigning new counsel when, prior to sentencing, defendant moved to withdraw his guilty plea arguing that his counsel coerced him into pleading guilty and defense counsel took a position contrary to the one taken by his client on the motion. Asked for his response, defense counsel stated that, in his opinion, the People had "two strong cases against [defendant] and I think he made a knowing plea and I think it was in his best interest." A defendant has a right to the effective assistance of counsel on his or her motion to withdraw a guilty plea. The motion court has broad discretion in its fact-finding inquiry on the motion and often a limited interrogation by the court will suffice. When certain actions or inaction on the part of defense counsel is challenged on the motion, it may be necessary for defense counsel to address the matter when asked to by the court. When doing so, defense counsel should be afforded the opportunity to explain his performance with respect to the plea, but may not take a position on the motion that is adverse to the defendant. At that point, a conflict of interest arises, and the court must assign a new attorney to represent the defendant on the motion. *People v Mitchell*, 21 NY3d 964.

52. Effective Representation — Rape Prosecution.—In a prosecution for first-degree rape in which defendant was charged with engaging in sexual intercourse with a person incapable of consent by reason of being physically helpless, defense counsel's alleged failings, such as his neglect to object to the prosecutor's comment in summation about condom use, did not amount to ineffective assistance of counsel. Defendant received meaningful representation. *People v Marra*, 21 NY3d 979.

RIGHT TO PUBLIC TRIAL.

53. Closure of Courtroom — Safety of Undercover Officer — Overriding Interest.—In a narcotics prosecution arising out of a drug transaction between defendant and an undercover officer, the record supported the trial court's determination that a specific link existed between the officer's safety and his open-court testimony to justify a partial courtroom closure during his testimony. A courtroom closure must satisfy a four-part standard to comport with the requirements of the Sixth Amend-

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ment. The first prong of that standard requires the party seeking closure to advance an overriding interest that is likely to be prejudiced. The safety of law enforcement officers may constitute an overriding interest where there is a substantial probability that the identified interest will be prejudiced by an open courtroom. Here, while the undercover officer was mainly assigned to a different precinct than the one where defendant was arrested, he made clear that he also continued to operate in the precinct of the arrest. The officer had a number of open cases from the area of the arrest and could be assigned there at any time. Thus, the inference was strong that he would return to the specific area of defendant's arrest for future undercover work. Moreover, the officer had previously been threatened with guns and knives and scissors, had a contract placed on his life, and had been patted down many times by suspects. In addition, having previously encountered suspects around the courthouse, the officer took steps to preserve his identity when entering courthouses. *People v Echevarria*, 21 NY3d 1.

54. Closure of Courtroom — Safety of Undercover Officer — Overriding Interest.—In a narcotics prosecution arising from a drug transaction between defendant and an undercover officer and observed by an undercover “ghost” officer, the trial court did not err in finding a nexus between the officers’ safety and their testimony in an open courtroom to justify a partial courtroom closure during the officers’ testimony. A courtroom closure must satisfy a four-part standard to comport with the requirements of the Sixth Amendment. The first prong of that standard requires the party seeking closure to advance an overriding interest that is likely to be prejudiced. The safety of law enforcement officers may constitute an overriding interest where there is a substantial probability that the identified interest will be prejudiced by an open courtroom. Here, the overriding interest prong was met inasmuch as both officers testified that they remained active and had open cases in the “vicinity” where defendant’s case “took place.” Notwithstanding the lack of a specific reference to street names, the officers’ testimony was sufficiently specific as the obvious implication was that the area or vicinity meant the localized area of defendant’s arrest. Moreover, both officers expected to return to the neighborhood for future undercover operations and both had been threatened or physically attacked with weapons and took care to conceal their identities when at courthouses. *People v Echevarria*, 21 NY3d 1.

55. Closure of Courtroom — Safety of Undercover Officer — Reasonable Alternatives.—In each of three separate drug buy-and-bust prosecutions, the trial courts discharged their duty to consider reasonable alternatives prior to determining that the courtrooms should be closed to the public during the undercover officers’ testimony, notwithstanding that the courts did not expressly comment on alternatives to closure on the record. A courtroom closure must satisfy a four-part standard to comport with the requirements of the Sixth Amendment. The third prong of that standard requires a trial court to consider reasonable alternatives to closure, even where the parties do not bring the alternatives to the attention of the court. However, a trial court need not always explicitly explain that it has considered but rejected alternative measures. In a buy-and-bust case, where the record makes no mention of alternatives, but is otherwise sufficient to establish the need to close the particular proceeding, it can be implied that the trial court, in ordering closure, determined that no lesser alternative would protect the articulated interest. Here, the trial court in each instance held a hearing and made a particularized finding that requiring the undercover officers to testify in open court would create a genuine risk to their physical safety. The courts limited the closures to the portions of the proceeding directly implicating the overriding interest—the undercover officers’ safety—by ordering the courtrooms closed only for the duration of the officers’ testimony. In addition, the courts in two cases made express exceptions for family members and the third court stated that it would consider an exception for family members who requested to attend. Thus, it was fair to imply that the trial courts concluded that no lesser alternative would have adequately protected the officers’ safety. *People v Echevarria*, 21 NY3d 1.

SEARCH WARRANT.

56. Confidential Informant — Failure to Establish Reliability of Informant.—On a motion to controvert a search warrant, Supreme Court erred by failing to examine

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the transcript of the confidential informant's testimony before the magistrate issuing the warrant to determine whether the search warrant was issued upon probable cause and that the formal requirements of CPL 690.40 (1) had been substantially complied with and the matter was remitted to that court. The warrant and a police officer's supporting affidavit did not by themselves establish probable cause as there were no factual averments in the officer's affidavit that could have afforded the magistrate a basis for determining the reliability of the confidential informant. The affidavit did not state that the informant had a proven "track record" of supplying reliable information, and it was not evident that the informant had been under oath when information was given to the officer. Nor could the reliability of the informant be inferred solely from the statement in the affidavit that the informant had purchased drugs from defendant. While admissions against penal interest may be sufficient to support a finding of probable cause, details provided by the informant were not corroborated by the police and did not establish that the informant was reliable. Moreover, by upholding the validity of the warrant without examining the transcript of the confidential informant's testimony, the Supreme Court failed to determine that the magistrate substantially complied with the requirements of CPL 690.40 (1), which concerns the examination, on the record, of persons possessing pertinent information in search warrant applications. *People v Chisholm*, 21 NY3d 990.

SENTENCE.

57. Resentence — Postrelease Supervision — Double Jeopardy.—The Double Jeopardy Clause of the Fifth Amendment did not bar the imposition of postrelease supervision (PRS) at the resentencing of defendants, notwithstanding their contention that they had completed serving their determinate sentences of imprisonment for the counts subject to PRS, because defendants could not have a legitimate expectation of finality in the determinate sentences until they had completed their aggregated sentences reflecting the time imposed for all of their convictions. Defendants were resentenced because the respective sentencing courts failed to impose PRS as part of the original sentences, and a determinate sentence without a term of PRS is illegal. The Double Jeopardy Clause's prohibition against multiple punishments for the same crime prevents a sentence from being increased once the defendant has a legitimate expectation in the finality of the sentence. Defendants' multiple sentences were subject to aggregation and/or merger under Penal Law § 70.30, and they would not have a legitimate expectation of finality until they completed their aggregated sentences. Their respective sentences should not be treated as separate and discrete because under Penal Law § 70.30 consecutive and concurrent sentences are merged or aggregated and thus made into one. *People v Brinson*, 21 NY3d 490.

58. Collateral Attack on Final Sentences Following Overrule of Case Interpreting Youthful Offender Statute.—The overruling of *People v McGowen* (42 NY2d 905 [1977]), which held that a defendant who made no assertion at the time of sentence that he was entitled to an adjudication of his youthful offender status waived his right thereto, should not have any application to cases where the appellate process has been completed. While there is a possibility that the overruling of *McGowen* might permit collateral attacks on sentences that have already become final, in light of the factors that determine the retroactivity of judicial decisions, the impact of *McGowen*'s overrule will be limited to cases still on direct review. *People v Rudolph*, 21 NY3d 497.

59. Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon.—A sentence imposed for "simple" knowing, unlawful possession of a loaded weapon outside one's home or business (Penal Law § 265.03 [3]) can properly be run consecutively to a sentence for another crime committed with the same weapon so long as the defendant knowingly unlawfully possesses the weapon before forming the intent to cause a crime with that weapon. Penal Law § 70.25 (2) prohibits consecutive sentences where either a single act or omission constitutes two offenses or where a single act or omission constitutes one of the offenses and a material element of another. Consecutive sentences may be

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imposed only where the act of possession is completed before the commission of the ensuing crime and with a mental state that both satisfies the mens rea element and is discrete from that of the underlying crime. Completion is measured by the point at which a defendant's relevant intent changes. The mens rea for "simple" possession is knowing unlawful possession of a loaded firearm and can be formed and need only exist at the very moment the person engages in prohibited conduct or acts to cause the prohibited result. *People v Brown*, 21 NY3d 739.

60. Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon.—In a criminal prosecution arising from an incident in which defendant got into an argument with the victim as they were leaving a club, then got into his van as a passenger, told the driver to follow the victim, then, when the victim stopped at a restaurant, got out of the van and shot him, defendant's sentence on his conviction for third-degree criminal possession of a weapon (former Penal Law § 265.02 [4]) was properly run consecutively to his sentence for his intentional murder conviction. A sentence imposed for "simple" knowing, unlawful possession of a loaded weapon outside one's home or business can properly be run consecutively to a sentence for another crime committed with the same weapon so long as the defendant knowingly unlawfully possesses the weapon before forming the intent to cause a crime with that weapon. Here, defendant was frisked for weapons before entering the club. Defendant must have possessed the gun used in the crime when he went to his van after leaving the club as there were no stops between the club and the restaurant where he shot the victim and no testimony that the gun was otherwise acquired. Moreover, even if defendant formed the intent to kill the victim before getting into the van, the gun must have already been in the van, over which defendant had dominion and control, before he initially encountered the victim. *People v Brown*, 21 NY3d 739.

61. Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon.—In a criminal prosecution arising from an incident in which defendant approached the victim's car and shot him several times 20 minutes after the victim had stopped his car to talk with a friend and saw defendant standing nearby, defendant's sentence for second-degree criminal possession of a weapon under Penal Law § 265.03 (3) was properly run consecutively to his sentences for attempted murder and assault convictions. A sentence imposed for "simple" knowing, unlawful possession of a loaded weapon outside one's home or business can properly be run consecutively to a sentence for another crime committed with the same weapon so long as the defendant knowingly unlawfully possesses the weapon before forming the intent to cause a crime with that weapon. Here, the victim fortuitously encountered defendant, whom he observed talking with a group of people for about 20 minutes before he was shot, and there was evidence that defendant possessed the gun for at least those 20 minutes. *People v Brown*, 21 NY3d 739.

62. Concurrent and Consecutive Terms — Unlawful Possession of Loaded Weapon and Subsequent Crime with That Weapon.—In a criminal prosecution arising from an incident in which defendant, accompanied by two others, chased the victim and shot him near a convenience store parking lot several minutes after defendant was seen in the convenience store where he admittedly had the gun tucked into the waistband of his pants, defendant's sentence for second-degree criminal possession of a weapon under Penal Law § 265.03 (3) was properly run consecutively to his sentences for the second-degree murder convictions. A sentence imposed for "simple" knowing, unlawful possession of a loaded weapon outside one's home or business can properly be run consecutively to a sentence for another crime committed with the same weapon so long as the defendant knowingly unlawfully possesses the weapon before forming the intent to cause a crime with that weapon. Here, defendant told the police that he did not go to the convenience store to rob the victim, but that the others were going to rob him and that he went along because he thought that they needed him if there was going to be a fight. The act of possession was complete while defendant was talking with an acquaintance in the convenience store with the gun in his waistband. At the point defendant was handed the illegal gun before entering the convenience store minutes before the murder, he must have

CRIMES—Cont'd

known that the gun was going to be used in the robbery. Then there was a break in the action. Only after leaving the store with the group and chasing the victim did defendant's possession of the gun become for the purpose of intentional murder. *People v Brown*, 21 NY3d 739.

UNLAWFUL SEARCH AND SEIZURE.

63. Inventory Search of Impounded Vehicle — Failure to Strictly Follow Procedure for Search Not Fatal.—In a prosecution for criminal possession of a weapon discovered during an inventory search of defendant's impounded vehicle, the search was not invalidated by the officer's failure to follow written police procedure when he gave some of the contents of the vehicle to defendant's sister without itemizing that property. It was defendant himself who called his sister to come to the precinct to retrieve his property. The primary objectives of the search—to preserve the property of defendant, to protect the police from a claim of lost property and to protect the police and others from dangerous instruments—were met when the officer complied with defendant's request and gave the items to his sister and then prepared a list of the other items retained by the police. *People v Padilla*, 21 NY3d 268.

64. Inventory Search of Impounded Vehicle — People's Satisfaction of Burden of Showing Valid Search.—In a prosecution for criminal possession of a weapon discovered during an inventory search of defendant's impounded vehicle, the People met their burden of establishing a valid inventory search of the vehicle where they proffered written guidelines for conducting the search, the searching officer's testimony regarding his search of the vehicle, and the resulting list of items retained. The police may conduct an inventory search of an impounded vehicle to properly catalogue its contents but an inventory search must not be a ruse for a general rummaging in order to discover incriminating evidence. The officer's testimony that it was police protocol to remove any owner-installed equipment, and that in accordance with that protocol he removed with a screwdriver stereo equipment filling the entire cargo area of the vehicle's trunk, thereby gaining access to the spare tire compartment where the contraband was discovered, was accepted by the hearing court and there were no grounds upon which to overturn that determination, notwithstanding defendant's contention that the officer's action was a ruse designed to search for drugs. Thus, the People met their burden of establishing that the search was in accordance with established procedure and resulted in a meaningful inventory list. *People v Padilla*, 21 NY3d 268.

65. Inventory Search of Impounded Vehicle — Search of Seat Panels.—In a prosecution for criminal possession of a weapon discovered during an inventory search of defendant's impounded vehicle, the search was not invalidated by the officer's looking into the askew back seat panels for evidence of narcotics. It was clear the officer's intention for the search was to inventory the items in the vehicle. It was reasonable for the officer to have checked in the rear seat panels that were askew as part of his inventory, and the fact that the officer knew that contraband is often hidden by criminals in the panels did not invalidate the entire search. *People v Padilla*, 21 NY3d 268.

66. Standing — Failure to Establish Legitimate Expectation of Privacy in Guest Bedroom of Apartment.—There was record support for the lower courts' determination that defendant, who was convicted of criminal possession of a weapon and other crimes arising from a shooting, lacked standing to contest a search that turned up a loaded gun found in the guest bedroom of his grandmother's apartment where defendant was residing because he had failed to establish a legitimate expectation of privacy in that bedroom. Whether a defendant demonstrates a legitimate expectation of privacy in premises is a mixed question of law and fact and, if there is record support for the Appellate Division's findings, those findings are beyond the Court of Appeals' review. There was no question that defendant resided in his grandmother's apartment. But there was record support for a finding that defendant's grandmother did not want defendant to have unfettered access to all areas of the apartment. She told the hearing court that defendant had his own bedroom and she reserved the extra or guest bedroom solely for use by other grandchildren when they came to visit. The record was silent as to whether defendant had ever used

CRIMES—Cont'd

that bedroom for any purpose. While a contrary finding might also have been reasonable, it could not be said that there was no record support for the lower courts' determination. *People v Leach*, 21 NY3d 969.

UNLICENSED GENERAL VENDING.

67. Selling T-Shirts Containing Expressive Content.—An order of the Appellate Term, which affirmed a judgment convicting defendant of unlicensed general vending in violation of Administrative Code of the City of New York § 20-453 for his selling of T-shirts allegedly containing artistic images of constitutionally protected expression, was affirmed. Although Criminal Court may have overemphasized the fact that the T-shirts defendant had been selling without a license could be worn as apparel, the Appellate Term reasonably found that their dominant purpose was utilitarian and, therefore, their sale was unprotected by the First Amendment. That court considered, among other factors, the way in which the shirts were displayed and their low, uniform selling price in coming to the conclusion that the T-shirts were primarily commercial goods. Accordingly, it could not be said that the Appellate Term's conclusion was error as a matter of law. *People v Lam*, 21 NY3d 958.

VERDICT.

68. Sufficiency of Evidence — Internal Consistency of Witness's Testimony.—In a prosecution for murder and criminal possession of a weapon, there was legally sufficient evidence to support defendant's convictions in light of the testimony of five witnesses, taken together with cell phone records. A legal sufficiency review requires evaluation of the evidence in the light most favorable to the People, and it must be assumed that the jury credited the People's witnesses and gave the prosecution's evidence the full weight it might reasonably be accorded. The testimony of one prosecution witness was not incredible as a matter of law. Incredibility as a matter of law may result when all of the evidence of guilt comes from a single prosecution witness who gives irreconcilable testimony pointing both to guilt and innocence. However, the witness in question did not provide internally inconsistent testimony, and she was not the source of all of the evidence of defendant's guilt. While her testimony differed in some respects from that of other, primarily defense, witnesses, resolution of such inconsistencies was for the jury. *People v Hampton*, 21 NY3d 277.

WITNESSES.

69. Failure to Call Witness — Jury Instructed to Disregard Missing Witness Argument.—In the prosecution of defendant for sexually assaulting the mother of his children wherein the People failed to call as a witness the police officer who responded to the complainant's 911 call and took her statement, which omitted any mention of the anal rape and other details that were in the complainant's later testimony, the courts below erred in holding that defense counsel's missing witness argument during summation was improper. When asked why her statement omitted any mention of forced anal intercourse the complainant testified that she had told the officer about that event, and the officer told her that no judge would believe that happened because of the intimate nature of her relationship with defendant. During summation defense counsel questioned whether the officer actually said that to the complainant and asked why the officer didn't testify and explain why he omitted the rape from the complainant's statement, but the trial judge sustained the People's objection and directed the jury to disregard counsel's comment. The trial court erred in holding that counsel should have asked for a missing witness instruction if he wanted to make a missing witness argument. The Appellate Division's alternative grounds for affirming—that the officer's testimony may have been cumulative and defendant failed to make an offer of proof—were also unsound. Just before making the missing witness argument, counsel had attacked as incredible the complainant's uncorroborated testimony as to what the officer said to her; confirmation of that testimony from the officer would not have been cumulative. Moreover, counsel had no obligation to make an offer of proof as a predicate for a missing witness argument. *People v Thomas*, 21 NY3d 226.

70. Failure to Call Witness — Jury Instructed to Disregard Missing Witness Argument — Harmless Error.—In the prosecution of defendant for sexually assault-

CRIMES—Cont'd

ing the mother of his children wherein the People failed to call as a witness the police officer who responded to the complainant's 911 call and took her statement, which omitted any mention of the anal rape and other details that were in the complainant's later testimony, the trial court's error in prohibiting defense counsel from making a missing witness argument with respect to the police officer during summation was harmless. Strong evidence corroborated the complainant's testimony that defendant anally raped her: rectal bleeding consistent with penetration and a bite mark on her back containing defendant's DNA. Also, the doctor who examined the complainant testified that the complainant told her about the anal rape—thus diminishing the significance of the omission of that incident from the statement the complainant gave the police officer. Although the forensic evidence could not show that the intercourse was not consensual, a finding that it was consensual was unlikely given the long, abusive relationship between defendant and the complainant; the complainant's detailed and consistent account of her ordeal; the bruising and swelling on her body; the bite mark; and her prompt report of the rape to the doctor. *People v Thomas*, 21 NY3d 226.

71. Identification Witness Permitted to Testify as to Threats Made Relative to His Testimony.—In a prosecution for burglary and robbery, the Appellate Division correctly held that the trial court properly exercised its discretion by allowing a store employee, who had identified defendant, to testify concerning threats made to him by third parties both before and during the trial relative to his testimony. There was sufficient circumstantial evidence to connect those threats to defendant, and the court charged the jury that it needed to determine first whether the threats had, in fact, occurred, and, if so, then whether the threats demonstrated consciousness of guilt on defendant's part. *People v Jones*, 21 NY3d 449.

72. Limited Questioning of Psychiatrist as Fact Witness.—In the prosecution of defendant psychiatric patient for assaulting another patient, the trial court did not improperly restrict defendant's questioning of the psychiatrist who evaluated defendant the day after the assault and prepared a discharge report in which she described her findings about defendant's mental state and recommended his arrest. The trial court limited the People's direct examination of the psychiatrist to facts: defendant's admissions to her during the interview and the events leading up to his arrest. On direct examination, the court prevented the psychiatrist from giving opinion testimony, including her assessment of defendant's capacity at the time of his arrest. As the psychiatrist gave no opinion testimony, defendant was not denied the opportunity to explore the basis of such testimony during cross-examination. Moreover, defense counsel's attempts to question the psychiatrist with respect to the discharge report and the deposition she gave were properly rebuffed. As a fact witness, any prior statements by her could only be admissible if inconsistent with her in-court statements, and the trial court found they were not inconsistent. Although defense counsel did eventually elicit testimony from the psychiatrist regarding defendant's capacity to appreciate his conduct when, on cross-examination, she admitted that her recommendation to arrest defendant relied, in part, on her assessment of his capacity, defense counsel failed to probe that opinion testimony. Nor did counsel pursue the hearsay basis for the capacity assessment on re-cross-examination after the People, during redirect, properly asked the psychiatrist to elaborate her assessment. *People v Daryl H.*, 21 NY3d 708.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

ELECTIONS.

DESIGNATING PETITIONS.

1. Petition to Validate.—The Appellate Division, in dismissing a proceeding to validate a petition designating petitioner-respondent as a candidate in a primary election, properly determined that the validating petition did not sufficiently specify which determinations of the board of elections petitioner claimed were erroneous. *Matter of Lacorte v Cytryn*, 21 NY3d 1022.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT, CHILD AND FAMILY; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; PARENT, CHILD AND FAMILY; SCHOOLS; SOCIAL SERVICES, and other specific titles.

YOUTHFUL OFFENDERS.

1. Sentencing Court Must Determine Status — Nonwaivable Determination.— Compliance with the statutory command of CPL 720.20 (1), which provides that where a defendant is eligible to be treated as a youthful offender, the sentencing court “must” determine whether he or she is to be so treated, cannot be dispensed with, even where defendant has failed to ask to be treated as a youthful offender, or has purported to waive his or her right to make such a request. The legislature’s use of the word “must” in that context reflects a policy choice that there be a youthful offender determination in every case where the defendant is eligible, even where the defendant fails to request it, or agrees to forgo it as part of a plea bargain. To disable a court from making a decision as to whether youthful offender treatment would be justified is effectively to hold that the defendant may not have the opportunity for a fresh start, without a criminal record, even if the judge would conclude that that opportunity was likely to turn the young offender into a law-abiding, productive member of society. The judgment of a court as to which young people have a real likelihood of turning their lives around is just too valuable, both to the offender and to the community, to be sacrificed in plea bargaining. *People v Rudolph*, 21 NY3d 497.

2. Sentencing Court Must Determine Status.—*People v McGowen* (42 NY2d 905 [1977]), which held that a defendant who made no assertion at the time of sentence that he was entitled to an adjudication of his youthful offender status waived his right thereto, incorrectly interpreted the youthful offender statute (CPL 720.20 [1]) and is overruled. *People v Rudolph*, 21 NY3d 497.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS’ COMPENSATION, and other specific titles.

BUSINESS INSURANCE.

1. Indemnification — Disgorgement Payment.—In an insurance dispute arising from the insured broker-dealer and clearing firm’s monetary settlement of a Securities and Exchange Commission (SEC) proceeding and related private litigation predicated on the insured’s violations of federal securities laws, the primary and excess insurers were not entitled to dismissal of the insured’s coverage claim for that portion of the settlement that was paid to the SEC as disgorgement. The professional liability policies issued to the insured provided that the insurers were to pay on behalf of the insured all loss for which the insured became legally obligated to pay as a result of any claim for any wrongful act of the insured. According to the policies, loss included compensatory damages, judgments, settlements, costs, charges and expenses. The policy rationale for precluding indemnity for disgorgement is to prevent the wrongdoer from retaining the proceeds of its illegal acts by shifting the loss to the insurer. Here, the order issued by the SEC after accepting the insured’s settlement offer recited that the insured’s misconduct enabled its “customers to generate hundreds of millions of dollars in profits.” The findings in the order did not establish that the disgorgement payment was predicated on

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moneys the insured itself improperly earned as a result of its securities violations. Hence, the documentary evidence did not decisively repudiate the insured's allegation that the disgorgement payment amount was calculated in large measure on the profits of others. *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324.

2. Indemnification — Public Policy Exception for Intentionally Harmful Conduct.—In an insurance dispute arising from the insured broker-dealer and clearing firm's monetary settlement of a Securities and Exchange Commission (SEC) proceeding and related private litigation predicated on the insured's violations of federal securities laws, the primary and excess insurers were not entitled to dismissal of the insured's claims for indemnification based on a public policy exception for intentionally harmful conduct. The professional liability policies issued to the insured provided that the insurers were to pay on behalf of the insured all loss for which the insured became legally obligated to pay as a result of any claim for any wrongful act of the insured. According to the policies, loss included compensatory damages, judgments, settlements, costs, charges and expenses. Generally, parties to an insurance arrangement may contract as they wish and courts will enforce their agreements without passing on the substance of them. However, as a matter of public policy, an insured may not seek coverage when it engages in conduct with the intent to cause injury. Under this narrow public policy exception, the insurer must establish that the insured acted both intentionally and with the intent to harm or injure others. Here, the order issued by the SEC after accepting the insured's offer of settlement stated that the insured "willfully" violated numerous federal securities laws through its active facilitation of late trading and market timing activities on behalf of its customers. In consenting to the settlement, the insured made no admissions or denials of guilt with regard to the findings. While the SEC order found the insured's securities laws violations to be willful, it did not conclusively demonstrate that the insured had the requisite intent to cause harm. Thus, it could not be said, as a matter of law, that the public policy exception clearly barred the insured's claims. *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324.

CONTRIBUTION AMONG INSURERS.

3. Allocation of Liability.—In an action seeking a declaratory judgment that defendant insurer was required to indemnify plaintiff, up to the liability limits of two consecutive one-year commercial general liability policies, for the settlement amount and certain defense fees and costs of an underlying civil action charging sexual molestation of a minor by a priest over a span of six years and seven policy periods, a pro rata allocation of liability was consistent with the language of the policies at issue. By example, one of defendant's policies provided coverage for bodily injury only if the bodily injury "occurs during the policy period" and is caused by an "occurrence." The policy's coverage was limited only to injury that occurred within the finite one-year coverage period of the policy. Assuming that the minor plaintiff suffered "bodily injury" in each policy year, it would be consistent to allocate liability across all implicated policies, rather than holding a single insurer liable for harm suffered in years covered by other successive policies. There was no indication that the parties intended that plaintiff's total liability for bodily injuries sustained during the six-year period of abuse would be assumed by a single insurer. Moreover, a joint and several allocation was not applicable as plaintiff could not precisely identify the sexual abuse incidents to particular policy periods. As the minor plaintiff in the underlying action could only give a broad time-frame in which the sexual abuse was perpetrated, proration of liability would acknowledge the fact that there was uncertainty as to what actually transpired during any particular policy period. *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139.

DUTY TO DEFEND AND INDEMNIFY.

4. Applicability of Disclaimer Notice Requirements to Defenses Based on Liability Limitations.—In an action seeking a declaratory judgment that defendant insurer was required to indemnify plaintiff, up to the liability limits of two consecutive one-year commercial general liability policies, for the settlement amount and certain defense fees and costs of an underlying civil action charging sexual molestation of a

INSURANCE—Cont'd

minor by a priest over a span of six years and seven policy periods, defendant's affirmative defenses regarding the application of the self-insured retention (SIR) requirement and the apportionment of liability on a pro rata basis were not subject to the notice requirements of Insurance Law § 3420 (d). Although failure to comply with Insurance Law § 3420 (d) notice requirements bars an insurer from seeking to disclaim coverage, defendant was under no statutory duty to disclose a liability limitation, and therefore was not barred from making its arguments regarding the application of the SIR, and allocation. The defenses did not relate to an argument of exclusion or disclaimer, but rather, focused on the extent of alleged liability under the various policies. *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139.

5. Policy Exclusions Irrelevant if Duty to Defend Breached.—A liability insurer that has breached its duty to defend its insured may not later rely on policy exclusions to escape its duty to indemnify the insured for a judgment against him. Accordingly, in an action against the legal malpractice insurer of an attorney who assigned all his rights against the insurer to plaintiffs with respect to a default judgment they obtained against the attorney on legal malpractice claims, defendant insurer, by breaching its duty to defend the attorney, lost its right to rely on certain policy exclusions in litigation over its indemnity obligation. The complaint in plaintiffs' underlying action against the attorney unmistakably pleaded a claim for legal malpractice, and it was clear that defendant breached its duty to defend. While defendant had reason to be skeptical of the claim, that meant only that the claim against the attorney may have been groundless or not covered, but it did not allow defendant to escape its broader duty to defend. An insurance company that has disclaimed its duty to defend may litigate only the validity of its disclaimer. If the disclaimer is found bad, the insurance company must indemnify its insured for the resulting judgment, even if policy exclusions would otherwise have negated the duty to indemnify. It would be unfair to insureds, and would promote unnecessary and wasteful litigation, if an insurer, having wrongfully abandoned its insured's defense, could then require the insured to litigate the effect of policy exclusions on the duty to indemnify. *K2 Inv. Group, LLC v American Guar. & Liab. Ins. Co.*, 21 NY3d 384.

EXCLUSIONS.

6. Claims Arising out of Gain of Illegal Profits.—In an insurance dispute arising from the insured broker-dealer and clearing firm's monetary settlement of a Securities and Exchange Commission (SEC) proceeding and related private litigation predicated on the insured's violations of federal securities laws, the primary and excess insurers were not entitled to dismissal of the insured's coverage claim based on a policy exclusion for claims "arising out of [the insured] gaining in fact any personal profit or advantage to which [the insured] was not legally entitled." The order issued by the SEC after accepting the insured's offer of settlement stated that the insured "willfully" violated numerous federal securities laws through its active facilitation of late trading and market timing activities on behalf of its customers and that the insured's misconduct enabled its "customers to generate hundreds of millions of dollars in profits." In consenting to the settlement, the insured made no admissions or denials of guilt with regard to the findings. Because the insured alleged, and the SEC order did not conclusively refute, that its misconduct profited others, not itself, the exclusion did not defeat coverage under CPLR 3211. *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324.

7. Wrongful Acts Committed before Policy's Effective Date.—In an insurance dispute arising from the insured broker-dealer and clearing firm's monetary settlement of a Securities and Exchange Commission (SEC) proceeding and related private litigation predicated on the insured's violations of federal securities laws, defendant excess insurance carrier was not entitled to dismissal of the insured's coverage claims based on a policy exclusion for claims arising from a wrongful act committed before the policy's March 21, 2000 effective date if any officer of the insured knew or could have reasonably foreseen that the wrongful act could lead to a claim. The order issued by the SEC after accepting the insured's offer of settlement set forth detailed findings stating that, between 1999 and 2003, the insured

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“willfully” violated numerous federal securities laws through its active facilitation of late trading and market timing activities on behalf of its customers. However, in consenting to the settlement, the insured made no admissions or denials of guilt with regard to the findings. Moreover, numerous disputed factual assertions remained concerning the insured’s knowledge of the relevant facts prior to March 21, 2000, and whether a person in the insured’s position could have reasonably foreseen that those facts might be the basis of a claim under the policies. Thus, the insurer did not meet its burden of establishing, as a matter of law, that the insured was barred from pursuing coverage. *J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324.

LIABILITY INSURANCE.

8. “Occurrence” — Self-Insured Retention.—In an action involving an insurance coverage dispute regarding the apportionment of liability for a settlement between the insured and a minor plaintiff in the underlying action charging sexual molestation by a priest on several occasions in various locations from 1996 through 2002, the Court of Appeals affirmed an order of the Appellate Division which declared that the alleged acts of sexual abuse constituted multiple occurrences, that the settlement amount should be allocated on a pro rata basis over seven policy periods, and that plaintiffs must exhaust the self-insured retention for each policy implicated. *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139.

PROPERTY INSURANCE.

9. Coverage for Vandalism — Act Not Directed Specifically at Covered Property.—For purposes of construing a property insurance policy covering acts of vandalism, malicious damage may be found to result from an act not directed specifically at the covered property. Vandalism, as the term is ordinarily understood, need not imply a specific intent to accomplish any particular result; vandals may act simply out of a love of excitement, or an unfocused desire to do harm, or out of a desire to enrich oneself without caring about the consequences to others. Here it was not relevant that the alleged act of vandalism by the owner of the lot next door to plaintiff’s apartment building and its contractors—the continued excavation, in defiance of stop work and temporary restraining orders, of the lot resulting in cracks in the walls and foundations of plaintiff’s building—did not bring the alleged vandals in direct contact with the covered property. Where damage naturally and foreseeably results from an act of vandalism, a vandalism clause in an insurance policy should cover it. *Georgitsi Realty, LLC v Penn-Star Ins. Co.*, 21 NY3d 606.

10. Coverage for Vandalism — State of Mind.—To obtain coverage under a property insurance policy covering acts of vandalism, the insured must show malice, defined as such a conscious and deliberate disregard of the interests of others that the conduct in question may be called willful or wanton. That familiar test, used in reviewing awards of punitive damages, serves to distinguish between acts that may fairly be called vandalism and ordinary tortious conduct. Insurance against vandalism should not be converted into something approaching general coverage for property damage. *Georgitsi Realty, LLC v Penn-Star Ins. Co.*, 21 NY3d 606.

UNFAIR CLAIM SETTLEMENT PRACTICES.

11. Bad Faith Failure to Settle Legal Malpractice Claim.—In an action against the legal malpractice insurer of an attorney who assigned all his rights against the insurer to plaintiffs with respect to a default judgment they obtained against the attorney on legal malpractice claims, plaintiffs’ claims based on defendant’s alleged bad faith failure to settle the malpractice claim against the attorney for a sum lower than the policy limit were properly dismissed. An insurer’s rejection of a settlement offer for less than the full amount of its policy does not by itself establish the insurer’s bad faith, even when the insured later suffers a judgment greater than the policy limit. A plaintiff claiming bad faith must establish that the defendant insurer engaged in a pattern of behavior evincing a conscious or knowing indifference to the probability that an insured would be held personally accountable for a large judgment if a settlement offer within the policy limits were not accepted. Plaintiffs al-

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leged no facts showing that “bad faith” in that sense was present. Nothing in the record suggested that defendant knew or should have known that the malpractice claim against its insured was worth significantly more than the settlement offer—let alone more than the far greater policy limit. *K2 Inv. Group, LLC v American Guar. & Liab. Ins. Co.*, 21 NY3d 384.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.**RECUSAL.**

1. Bias or Prejudice.—In a prosecution for various drug offenses, the trial court’s refusal to recuse itself was not an improvident exercise of discretion where defendant did not allege any statutory grounds for disqualification under Judiciary Law § 14 and conceded that the trial judge was not required to recuse himself simply because he had previously defended or prosecuted defendant, and the judge’s allegedly “inappropriate” comments about defendant’s character during a plea discussion were not indicative of bias or prejudice. For any alleged bias and prejudice to be disqualifying it must stem from an extrajudicial source and result in an opinion on the merits on some basis other than what the judge learned from his or her participation in the case. Here, the judge’s comments that defendant had never had a job “on the books,” had smoked marihuana daily for 32 years, had an extensive criminal history, and was “going to owe well over a million dollars in child support,” were based on the information contained in the presentence investigation report and made during the course of the judge’s execution of his responsibilities in presiding over the matter. Furthermore, there was no other record evidence that actual bias or prejudice existed. Moreover, the judge sua sponte raised the issue of his prior relation with defendant and could not recall any particulars of the past criminal matters. *People v Glynn*, 21 NY3d 614.

REVIEW OF MATTER PENDING BEFORE JUDGE OF COORDINATE JURISDICTION.

2. Review of Transcript of Oral Argument of Motion — Lack of Prejudice.—Judiciary Law § 21 does not bar a substitute judge from deciding a question of law presented in a motion argued orally before another judge so long as a transcript or recording of the prior argument is available for review, and the substitute indicates on the record the requisite familiarity with the proceedings and no undue prejudice occurs to the parties. Thus, section 21 did not mandate a mistrial or that a pending motion be reargued orally in front of a substitute judge, where the trial judge had reserved decision on the criminal defendant’s motion for a trial order of dismissal at the close of proof but, following the verdict convicting defendant and before the trial judge’s decision on the motion, the trial judge recused himself and the case was reassigned to the substitute judge. First, the legal sufficiency of the prosecution’s case presented a pure question of law. A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt. Questions of quality or the weight to be given to the proof are not to be considered in such an evaluation. Next, the substitute judge made it clear in his decision that he had reviewed and was familiar with the prior proceedings in the case. Finally, defendant demonstrated no prejudice. Although the original trial judge may have expressed some reservations about the proof, nothing in the Judiciary Law entitles a defendant to have a particular judge decide a motion. *People v Hampton*, 21 NY3d 277.

SUSPENSION FROM OFFICE.

3. The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office. *Matter of George*, 21 NY3d 931.

JUDGES—Cont'd

4. The Court of Appeals, on its own motion, pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), suspended a Town Court Justice from office. *Matter of Alexander*, 21 NY3d 1021.

5. The Court of Appeals continued the suspension, with pay, of a Town Court Justice from office. *Matter of Alexander*, 21 NY3d 1067.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

DEFAULT JUDGMENT.

1. Proof of Facts Constituting Claim — Non-Jurisdictional Defect.—In an action alleging that plaintiff had provided telephone service to defendants, a number of corporations and an alleged principal officer, pursuant to a written agreement, and had not been paid, plaintiff's failure to supply "proof of the facts constituting the claim" (CPLR 3215 [f]) against the principal officer in his individual capacity did not constitute a jurisdictional defect that rendered the default judgment entered a nullity. The defect was not so fundamental that it deprived the court of power to enter the judgment. Although a failure to submit the proof required by CPLR 3215 (f) should lead a court to deny an application for a default judgment, a court that does not comply with that rule has merely committed an error and has not usurped a power it does not have. The error can be corrected by an application for relief from the judgment pursuant to CPLR 5015. *Manhattan Telecom. Corp. v H & A Locksmith, Inc.*, 21 NY3d 200.

ENFORCEMENT.

2. Restraining Notice — Debt or Property Subject to Enforcement — At-Will Prepayment Service Agreement.—A restraining notice served by petitioner judgment creditor on respondent corporation was unenforceable with regard to a prepayment service agreement between respondent and the judgment debtor under which the judgment debtor sent monthly invoices for proposed services to be rendered the following month and respondent, after determining each week whether to accept the services, paid in advance or contemporaneously with the service. A party seeking to enforce a judgment may seek to restrain or prohibit the transfer of a judgment debtor's property in the hands of a third party. A restraining notice served on a third party "is effective only if, at the time of service, he or she owes a debt to the judgment debtor or obligor or . . . is in the possession or custody of property in which he or she knows or has reason to believe the judgment debtor or obligor has an interest." (CPLR 5222 [b].) A money judgment may be enforced against a debt that is past due or which is yet to become due or any property which could be assigned or transferred, whether it constitutes a present or future right or interest and whether or not it is vested (CPLR 5201 [a], [b]). Inasmuch as respondent prepaid for its service, there was no debt past due or yet to become due. Further, the agreement here could not be deemed an attachable or assignable property interest. The parties had no continuing obligation to each other given that either party could terminate the agreement at will, at any time and without prior notice or penalty. Although respondent had continued its relationship with the judgment debtor and had never terminated the agreement, the expectation of any continued or future business was too contingent in nature and speculative to create a present or future property interest. *Verizon New England Inc. v Transcom Enhanced Servs., Inc.*, 21 NY3d 66.

SUMMARY JUDGMENT.

3. In a personal injury action arising out of plaintiff's trip over a suitcase, the Appellate Division correctly held that defendants were entitled to summary judgment. *Koulajian v Smith*, 21 NY3d 918.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

LABOR—Cont'd**HOURS AND WAGES.**

1. Gratuities — Employer-Mandated Tip Pool — Employer's Right to Exclude Certain Employees.—Labor Law § 196-d, which excludes certain people from an employer-mandated tip pool if they are granted meaningful authority or control over subordinates, does not require the inclusion of all employees not statutorily barred from participation, although there may be an outer limit to an employer's ability to excise certain classifications of employees from a tip pool. Defendant employer's decision to exclude assistant store managers from the employer-mandated tip pool was not contrary to Labor Law § 196-d. Assistant store managers helped store managers interview applicants, assigned work shifts to baristas and shift supervisors, evaluated employee performance, participated in decisions to hire or fire employees, recommended corrective action for employee infractions and processed payroll. They were full-time employees who received a salary if they worked at least 37 hours per week and were eligible for quarterly bonuses and certain benefits, including holiday and sick pay. *Barenboim v Starbucks Corp.*, 21 NY3d 460.

2. Gratuities — Employer-Mandated Tip Pool — Who May Participate.—An employee whose personal service to patrons is a principal or regular part of his or her duties may participate in an employer-mandated tip allocation arrangement under Labor Law § 196-d, even if that employee possesses limited supervisory responsibilities. But an employee granted meaningful authority or control over subordinates can no longer be considered similar to waiters and busboys within the meaning of section 196-d and, consequently, is not eligible to participate in a tip pool. The Department of Labor's long-standing construction of section 196-d, as codified in the Hospitality Industry Wage Order, limits tip-pool eligibility to workers who "perform, or assist in performing, personal service to patrons at a level that is a principal and regular part of their duties and is not merely occasional or incidental" (12 NYCRR 146-2.14 [e]). Accordingly, employer-mandated tip splitting should be limited to employees who, like waiters and busboys, are ordinarily engaged in personal customer service, a rule that comports with the expectations of the reasonable customer. Moreover, the Department has consistently and reasonably maintained that employees who regularly provide direct service to patrons remain tip-pool eligible even if they exercise a limited degree of supervisory responsibility. *Barenboim v Starbucks Corp.*, 21 NY3d 460.

PREVAILING RATE OF WAGES.

3. Municipal Vessel as Public Work.—Plaintiffs, who repaired and maintained municipal vessels pursuant to contracts between defendant employer and municipal agencies, were entitled to be paid the prevailing rate of wages and supplemental benefits for work performed on public works (*see* Labor Law § 220 [3] [a]). A municipal vessel is a public work within the meaning of Labor Law § 220 and article I, § 17 of the State Constitution—so that workers involved in its construction, maintenance or repair must be paid prevailing wages—if the vessel's primary objective is to benefit the general public. For a particular project to be subject to the prevailing wage requirements a public agency must be a party to a contract involving the employment of laborers, workers, or mechanics; the contract must concern a project that primarily involves construction-like labor and is paid for by public funds; and the primary objective or function of the work product must be the use or other benefit of the general public. Plaintiffs worked on such vessels as the Staten Island Ferry boats, New York City fireboats, and New York City Department of Sanitation garbage barges. A ferry boat is made for the use of the general public, and although a fireboat, tug or barge is not made to be used by the public, its function is to serve the general public. *De La Cruz v Caddell Dry Dock & Repair Co., Inc.*, 21 NY3d 530.

SAFE PLACE TO WORK.

4. Elevation-Related Hazard — "Cleaning" as Protected Activity.—Plaintiff, an employee of a commercial cleaning company hired to provide daily custodial services at a retail store, who was injured when he fell from a four-foot-tall ladder while dusting a six-foot-high display shelf, was not engaged in "cleaning" within the

LABOR—Cont'd

meaning of Labor Law § 240 (1). Section 240 (1) imposes absolute liability on owners and contractors when a worker is injured as a direct consequence of the failure to provide safety devices for work involving elevation-related risks in “the erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure.” An activity cannot be characterized as “cleaning” under the statute if the task is (1) routine, i.e., occurring on a daily, weekly or other recurring basis as part of the ordinary maintenance and care of commercial premises, (2) requires neither specialized equipment or expertise, nor the unusual deployment of labor, (3) generally involves insignificant elevation risks comparable to those in typical household cleaning, and (4) is unrelated to any ongoing construction, renovation, painting, alteration or repair project. The presence or absence of any one factor is not dispositive if, viewed in totality, the remaining considerations militate in favor of placing the task in one category or another. Here, the dusting of a six-foot-high display shelf is the type of routine maintenance that occurs frequently in a retail store. It did not require specialized equipment or knowledge and could be accomplished by a single custodial worker using tools typically found in a domestic setting. Further, the elevation-related risks involved were comparable to those encountered by homeowners during ordinary household cleaning and the task was unrelated to a construction, renovation, painting, alteration or repair project. *Soto v J. Crew Inc.*, 21 NY3d 562.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

LEASE.

1. Breach of Lease Condition.—Plaintiff landlords’ breach of contract cause of action against defendant tenant for allegedly returning the leased premises, which the tenant operated as a homeless shelter under an agreement with defendant municipality, in bad condition was barred by the plain language of the lease. The lease provided that, as a general proposition, the tenant was not obliged to pay more to plaintiffs than it could recover from the municipality, and that the tenant must do what it reasonably could to recover what the municipality owed it. If the tenant breached its duty to use commercially reasonable efforts to enforce an obligation of the municipality, it could not rely on the municipality’s nonpayment of that obligation to defeat plaintiffs’ claim. The amended complaint, however, failed to allege any commercially reasonable step that the tenant should have taken to recover money from the municipality. If the building had been in “extreme disrepair” and required \$200 million in repairs as plaintiffs alleged then they were not required, under the lease, to accept the termination of the lease. Plaintiffs could have insisted that the lease remain in force, and that the tenant continue to pay rent, until the building was fixed, but they accepted the \$10 million termination fee provided for in the lease to be paid by the municipality on behalf of the tenant. Having chosen to take the money, plaintiffs had no further remedy under the lease. *JFK Holding Co. LLC v City of New York*, 21 NY3d 722.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

PRIVILEGE.

1. Fair and True Report of Judicial Proceeding.—In a defamation action alleging that defendant newspaper’s reporting was false and misleading in a series of published articles charging that plaintiff and the company he chaired had admitted that the company cheated the government over a period of several years on military freight contracts that had been the subject of federal litigation ultimately settled by the company’s guilty plea, the challenged statements were entitled to immunity under Civil Rights Law § 74, which provides that “[a] civil action cannot be maintained against any person, firm or corporation, for the publication of a fair and true report of any judicial proceeding.” Plaintiff maintained that the articles and editorials reported prolonged wrongdoing as opposed to a single admitted false statement and that the average reader would think that plaintiff had personally

LIBEL AND SLANDER—Cont'd

engaged in wrongful conduct. Viewing the articles as a whole, the average reader would conclude that the company, and not the plaintiff, pleaded guilty to wrongdoing and that a multimillion dollar restitution amount covered more than the single incident to which plaintiff had admitted. Newspaper accounts of legislative or other official proceedings must be accorded some degree of liberality. Defendant provided substantially accurate reporting of the plea agreement and the fines and restitution, as discussed in open court. *Alf v Buffalo News, Inc.*, 21 NY3d 988.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

FIREARMS.

1. No Domicile Requirement for Handgun License.—Penal Law § 400.00 (3) (a) does not preclude an individual who owns a part-time residence in New York but makes his or her permanent domicile in another state from applying for a New York handgun license. Generally, establishing residence turns on whether one has a significant connection with some locality in the state as the result of living there for some length of time during the course of a year, whereas domicile requires a physical presence in a place with an intention to make the place a permanent home. Thus, an individual can have more than one residence, but only one domicile. Penal Law § 400.00 (3) (a) refers to the applicant's residence in the context of delineating the procedure whereby an individual files an application for a license, instructing the applicant to apply to the licensing officer in the city or county where he or she resides (or is principally employed, etc.). The plain language of the statute is not consistent with the theory that the law requires an applicant to establish domicile as an eligibility requirement. Moreover, the legislative history of the statutes that underlay Penal Law § 400.00 evinces an intent to ensure that an applicant applies in his or her place of residence, rather than an intent to limit licenses to applicants who make their domicile in New York. The residency language was added in order to discourage forum-shopping. Most conclusively, Penal Law § 400.00 itself contemplates that licenses may be issued to individuals who do not make their domicile in New York. Since a handgun license may be issued, under Penal Law § 400.00 (7), to "an alien, or to a person not a citizen of and usually a resident" in New York State, it is clear that there is no requirement of domicile. *Osterweil v Bartlett*, 21 NY3d 580.

LIENS.**MECHANIC'S LIEN.**

1. Building Loan Contract — Filing Requirements.—Plaintiff lender violated Lien Law § 22 by failing to file the loan agreement between plaintiff's predecessor and defendant borrowers, which constituted a "building loan contract" as defined under Lien Law § 2 (13), and the amendment to the loan agreement, which was not a stand-alone document but a compilation of edits of various provisions in the initial agreement. Lien Law § 22 specifies that modifications of building loan contracts must be filed. Regardless of whether or not the loan agreement, as modified by the amendment, was no longer a building loan contract as defined by Lien Law § 2 (13), plaintiff was still obligated to file the amendment. Lien Law § 22 does not state that modifications to a building loan contract must be filed only so long as the contract, as modified, remains a building loan contract within the meaning of the Lien Law. *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352.

2. Building Loan Contract — What Constitutes.—A loan agreement between plaintiff's predecessor and defendant borrowers for a certain sum of money bifurcated into two tranches, with one tranche used to pay off an existing mortgage on defendants' properties and the other deposited into a restricted account to be used solely to finance improvements of one of defendants' buildings, was a "building loan contract" as defined under Lien Law § 2 (13). The agreement called for the funds in the restricted account to be "released if, when and as required to finance

LIENS—Cont'd

and pay [for] the construction of” the improvements to the building, “subject to the terms and conditions of” the construction plans, and those loan proceeds were to be secured by a mortgage. Because the loan agreement was a building loan contract, Lien Law § 22 obligated plaintiff to file the agreement in the appropriate county clerk’s office prior to the recording of any mortgage made pursuant thereto, or suffer loss of lien priority. *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352.

PRIORITY.

3. Mortgage Made Pursuant to Unfiled Building Loan Contract.—Plaintiff lender’s mortgage, made pursuant to an unfiled building loan contract for a certain sum of money bifurcated into two tranches, with one tranche used to pay off an existing mortgage on defendants’ properties and the other deposited into a restricted account to be used solely to finance improvements of one of defendants’ buildings, was subordinate to subsequently filed mechanic’s liens only to the extent of the amount of the second tranche. Lien Law § 22 requires that a building loan contract, with or without the sale of land and before or simultaneously with the recording of a building loan mortgage made pursuant to it, must be filed in the clerk’s office of the county where land subject to the contract is located, along with a borrower’s affidavit stating the consideration paid or to be paid for the loan, any expenses incurred or to be incurred in connection with the loan, and the net sum available for the construction project. Failure to comply with the filing requirements changes the ordinary priority of liens, with a properly filed mechanic’s lien taking priority over the interests of the parties to the contract. The purpose of Lien Law § 22 is to give contractors and material suppliers notice of how much money a building loan makes available for construction. The statute does not state that the entire interest of each party to an unfiled building loan contract is subject to a later-filed notice of lien. The subordination penalty logically applies only to funds loaned to pay for improvements. The tranche used to pay off the existing mortgage closed before any monies were advanced for construction, and was not subject to the subordination penalty. *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352.

LIMITATION OF ACTIONS.**THREE-YEAR STATUTE OF LIMITATIONS.**

1. Conflicting Proof of Date Cause of Action Arose.—In a personal injury action, defendant’s motion for summary judgment dismissing the complaint on statute of limitations grounds was incorrectly granted where plaintiff specifically recalled in her verified complaint and bill of particulars that she was injured on a date which would render her case timely commenced. Although defendant tendered sufficient evidence to establish a prima facie showing of its entitlement to judgment as a matter of law based on the expiration of the statute of limitations, plaintiff proffered sufficient proof of a material issue of fact as to the date of injury. CPLR 105 (u) allows the verified complaint and bill of particulars to be considered as affidavits. The conflicting proof pertaining to the incident date presented a question of fact that could not be resolved in the context of a summary judgment motion. *Sanchez v National R.R. Passenger Corp.*, 21 NY3d 890.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MARRIAGE.**PRENUPTIAL AGREEMENT.**

1. Validity — Certificate of Acknowledgment.—The certificate of acknowledgment in relation to defendant husband’s signature on the parties’ prenuptial agreement

MARRIAGE—Cont'd

was defective where it stated only, "On [July 8, 1997], before me came [defendant] described in and who executed the foregoing instrument and duly acknowledged to me that he executed the same." Domestic Relations Law § 236 (B) (3) requires a prenuptial agreement to be acknowledged or proved in the manner required to entitle a deed to be recorded. Pursuant to the statutory provisions governing recording of deeds, a notary public or other officer taking an acknowledgment must execute a certificate of acknowledgment that establishes that the party signing the document orally acknowledged to the notary or other officer that he or she in fact signed the document and that the notary or other officer either actually knew the identity of the signer or secured satisfactory evidence of identity ensuring that the signer was the person described in the document (*see* Real Property Law §§ 292, 303, 306). At the time the agreement here was executed, the statutory requirements were satisfied by boilerplate language stating: "before me came (name of signer) to me known and known to me to be the person described in and who executed the foregoing instrument and duly acknowledged to me that s/he executed the same." The certificate of acknowledgment relating to defendant's signature omitted the "to me known and known to me" language. Absent the omitted language, the certificate did not indicate that the notary public knew the husband or had ascertained through some form of proof that he was the person described in the prenuptial agreement. *Galetta v Galetta*, 21 NY3d 186.

2. Validity — Insufficient Proof to Cure Defective Certificate of Acknowledgment.—In an action for divorce wherein the certificate of acknowledgment in relation to defendant husband's signature on the parties' prenuptial agreement was defective for failing to indicate that the notary public knew defendant or had ascertained that he was the person described in the agreement, an affidavit from the notary public stating that he presumed he had followed his customary practice of confirming the signer's identity and assuring that the signer was the person named in the document was insufficient to raise a triable question of fact as to the propriety of the original acknowledgment procedure. Domestic Relations Law § 236 (B) (3) requires a prenuptial agreement to be acknowledged or proved in the manner required to entitle a deed to be recorded. An unacknowledged nuptial agreement is unenforceable even when the parties acknowledge that the signatures are authentic and the agreement was not tainted by fraud or duress. However, even assuming that a defect in a certificate of acknowledgment could be cured in a case where, as here, there was an attempt to secure an acknowledged document and the evidence consisted of proof that the acknowledgment was properly made in the first instance, defendant's submission was insufficient. A party relying on custom and practice evidence to fill in evidentiary gaps must provide proof of a deliberate and repetitive practice. Here, the notary merely paraphrased the requirement of the statute without detailing any specific procedure he routinely followed to fulfill that requirement. Since the notary had no recollection of actually acknowledging defendant's signature, it was crucial that his affidavit describe a specific protocol that he repeatedly and invariably used. *Galetta v Galetta*, 21 NY3d 186.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTOR VEHICLES.

COLLISION.

1. Four-Vehicle-Chain-Reaction.—In an action arising out of a four-vehicle-chain-reaction accident, viewing the evidence in a light most favorable to plaintiff, the driver of the third vehicle, and the defendant who drove the fourth vehicle, the de-

MOTOR VEHICLES—Cont'd

fendant who operated the first vehicle demonstrated her entitlement to summary judgment dismissing the complaint and all cross claims against her. The nonmoving parties failed to raise a triable issue of fact as to whether the moving defendant's actions as the lead driver in the accident constituted a contributing cause of the collision. *Prine v Santee*, 21 NY3d 923.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

HOME RULE POWERS.

1. Special Law Serving Substantial State Concern — Concurrent Authority of State and Local Legislatures.—The Home Rule section of the State Constitution (art IX, § 2 [b] [2]) does not require an examination into the reasonableness of the distinctions the legislature has made where it has enacted a law of statewide impact on a matter of substantial state concern but has not treated all areas of the state alike. While the language of article IX, § 2 seems broadly to prohibit, in the absence of either a “home rule message” or a certificate of necessity from the governor, the enactment of any special law, i.e., one which applies to one or more, but not all, counties, in relation to the property, affairs or government of any local government, it was long ago recognized that there must be a sizeable area of overlap in which the state legislature acting by special law and local governments have concurrent powers. Article IX, § 3 (a) (3) of the State Constitution, which provides that “Except as expressly provided, nothing in this article shall restrict or impair any power of the legislature in relation to . . . [m]atters other than the property, affairs or government of a local government,” is not a mere redundancy. A great deal of legislation relates both to “the property, affairs or government of a local government” and to “[m]atters other than the property, affairs or government of a local government”—i.e., to matters of substantial state concern. Where that is true, section 3 (a) (3), establishes that section 2 (b) (2) does not prevent the state from acting by special law. *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

2. Special Law Serving Substantial State Concern — Reasonableness Analysis Not Required — Public Works Contracts.—Amendments to the Wicks Law, which requires public entities seeking bids on construction contracts to obtain “separate specifications” for plumbing, electrical and HVAC (heating, ventilating and air conditioning) work where contract costs exceed a certain threshold amount, were not forbidden by the Home Rule section of the State Constitution (art IX, § 2 [b]) notwithstanding that the amendments set differing monetary thresholds for the applicability of the Wicks Law for different counties (L 2008, ch 57, part MM, §§ 1, 2-6, 14) and neither a “home rule message” nor a certificate of necessity from the governor accompanied the legislation. There is a sizeable area of overlap in which the state legislature and local governments have concurrent powers and where there is a matter of substantial state concern the State can act by special law. Inasmuch as it was obvious and undisputed that the manner of bidding on public construction contracts is a matter of substantial state concern, an examination into the reasonableness of the distinctions the legislature made by setting different contract cost thresholds for different counties was not required. The Home Rule provisions were intended to prevent unjustifiable state interference in matters of purely local concern and no such interference occurred here. *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

NOTICE OF CLAIM.

3. Late Notice — Infancy.—The dismissal of a medical malpractice action brought against defendant municipal corporation was affirmed where plaintiff admittedly served a late notice of claim against defendant without seeking leave of court (*see* General Municipal Law § 50-e [1], [5]; CPLR 208). *Plaza v New York City Health & Hosps. Corp. (Jacobi Med. Ctr.)*, 21 NY3d 983.

MUNICIPAL CORPORATIONS—Cont'd**PLANNING.**

4. Site Plan Approval — Applicable Law — Special Facts Exception to General Time of Decision Rule.—In an action seeking a judgment declaring that plaintiff landowner's site plan application to build a commercial center was subject to review under the previous J-2 zoning classification because defendant municipality had unduly delayed the review of the application, the Appellate Division's finding that the evidence at trial did not support Supreme Court's determinations that defendants intentionally and in bad faith delayed processing the site plan application, and selectively enforced the prohibition against commercial centers in a J-2 zoning district against plaintiff, more nearly comported with the weight of the evidence. In land use cases, the law in effect when the application is decided applies, regardless of any intervening amendments to the zoning law. Under the special facts exception to the general time of decision rule, where the landowner establishes entitlement as a matter of right to the underlying land use application, the application is determined under the zoning law in effect at the time the application is submitted. To establish entitlement as a matter of right, the landowner must be in full compliance with the requirements at the time of the application, such that proper action upon the permit would have given the landowner time to acquire a vested right. In addition the landowner must also show extensive delay indicative of bad faith, unjustifiable actions by the municipal officials, or abuse of administrative procedures. Plaintiff failed to meet the threshold requirement that it was entitled to the requested land use permit under the law as it existed when it filed its application, as it was out of compliance with the zoning classification in effect when it submitted the application. Plaintiff claimed that the special facts exception should apply to its case even though it did not technically meet the J-2 requirements as of right, because defendant municipality historically ignored the zoning requirement. The record, however, demonstrated that similarly situated applicants referred to by plaintiff were not similarly situated at all; they either fell within an exception or were within compliance with the J-2 zoning classification. *Rocky Point Drive-In, L.P. v Town of Brookhaven*, 21 NY3d 729.

5. Site Plan Approval — Applicable Law — Special Facts Exception to General Time of Decision Rule.—In an action seeking a judgment declaring that plaintiff landowner's site plan application to build a commercial center was subject to review under the previous J-2 zoning classification because defendant municipality had unduly delayed the review of the application, the Appellate Division did not err when it applied a "bad faith" requirement rather than a negligence standard to plaintiff's claim. In land use cases, the law in effect when the application is decided applies, regardless of any intervening amendments to the zoning law. Under the special facts exception to the general time of decision rule, where the landowner establishes entitlement as a matter of right to the underlying land use application, the application is determined under the zoning law in effect at the time the application is submitted. In order for a landowner to establish entitlement as a matter of right, the landowner must be in full compliance with the requirements at the time of the application, such that proper action upon the permit would have given the landowner time to acquire a vested right. In addition the landowner must also show extensive delay indicative of bad faith, unjustifiable actions by the municipal officials, or abuse of administrative procedures. Plaintiff failed to meet the threshold requirement of entitlement as of right, as it could not meet the zoning requirements and did not have a vested right. Accordingly, the special facts exception was inapplicable to plaintiff, under any standard. *Rocky Point Drive-In, L.P. v Town of Brookhaven*, 21 NY3d 729.

TORT LIABILITY.

6. Governmental Function — Emergency Medical Technicians Responding to 911 Emergency Call.—In a negligence action against defendant municipality arising from the provision of emergency medical care by emergency medical technicians (EMTs) in response to a 911 call for assistance for the infant plaintiff, defendant was acting in a governmental capacity at the time the claim arose and could not be held liable unless it owed a "special duty" to plaintiffs. When a negligence claim is

MUNICIPAL CORPORATIONS—Cont'd

asserted against a municipality, it must be determined whether the municipal entity was engaged in a proprietary function, which would subject it to suit under the ordinary rules of negligence applicable to nongovernmental parties, or acted in a governmental capacity at the time the claim arose. A government entity performs a purely proprietary role when its activities essentially substitute for or supplement traditionally private enterprises. In contrast, it will be deemed to have been engaged in a governmental function when its acts are undertaken for the protection and safety of the public pursuant to the general police powers. Publicly-employed, front-line EMTs and other first responders, who routinely place their own safety and lives in peril in order to rescue others, fulfill a government function because they exist for the protection and safety of the public and not as a substitute for private enterprises. *Applewhite v Accuhealth, Inc.*, 21 NY3d 420.

7. Special Relationship — Emergency Medical Technicians Responding to 911 Emergency Call.—In a negligence action against defendant municipality arising from the provision of emergency medical care by emergency medical technicians (EMTs) in response to a 911 call for assistance for the infant plaintiff, plaintiffs adequately established questions of fact on the applicability of the special duty doctrine, thereby precluding summary judgment for defendant. Whether a municipality has voluntarily assumed a “special relationship” with the plaintiffs in a negligence action beyond the duty that is owed to the public generally depends on the presence of four elements: an assumption by the municipality of an affirmative duty to act on behalf of the injured party; knowledge on the part of the municipality’s agents that inaction could lead to harm; some form of direct contact between the municipality’s agents and the injured party; and the injured party’s justifiable reliance on the municipality’s affirmative undertaking. There was a question of fact as to whether the EMTs who responded to the 911 call placed after the infant plaintiff experienced an episode of anaphylactic shock, through their actions or promises, assumed an affirmative duty in deciding to wait for advanced life support (ALS) paramedics to arrive and undertake more sophisticated medical treatment rather than immediately transporting the child to a nearby hospital. There was also a question of fact as to whether it was reasonable for plaintiff mother to rely on the EMTs’ alleged assurances rather than seek an alternative method for transporting the child to the nearby hospital since plaintiff mother claimed that she was not informed that it would take about 20 minutes for the ALS ambulance to arrive. Although plaintiffs had not specifically identified any other available avenues of protection to which plaintiff mother could have resorted, the allegations raised the question of whether the EMTs may have lulled plaintiffs into a false sense of security. *Applewhite v Accuhealth, Inc.*, 21 NY3d 420.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

DUTY.

1. No Duty to Prevent Intoxicated Patient from Leaving Hospital.—Defendants were properly granted summary judgment dismissing plaintiff’s negligence and medical malpractice action to recover for injuries plaintiff sustained when he was hit by a car sometime after leaving defendant hospital, where he had been brought by a friend seeking the severely intoxicated plaintiff’s admission to defendant’s detoxification facility, since the hospital and defendant emergency room doctor did not owe plaintiff a duty to prevent him from leaving the hospital. Defendants had no right, and therefore had no duty, to prevent plaintiff from leaving the emergency room. Although Mental Hygiene Law § 22.09 authorizes the retention of an intoxicated person brought to a hospital “with his or her objection,” the Mental Hygiene Law makes no provision for the involuntary retention of people who, like plaintiff, come to the hospital voluntarily. Furthermore the hospital and the doctor could not have had a common-law duty to restrain plaintiff since there can be no

NEGLIGENCE—Cont'd

duty to do that which the law forbids. To restrain plaintiff on these facts would have exposed defendants to liability for false imprisonment. While plaintiff had previously been hospitalized at defendant's facility, a patient cannot be confined simply because he had been having suicidal thoughts a month ago. In addition, defendant physician had no duty to call the police upon learning of plaintiff's departure; the police could not, on the facts known to defendant doctor at that time, have forced plaintiff to return. Moreover, nothing in the record would support an inference that there was any causal connection between any alleged departure from the hospital's protocol and plaintiff's injury. *Kowalski v St. Francis Hosp. & Health Ctrs.*, 21 NY3d 480.

MAINTENANCE OF PREMISES.

2. Fall Down Staircase.—In an action arising out of plaintiff's fall down a restaurant staircase, the Appellate Division properly granted defendants' motion for summary judgment since plaintiff failed to raise a triable issue of fact concerning whether defendants' alleged negligence in failing to provide adequate warning of the presence of the staircase or adequate lighting in the staircase and surrounding area caused his fall. *Sato v Ippudo NY*, 21 NY3d 1059.

RES IPSA LOQUITUR.

3. Dislodged Wire Left in Patient's Body after Surgery — Exclusive Control.—In an action arising out of defendant doctor's failure to remove, after an unsuccessful 20-minute search, a guide wire that had dislodged during plaintiff's lung biopsy surgery, plaintiff failed to demonstrate a prima facie case of medical malpractice based upon res ipsa loquitur. The theory of res ipsa loquitur is applied to occurrences where the actual or specific cause of an accident is unknown. To establish a prima facie case of negligence in support of a res ipsa loquitur charge, a plaintiff must establish that the event is of a kind that ordinarily does not occur in the absence of someone's negligence, that the event was caused by an agency or instrumentality within the exclusive control of the defendant, and that the event was not due to any voluntary action or contribution on the part of the plaintiff. While plaintiff argued that the wire could only have dislodged due to the doctor's negligence, she failed to produce any evidence to contradict the doctor's testimony that there were other medical personnel involved in the process of inserting the wire and transporting plaintiff prior to the doctor's discovery that the wire had dislodged. Whether the doctor was in control of the operation did not address the question of whether he was in exclusive control of the instrumentality. Since plaintiff failed to produce any evidence that the doctor had exclusive control of the wire or sufficient proof that eliminated within reason all explanations for the injury other than the doctor's negligence, the control element was not satisfied. Moreover, res ipsa loquitur applies in the context of a medical malpractice action based upon a foreign object only where the object is unintentionally left in a patient following an operative procedure. Here, plaintiff's theory of the case was that the doctor negligently chose to leave the wire. *James v Wormuth*, 21 NY3d 540.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

PARENT, CHILD AND FAMILY.

See, also, **ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS; INFANTS; SCHOOLS; SOCIAL SERVICES**, and other specific titles.

PARENT, CHILD AND FAMILY—Cont'd**ABUSED OR NEGLECTED CHILD.**

1. Severe Abuse — Agency Excused from Making Diligent Efforts to Reunite Parent with Child.—A showing of diligent efforts to encourage and strengthen the parental relationship is not prerequisite to a finding of severe abuse under Family Court Act § 1051 (e) where the factfinder determines that such efforts would be detrimental to the best interests of the child. The presentment agency, in conjunction with, or subsequent to, the filing of an abuse or neglect petition, may move for “a finding that reasonable efforts to return the child to his or her home are no longer required” (Family Ct Act § 1039-b [a]), and reasonable efforts “shall not be required” when “the parent of such child has subjected the child to aggravated circumstances, as defined in” Family Court Act § 1012 (j) (Family Ct Act § 1039-b [b] [1]). Family Court Act § 1012 (j) defines “aggravated circumstances” to include “where a child has been either severely or repeatedly abused, as defined in” Social Services Law § 384-b (8). Family Court Act §§ 1051 (e) and 1012 (j) necessarily import Social Services Law § 384-b (8) (a) in its entirety, and Social Services Law § 384-b (8) (a) (iv) states that Family Court may excuse diligent efforts when they are found to be detrimental to the best interests of the child. *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

2. Severe Abuse — Agency Excused from Making Diligent Efforts to Reunite Parent with Child.—Family Court properly found that diligent efforts to encourage and strengthen the parental relationship between respondent father and his youngest son would be detrimental to the child’s best interests, in accordance with Social Services Law § 384-b (8) (a) (iv), and therefore were not prerequisite to a finding of severe abuse. The judge determined that, in light of respondent’s abuse of an older son when that child was four months old, followed by his severe abuse of his youngest, then five-month-old son some 14 years later, there was little prospect that respondent’s “chronic, long-standing” violent behavior would improve anytime soon, if ever, and it was not in the youngest son’s best interests to languish in foster care in the meantime. *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

3. Severe Abuse — Circumstances Evincing Depraved Indifference to Human Life.—For purposes of Social Services Law § 384-b (8) (a) (i) and its definition of a “severely abused” child, the phrase “circumstances evincing a depraved indifference to human life” refers to the risk intentionally or recklessly posed to the child by the parent’s abusive conduct. Depraved indifference does not mean the same thing for purposes of Social Services Law § 384-b (8) (a) (i) as it does in the Penal Law, where it denotes a culpable mental state beyond mere recklessness—a state of mind reflecting a depraved kind of wantonness. Moreover, the Penal Law establishes crimes that are mutually exclusive, depending on certain distinctions of culpable state of mind. The same cannot be said of the child protective statutes, as either reckless or intentional acts may result in a severe abuse finding under Social Services Law § 384-b (8) (a) (i). *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

4. Severe Abuse — Circumstances Evincing Depraved Indifference to Human Life.—There was record support for the Appellate Division’s finding, based on clear and convincing evidence, that respondent father, acting under circumstances evincing a depraved indifference to human life, severely abused his five-month-old son (Social Services Law § 384-b [8] [a] [i]). For purposes of the “severely abused” definition in Social Services Law § 384-b (8) (a) (i), “circumstances evincing a depraved indifference to human life” refers to the risk intentionally or recklessly posed to the child by the parent’s abusive conduct. The evidence regarding the age of the baby’s injuries—broken ribs and a fractured clavicle—established that respondent must have attacked the baby on at least two different occasions, separated by at least two weeks. Respondent had to have been aware of the life-threatening risks he created when he applied brute force to the baby’s chest and shoulder, as he knew, from an incident that occurred approximately 14 years earlier, that devastating injuries ensued when he brutalized his then four-month-old son. While that prior instance of abuse was too remote in time to support a finding of repeated abuse, it reflected respondent’s utter disregard for his younger son’s life, health and well-being. Additionally, respondent neglected to summon medical aid for the baby’s fractured

PARENT, CHILD AND FAMILY—Cont'd

ribs, even though the baby would have to have experienced and displayed continuous pain and distress; and he delayed seeking medical care for the baby for several hours after he claimed to have first noticed the baby's suffering in connection with the broken clavicle. Finally, respondent offered unbelievable explanations for the baby's injuries to medical personnel and social workers, and he did not testify at the fact-finding hearing. *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

VISITATION.

5. Rebuttable Presumption in Favor of Visitation.—A rebuttable presumption that a noncustodial parent will be granted visitation is an appropriate starting point in any initial determination regarding custody and/or visitation, and may be rebutted through demonstration by a preponderance of the evidence that such visitation would be harmful to the child or proof that the right to visitation has been forfeited. The presumption is not contrary to the holding in *Tropea v Tropea* (87 NY2d 727 [1996]). In *Tropea*, the Court did not reject an initial presumption in favor of visitation, but rather a “mechanical, tiered analysis that prevents or interferes with a simultaneous weighing and comparative analysis of all of the relevant facts and circumstances” involved in deciding a relocation case (*id.* at 738). *Matter of Granger v Misercola*, 21 NY3d 86.

6. Visitation with Incarcerated Parent.—In a proceeding brought by petitioner inmate seeking visitation with the parties' child after respondent mother refused to bring the child to the prison, the lower courts appropriately applied the presumption in favor of visitation and considered whether respondent rebutted the presumption through showing, by a preponderance of the evidence, that visitation would be harmful to the child. *Matter of Granger v Misercola*, 21 NY3d 86.

7. Visitation with Incarcerated Parent.—In a proceeding brought by petitioner inmate seeking visitation with the parties' then three-year-old child after respondent mother refused to bring the child to the prison, there was record support for the finding that the travel would not be harmful to the welfare of the child, and that petitioner made efforts to establish a meaningful relationship with the child. *Matter of Granger v Misercola*, 21 NY3d 86.

8. Visitation with Incarcerated Parent.—The rebuttable presumption that a noncustodial parent will be granted visitation applies when the parent seeking visitation is incarcerated. A parent who is in prison does not forfeit his or her visitation rights by being incarcerated. In deciding whether the presumption is rebutted, the possibility that a visit to an incarcerated parent would be harmful to the child must be considered, together with other relevant facts. Visitation should be denied where it is demonstrated that under all the circumstances visitation would be harmful to the child's welfare, or that the right to visitation has been forfeited. *Matter of Granger v Misercola*, 21 NY3d 86.

PARTIES.**STANDING.**

1. Citizen Taxpayer Challenge to Amendments to Wicks Law.—Plaintiffs lacked standing to challenge certain amendments to the Wicks Law which set differing monetary thresholds for the applicability of the law for different counties and establish apprenticeship requirements applicable to bidders for public contracts (L 2008, ch 57, part MM) pursuant to State Finance Law § 123-b, which permits any “citizen taxpayer” to bring an action against a state officer or employee for causing “a wrongful expenditure, misappropriation, misapplication, or . . . other illegal or unconstitutional disbursement of state funds.” To the extent that plaintiffs' claims related to state expenditures, they were merely claims that state funds were not being spent wisely, not that it was illegal to spend money at all for the questioned activity. Accordingly, plaintiffs failed to allege a sufficient nexus to fiscal activities of the state to allow for section 123-b standing. *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

2. Attorney's Challenge to Assigned Counsel's Provision of Counsel to Unemancipated Minors.—Plaintiff, an attorney who had participated in a county assigned

PARTIES—Cont'd

counsel program, lacked standing to challenge provisions in the assigned counsel program's plan requiring consideration of the minor's parents' financial resources and the assignment of attorneys who were retained by a client who later becomes indigent. Plaintiff was never a minor charged with a crime in the county covered by the plan, nor was he the parent of one. Moreover, plaintiff did not cite an example of any case in which he was assigned to represent a minor and was later forced to withdraw because the client's parents would not provide the financial information called for under the plan. Similarly, plaintiff did not cite a single case in which he or anyone else unsuccessfully sought to be assigned to represent a client in a case where he had previously been privately retained. While plaintiff also claimed that the challenged plan provisions may have caused him to be assigned fewer cases, personal disagreement and speculative financial loss are insufficient to confer standing. Because plaintiff lacked standing, the Appellate Division should not have issued any declaration as to the validity of the challenged provisions or features of the plan. *Roulan v County of Onondaga*, 21 NY3d 902.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PHYSICIANS AND SURGEONS.**MALPRACTICE.**

1. Wire Intentionally Left in Patient's Body after Surgery — Failure to Introduce Evidence Regarding Standard of Medical Care.—Plaintiff's amended complaint in a medical malpractice action was properly dismissed where plaintiff failed to present evidence of the appropriate standard of medical care with regard to defendant doctor's decision, after an unsuccessful 20-minute search for a guide wire that had dislodged inside plaintiff during a lung biopsy surgery, to leave the wire inside plaintiff and end the surgery. Ordinarily, a plaintiff asserting a medical malpractice claim must demonstrate that the doctor deviated from acceptable medical practice, and that such deviation was a proximate cause of the plaintiff's injury. Since plaintiff's theory of the case focused on defendant doctor's intentional choice to leave the wire, rather than the initial dislodgment of the wire, plaintiff was required to establish that the doctor's judgment deviated from accepted community standards of practice, and that such deviation was a proximate cause of the injury. The doctor claimed to have exercised his professional judgment in deciding that extending the period under which plaintiff was anaesthetized and making a larger incision to find and remove the wire was riskier than leaving the wire inside plaintiff. Because the doctor's testimony could not be assessed by the jury based on common knowledge of lay persons, expert opinion evidence was needed to assist the jury's understanding of whether the occurrence would have taken place in the absence of negligence. *James v Wormuth*, 21 NY3d 540.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PRISONS AND PRISONERS.**MEDICAL AND SURGICAL TREATMENT.**

1. Court-Ordered Forced Feeding.—In a proceeding in which petitioner, the superintendent of a correctional facility, sought a court order permitting medical

PRISONS AND PRISONERS—Cont'd

personnel to insert a nasogastric tube and take other reasonable steps necessary to provide hydration and nutrition to respondent inmate, who was on a hunger strike, respondent's claim that the force-feeding order violated his constitutional right to refuse medical treatment was properly rejected. Petitioner had sought a forced-feeding order because respondent's conduct, according to his doctor, had created a substantial risk of imminent death or serious permanent injury. Even assuming the constitutional right respondent asserted existed, and that petitioner's intervention therefore resulted in the curtailment of such a right, the propriety of petitioner's action would be valid if it was reasonably related to legitimate penological interests. Factors to consider under such a standard include the extent to which the right asserted by the inmate is compatible with incarceration; whether the challenged prison action or policy is consistent with the institutional interests that are cited to justify it; whether other means are available to the inmate to exercise the right in question; whether accommodation of the inmate's asserted right will adversely impact the prison population, employees or the allocation of prison resources; and whether, viewed in a pragmatic light, it is feasible for prison authorities to address their institutional concerns through other means. Applying that test, the order permitting petitioner to intervene to prevent respondent's death by feeding via nasogastric tube, if necessary, withstood scrutiny. Taking action to interrupt an inmate hunger strike not only serves to preserve life and prevent a suicide but also to maintain institutional order and security. Petitioner could not effectuate those interests other than by seeking a judicial order permitting feeding by nasogastric tube—less intrusive means had been attempted without success. *Matter of Bezio v Dorsey*, 21 NY3d 93.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC HOUSING.**SUCCESSION RIGHTS.**

1. Proof of Primary Residency — Tenant's Failure to File Income Affidavit.—The determination of respondent New York State Division of Housing and Community Renewal (DHCR) denying petitioner succession rights to a Mitchell-Lama apartment that he shared with his parents since he was one month old, based on the failure of petitioner's mother, the tenant of record, to file an annual income affidavit listing petitioner as a co-occupant for one of the two years prior to her vacatur of the apartment, was arbitrary and capricious because the evidence of petitioner's primary residency was overwhelming and there was no relationship between the failure to file the affidavit and the petitioner's income or occupancy. Regulations providing for succession rights to Mitchell-Lama apartments serve the important remedial purpose of preventing dislocation of long-term residents due to the vacatur of the head of household. Under the regulations, a succession applicant must demonstrate that the unit at issue was his or her primary residence during the two years immediately prior to the tenant's vacatur, requiring the listing of the succession applicant "on the annual income affidavit . . . together with other evidence" (former 9 NYCRR 1727-8.2 [a] [5]). While housing companies and DHCR rely on income affidavits to monitor the number and aggregate income of occupants in determining the appropriate amount of rent and eligibility for the rental subsidy, in the succession context the principal purpose of the income affidavit is to provide proof of the applicant's primary residence. Here, petitioner provided overwhelming evidence that he resided in the apartment during the two years before his parents vacated, a fact that DHCR did not dispute. *Matter of Murphy v New York State Div. of Hous. & Community Renewal*, 21 NY3d 649.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

PUBLIC OFFICERS—Cont'd**TERM OF OFFICE.**

1. Validity of Term Limits for Certain Municipal Officials — District Attorney.—A proceeding to invalidate petitions designating respondent District Attorney as a candidate for that office on the ground that he was ineligible to hold the office for another term because of the term limitations imposed by the county legislature was properly dismissed, as the county was without the power to impose such limitations. Although the district attorney may be an officer serving a county, the office and its holder implicate state concerns. The State Constitution has provisions governing the timing of district attorney elections and terms of office, and the governor has the authority to both remove a district attorney from office and fill a vacancy existing in that office. The office is subject to comprehensive regulation by state law, leaving counties without authority to legislate in that respect. The limitation on the length of time a district attorney can hold office is an improper imposition of an additional qualification for the position. Moreover, permitting county legislators to impose term limits on the office of district attorney would have the potential to impair the independence of that office, and the state has a fundamental and overriding interest in ensuring the integrity and independence of the office of district attorney. *Matter of Hoerger v Spota*, 21 NY3d 549.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

SEARCHES AND SEIZURES.**WARRANTLESS WORKPLACE SEARCHES.**

1. Global Positioning Device Attached to Public Employee's Car.—The attachment of a global positioning system (GPS) device to petitioner state employee's

SEARCHES AND SEIZURES—Cont'd

personal car as part of respondent employer's investigation into whether petitioner was submitting false time reports was a search within the meaning of the State and Federal Constitutions that fell within the workplace exception to the warrant requirement. Although the object of the search was petitioner's personal car, a public employer is not required to get a warrant for a search designed to find out the location of the automobile an employee is using when that employee is, or claims to be, working for the employer. When an employee chooses to use his or her car during the business day, GPS tracking of the car may be considered a workplace search. Items such as a personal photograph on an employee's desk, or a personal letter posted on an employee bulletin board, are part of the workplace, and the location of a personal car used by the employee during working hours is not more private. The requirement that petitioner report his arrival and departure times to his employer diminished any expectation he might have had that the location of his car during the hours he claimed to be at work was no one's concern but his. *Matter of Cunningham v New York State Dept. of Labor*, 21 NY3d 515.

2. Global Positioning Device Attached to Public Employee's Car — Reasonableness.—The attachment of a global positioning system (GPS) device to petitioner state employee's personal car that recorded all of the car's movements all day every day for a month as part of respondent employer's investigation into whether petitioner was submitting false time reports was not a reasonable search under either the State or Federal Constitution. Although the search did not require a warrant because it fell within the workplace exception to the warrant requirement, it had to be reasonable in its scope. The GPS tracking of petitioner's car on all evenings, all weekends, and several days while petitioner was on vacation was excessively intrusive. Respondent managed to remove a GPS device from petitioner's car three times when it suited respondent's convenience to do so—twice to replace it with a new device, and a third time after the surveillance ended—yet failed to remove it, for example, when petitioner started his annual vacation. Where, as here, an employer conducts a GPS search without making a reasonable effort to avoid tracking an employee outside of business hours, the search as a whole must be considered unreasonable. Suppression of the GPS evidence used against petitioner in the disciplinary proceeding was required even though none of the evidence resulted from surveillance outside of business hours. *Matter of Cunningham v New York State Dept. of Labor*, 21 NY3d 515.

SEPARATION.

See HUSBAND AND WIFE AND OTHER DOMESTIC RELATIONSHIPS.

SLANDER.

See LIBEL AND SLANDER.

SOCIAL SERVICES.

DISQUALIFICATION OR TERMINATION AS MEDICAID PROVIDER.

1. Obligation to Provide Reason for Exclusion.—A determination by the Office of the Medicaid Inspector General (OMIG) to terminate petitioner physician's participation in New York's Medicaid program, based on a consent order between the Board for Professional Medical Conduct and petitioner wherein petitioner pleaded no contest to charges of professional misconduct and agreed to a period of probation, was arbitrary and capricious inasmuch as OMIG did not explain why the consent order caused it to exercise its discretion pursuant to 18 NYCRR 515.7 (e) to exclude petitioner from the Medicaid program. Under the governing regulations, OMIG is authorized to take immediate action where it has received notice that a person has been found to have committed a violation of a federal or state law constituting an act of professional misconduct after a final agency determination or after resolution of the proceeding by stipulation or agreement (18 NYCRR 515.7 [a], [e]). The decision to take action is discretionary, obligating the agency to explain why in a particular case exclusion was thought to be warranted. Here, in the recommendation section of the consent order review sheet completed by the OMIG audi-

SOCIAL SERVICES—Cont'd

tor, there were few handwritten, barely legible, crossed out and interlined notes that appeared to merely repeat that there were two charges of negligence and that petitioner was placed on probation. The auditor's recommendation to terminate petitioner from the Medicaid program was approved without comment by four additional agency reviewers, but the basis for the recommendation was nowhere in the record. *Matter of Koch v Sheehan*, 21 NY3d 697.

2. Scope of Authority of Medicaid Inspector General.—The Office of the Medicaid Inspector General (OMIG) is authorized to remove a physician from New York's Medicaid program in reliance solely on a consent order between the physician and the Board for Professional Medical Conduct (BPMC), regardless of whether BPMC chooses to suspend the physician's license or OMIG conducts an independent investigation. As a condition of receipt of federal funding, states must institute administrative procedures enabling them to exclude Medicaid providers for furnishing substandard services. OMIG has the responsibility to pursue civil and administrative enforcement actions against individuals who engage in illegal or improper acts, and in doing so must consider the quality and availability of medical care and services and the best interest of both the Medicaid program and its recipients (Public Health Law § 32 [6]). Under the governing regulations, OMIG is authorized to take immediate action where it has received notice that a person has been found to have committed a violation of a federal or state law constituting an act of professional misconduct after a final agency determination or after resolution of the proceeding by stipulation or agreement (18 NYCRR 515.7 [e]). A consent order is a stipulation or agreement resolving a proceeding alleging professional misconduct and no statute or regulation requires OMIG to conduct an independent investigation, develop additional information or defer to BPMC before making a decision to take action. Here, where petitioner physician entered into a consent order with BPMC pleading no contest to charges of professional misconduct and agreeing to a period of probation, OMIG's determination to terminate petitioner's participation in the Medicaid program on the basis of that consent order fell squarely within OMIG's powers. *Matter of Koch v Sheehan*, 21 NY3d 697.

3. Scope of Authority of Medicaid Inspector General.—The Office of the Medicaid Inspector General (OMIG) was not bound by the sanctions imposed by the Board for Professional Medical Conduct (BPMC) in a consent order wherein petitioner physician pleaded no contest to charges of professional misconduct and agreed to a period of probation. While BPMC and OMIG are both units within the New York State Department of Health, they each have separate statutory authority and different purposes. A settlement to resolve charges of professional misconduct with BPMC does not prevent subsequent action by OMIG to exclude the physician from the Medicaid program. *Matter of Koch v Sheehan*, 21 NY3d 697.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATE.

CLAIM AGAINST STATE.

1. Regulatory Taking — Closing of Railroad Crossing.—A claim against the State to recover compensation for an alleged regulatory taking of claimant's property based on the Department of Transportation's order requiring the closure of a railroad crossing that claimant had used to move equipment from one part of its land to another, was without merit. The record showed that the Department ordered the closure after it had determined that the crossing presented a safety hazard, and that determination was upheld in a prior CPLR article 78 proceeding as being supported by substantial evidence. The conclusion was inescapable that the closure of the crossing was a proper exercise of the State's police power. Moreover, claimant failed to show the extent to which the Department's action diminished the value of its land, and did not argue that its easement to cross the railroad tracks should have been treated as an item of property separate from the land itself. *Island Park, LLC v State of New York*, 21 NY3d 981.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

STATUTES.**RETROACTIVE APPLICATION OF STATUTE.**

1. Tax Statute — Due Process Clause.—In five actions and proceedings challenging the retroactive application of certain amendments to General Municipal Law § 959 (L 2009, ch 57, part S-1, § 3) that introduced two new criteria that businesses must meet to retain their certificates of eligibility for the Empire Zones Program and its state tax incentives, plaintiffs' constitutional challenges to the retroactive application were valid Due Process Clause challenges. While the Fifth Amendment's Takings Clause is but one of many constitutional provisions that express principles of antiretroactivity, plaintiffs' claims were not valid Takings Clause challenges, as characterized by the Appellate Division decisions. The test for whether a retroactive tax violates the Due Process Clause is different from the test for whether a retroactive tax is an unconstitutional taking. An aggrieved taxpayer may choose to make a claim that a retroactive tax violates the Due Process Clause under the multi-factor balancing-of-equities test set forth in *Matter of Replan Dev. v Department of Hous. Preserv. & Dev. of City of N.Y.* (70 NY2d 451, 456 [1987]). The taxpayer additionally may choose to challenge the statute under the Takings Clause, but must prove that the tax amounted to flagrant abuse and the seizure of property, a more difficult task. *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.

2. Tax Statute — Due Process Clause.—The retroactive application of certain amendments (the 2009 Amendments) to General Municipal Law § 959 (L 2009, ch 57, part S-1, § 3) that introduced two new criteria that businesses must meet to retain their certificates of eligibility for the Empire Zones Program and its state tax incentives violated the due process rights of plaintiffs, businesses which were certified under the Program and issued certificates of eligibility by the State prior to the retroactive application date of January 1, 2008. The three important factors in determining whether a retroactive tax infringes on a taxpayer's due process rights are the taxpayer's forewarning of a change in the legislation and the reasonableness of reliance on the old law, the length of the retroactive period, and the public purpose for retroactive application. The first factor weighed in favor of plaintiffs as they had no warning and no opportunity at any time in 2008 to alter their behavior in anticipation of the impact of the 2009 Amendments. In addition, the 2009 Amendments were not meant to cure an unintended error by the legislature, but rather to increase tax receipts for the state budget. Plaintiffs appeared to have conducted their business affairs in a manner consistent with existing Program requirements in 2008, justifiably relying on the receipt of the tax benefits that were then in effect. The second factor also benefitted plaintiffs since the length of retroactivity, regardless of whether the period of retroactivity was deemed to span 16 or 32 months, was excessive. Moreover, on the third factor, the State failed to set forth a valid public purpose for the retroactive application. *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**ASSESSMENT.**

1. Appraisal Reports of Taxing Authority — Procedural Deficiency.—In an RPTL article 7 proceeding to review tax assessments on property allegedly contaminated

TAXATION—Cont'd

by lead paint, the fact that Supreme Court struck the appraisal reports of respondent municipal taxing authority because of a procedural deficiency did not require a finding in favor of petitioner, who bore the ultimate burden to rebut the presumption of validity accorded to the tax assessments issued by respondent municipality. To carry his burden, petitioner had to show that the market value of the properties was diminished by the presence of lead paint, not its mere existence. To hold otherwise would permit a taxpayer to avoid his or her fair share of the tax burden while, as in petitioner's case, reaping the benefits of a rental market that was unaffected by the presence of the contaminant, without having incurred any costs to remediate or abate the lead-based conditions. Accordingly, where the trial court declined to credit petitioner's appraisal reports, and the record did not demonstrate a diminution in market value caused by environmental contamination or hazards, petitioner failed to meet his burden and there was no basis to disturb the presumption of validity in favor of the municipality. *Matter of Roth v City of Syracuse*, 21 NY3d 411.

2. Presumption of Validity — Failure to Demonstrate Diminution in Market Value by Presence of Lead Paint.—In an RPTL article 7 proceeding challenging the tax assessments on certain of petitioner's residential properties the trial court did not err by failing to consider the impact of lead paint contamination upon the market value of the properties where petitioner failed to proffer substantial evidence demonstrating a diminution in market value to his properties caused by the presence of the lead paint and consequently did not rebut the presumption of validity that attached to the tax assessments by respondent local taxing authority. A petitioner challenging the accuracy of a tax valuation has the initial burden of rebutting the presumption of validity attaching to the valuation made by the taxing authority, and only where petitioner meets that burden must the court weigh the entire record to determine if petitioner has established by a preponderance of the evidence that the property in question was overvalued. Notwithstanding the alleged presence of lead paint during the tax years in question, petitioner's properties continued to generate rental income, and petitioner did not otherwise demonstrate that the presence of lead-based contaminants depressed the market value of the properties. Moreover, there was no evidence that a buyer of the properties would have demanded an abatement in the purchase price to account for the contamination. There was no immediate legal requirement to abate the lead paint from the properties, and the ubiquitous nature of lead paint in residential properties undermined petitioner's unsupported contention that there was a lead paint "stigma" depressing market value. Thus, petitioner's proposed remediation costs were not an appropriate factor to be considered in evaluating the tax assessments of his properties. *Matter of Roth v City of Syracuse*, 21 NY3d 411.

EXEMPTIONS.

3. Decertification of Empire Zone Business Enterprise — Statutory Procedures.—Defendant Department of Economic Development's decertification of plaintiff, a commercial real estate company that had obtained certification as an Empire Zone business in 2000, because plaintiff failed the 1:1 benefit-cost test based upon a review of the business annual reports (BARs) plaintiff had filed for 2001-2007, was not arbitrary and capricious. Although plaintiff maintained that its benefit-cost ratio would have been greater than 4:1 if its year 2000 investments were included in the State's evaluation, defendant rationally decided to tally investments beginning in 2001, the first full year of the Empire Zones Program. General Municipal Law § 959 (w) states that defendant's decertification review would be based on at least three BARs that the business had prepared and filed with the Empire Zones Program. Defendant had promulgated regulations in 5 NYCRR 11.9 (c) (2) stating that it would review the BARs from the years 2001 to 2007. Defendant's regulation does not conflict with the statutory directive in General Municipal Law § 959 to consider an Empire Zone business's total performance. The statute did not require that defendant look at all available BARs in making a decertification decision under the 1:1 test. *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.

TOWNS.

See MUNICIPAL CORPORATIONS.

TRIAL.

INSTRUCTIONS.

1. Medical Malpractice Action — Burden of Proof.—In a medical malpractice action, the trial court's charge on plaintiffs' burden of proof, instructing the jury that an "act or omission is regarded as a cause of an injury if it was a substantial factor in bringing about the injury . . . [t]hat is, if it had such an effect in producing the injury that reasonable people would regard it as a cause of the injury," did not improperly reduce plaintiffs' burden of proof. A plaintiff must generally show that the defendant's negligence was a substantial factor in producing the injury to satisfy the burden of proving a prima facie case in a medical malpractice action. The trial court recited the proximate cause charge directly from the Pattern Jury Instructions, explicitly instructing the jury as to plaintiffs' burden of proof in the case. Further, at the outset of the charge, the court instructed the jury that "the burden of the proof in this case rests with the plaintiffs," and made clear that the plaintiffs had to establish by a preponderance of the evidence defendants' negligence. Taking the jury charge as a whole, it did not improperly alter the causation standard or plaintiffs' burden of proof. *Wild v Catholic Health Sys.*, 21 NY3d 951.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.

DEATH BENEFITS.

1. Apportionment.—The Workers' Compensation Law did not require apportionment of death benefits between work-related and non-work-related causes of death in fashioning an award to claimant upon the death of her husband, whose cause of death was attributed to both a work-related pulmonary disease and his subsequent, non-work-related thyroid cancer. There is no language in Workers' Compensation Law § 16, which governs eligibility for and the amount of death benefits, to suggest that respondent Workers' Compensation Board should apportion death benefits to work-related and non-work-related causes when fashioning an award. Instead, the legislature made employers joint-and-several insurers of their injured employees' lives, subject to a prescribed schedule of payments. The death benefit is not about replacing lost wages, but rather compensates for a life lost at least partly because of work-related injury or disease. Although Workers' Compensation Law § 15 (7), which governs compensation benefits for previously disabled employees who suffer a subsequent work-related injury, specifies that the measure of compensation or death benefits is the employee's earning capacity at the time of the later work-related injury, which would necessarily reflect any diminished earning capacity due to the previous disability, that section is not implicated where, as here, an employee does

WORKERS' COMPENSATION—Cont'd

not suffer a disability in a compensation sense prior to a work-related injury or disablement. In any event, section 15 (7) says nothing about apportionment of death benefits between work-related and non-work-related causes of death. *Matter of Hroncich v Con Edison*, 21 NY3d 636.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

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§ 108 (7) (“Domestic animal” defined). *Hastings v Sauve*, 21 NY3d 122.

CIVIL PRACTICE LAW AND RULES.

105 (u) (“Verified pleading” defined). *Sanchez v National R.R. Passenger Corp.*, 21 NY3d 890.

208 (Limitations of time; tolling; infancy, insanity). *Plaza v New York City Health & Hosps. Corp. (Jacobi Med. Ctr.)*, 21 NY3d 983.

3215 (f) (Default judgment; proof). *Manhattan Telecom. Corp. v H & A Locksmith, Inc.*, 21 NY3d 200.

5201 (a) (Enforcement of money judgments; debt or property subject to enforcement). *Verizon New England Inc. v Transcom Enhanced Servs., Inc.*, 21 NY3d 66.

5201 (b) (Enforcement of money judgments; debt or property subject to enforcement). *Verizon New England Inc. v Transcom Enhanced Servs., Inc.*, 21 NY3d 66.

5222 (b) (Enforcement of money judgments; restraining notice; effect of restraint; prohibition of transfer; duration). *Verizon New England Inc. v Transcom Enhanced Servs., Inc.*, 21 NY3d 66.

5225 (b) (Enforcement of money judgments; property not in possession of judgment debtor). *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55.

5512 (a) (Appealable paper; entry of order made out of court). *Kane v Galtieri*, 21 NY3d 1049.

5513 (b) (Time to move for permission to appeal). *Manko v Broome*, 21 NY3d 907; *People v James*, 21 NY3d 908; *Corrigan v Stellar Mgt., LLC*, 21 NY3d 985; *Matter of Barbara N. (Doar)*, 21 NY3d 1061.

5514 (c) (Extension of time to take appeal or to move for permission to appeal; other extensions of time; substitutions or omissions). *Matter of Barbara N. (Doar)*, 21 NY3d 1061.

5601 (Appeals to Court of Appeals as of right). *People v Riley*, 21 NY3d 901; *Stenroos v Maecker*, 21 NY3d 958; *Yuan Zhai v Chemical Bank*, 21 NY3d 1039; *Kane v Galtieri*, 21 NY3d 1049; *Tenenbaum v State Commr. of Hous. & Community Renewal*, 21 NY3d 1058.

5601 (a) (Appeals to Court of Appeals as of right; dissent). *Reis v Volvo Cars of N. Am.*, 21 NY3d 1051.

5601 (b) (2) (Appeals to Court of Appeals as of right; constitutional grounds). *Matter of Covington v Fischer*, 21 NY3d 999; *Town of Montauk v Cortez-Vasquez*, 21 NY3d 1066.

5601 (c) (Appeals to Court of Appeals as of right; from order granting new trial or hearing, upon stipulation for judgment absolute). *Bond v Giebel*, 21 NY3d 884.

5601 (d) (Appeals to Court of Appeals as of right; based upon nonfinal determination of Appellate Division). *Matter of State of New York v Daniel OO.*, 21 NY3d 1038.

5602 (a) (Appeals to Court of Appeals by permission). *Gonzales v Zinner*, 21 NY3d 897; *People v Pearson*, 21 NY3d 901.

5602 (a) (2) (Appeals to Court of Appeals by permission). *Matter of RCN Telecom Servs. of N.Y., LP v Frankel*, 21 NY3d 978; *Schulz v State of N.Y. Exec.*, 21 NY3d 1051.

CIVIL PRACTICE LAW AND RULES—Continued

5611 (When Appellate Division order deemed final). *Echostar Satellite L.L.C. v ESPN, Inc.*, 21 NY3d 1032.

7002 (a) (Habeas corpus; petition; by whom made). *People ex rel. Mitchell D.G. v Interfaith Med. Ctr.*, 21 NY3d 1000.

CIVIL RIGHTS LAW.

§ 74 (Privileges in action for libel; fair and true report of any judicial proceeding). *Alf v Buffalo News, Inc.*, 21 NY3d 988.

CIVIL SERVICE LAW.

§ 201 (4) (Public Employees' Fair Employment Act; "terms and conditions of employment" defined). *Matter of Chenango Forks Cent. Sch. Dist. v New York State Pub. Empl. Relations Bd.*, 21 NY3d 255.

CORRECTION LAW.

§ 168-n (3) (Sex Offender Registration Act; judicial determination; 20-day notice of proceeding). *People v Rodriguez*, 21 NY3d 1030.

CRIMINAL PROCEDURE LAW.

195.20 (Waiver of indictment; written instrument). *People v Milton*, 21 NY3d 133.

270.20 (2) (Trial jury; challenge for cause of individual juror). *Matter of Hoerger v Spota*, 21 NY3d 549.

270.35 (Trial jury; discharge of juror). *People v Mejias*, 21 NY3d 73.

310.30 (Jury deliberation; request for information). *People v Alcide*, 21 NY3d 687; *People v Williams*, 21 NY3d 932.

450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Riley*, 21 NY3d 901.

460.15 (Certificate granting leave to appeal to intermediate appellate court). *People v Reina*, 21 NY3d 1027.

460.20 (Certificate granting leave to appeal to Court of Appeals). *People v Ariosa*, 21 NY3d 899; *People v Pagan*, 21 NY3d 900; *People v Oathout*, 21 NY3d 939; *People v Michael*, 21 NY3d 977; *People v Jackson*, 21 NY3d 1026; *People v McNeill*, 21 NY3d 1026; *People v Reina*, 21 NY3d 1027; *People v Richardson*, 21 NY3d 1027; *People v Robbs*, 21 NY3d 1028.

470.05 (2) (Determination of appeals; preservation of issue for review). *People v Cantave*, 21 NY3d 374.

690.40 (1) (Search warrants; determination of application; examination under oath). *People v Chisholm*, 21 NY3d 990.

720.20 (1) (Youthful offender determination; when and how made; procedure thereupon; court must order presentence investigation of defendant). *People v Rudolph*, 21 NY3d 497.

DOMESTIC RELATIONS LAW.

§ 236 (B) (3) (Equitable distribution; agreement of parties). *Galetta v Galetta*, 21 NY3d 186.

EXECUTIVE LAW.

§ 63 (12) (Proceeding by Attorney General to enjoin repeated fraudulent or illegal acts; restitution). *People v Greenberg*, 21 NY3d 439.

FAMILY COURT ACT.

§ 1012 (j) (Child protective proceedings; "aggravated circumstances" defined). *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

§ 1039-b (Child protective proceedings; termination of reasonable efforts by agency to return child to his or her home). *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

§ 1051 (e) (Child protective proceedings; sustaining or dismissing petition; finding of abuse, severe abuse or repeated abuse). *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

GENERAL BUSINESS LAW.

Art 23-A (Fraudulent practices in respect to stocks, bonds and other securities). *People v Greenberg*, 21 NY3d 439.

GENERAL BUSINESS LAW—Continued

- § 349 (Consumer fraud; deceptive acts and practices). *Schlessinger v Valspar Corp.*, 21 NY3d 166.
- § 395-a (Maintenance agreements). *Schlessinger v Valspar Corp.*, 21 NY3d 166.
- § 395-a (2) (Maintenance agreements; termination during term of agreement). *Schlessinger v Valspar Corp.*, 21 NY3d 166.

GENERAL MUNICIPAL LAW.

- § 50-e (1) (Notice of claim; when service required; time for service). *Plaza v New York City Health & Hosps. Corp. (Jacobi Med. Ctr.)*, 21 NY3d 983.
- § 50-e (5) (Notice of claim; application for leave to serve late notice). *Plaza v New York City Health & Hosps. Corp. (Jacobi Med. Ctr.)*, 21 NY3d 983.
- § 959 (New York State Empire Zones; responsibilities of Commissioner of Economic Development). *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.
- § 959 (w) (New York State Empire Zones; responsibilities of Commissioner of Economic Development; decertification review). *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.

INSURANCE LAW.

- § 3420 (d) (Liability insurance; disclaimer of coverage). *Roman Catholic Diocese of Brooklyn v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 21 NY3d 139.

JUDICIARY LAW.

- § 14 (Disqualification of judge by reason of interest or consanguinity). *Georgitsi Realty, LLC v Penn-Star Ins. Co.*, 21 NY3d 606.
- § 21 (Judge other than of Court of Appeals or Appellate Division not to decide question argued during his or her absence). *People v Hampton*, 21 NY3d 277.
- § 44 (8) (Suspension of judges). *Matter of George*, 21 NY3d 931.
- § 90 (8) (Admission to and removal from practice by Appellate Division; character committees). *Matter of Brandes*, 21 NY3d 895; *Matter of Donofrio*, 21 NY3d 896.

LABOR LAW.

- § 196-d (Payment of wages; gratuities). *Barenboim v Starbucks Corp.*, 21 NY3d 460.
- § 220 (3) (a) (Public work; hours, wages and supplements). *De La Cruz v Caddell Dry Dock & Repair Co., Inc.*, 21 NY3d 530.
- § 222 (2) (e) (Project labor agreements; apprenticeship training requirements). *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.
- § 240 (1) (Scaffolding and other devices for use of employees; duties of contractors and owners to supply safety devices). *Soto v J. Crew Inc.*, 21 NY3d 562.

LIEN LAW.

- § 2 (13) (“Building loan contract” defined). *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352.
- § 22 (Mechanics’ liens; building loan contract). *Altshuler Shaham Provident Funds, Ltd. v GML Tower, LLC*, 21 NY3d 352.

MENTAL HYGIENE LAW.

- Art 10 (Sex offenders requiring civil commitment or supervision). *Matter of State of New York v Daniel OO.*, 21 NY3d 1038.
- § 22.09 (Emergency services for persons intoxicated, impaired, or incapacitated by alcohol and/or substances). *Kowalski v St. Francis Hosp. & Health Ctrs.*, 21 NY3d 480.

NEW YORK CITY ADMINISTRATIVE CODE.

- § 20-453 (General vendors; license required). *People v Lam*, 21 NY3d 958.

NEW YORK CONSTITUTION.

- Art I, § 17 (Labor not commodity; hours and wages in public work; right to organize and bargain collectively). *De La Cruz v Caddell Dry Dock & Repair Co., Inc.*, 21 NY3d 530.
- Art III, § 17 (Legislature; cases in which private or local bills shall not be passed). *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289.

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- Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *People v Riley*, 21 NY3d 901; *Stenroos v Maecker*, 21 NY3d 958.
- Art VI, § 3 (b) (2) (Jurisdiction of Court of Appeals). *Matter of Covington v Fischer*, 21 NY3d 999; *Town of Montauk v Cortez-Vasquez*, 21 NY3d 1066.
- Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Gonzales v Zinner*, 21 NY3d 897.
- Art VI, § 5 (b) (Power of appellate courts upon appeal from judgment or order; transfer of appeals taken to improper appellate court). *Matter of Covington v Fischer*, 21 NY3d 999; *Town of Montauk v Cortez-Vasquez*, 21 NY3d 1066.
- Art VI, § 22 (Commission on Judicial Conduct; membership; organization and procedure; review by Court of Appeals; discipline of judges). *Matter of George*, 21 NY3d 931.
- Art VIII, § 1 (Gift or loan of property or credit of local subdivisions prohibited; exceptions for enumerated purposes). *Matter of Chenango Forks Cent. Sch. Dist. v New York State Pub. Empl. Relations Bd.*, 21 NY3d 255.
- Art IX, § 2 (b) (1) (Powers and duties of legislature; home rule powers of local governments; statute of local governments). *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289.
- Art IX, § 2 (b) (2) (Powers and duties of legislature; home rule powers of local governments; statute of local governments; legislature to act only by general law or special law upon “home rule” message or message of necessity from Governor). *Greater N.Y. Taxi Assn. v State of New York*, 21 NY3d 289; *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.
- Art IX, § 3 (a) (3) (Local governments; existing laws to remain applicable; home rule). *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

PENAL LAW.

- § 70.25 (2) (Concurrent and consecutive terms of imprisonment). *People v Brown*, 21 NY3d 739.
- § 70.30 (Calculation of terms of imprisonment). *People v Brinson*, 21 NY3d 490.
- § 120.05 (4) (Assault, second degree; recklessly causes serious physical injury). *People v Asaro*, 21 NY3d 677.
- § 125.15 (1) (Manslaughter, second degree; recklessly causes death of another person). *People v Asaro*, 21 NY3d 677.
- § 125.20 (4) (Manslaughter, first degree; victim less than 11 years old). *People v Barboni*, 21 NY3d 393.
- § 125.25 (4) (Murder, second degree; depraved indifference murder of child). *People v Barboni*, 21 NY3d 393.
- § 265.02 (4) (Former) (Criminal possession of weapon, third degree). *People v Brown*, 21 NY3d 739.
- § 265.03 (3) (Criminal possession of weapon, second degree). *People v Brown*, 21 NY3d 739.
- § 400.00 (3) (a) (Licenses to carry, possess, repair and dispose of firearms; application procedure). *Osterweil v Bartlett*, 21 NY3d 580.

PUBLIC HEALTH LAW.

- § 32 (6) (Office of Medicaid Inspector General; functions, duties and responsibilities). *Matter of Koch v Sheehan*, 21 NY3d 697.
- § 2808 (5) (c) (Residential health care facilities; rates of payment; restriction on equity withdrawals and asset transfers). *Brightonian Nursing Home v Daines*, 21 NY3d 570.

REAL PROPERTY LAW.

- § 292 (Recording instruments affecting real property; by whom conveyance must be acknowledged or proved). *Galetta v Galetta*, 21 NY3d 186.
- § 303 (Recording instruments affecting real property; requisites of acknowledgments). *Galetta v Galetta*, 21 NY3d 186.
- § 306 (Recording instruments affecting real property; certificate of acknowledgment or proof). *Galetta v Galetta*, 21 NY3d 186.

REGULATIONS OF DEPARTMENT OF ECONOMIC DEVELOPMENT.

5 NYCRR 11.9 (c) (Economic development zones; certification of business enterprises; revocation of certification). *James Sq. Assoc. LP v Mullen*, 21 NY3d 233.

REGULATIONS OF DEPARTMENT OF LABOR.

12 NYCRR 146-2.14 (e) (Hospitality industry; tip sharing and tip pooling; eligibility). *Barenboim v Starbucks Corp.*, 21 NY3d 460.

12 NYCRR 601.4 (a) (5) (Manpower Services Division; apprenticeship training; eligibility; sponsor to have permanent facility in state). *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

REGULATIONS OF DEPARTMENT OF SOCIAL SERVICES.

18 NYCRR 515.7 (Policies and standards governing provision of medical and dental care; immediate sanctions). *Matter of Koch v Sheehan*, 21 NY3d 697.

REGULATIONS OF DIVISION OF HOUSING AND COMMUNITY RENEWAL.

9 NYCRR 1727-8.2 (a) (5) (Former) (State-assisted housing constructed by private enterprise; succession requirements; proof of primary residency). *Matter of Murphy v New York State Div. of Hous. & Community Renewal*, 21 NY3d 649.

RULES OF COURT OF APPEALS.

22 NYCRR 500.22 (b) (2) (Motions for permission to appeal in civil cases; content; showing of timeliness of motion). *Breytman v Schechter*, 21 NY3d 974.

22 NYCRR 500.23 (a) (1) (iii) (Amicus curiae relief; motions for relief; normal course appeals and normal course certified questions; timeliness). *Caronia v Philip Morris USA, Inc.*, 21 NY3d 937.

22 NYCRR 500.27 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *Doe v Guthrie Clinic, Ltd.*, 21 NY3d 895; *Cruz v TD Bank, N.A.*, 21 NY3d 906; *People v Diggins*, 21 NY3d 935; *Executive Plaza, LLC v Peerless Ins. Co.*, 21 NY3d 975; *Isabella v Koubek*, 21 NY3d 1062; *Quaker Hills, LLC v Pacific Indem. Co.*, 21 NY3d 1070.

SESSION LAWS.

2008, ch 57, part MM (Wicks Law; applicability thresholds). *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

SOCIAL SERVICES LAW.

§ 384-b (8) (a) (i) (Guardianship and custody of destitute or dependent children; “severely abused” child defined). *Matter of Dashawn W. (Antoine N.)*, 21 NY3d 36.

STATE FINANCE LAW.

§ 123-b (Action for declaratory and equitable relief; citizen taxpayer standing). *Empire State Ch. of Associated Bldrs. & Contrs., Inc. v Smith*, 21 NY3d 309.

UNITED STATES CONSTITUTION.

5th Amend (Double jeopardy). *People v Brinson*, 21 NY3d 490.

6th Amend (Jury trials for crimes; right to public trial). *People v Echevarria*, 21 NY3d 1.

WORKERS’ COMPENSATION LAW.

§ 15 (7) (Schedule in case of disability; previous disability). *Matter of Hroncich v Con Edison*, 21 NY3d 636.

§ 16 (Death benefits). *Matter of Hroncich v Con Edison*, 21 NY3d 636.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|--|
| 1. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 2. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufy to Edward R. Lutfy. |
| 3. 45 NY2d 233 (Simonds v Simonds) | At 45 NY2d 241, line 3 of last full paragraph, change contructive to constructive. |
| 4. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 5. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 6. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 7. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 8. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 9. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 10. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |

11. **85 NY2d 139** (British Land [Maryland] v Tax Appeals Trib. of State of N.Y.) At 85 NY2d 146, second paragraph, line 13, change lead to led.
12. **88 NY2d 41** (Town of Orangetown v Magee) At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733.
13. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
14. **93 NY2d 382** (BDO Seidman v Hirshberg) At 93 NY2d 391, line 25, change former employer to former employee.
15. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
16. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).
17. **4 NY3d 739** (Matter of Peter R. [Stacey R.]) Change the reported below citation from 8 AD3d 567 to 8 AD3d 576.
18. **4 NY3d 857** (People v Smith [DeJesus]) Change the reported below citation from 15 AD3d 1016 (NY) to 15 AD3d 1015 (NY).
19. **5 NY3d 864** (Matter of Kadeem W.) At end of first paragraph on page 865, insert the following: (2) vacated the fact-finding order, and (3) dismissed the petition.
20. **6 NY3d 427** (People v Boyer) At 6 NY3d 432, line 31, change 79 NY2d at 922 to 74 NY2d at 922.

Errata

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| 21. 7 NY3d 703 (Matter of Park v Kapica) | Change the page number of the reported below citation from 802 to 801. |
| 22. 8 NY3d 944 (People v Charriez) | In Criminal Leave Table, middle column, change 2007 NY Slip Op 81340(U) to 2006 NY Slip Op 81340(U). |
| 23. 9 NY3d 923 (People v Jacobs) | In Criminal Leave Table, middle column, change 37 AD3d 866 to 37 AD3d 868. |
| 24. 11 NY3d 875 (People v Ford) | On line 5 of the Summary, change Bronx County to New York County. |
| 25. 13 NY3d 511 (Matter of Goldstein v New York Urban Dev. Corp.) | At 13 NY3d 534, lines 13 and 14 from the bottom of the page, change deposition to [disposition]. |